II

(Non-legislative acts)

INTERNATIONAL AGREEMENTS

COUNCIL AND COMMISSION DECISION

of 29 March 2010

on the conclusion of the Stabilisation and Association Agreement between the European Communities and their Member States, of the one part, and the Republic of Montenegro, of the other part

(2010/224/EU, Euratom)

THE COUNCIL OF THE EUROPEAN UNION AND THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 217 in conjunction with Article 218(6)(a) and (8) thereof,

Having regard to the Treaty establishing the European Atomic Energy Community, and in particular the second paragraph of Article 101 thereof,

Having regard to the proposal from the European Commission,

Having regard to the consent of the European Parliament,

Having regard to the approval of the Council granted pursuant to Article 101 of the Treaty establishing the European Atomic Energy Community,

Whereas:

(1) The Stabilisation and Association Agreement between the European Communities and their Member States, of the one part, and the Republic of Montenegro, of the other part, (hereinafter referred to as 'the Agreement'), was signed on 15 October 2007, subject to its conclusion at a later date.

(2) The commercial provisions contained in the Agreement are of an exceptional nature, connected with the policy implemented within the framework of the stabilisation and association process and will not constitute, for the European Union, a precedent in the commercial policy of the Union with regard to third countries other than those of the Western Balkans.

(3) As a consequence of the entry into force of the Treaty of Lisbon on 1 December 2009, the European Union has replaced and succeeded the European Community.

(4) The Agreement should be approved,

HAVE ADOPTED THIS DECISION:

Article 1

The Stabilisation and Association Agreement between the European Communities and their Member States, of the one part, and the Republic of Montenegro, of the other part, the Annexes and Protocols annexed thereto, as well as the joint declarations and the declaration by the Community attached to the Final Act, are hereby approved on behalf of the European Union and the European Atomic Energy Community.

The text of the Agreement is attached to this Decision.

Article 2

The President of the Council shall, on behalf of the Union, make the following notification:

'As a consequence of the entry into force of the Treaty of Lisbon on 1 December 2009, the European Union has replaced and succeeded the European Community and from that date exercises all rights and assumes all obligations of the European Community. Therefore, references to "the European Community" in the text of the Agreement are, where appropriate, to be read as "the European Union."'

Article 3

1. The position to be taken by the Union or by the European Atomic Energy Community within the Stabilisation and Association Council and within the Stabilisation and Association Committee when the latter is empowered to act by the Stabilisation and Association Council shall be determined by the Council, on a proposal from the Commission, or, where appropriate, by the Commission, each in accordance with the corresponding provisions of the Treaties.

2. The President of the Council shall, in accordance with Article 120 of the Agreement, preside over the Stabilisation and Association Council. A representative of the Commission shall preside over the Stabilisation and Association Committee, in accordance with the Rules of Procedure thereof.

3. The decision to publish the decisions of the Stabilisation and Association Council and the Stabilisation and Association Committee in the *Official Journal of the European Union* shall be taken on a case-by-case basis by the Council or the Commission, each in accordance with the corresponding provisions of the Treaties.

Article 4

The President of the Council is hereby authorised to designate the person(s) empowered, on behalf of the European Union, to deposit the act of approval provided for in Article 138 of the Agreement. The President of the Commission shall deposit the said act of approval on behalf of the European Atomic Energy Community.

Article 5

This Decision shall enter into force on the date of its adoption.

Done at Brussels, 29 March 2010.

For the Council	*For the Commission*
The President	*The President*
E. ESPINOSA	O. REHN

STABILISATION AND ASSOCIATION AGREEMENT

between the European Communities and their Member States, of the one part, and the Republic of Montenegro, of the other part

THE KINGDOM OF BELGIUM,

THE REPUBLIC OF BULGARIA,

THE CZECH REPUBLIC,

THE KINGDOM OF DENMARK,

THE FEDERAL REPUBLIC OF GERMANY,

THE REPUBLIC OF ESTONIA,

IRELAND,

THE HELLENIC REPUBLIC,

THE KINGDOM OF SPAIN,

THE FRENCH REPUBLIC,

THE ITALIAN REPUBLIC,

THE REPUBLIC OF CYPRUS,

THE REPUBLIC OF LATVIA,

THE REPUBLIC OF LITHUANIA,

THE GRAND DUCHY OF LUXEMBOURG,

THE REPUBLIC OF HUNGARY,

MALTA,

THE KINGDOM OF THE NETHERLANDS,

THE REPUBLIC OF AUSTRIA,

THE REPUBLIC OF POLAND,

THE PORTUGUESE REPUBLIC,

ROMANIA,

THE REPUBLIC OF SLOVENIA,

THE SLOVAK REPUBLIC,

THE REPUBLIC OF FINLAND,

THE KINGDOM OF SWEDEN,

THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND

Contracting Parties to the Treaty establishing the European Community and the Treaty establishing the European Atomic Energy Community, and the Treaty on European Union, hereinafter referred to as 'Member States', and

THE EUROPEAN COMMUNITY and THE EUROPEAN ATOMIC ENERGY COMMUNITY,

hereinafter referred to as the 'Community',

of the one part, and

THE REPUBLIC OF MONTENEGRO, hereinafter referred to as 'Montenegro',

of the other part,

together referred to as 'the Parties',

CONSIDERING the strong links between the Parties and the values that they share, their desire to strengthen those links and establish a close and lasting relationship based on reciprocity and mutual interest, which should allow Montenegro to further strengthen and extend the relations with the Community and its Member States;

CONSIDERING the importance of this Agreement, in the framework of the Stabilisation and Association process (SAp) with the countries of south-eastern Europe, in the establishment and consolidation of a stable European order based on cooperation, of which the European Union is a mainstay, as well as in the framework of the Stability Pact;

CONSIDERING the European Union's readiness to integrate Montenegro to the fullest possible extent into the political and economic mainstream of Europe and its status as a potential candidate for EU membership on the basis of the Treaty on European Union (hereinafter referred to as 'the EU Treaty') and fulfilment of the criteria defined by the European Council in June 1993 as well as the SAp conditionalities, subject to the successful implementation of this Agreement, notably regarding regional cooperation;

CONSIDERING the European Partnership, which identifies priorities for action in order to support the country's efforts to move closer to the European Union;

CONSIDERING the commitment of the Parties to contribute by all means to the political, economic and institutional stabilisation in Montenegro as well as in the region, through the development of civil society and democratisation, institution building and public administration reform, regional trade integration and enhanced economic cooperation, as well as through cooperation in a wide range of areas, particularly in justice, freedom and security, and the strengthening of national and regional security;

CONSIDERING the commitment of the Parties to increasing political and economic freedoms as the very basis of this Agreement, as well as their commitment to respect human rights and the rule of law, including the rights of persons belonging to national minorities, and democratic principles through a multi-party system with free and fair elections;

CONSIDERING the commitment of the Parties to the full implementation of all principles and provisions of the UN Charter, of the OSCE, notably those of the Final Act of the Conference on Security and Cooperation in Europe (hereinafter referred to as 'the Helsinki Final Act'), the concluding documents of the Madrid and Vienna Conferences, the Charter of Paris for a New Europe, and of the Stability Pact for south-eastern Europe, so as to contribute to regional stability and cooperation among the countries of the region;

REAFFIRMING the right of return for all refugees and internally displaced persons and to the protection of their property and other related human rights;

CONSIDERING the commitment of the Parties to the principles of free market economy and to sustainable development as well as the readiness of the Community to contribute to the economic reforms in Montenegro;

CONSIDERING the commitment of the Parties to free trade, in compliance with the rights and obligations arising out of the membership of the WTO;

CONSIDERING the wish of the Parties to further develop regular political dialogue on bilateral and international issues of mutual interest, including regional aspects, taking into account the Common Foreign and Security Policy (CFSP) of the European Union;

CONSIDERING the commitment of the Parties to combat organised crime and to strengthen cooperation in the fight against terrorism on the basis of the declaration issued by the European Conference on 20 October 2001;

CONVINCED that the Stabilisation and Association Agreement (hereinafter referred as 'this Agreement') will create a new climate for economic relations between them and, above all, for the development of trade and investment, factors crucial to economic restructuring and modernisation;

BEARING in mind the commitment by Montenegro to approximate its legislation in the relevant sectors to that of the Community, and to effectively implement it;

TAKING ACCOUNT of the Community's willingness to provide decisive support for the implementation of reform and to use all available instruments of cooperation and technical, financial and economic assistance on a comprehensive indicative multiannual basis to this endeavour;

CONFIRMING that the provisions of this Agreement that fall within the scope of Part III, Title IV of the Treaty establishing the European Community (hereinafter referred to as 'the EC Treaty') bind the United Kingdom and Ireland as separate Contracting Parties, and not as a part of the Community, until the United Kingdom or Ireland (as the case may be) notifies Montenegro that it has become bound as part of the Community in accordance with the Protocol on the position of the United Kingdom and Ireland annexed to the EU Treaty and the EC Treaty. The same applies to Denmark, in accordance with the Protocol annexed to those Treaties on the position of Denmark;

RECALLING the Zagreb Summit, which called for further consolidation of relations between the countries of the Stabilisation and Association process and the European Union as well as enhanced regional cooperation;

RECALLING that the Thessaloniki Summit reinforced the Stabilisation and Association process as the policy framework for the European Union's relations with the Western Balkan countries and underlined the prospect of their integration with the European Union on the basis of their individual reform progress and merit;

RECALLING the signature of the Central European Free Trade Agreement in Bucharest on 19 December 2006 as a means of enhancing the region's ability to attract investments and the prospects of its integration into the global economy;

DESIROUS of establishing closer cultural cooperation and developing exchanges of information,

HAVE AGREED AS FOLLOWS:

Article 1

1. An Association is hereby established between the Community and its Member States, of the one part, and the Republic of Montenegro, of the other part.

2. The aims of this Association are:

(a) to support the efforts of Montenegro to strengthen democracy and the rule of law;

(b) to contribute to political, economic and institutional stability in Montenegro, as well as to the stabilisation of the region;

(c) to provide an appropriate framework for political dialogue, allowing the development of close political relations between the Parties;

(d) to support the efforts of Montenegro to develop its economic and international cooperation, including through the approximation of its legislation to that of the Community;

(e) to support the efforts of Montenegro to complete the transition into a functioning market economy;

(f) to promote harmonious economic relations and gradually develop a free trade area between the Community and Montenegro;

(g) to foster regional cooperation in all the fields covered by this Agreement.

TITLE I

GENERAL PRINCIPLES

Article 2

Respect for the democratic principles and human rights as proclaimed in the Universal Declaration of Human Rights and as defined in the Convention for the Protection of Human Rights and Fundamental Freedoms, in the Helsinki Final Act and the Charter of Paris for a New Europe, respect for international law principles, including full cooperation with the International Criminal Tribunal for the former Yugoslavia (ICTY), and the rule of law as well as the principles of market economy as reflected in the Document of the CSCE Bonn Conference on Economic Cooperation, shall form the basis of the domestic and external policies of the Parties and constitute essential elements of this Agreement.

Article 3

The fight against the proliferation of weapons of mass destruction and their means of delivery constitutes an essential element of this Agreement.

Article 4

The contracting parties reaffirm the importance they attach to the implementation of international obligations, notably the full cooperation with ICTY.

Article 5

International and regional peace and stability, the development of good neighbourly relations, human rights and the respect and protection of minorities are central to the Stabilisation and Association process referred to in the conclusions of the Council of the European Union on 21 June 1999. The conclusion and the implementation of this Agreement come within the framework of the conclusions of the Council of the European Union of 29 April 1997 and are based on the individual merits of Montenegro.

Article 6

Montenegro commits itself to continue to foster cooperation and good neighbourly relations with the other countries of the region including an appropriate level of mutual concessions concerning the movement of persons, goods, capital and services as well as the development of projects of common interest, notably those related to border management and combating organised crime, corruption, money laundering, illegal migration and trafficking, including in particular in human beings, small arms and light weapons, as well as illicit drugs. This commitment constitutes a key factor in the development of the relations and cooperation between the Parties and thus contributes to regional stability.

Article 7

The Parties reaffirm the importance that they attach to the fight against terrorism and the implementation of international obligations in this area.

Article 8

The association shall be progressively and fully realised over a transitional period of a maximum of five years.

The Stabilisation and Association Council (hereinafter referred to as 'SAC') established under Article 119 shall regularly review, as a rule on an annual basis, the implementation of this Agreement and the adoption and implementation by Montenegro of legal, administrative, institutional and economic reforms. This review shall be carried out in the light of the preamble and in accordance with the general principles of this Agreement. It shall take duly into account priorities set in the European Partnership relevant to this Agreement and be in coherence with the mechanisms established under the Stabilisation and Association process, notably the progress report on the Stabilisation and Association process.

On the basis of this review, the SAC will issue recommendations and may take decisions. Where the review identifies particular difficulties, they may be referred to the mechanisms of dispute settlement established under this Agreement.

The full association shall be progressively realised. No later than the third year after the entry into force of this Agreement, the SAC shall make a thorough review of the application of this Agreement. On the basis of this review the SAC shall evaluate progress made by Montenegro and may take decisions governing the following stages of association.

The aforementioned review will not apply to the free movement of goods, for which a specific schedule is foreseen in Title IV.

Article 9

This Agreement shall be fully compatible with and implemented in a manner consistent with the relevant WTO provisions, in particular Article XXIV of the General Agreement on Tariffs and Trade 1994 (GATT 1994) and Article V of the General Agreement on Trade in Services (GATS).

TITLE II

POLITICAL DIALOGUE

Article 10

1. Political dialogue between the Parties shall be further developed within the context of this Agreement. It shall accompany and consolidate the rapprochement between the European Union and Montenegro and contribute to the establishment of close links of solidarity and new forms of cooperation between the Parties.

2. The political dialogue is intended to promote in particular:

(a) full integration of Montenegro into the community of democratic nations and gradual rapprochement with the European Union;

(b) an increasing convergence of positions of the Parties on international issues, including CFSP issues, also through the exchange of information as appropriate, and, in particular, on those issues likely to have substantial effects on the Parties;

(c) regional cooperation and the development of good neighbourly relations;

(d) common views on security and stability in Europe, including cooperation in the areas covered by the CFSP of the European Union.

3. The Parties consider that the proliferation of weapons of mass destruction (WMD) and their means of delivery, both to state and non-state actors, represents one of the most serious threats to international stability and security. The Parties therefore agree to cooperate and to contribute to countering the proliferation of weapons of mass destruction and their means of delivery through full compliance with and national implementation of their existing obligations under international disarmament and non-proliferation Treaties and Agreements and other relevant international obligations. The Parties agree that this provision constitutes an essential element of this Agreement and will be part of the political dialogue that will accompany and consolidate these elements.

The Parties furthermore agree to cooperate and to contribute to countering the proliferation of weapons of mass destruction and their means of delivery by:

(a) taking steps to sign, ratify, or accede to, as appropriate, and fully implement all other relevant international instruments;

(b) establishing an effective system of national export controls, controlling the export as well as the transit of WMD-related goods, including a WMD end-use control on dual use technologies and containing effective sanctions for breaches of export controls;

(c) Political dialogue on this matter may take place on a regional basis.

Article 11

1. Political dialogue shall take place within the Stabilisation and Association Council, which shall have the general responsibility for any matter which the Parties might wish to put to it.

2. At the request of the Parties, political dialogue may also take place in the following formats:

(a) meetings, where necessary, of senior officials representing Montenegro, on the one hand, and the Presidency of the Council of the European Union, the Secretary General/High Representative for the Common Foreign and Security Policy and the Commission of the European Communities (hereinafter referred to as 'European Commission'), on the other;

(b) taking full advantage of all diplomatic channels between the Parties, including appropriate contacts in third countries and within the United Nations, the OSCE, the Council of Europe and other international fora;

(c) any other means which would make a useful contribution to consolidating, developing and stepping up this dialogue, including those identified in the Thessaloniki agenda, adopted in the Conclusions of the European Council in Thessaloniki on 19 and 20 June 2003.

Article 12

A political dialogue at parliamentary level shall take place within the framework of the Stabilisation and Association Parliamentary Committee established under Article 125.

Article 13

Political dialogue may take place within a multilateral framework, and as a regional dialogue including other countries of the region, including in the framework of the EU-Western Balkan forum.

TITLE III

REGIONAL COOPERATION

Article 14

In conformity with its commitment to international and regional peace and stability, and to the development of good neighbourly relations, Montenegro shall actively promote regional cooperation. The Community assistance programmes may support projects having a regional or cross-border dimension through its technical assistance programmes.

Whenever Montenegro foresees to reinforce its cooperation with one of the countries mentioned in Articles 15, 16 and 17, it shall inform and consult the Community and its Member States according to the provisions laid down in Title X.

Montenegro shall implement fully the existing bilateral Agreements negotiated pursuant to the Memorandum of Understanding on Trade Facilitation and Liberalisation signed in Brussels on 27 June 2001 by Serbia and Montenegro and the Central European Free Trade Agreement signed in Bucharest on 19 December 2006.

Article 15

Cooperation with other countries having signed a Stabilisation and Association Agreement

After the signature of this Agreement, Montenegro shall start negotiations with the countries which have already signed a Stabilisation and Association Agreement with a view to concluding bilateral conventions on regional cooperation, the aim of which shall be to enhance the scope of cooperation between the countries concerned.

The main elements of these conventions shall be:

(a) political dialogue;

(b) the establishment of free trade areas, consistent with relevant WTO provisions;

(c) mutual concessions concerning the movement of workers, establishment, supply of services, current payments and movement of capital as well as other policies related to movement of persons at an equivalent level to that of this Agreement;

(d) provisions on cooperation in other fields whether or not covered by this Agreement, and notably the field of Justice, Freedom and Security.

These conventions shall contain provisions for the creation of the necessary institutional mechanisms, as appropriate.

These conventions shall be concluded within two years after the entry into force of this Agreement. Readiness by Montenegro to conclude such conventions will be a condition for the further development of the relations between Montenegro and the European Union.

Montenegro shall initiate similar negotiations with the remaining countries of the region once these countries will have signed a Stabilisation and Association Agreement.

Article 16

Cooperation with other countries concerned by the Stabilisation and Association process

Montenegro shall pursue regional cooperation with the other States concerned by the Stabilisation and Association process in some or all the fields of cooperation covered by this Agreement, and notably those of common interest. Such cooperation should always be compatible with the principles and objectives of this Agreement.

Article 17

Cooperation with other countries candidate to EU accession not concerned by the SAp

1. Montenegro should foster its cooperation and conclude a convention on regional cooperation with any country candidate for EU accession in any of the fields of cooperation covered by this Agreement. Such conventions should aim to gradually align bilateral relations between Montenegro and this country to the relevant part of the relations between the Community and its Member States and this country.

2. Montenegro shall start negotiations with Turkey which has established a customs union with the Community, with a view to concluding, on a mutually advantageous basis, an Agreement establishing a free trade area in accordance with Article XXIV of the GATT 1994 as well as liberalising the establishment and supply of services between them at an equivalent level of this Agreement in accordance with Article V of the GATS.

These negotiations should be opened as soon as possible, with a view to concluding the abovementioned Agreement before the end of the transitional period referred to in Article 18(1).

TITLE IV

FREE MOVEMENT OF GOODS

Article 18

1. The Community and Montenegro shall gradually establish a bilateral free trade area over a period lasting a maximum of five years starting from the entry into force of this Agreement in accordance with the provisions of this Agreement and in conformity with those of the GATT 1994 and the WTO. In so doing they shall take into account the specific requirements laid down hereinafter.

2. The Combined Nomenclature shall be applied to the classification of goods in trade between the Parties.

3. For the purpose of this Agreement customs duties and charges having equivalent effect to customs duties include any duty or charge of any kind imposed in connection with the importation or exportation of a good, including any form of surtax or surcharge in connection with such importation or exportation, but do not include any:

(a) charges equivalent to an internal tax imposed consistently with the provisions of paragraph 2 of Article III of the GATT 1994;

(b) antidumping or countervailing measures;

(c) fees or charges commensurate with the costs of services rendered.

4. For each product, the basic duty to which the successive tariff reductions set out in this Agreement are to be applied shall be:

(a) the Community Common Customs Tariff, established pursuant to Council Regulation (EEC) No 2658/87 [1] actually applied *erga omnes* on the day of the signature of this Agreement;

(b) the Montenegrin applied tariff [2].

5. If, after the signature of this Agreement, any tariff reduction is applied on an *erga omnes* basis, in particular reductions resulting:

(a) from the tariff negotiations in the WTO or,

(b) in the event of the accession of Montenegro to the WTO or,

(c) from subsequent reductions after the accession of Montenegro to the WTO,

such reduced duties shall replace the basic duty referred to in paragraph 4 as from the date when such reductions are applied.

6. The Community and Montenegro shall communicate to each other their respective basic duties and any changes thereof.

[1] Council Regulation (EEC) No 2658/87 (OJ L 256, 7.9.1987, p. 1).
[2] Official Gazette of Montenegro No 17/07.

CHAPTER I

Industrial products

Article 19

Definition

1. The provisions of this Chapter shall apply to products originating in the Community or in Montenegro listed in Chapters 25 to 97 of the Combined Nomenclature, with the exception of the products listed in Annex I, paragraph I, (ii) of the WTO Agreement on Agriculture.

2. Trade between the Parties in products covered by the Treaty establishing the European Atomic Energy Community shall be conducted in accordance with the provisions of that Treaty.

Article 20

Community concessions on industrial products

1. Customs duties on imports into the Community and charges having equivalent effect shall be abolished upon the entry into force of this Agreement on industrial products originating in Montenegro.

2. Quantitative restrictions on imports into the Community and measures having equivalent effect shall be abolished upon the entry into force of this Agreement on industrial products originating in Montenegro.

Article 21

Montenegrin concessions on industrial products

1. Customs duties on imports into Montenegro of industrial products originating in the Community other than those listed in Annex I shall be abolished upon the entry into force of this Agreement.

2. Charges having equivalent effect to customs duties on imports into Montenegro shall be abolished upon the entry into force of this Agreement on industrial products originating in the Community.

3. Customs duties on imports into Montenegro of industrial products originating in the Community which are listed in Annex I shall be progressively reduced and abolished in accordance with the timetable indicated in that Annex.

4. Quantitative restrictions on imports into Montenegro of industrial products originating in the Community and measures having equivalent effect shall be abolished upon the date of entry into force of this Agreement.

Article 22

Duties and restrictions on exports

1. The Community and Montenegro shall abolish any customs duties on exports and charges having equivalent effect in trade between them upon the entry into force of this Agreement.

2. The Community and Montenegro shall abolish between themselves any quantitative restrictions on exports and measures having equivalent effect upon the entry into force of this Agreement.

Article 23

Faster reductions in customs duties

Montenegro declares its readiness to reduce its customs duties in trade with the Community more rapidly than is provided for in Article 21 if its general economic situation and the situation of the economic sector concerned so permit.

The Stabilisation and Association Council shall analyse the situation in this respect and make the relevant recommendations.

CHAPTER II

Agriculture and fisheries

Article 24

Definition

1. The provisions of this Chapter shall apply to trade in agricultural and fishery products originating in the Community or in Montenegro.

2. The term 'agricultural and fishery products' refers to the products listed in Chapters 1 to 24 of the Combined Nomenclature and the products listed in Annex I, paragraph I, (ii) of the WTO Agreement on Agriculture.

3. This definition includes fish and fishery products covered by Chapter 3, headings 1604 and 1605, and sub-headings 0511 91, 2301 20 and ex 1902 20 ('stuffed pasta containing more than 20 % by weight of fish, crustaceans, molluscs or other aquatic invertebrates').

Article 25

Processed agricultural products

Protocol 1 lays down the trade arrangements for processed agricultural products which are listed therein.

Article 26

Community concessions on imports of agricultural products originating in Montenegro

1. From the date of entry into force of this Agreement, the Community shall abolish all quantitative restrictions and measures having equivalent effect, on imports of agricultural products originating in Montenegro.

2. From the date of entry into force of this Agreement, the Community shall abolish the customs duties and charges having equivalent effect, on imports of agricultural products originating in Montenegro other than those of headings 0102, 0201, 0202, 1701, 1702 and 2204 of the Combined Nomenclature.

For the products covered by Chapters 7 and 8 of the Combined Nomenclature, for which the Common Customs Tariff provides for the application of *ad valorem* customs duties and a specific customs duty, the elimination applies only to the *ad valorem* part of the duty.

3. From the date of entry into force of this Agreement, the Community shall fix the customs duties applicable to imports into the Community of 'baby beef' products defined in Annex II and originating in Montenegro at 20 % of the *ad valorem* duty and 20 % of the specific duty as laid down in the Common Customs Tariff, within the limit of an annual tariff quota of 800 tonnes expressed in carcass weight.

Article 27

Montenegrin concessions on agricultural products

1. From the date of entry into force of this Agreement, Montenegro shall abolish all quantitative restrictions and measures having equivalent effect, on imports of agricultural products originating in the Community.

2. From the date of entry into force of this Agreement, Montenegro shall:

(a) abolish the customs duties applicable on imports of certain agricultural products originating in the Community, listed in Annex III(a);

(b) reduce progressively the customs duties applicable on imports of certain agricultural products originating in the Community, listed in Annex III(b) in accordance with the timetable indicated for each product in that Annex;

(c) reduce progressively the customs duties to 50 % applicable on imports of certain agricultural products originating in the Community, listed in Annex III(c) in accordance with the timetable indicated for each product in that Annex.

Article 28

Wine and Spirit drinks Protocol

The arrangements applicable to the wine and spirit drinks products referred to in Protocol 2 are laid down in that Protocol.

Article 29

Community concessions on fish and fishery products

1. From the date of entry into force of this Agreement, the Community shall abolish all quantitative restrictions and measures having equivalent effect on imports of fish and fishery products originating in Montenegro.

2. From the entry into force of this Agreement the Community shall eliminate all customs duties and measures having equivalent effect on fish and fishery products originating in Montenegro other than those listed in Annex IV. Products listed in Annex IV shall be subject to the provisions laid down therein.

Article 30

Montenegrin concessions on fish and fishery products

1. From the date of entry into force of this Agreement, Montenegro shall abolish all quantitative restrictions and measures having equivalent effect on imports of fish and fishery products originating in the Community.

2. From the entry into force of this Agreement, Montenegro shall eliminate all customs duties and measures having equivalent effect on fish and fishery products originating in the Community other than those listed in Annex V. Products listed in Annex V shall be subject to the provisions laid down therein.

Article 31

Review clause

Taking account of the volume of trade in agricultural and fishery products between the Parties, of their particular sensitivities, of the rules of the Community common policies and of the policies for agriculture and fisheries in Montenegro of the role of agriculture and fisheries in the economy of Montenegro, of the consequences of the multilateral trade negotiations in the framework of the WTO as well as of the eventual accession of Montenegro to the WTO, the Community and Montenegro shall examine in the Stabilisation and Association Council, no later than three years after the entry into force of this Agreement, product by product and on an orderly and appropriate reciprocal basis, the opportunities for granting each other further concessions with a view to implementing greater liberalisation of the trade in agricultural and fishery products.

Article 32

Safeguard clause concerning Agriculture and Fisheries

Notwithstanding other provisions of this Agreement, and in particular Article 41, given the particular sensitivity of the agricultural and fisheries markets, if imports of products originating in one Party, which are the subject of concessions granted pursuant to Articles 25, 26, 27, 28, 29 and 30, cause serious disturbance to the markets or to their domestic regulatory mechanisms, in the other Party, both Parties shall enter into consultations immediately to find an appropriate solution. Pending such solution, the Party concerned may take the appropriate measures it deems necessary.

Article 33

Protection of geographical indications for agricultural and fishery products and foodstuffs other than wine and spirits

1. Montenegro shall provide protection for the geographical indications of the Community registered in the Community under Council Regulation (EC) No 510/2006 of 20 March 2006 on the protection of geographical indications and designations of origin for agricultural products and foodstuffs [1], in accordance with the terms of this Article. Geographical indications of Montenegro shall be eligible for registration in the Community under the conditions set out in that Regulation.

2. Montenegro shall prohibit any use in its territory of the names protected in the Community for comparable products not complying with the geographical indication's specification. This shall apply even where the true geographical origin of the good is indicated, the geographical indication in question is used in translation, the name is accompanied by terms such as 'kind', 'type', 'style', 'imitation', 'method' or other expressions of the sort.

3. Montenegro shall refuse the registration of a trademark the use of which corresponds to the situations referred to in paragraph 2.

4. Trademarks the use of which corresponds to the situations referred to in paragraph 2, which have been registered in Montenegro or established by use, shall no longer be used after 1 January 2009. However, this shall not apply to trademarks registered in Montenegro and trademarks established by use which are owned by nationals of third countries, provided they are not of such a nature as to deceive in any way the public as to the quality, the specification and the geographical origin of the goods.

5. Any use of the geographical indications protected in accordance with paragraph 1 as terms customary in common language as the common name for such goods in Montenegro shall cease at the latest on 1 January 2009.

6. Montenegro shall ensure that goods exported from its territory after 1 January 2009 do not infringe the provisions of this Article.

7. Montenegro shall ensure the protection referred to in paragraphs 1 to 6 on its own initiative as well as at the request of an interested party.

CHAPTER III

Common provisions

Article 34

Scope

The provisions of this Chapter shall apply to trade in all products between the Parties except where otherwise provided herein or in Protocol 1.

Article 35

Improved concessions

The provisions of this Title shall in no way affect the application, on a unilateral basis, of more favourable measures by any of the Parties.

Article 36

Standstill

1. From the date of entry into force of this Agreement, no new customs duties on imports or exports or charges having equivalent effect shall be introduced, nor shall those already applied be increased, in trade between the Community and Montenegro.

2. From the date of entry into force of this Agreement, no new quantitative restriction on imports or exports or measure having equivalent effect shall be introduced, nor shall those existing be made more restrictive, in trade between the Community and Montenegro.

3. Without prejudice to the concessions granted under Articles 26, 27, 28, 29 and 30, the provisions of paragraphs 1 and 2 of this Article shall not restrict in any way the pursuit of the respective agricultural and fishery policies of Montenegro and of the Community and the taking of any measures under those policies insofar as the import regime in Annexes II-V and Protocol 1 is not affected.

Article 37

Prohibition of fiscal discrimination

1. The Community and Montenegro shall refrain from, and abolish where existing, any measure or practice of an internal fiscal nature establishing, whether directly or indirectly, discrimination between the products of one Party and like products originating in the territory of the other Party.

2. Products exported to the territory of one of the Parties may not benefit from repayment of internal indirect taxation in excess of the amount of indirect taxation imposed on them.

Article 38

Duties of a fiscal nature

The provisions concerning the abolition of customs duties on imports shall also apply to customs duties of a fiscal nature.

Article 39

Customs unions, free trade areas, cross-border arrangements

1. This Agreement shall not preclude the maintenance or establishment of customs unions, free trade areas or arrangements for frontier trade except insofar as they alter the trade arrangements provided for in this Agreement.

[1] OJ L 93, 31.3.2006, p. 12. Regulation as amended by Commission Regulation (EC) No 952/2007 (OJ L 210, 10.8.2007, p. 26).

2. During the transitional period specified in Article 18, this Agreement shall not affect the implementation of the specific preferential arrangements governing the movement of goods either laid down in frontier Agreements previously concluded between one or more Member States and Serbia and Montenegro or resulting from the bilateral Agreements specified in Title III concluded by Montenegro in order to promote regional trade.

3. Consultations between the Parties shall take place within the Stabilisation and Association Council concerning the Agreements described in paragraphs 1 and 2 of this Article and, where requested, on other major issues related to their respective trade policies towards third countries. In particular in the event of a third country acceding to the Union, such consultations shall take place so as to ensure that account is taken of the mutual interests of the Community and Montenegro stated in this Agreement.

Article 40

Dumping and subsidy

1. None of the provisions in this Agreement shall prevent any of the Parties from taking trade defence action in accordance with paragraph 2 of this Article and Article 41.

2. If one of the Parties finds that dumping and/or countervailable subsidisation is taking place in trade with the other Party, that Party may take appropriate measures against this practice in accordance with the WTO Agreement on Implementation of Article VI of the GATT 1994 or the WTO Agreement on Subsidies and Countervailing Measures and the respective related internal legislation.

Article 41

Safeguards clause

1. The provisions of Article XIX GATT 1994 and the WTO Agreement on Safeguards are applicable between the parties.

2. Notwithstanding paragraph 1 of this Article, where any product of one Party is being imported into the territory of the other Party in such increased quantities and under such conditions as to cause or threaten to cause:

(a) serious injury to the domestic industry of like or directly competitive products in the territory of the importing Party or

(b) serious disturbances in any sector of the economy or difficulties which could bring about serious deterioration in the economic situation of a region of the importing Party,

the importing Party may take appropriate bilateral safeguard measures under the conditions and in accordance with the procedures laid down in this Article.

3. Bilateral safeguard measures directed at imports from the other Party shall not exceed what is necessary to remedy the problems, as defined in paragraph 2, which have arisen as a result of application of this Agreement. The safeguard measure adopted should consist of a suspension in the increase or in the reduction of the margins of preferences provided for under this Agreement for the product concerned up to a maximum limit corresponding to the basic duty referred to in Article 18 paragraph 4(a) and (b) and paragraph 5 for the same product. Such measures shall contain clear elements progressively leading to their elimination at the end of the set period, at the latest, and shall not be taken for a period exceeding two years.

In very exceptional circumstances, measures may be extended for a further period of maximum two years. No bilateral safeguard measure shall be applied to the import of a product that has previously been subject to such a measure for a period of, at least, four years since the expiry of the measure.

4. In the cases specified in this Article, before taking the measures provided for therein or, in the cases to which paragraph 5(b) of this Article applies, as soon as possible, the Community on the one part or Montenegro on the other part, shall supply the Stabilisation and Association Council with all relevant information required for a thorough examination of the situation, with a view to seeking a solution acceptable to the Parties concerned.

5. For the implementation of the paragraphs 1, 2, 3 and 4 the following provisions shall apply:

(a) The problems arising from the situation referred to in this Article shall be immediately referred for examination to the Stabilisation and Association Council, which may take any decisions needed to put an end to such problems.

If the Stabilisation and Association Council or the exporting Party has not taken a decision putting an end to the problems, or no other satisfactory solution has been reached within 30 days of the matter being referred to the Stabilisation and Association Council, the importing Party may adopt the appropriate measures to remedy the problem in accordance with this Article. In the selection of safeguard measures, priority must be given to those which least disturb the functioning of the arrangements established in this Agreement. Safeguard measures applied in accordance with Article XIX GATT 1994 and the WTO Agreement on Safeguards shall preserve the level/margin of preference granted under this Agreement.

(b) Where exceptional and critical circumstances requiring immediate action make prior information or examination, as the case may be, impossible, the Party concerned may, in the situations specified in this Article, apply forthwith provisional measures necessary to deal with the situation and shall inform the other Party immediately thereof.

The safeguard measures shall be notified immediately to the Stabilisation and Association Council and shall be the subject of periodic consultations within that body, particularly with a view to establishing a timetable for their abolition as soon as circumstances permit.

6. In the event of the Community on the one part or Montenegro on the other part subjecting imports of products liable to give rise to the problems referred to in this Article to an administrative procedure having as its purpose the rapid provision of information on the trend of trade flows, it shall inform the other Party.

Article 42

Shortage clause

1. Where compliance with the provisions of this Title leads to:

(a) a critical shortage, or threat thereof, of foodstuffs or other products essential to the exporting Party; or

(b) re-export to a third country of a product against which the exporting Party maintains quantitative export restrictions, export duties or measures or charges having equivalent effect, and where the situations referred to above give rise, or are likely to give rise to major difficulties for the exporting Party

that Party may take appropriate measures under the conditions and in accordance with the procedures laid down in this Article.

2. In the selection of measures, priority must be given to those which least disturb the functioning of the arrangements in this Agreement. Such measures shall not be applied in a manner which would constitute a means of arbitrary or unjustifiable discrimination where the same conditions prevail, or a disguised restriction on trade and shall be eliminated when the conditions no longer justify their maintenance.

3. Before taking the measures provided for in paragraph 1 or, as soon as possible in cases to which paragraph 4 applies, the Community or Montenegro, shall supply the Stabilisation and Association Council with all relevant information, with a view to seeking a solution acceptable to the Parties. The Parties within the Stabilisation and Association Council may agree on any means needed to put an end to the difficulties. If no agreement is reached within 30 days of the matter being referred to the Stabilisation and Association Council, the exporting Party may apply measures under this Article on the exportation of the product concerned.

4. Where exceptional and critical circumstances requiring immediate action make prior information or examination, as the case may be, impossible, the Community or Montenegro may apply forthwith the precautionary measures necessary to deal with the situation and shall inform the other Party immediately thereof.

5. Any measures applied pursuant to this Article shall be immediately notified to the Stabilisation and Association Council and shall be the subject of periodic consultations within that body, particularly with a view to establishing a timetable for their elimination as soon as circumstances permit.

Article 43

State monopolies

With regard to any state monopolies of a commercial character, Montenegro shall ensure that, by the entry into force of this Agreement, no discrimination regarding the conditions under which goods are procured and marketed exists between nationals of the Member States of the European Union and Montenegro.

Article 44

Rules of origin

Except if otherwise stipulated in this Agreement, Protocol 3 lays down the rules of origin for the application of the provisions of this Agreement.

Article 45

Restrictions authorised

This Agreement shall not preclude prohibitions or restrictions on imports, exports or goods in transit justified on grounds of public morality, public policy or public security; the protection of health and life of humans, animals or plants; the protection of national treasures of artistic, historic or archaeological value or the protection of intellectual, industrial and commercial property, or rules relating to gold and silver. Such prohibitions or restrictions shall not, however, constitute a means of arbitrary discrimination or a disguised restriction on trade between the Parties.

Article 46

Failure to provide administrative cooperation

1. The Parties agree that administrative cooperation is essential for the implementation and the control of the preferential treatment granted under this Title and underline their commitment to combat irregularities and fraud in customs and related matters.

2. Where a Party has made a finding, on the basis of objective information, of a failure to provide administrative cooperation and/or of irregularities or fraud under this Title, the Party concerned may temporarily suspend the relevant preferential treatment of the product(s) concerned in accordance with this Article.

3. For the purpose of this Article a failure to provide administrative cooperation shall mean, inter alia:

(a) a repeated failure to respect the obligations to verify the originating status of the product(s) concerned;

(b) a repeated refusal or undue delay in carrying out and/or communicating the results of subsequent verification of the proof of origin;

(c) a repeated refusal or undue delay in obtaining authorisation to conduct administrative cooperation missions to verify the authenticity of documents or accuracy of information relevant to the granting of the preferential treatment in question.

For the purpose of this Article a finding of irregularities or fraud may be made, inter alia, where there is a rapid increase, without satisfactory explanation, in imports of goods exceeding the usual level of production and export capacity of the other Party, which is linked to objective information concerning irregularities or fraud.

4. The application of a temporary suspension shall be subject to the following conditions:

(a) The Party which has made a finding, on the basis of objective information, of a failure to provide administrative cooperation and/or of irregularities or fraud shall without undue delay notify the Stabilisation and Association Committee of its finding together with the objective information and enter into consultations within the Stabilisation and Association Committee, on the basis of all relevant information and objective findings, with a view to reaching a solution acceptable to both Parties.

(b) Where the Parties have entered into consultations within the Stabilisation and Association Committee as above and have failed to agree on an acceptable solution within three months following the notification, the Party concerned may temporarily suspend the relevant preferential treatment of the product(s) concerned. A temporary suspension shall be notified to the Stabilisation and Association Committee without undue delay.

(c) Temporary suspensions under this Article shall be limited to that necessary to protect the financial interests of the Party concerned. They shall not exceed a period of six months, which may be renewed. Temporary suspensions shall be notified immediately after their adoption to the Stabilisation and Association Committee. They shall be subject to periodic consultations within the Stabilisation and Association Committee in particular with a view to their termination as soon as the conditions for their application are no longer given.

5. At the same time as the notification to the Stabilisation and Association Committee under paragraph 4(a) of this Article, the Party concerned should publish a notice to importers in its Official Journal. The notice to importers should indicate for the product concerned that there is a finding, on the basis of objective information, of a failure to provide administrative cooperation and/or of irregularities or fraud.

Article 47

In case of error by the competent authorities in the proper management of the preferential system at export, and in particular in the application of the provisions of Protocol 3 to the present Agreement where this error leads to consequences in terms of import duties, the Contracting Party facing such consequences may request the Stabilisation and Association Council to examine the possibilities of adopting all appropriate measures with a view to resolving the situation.

Article 48

The application of this Agreement shall be without prejudice to the application of the provisions of Community law to the Canary Islands.

TITLE V

MOVEMENT OF WORKERS, ESTABLISHMENT, SUPPLY OF SERVICES, CAPITAL

CHAPTER I

Movement of workers

Article 49

1. Subject to the conditions and modalities applicable in each Member State:

(a) treatment accorded to workers who are nationals of Montenegro and who are legally employed in the territory of a Member State shall be free of any discrimination based on nationality, as regards working conditions, remuneration or dismissal, compared to nationals of that Member State;

(b) the legally resident spouse and children of a worker legally employed in the territory of a Member State, with the exception of seasonal workers and of workers coming under bilateral Agreements within the meaning of Article 50, unless otherwise provided by such Agreements, shall have access to the labour market of that Member State, during the period of that worker's authorised stay of employment.

2. Montenegro shall, subject to the conditions and modalities applicable in that Republic, accord the treatment referred to in paragraph 1 to workers who are nationals of a Member State and are legally employed in its territory as well as to their spouse and children who are legally resident in Montenegro.

Article 50

1. Taking into account the situation in the labour market in the Member States, and subject to their legislation and to compliance with the rules in force in the Member States in the area of mobility of workers:

(a) the existing facilities of access to employment for workers of Montenegro accorded by Member States under bilateral Agreements should be preserved and if possible improved;

(b) the other Member States shall examine the possibility of concluding similar Agreements.

2. After three years, the Stabilisation and Association Council shall examine the granting of other improvements, including facilities for access to professional training, in accordance with the rules and procedures in force in the Member States, and taking into account the situation in the labour market in the Member States and in the Community.

Article 51

1. Rules shall be laid down for the coordination of social security systems for workers with nationality of Montenegro, legally employed in the territory of a Member State, and for the members of their families legally resident there. To that effect, a decision of the Stabilisation and Association Council, which should not affect any rights or obligations arising from bilateral Agreements where the latter provide for more favourable treatment, shall put the following provisions in place:

(a) all periods of insurance, employment or residence completed by such workers in the various Member States shall be added together for the purpose of pensions and annuities in respect of old age, invalidity and death and for the purpose of medical care for such workers and such family members;

(b) any pensions or annuities in respect of old age, death, industrial accident or occupational disease, or of invalidity resulting therefrom, with the exception of non-contributory benefits, shall be freely transferable at the rate applied by virtue of the law of the debtor Member State or States;

(c) the workers in question shall receive family allowances for the members of their families as defined above.

2. Montenegro shall accord to workers who are nationals of a Member State and legally employed in their territory, and to members of their families legally resident there, treatment similar to that specified in points (b) and (c) of paragraph 1.

CHAPTER II

Establishment

Article 52

Definition

For the purposes of this Agreement:

(a) 'Community company' or 'Montenegrin company' shall mean, respectively, a company set up in accordance with the laws of a Member State, or of Montenegro and having its registered office or central administration or principal place of business in the territory of the Community or of Montenegro. However, should the company, set up in accordance with the laws of a Member State or of Montenegro, have only its registered office in the territory of the Community or of Montenegro respectively, the company shall be considered a Community or a Montenegrin company if its operations possess a real and continuous link with the economy of one of the Member States or of Montenegro;

(b) 'Subsidiary' of a company shall mean a company which is effectively controlled by another company;

(c) 'Branch' of a company shall mean a place of business not having legal personality which has the appearance of permanency, such as the extension of a parent body, has a management and is materially equipped to negotiate business with third Parties so that the latter, although knowing that there will if necessary be a legal link with the parent body, the head office of which is abroad, do not have to deal directly with such parent body but may transact business at the place of business constituting the extension;

(d) 'Establishment' shall mean:

(i) as regards nationals, the right to take up economic activities as self-employed persons, and to set up undertakings, in particular companies, which they effectively control. Self-employment and business undertakings by nationals shall not extend to seeking or taking employment in the labour market or confer a right of access to the labour market of another Party. The provisions of this Chapter do not apply to persons who are not exclusively self-employed;

(ii) as regards Community or Montenegrin companies, the right to take up economic activities by means of the setting up of subsidiaries and branches in Montenegro, or in the Community respectively;

(e) 'Operations' shall mean the pursuit of economic activities;

(f) 'Economic activities' shall in principle include activities of an industrial, commercial and professional character and activities of craftsmen;

(g) 'Community national' and 'national of Montenegro' shall mean respectively a natural person who is a national of a Member State or Montenegro respectively;

With regard to international maritime transport, including inter-modal operations involving a sea leg, Community nationals or nationals of Montenegro established outside the Community and Montenegro, and shipping companies established outside the Community or Montenegro and controlled by Community nationals or nationals of Montenegro, shall also be beneficiaries of the provisions of this Chapter and Chapter III, if their vessels are registered in that Member State or in Montenegro, in accordance with their respective legislation;

(h) 'Financial services' shall mean those activities described in Annex VI. The Stabilisation and Association Council may extend or modify the scope of that Annex.

Article 53

1. Montenegro shall facilitate the setting-up of operations on its territory by Community companies and nationals. To that end, Montenegro shall grant, upon entry into force of this Agreement:

(a) as regards the establishment of Community companies on the territory of Montenegro, treatment no less favourable than that accorded to its own companies or to any third country company, whichever is the better;

(b) as regards the operation of subsidiaries and branches of Community companies on the territory of Montenegro once established, treatment no less favourable than that accorded to its own companies and branches or to any subsidiary and branch of any third country company, whichever is the better.

2. The Community and its Member States shall grant, from the entry into force of this Agreement:

(a) as regards the establishment of Montenegrin companies treatment no less favourable than that accorded by Member States to their own companies or to any company of any third country, whichever is the better;

(b) as regards the operation of subsidiaries and branches of Montenegrin companies, established in its territory, treatment no less favourable than that accorded by Member States to their own companies and branches, or to any subsidiary and branch of any third country company, established in their territory, whichever is the better.

3. The Parties shall not adopt any new regulations or measures which introduce discrimination as regards the establishment of any other Party's companies on their territory or in respect of their operation, once established, by comparison with their own companies.

4. Four years after the entry into force of this Agreement, the Stabilisation and Association Council shall establish the modalities to extend the above provisions to the establishment of Community nationals and nationals of Montenegro to take up economic activities as self-employed persons.

5. Notwithstanding the provisions of this Article:

(a) Subsidiaries and branches of Community companies shall have, from the entry into force of this Agreement, the right to use and rent real property in Montenegro;

(b) Subsidiaries and branches of Community companies shall from the entry into force of this Agreement have the right to acquire and enjoy ownership rights over real property as Montenegrin companies and as regards public goods/goods of common interest, the same rights as enjoyed by Montenegrin companies respectively where these rights are necessary for the conduct of the economic activities for which they are established.

Article 54

1. Subject to the provisions of Article 56, with the exception of financial services described in Annex VI, the Parties may regulate the establishment and operation of companies and nationals on their territory, insofar as these regulations do not discriminate against companies and nationals of the other Parties in comparison with its own companies and nationals.

2. In respect of financial services, notwithstanding any other provisions of this Agreement, a Party shall not be prevented from taking measures for prudential reasons, including for the protection of investors, depositors, policy holders or persons to whom a fiduciary duty is owed by a financial service supplier, or to ensure the integrity and stability of the financial system. Such measures shall not be used as a means of avoiding the Party's obligations under this Agreement.

3. Nothing in this Agreement shall be construed to require a Party to disclose information relating to the affairs and accounts of individual customers or any confidential or proprietary information in the possession of public entities.

Article 55

1. Without prejudice to any provision to the contrary contained in the Multilateral Agreement on the Establishment of a European Common Aviation Area [1] (hereinafter referred to as 'ECAA'), the provisions of this Chapter shall not apply to air transport services, inland waterways transport services and maritime cabotage services.

[1] Multilateral Agreement between the European Community and its Member States, the Republic of Albania, Bosnia and Herzegovina, the Republic of Bulgaria, the Republic of Croatia, the former Yugoslav Republic of Macedonia, the Republic of Iceland, the Republic of Montenegro, the Kingdom of Norway, Romania, the Republic of Serbia and the United Nations Interim Administration Mission in Kosovo on the establishment of a European Common Aviation Area (OJ L 285, 16.10.2006, p. 3).

2. The Stabilisation and Association Council may make recommendations for improving establishment and operations in the areas covered by paragraph 1.

Article 56

1. The provisions of Articles 53 and 54 do not preclude the application by a Party of particular rules concerning the establishment and operation in its territory of branches of companies of another Party not incorporated in the territory of the first Party, which are justified by legal or technical differences between such branches as compared to branches of companies incorporated in its territory or, as regards financial services, for prudential reasons.

2. The difference in treatment shall not go beyond what is strictly necessary as a result of such legal or technical differences or, as regards financial services, for prudential reasons.

Article 57

In order to make it easier for Community nationals and nationals from Montenegro to take up and pursue regulated professional activities in Montenegro and in the Community respectively, the Stabilisation and Association Council shall examine which steps are necessary for the mutual recognition of qualifications. It may take all necessary measures to that end.

Article 58

1. A Community company established in the territory of Montenegro or a Montenegrin company established in the Community shall be entitled to employ, or have employed by one of its subsidiaries or branches, in accordance with the legislation in force in the host territory of establishment, in the territory of the Republic of Montenegro and the Community respectively, employees who are nationals of the Member States or nationals from Montenegro respectively, provided that such employees are key personnel as defined in paragraph 2 and that they are employed exclusively by companies, subsidiaries or branches. The residence and work permits of such employees shall only cover the period of such employment.

2. Key personnel of the abovementioned companies herein referred to as 'organisations' are 'intra-corporate transferees' as defined in (c) of this paragraph in the following categories, provided that the organisation is a legal person and that the persons concerned have been employed by it or have been partners in it (other than as majority shareholders), for at least the year immediately preceding such movement:

(a) Persons working in a senior position with an organisation, who primarily direct the management of the establishment, receiving general supervision or direction principally from the board of directors or stockholders of the business or their equivalent including:

(i) directing the establishment of a department or subdivision of the establishment;

(ii) supervising and controlling the work of other supervisory, professional or managerial employees;

(iii) having the authority personally to recruit and dismiss or recommend recruiting, dismissing or other personnel actions;

(b) Persons working within an organisation who possess uncommon knowledge essential to the establishment's service, research equipment, techniques or management. The assessment of such knowledge may reflect, apart from knowledge specific to the establishment, a high level of qualification referring to a type of work or trade requiring specific technical knowledge, including membership of an accredited profession;

(c) An 'intra-corporate transferee' is defined as a natural person working within an organisation in the territory of a Party, and being temporarily transferred in the context of pursuit of economic activities in the territory of the other Party; the organisation concerned must have its principal place of business in the territory of a Party and the transfer be to an establishment (branch, subsidiary) of that organisation, effectively pursuing like economic activities in the territory of the other Party.

3. The entry into and the temporary presence within the territory of the Community or in Montenegro of Montenegrin nationals and Community nationals respectively shall be permitted, when these representatives of companies are persons working in a senior position, as defined in paragraph 2(a) above, within a company, and are responsible for the setting up of a Community subsidiary or branch of a Montenegrin company or of a Montenegrin subsidiary or branch of a Community company in a Member State or in the Republic of Montenegro respectively, when:

(a) those representatives are not engaged in making direct sales or supplying services, and do not receive remuneration from a source located within the host territory of establishment, and;

(b) the company has its principal place of business outside the Community or Montenegro, respectively, and has no other representative, office, branch or subsidiary in that Member State or in Montenegro respectively.

CHAPTER III

Supply of services

Article 59

1. The Community and Montenegro undertake, in accordance with the following provisions, to take the necessary steps to allow progressively the supply of services by Community companies, Montenegrin companies or by Community nationals or nationals of Montenegro which are established in the territory of a Party other than that of the person for whom the services are intended.

2. In step with the liberalisation process mentioned in paragraph 1, the Parties shall permit the temporary movement of natural persons providing the service or who are employed by the service provider as key personnel as defined in Article 58, including natural persons who are representatives of a Community or Montenegrin company or national and are seeking temporary entry for the purpose of negotiating for the sale of services or entering into agreements to sell services for that service provider, where those representatives will not be engaged in making direct sales to the general public or in supplying services themselves.

3. After four years, the Stabilisation and Association Council shall take the measures necessary to progressively implement the provisions of paragraph 1. Account shall be taken of the progress achieved by the Parties in the approximation of their laws.

Article 60

1. The Parties shall not take any measures or actions which render the conditions for the supply of services by Community and Montenegro nationals or companies which are established in a Party other than that of the person for whom the services are intended significantly more restrictive as compared to the situation existing on the day preceding the day of entry into force of this Agreement.

2. If one Party is of the view that measures introduced by the other Party since the entry into force of this Agreement result in a situation which is significantly more restrictive in respect of supply of services as compared with the situation existing at the date of entry into force of this Agreement, such first Party may request the other Party to enter into consultations.

Article 61

With regard to supply of transport services between the Community and Montenegro, the following provisions shall apply:

1) With regard to land transport, Protocol 4 lays down the rules applicable to the relationship between the Parties in order to ensure, particularly, unrestricted road transit traffic across Montenegro and the Community as a whole, the effective application of the principle of non-discrimination and progressive harmonisation of the transport legislation of Montenegro with that of the Community.

2) With regard to international maritime transport, the Parties undertake to apply effectively the principle of unrestricted access to the international maritime markets and trades on a commercial basis, and to respect international and European obligations in the field of safety, security and environmental standards.

The Parties affirm their commitment to a freely competitive environment as an essential feature of international maritime transport.

3) In applying the principles of paragraph 2, the Parties shall:

(a) not introduce cargo-sharing clauses in future bilateral Agreements with third countries;

(b) abolish, upon the entry into force of this Agreement, all unilateral measures and administrative, technical and other obstacles that could have restrictive or discriminatory effects on the free supply of services in international maritime transport;

(c) Each Party shall grant, *inter alia*, no less favourable treatment for the ships operated by nationals or companies of the other Party than that accorded to a Party's own ships with regard to access to ports open to international trade, the use of infrastructure and auxiliary maritime services of the ports, as well as related fees and charges, customs facilities and the assignment of berths and facilities for loading and unloading.

4) With a view to ensuring a coordinated development and progressive liberalisation of transport between the Parties adapted to their reciprocal commercial needs, the conditions of mutual market access in air transport shall be dealt with by the ECAA.

5) Prior to the conclusion of the ECAA, the Parties shall not take any measures or actions which are more restrictive or discriminatory as compared with the situation existing prior to the entry into force of this Agreement.

6) Montenegro shall adapt its legislation, including administrative, technical and other rules, to that of the Community existing at any time in the field of air, maritime, inland waterway and land transport insofar as it serves liberalisation purposes and mutual access to markets of the Parties and facilitates the movement of passengers and of goods.

7) In step with the common progress in the achievement of the objectives of this Chapter, the Stabilisation and Association Council shall examine ways of creating the conditions necessary for improving freedom to provide air, land and inland waterway transport services.

CHAPTER IV

Current payments and movement of capital

Article 62

The Parties undertake to authorise, in freely convertible currency, in accordance with the provisions of Article VIII of the Articles of the Agreement of the International Monetary Fund, any payments and transfers on the current account of balance of payments between the Community and Montenegro.

Article 63

1. With regard to transactions on the capital and financial account of balance of payments, from the entry into force of this Agreement, the Parties shall ensure the free movement of capital relating to direct investments made in companies formed in accordance with the laws of the host country and investments made in accordance with the provisions of Chapter II of Title V, and the liquidation or repatriation of these investments and of any profit stemming there from.

2. With regard to transactions on the capital and financial account of balance of payments, from the entry into force of this Agreement, the Parties shall ensure the free movement of capital relating to credits related to commercial transactions or to the provision of services in which a resident of one of the Parties is participating, and to financial loans and credits, with maturity longer than a year.

3. Montenegro shall, from the entry into force of this Agreement, grant national treatment to EU nationals acquiring real estate on its territory.

4. The Community and Montenegro shall also ensure, from the entry into force of this Agreement, free movement of capital relating to portfolio investment and financial loans and credits with maturity shorter than a year.

5. Without prejudice to paragraph 1, the Parties shall not introduce any new restrictions on the movement of capital and current payments between residents of the Community and Montenegro and shall not make the existing arrangements more restrictive.

6. Without prejudice to the provisions of Article 62 and of this Article, where, in exceptional circumstances, movements of capital between the Community and Montenegro cause, or threaten to cause, serious difficulties for the operation of exchange rate policy or monetary policy in the Community or Montenegro, the Community and Montenegro, respectively, may take safeguard measures with regard to movements of capital between the Community and Montenegro for a period not exceeding six months if such measures are strictly necessary.

7. Nothing in the above provisions shall be taken to limit the rights of economic operators of the Parties from benefiting from any more favourable treatment that may be provided for in any existing bilateral or multilateral Agreement involving Parties to this Agreement.

8. The Parties shall consult each other with a view to facilitating the movement of capital between the Community and Montenegro in order to promote the objectives of this Agreement.

Article 64

1. During the first year following the date of entry into force of this Agreement, the Community and Montenegro shall take measures permitting the creation of the necessary conditions for the further gradual application of Community rules on the free movement of capital.

2. By the end of the second year following the date of entry into force of this Agreement, the Stabilisation and Association Council shall determine the modalities for full application of Community rules on the movement of capital in Montenegro.

CHAPTER V

General provisions

Article 65

1. The provisions of this Title shall be applied subject to limitations justified on grounds of public policy, public security or public health.

2. They shall not apply to activities that in the territory of any of the Parties are connected, even occasionally, with the exercise of official authority.

Article 66

For the purpose of this Title, nothing in this Agreement shall prevent the Parties from applying their laws and regulations regarding entry and stay, employment, working conditions, establishment of natural persons and supply of services, notably insofar as the granting, renewal or refusal of a residence permit is concerned, provided that, in so doing, they do not apply them in such a manner as to nullify or impair the benefits accruing to any Party under the terms of a specific provision of this Agreement. This provision shall be without prejudice to the application of Article 65.

Article 67

Companies which are controlled and exclusively owned jointly by Montenegrin companies or nationals of Montenegro and Community companies or nationals shall also be covered by the provisions of this Title.

Article 68

1. The Most-Favoured-Nation treatment granted in accordance with the provisions of this Title shall not apply to the tax advantages that the Parties are providing or will provide in the future on the basis of Agreements designed to avoid double taxation or other tax arrangements.

2. None of the provisions of this Title shall be construed to prevent the adoption or enforcement by the Parties of any measure aimed at preventing the avoidance or evasion of taxes pursuant to the tax provisions of Agreements to avoid double taxation and other tax arrangements or domestic fiscal legislation.

3. None of the provisions of this Title shall be construed to prevent Member States or Montenegro from applying the relevant provisions of their fiscal legislation, from distinguishing between taxpayers who are not in identical situations, in particular as regards their place of residence.

Article 69

1. The Parties shall endeavour wherever possible to avoid the imposition of restrictive measures, including measures relating to imports, for balance of payments purposes. A Party adopting such measures shall present as soon as possible to the other Party a timetable for their removal.

2. Where one or more Member States or Montenegro is in serious balance of payments difficulties, or under imminent threat thereof, the Community and Montenegro may, in accordance with the conditions established under the WTO Agreement, adopt restrictive measures, including measures relating to imports, which shall be of limited duration and may not go beyond what is strictly necessary to remedy the balance of payments situation. The Community and Montenegro shall inform the other Party forthwith.

3. Any restrictive measures shall not apply to transfers related to investment and in particular to the repatriation of amounts invested or reinvested or any kind of revenues stemming therefrom.

Article 70

The provisions of this Title shall be progressively adjusted, notably in the light of requirements arising from Article V of the GATS.

Article 71

The provisions of this Agreement shall not prejudice the application by any Party of any measure necessary to prevent the circumvention of its measures concerning third-country access to its market through the provisions of this Agreement.

TITLE VI

APPROXIMATION OF LAWS, LAW ENFORCEMENT AND COMPETITION RULES

Article 72

1. The Parties recognise the importance of the approximation of the existing legislation in Montenegro to that of the Community and of its effective implementation. Montenegro shall endeavour to ensure that its existing laws and future legislation will be gradually made compatible with the Community *acquis*. Montenegro shall ensure that existing and future legislation will be properly implemented and enforced.

2. This approximation shall start on the date of signing of this Agreement, and shall gradually extend to all the elements of the Community *acquis* referred to in this Agreement by the end of the transitional period defined in Article 8 of this Agreement.

3. Approximation will, at an early stage, focus on fundamental elements of the Internal Market *acquis*, including financial sector legislation, Justice, Freedom and Security as well as on trade-related areas. At a further stage, Montenegro shall focus of the remaining parts of the *acquis*.

Approximation shall be carried out on the basis of a programme to be agreed between the European Commission and Montenegro.

4. Montenegro shall also define, in agreement with the European Commission, the modalities for the monitoring of the implementation of approximation of legislation and law enforcement actions to be taken.

Article 73

Competition and other economic provisions

1. The following are incompatible with the proper functioning of this Agreement, insofar as they may affect trade between the Community and Montenegro:

(i) all Agreements between undertakings, decisions by associations of undertakings and concerted practices between undertakings which have as their object or effect the prevention, restriction or distortion of competition;

(ii) abuse by one or more undertakings of a dominant position in the territories of the Community or Montenegro as a whole or in a substantial part thereof;

(iii) any State aid which distorts or threatens to distort competition by favouring certain undertakings or certain products.

2. Any practices contrary to this Article shall be assessed on the basis of criteria arising from the application of the competition rules applicable in the Community, in particular from Articles 81, 82, 86 and 87 of the EC Treaty and interpretative instruments adopted by the Community institutions.

3. The Parties shall ensure that an operationally independent authority is entrusted with the powers necessary for the full application of paragraph 1(i) and (ii) of this Article, regarding private and public undertakings and undertakings to which special rights have been granted.

4. Montenegro shall establish an operationally independent authority which is entrusted with the powers necessary for the full application of paragraph 1(iii) within one year from the date of entry into force of this Agreement. This authority shall have, *inter alia*, the powers to authorise State aid schemes and individual aid grants in conformity with paragraph 2, as well as the powers to order the recovery of State aid that has been unlawfully granted.

5. The Community on one side and Montenegro on the other side shall ensure transparency in the area of State aid, *inter alia* by providing to the other Parties a regular annual report, or equivalent, following the methodology and the presentation of the Community survey on State aid. Upon request by one Party, the other Party shall provide information on particular individual cases of public aid.

6. Montenegro shall establish a comprehensive inventory of aid schemes instituted before the establishment of the authority referred to in paragraph 4 and shall align such aid schemes with the criteria referred to in paragraph 2 within a period of no more than 4 years from the entry into force of this Agreement.

7.

(a) For the purposes of applying the provisions of paragraph 1(iii), the Parties recognise that during the first five years after the entry into force of this Agreement, any public aid granted by Montenegro shall be assessed taking into account the fact that Montenegro shall be regarded as an area identical to those areas of the Community described in Article 87(3) (a) of the EC Treaty.

(b) Within four years from the entry into force of this Agreement, Montenegro shall submit to the European Commission its GDP per capita figures harmonised at NUTS II level. The authority referred to in paragraph 4 and the European Commission shall then jointly evaluate the eligibility of the regions of Montenegro as well as the maximum aid intensities in relation thereto in order to draw up the regional aid map on the basis of the relevant Community guidelines.

8. As appropriate, Protocol 5 establishes the rules on state aid in the steel industry. This Protocol establishes the rules applicable in the event restructuring aid is granted to the steel industry. It would stress the exceptional character of such aid and the fact that the aid would be limited in time and would be linked to capacity reductions within the framework of feasibility programmes.

9. With regard to products referred to in Chapter II of Title IV:

(a) paragraph 1(iii) shall not apply;

(b) any practices contrary to paragraph 1(i) shall be assessed according to the criteria established by the Community on the basis of Articles 36 and 37 of the EC Treaty and specific Community instruments adopted on this basis.

10. If one of the Parties considers that a particular practice is incompatible with the terms of paragraph 1, it may take appropriate measures after consultation within the Stabilisation and Association Council or after 30 working days following referral for such consultation. Nothing in this Article shall prejudice or affect in any way the taking, by the Community or Montenegro, of countervailing measures in accordance with the GATT 1994 and the WTO Agreement on Subsidies and Countervailing Measures and the respective related internal legislation.

Article 74

Public undertakings

By the end of the third year following the entry into force of this Agreement, Montenegro shall apply to public undertakings and undertakings to which special and exclusive rights have been granted the principles set out in the EC Treaty, with particular reference to Article 86.

Special rights of public undertakings during the transitional period shall not include the possibility to impose quantitative restrictions or measures having an equivalent effect on imports from the Community into Montenegro.

Article 75

Intellectual, industrial and commercial property

1. Pursuant to the provisions of this Article and Annex VII, the Parties confirm the importance that they attach to ensuring adequate and effective protection and enforcement of intellectual, industrial and commercial property rights.

2. From the entry into force of this Agreement, the Parties shall grant to each others companies and nationals, in respect of the recognition and protection of intellectual, industrial and commercial property, treatment no less favourable than that granted by them to any third country under bilateral Agreements.

3. Montenegro shall take the necessary measures in order to guarantee no later than five years after entry into force of this Agreement a level of protection of intellectual, industrial and commercial property rights similar to that existing in the Community, including effective means of enforcing such rights.

4. Montenegro undertakes to accede, within the period referred to above, to the multilateral conventions on intellectual, industrial and commercial property rights referred to in Annex VII. The Stabilisation and Association Council may decide to oblige Montenegro to accede to specific multilateral Conventions in this area.

5. If problems in the area of intellectual, industrial and commercial property affecting trading conditions occur, they shall be referred urgently to the Stabilisation and Association Council, at the request of either Party, with a view to reaching mutually satisfactory solutions.

Article 76

Public procurement

1. The Community and Montenegro consider the opening-up of the award of public contracts on the basis of non-discrimination and reciprocity, following in particular the WTO rules, to be a desirable objective.

2. Montenegrin companies, whether established or not in the Community, shall be granted access to contract award procedures in the Community pursuant to Community procurement rules under treatment no less favourable than that accorded to Community companies as from the entry into force of this Agreement.

The above provisions shall also apply to contracts in the utilities sector once the government of Montenegro has adopted the legislation introducing the Community rules in this area. The Community shall examine periodically whether Montenegro has indeed introduced such legislation.

3. Community companies established in Montenegro under the provisions of Chapter II of Title V shall, from the entry into force of this Agreement, be granted access to contract award procedures in Montenegro under treatment no less favourable than that accorded to Montenegrin companies.

4. Community companies not established in Montenegro shall be granted access to contract award procedures in Montenegro under treatment no less favourable than that accorded to Montenegrin companies as from the entry into force of this Agreement.

5. The Stabilisation and Association Council shall periodically examine the possibility for Montenegro to introduce access to contract award procedures in Montenegro for all Community companies. Montenegro shall report annually to the Stabilisation and Association Council on the measures they have taken to enhance transparency and to provide for effective judicial review of decisions taken in the area of public procurement.

6. As regards establishment, operations, supply of services between the Community and Montenegro, and also employment and movement of labour linked to the fulfilment of public contracts, the provisions of Articles 49 to 64 are applicable.

Article 77

Standardisation, metrology, accreditation and conformity assessment

1. Montenegro shall take the necessary measures in order to gradually achieve conformity with Community technical regulations and European standardisation, metrology, accreditation and conformity assessment procedures.

2. To this end, the Parties shall seek to:

(a) promote the use of Community technical regulations, European standards and conformity assessment procedures;

(b) provide assistance to fostering the development of quality infrastructure: standardisation, metrology, accreditation and conformity assessment;

(c) promote the participation of Montenegro in the work of organisations related to standards, conformity assessment, metrology and similar functions (e.g. CEN, CENELEC, ETSI, EA, WELMEC, EUROMET) [1].

(d) Where appropriate, conclude an Agreement on Conformity Assessment and Acceptance of Industrial Products once the legislative framework and the procedures of Montenegro is sufficiently aligned on that of the Community and appropriate expertise is available.

Article 78

Consumer protection

The Parties shall cooperate in order to align the standards of consumer protection in Montenegro to those of the Community. Effective consumer protection is necessary in order to ensure the proper functioning of the market economy, and this protection will depend on the development of an administrative infrastructure in order to ensure market surveillance and law enforcement in this field.

To that end, and in view of their common interests, the Parties shall ensure:

(a) a policy of active consumer protection, in accordance with Community law, including the increase of information and development of independent organisations;

(b) the harmonisation of legislation of consumer protection in Montenegro on that in force in the Community;

[1] European Committee for Standardisation, European Committee for Electrotechnical Standardisation, European Telecommunications Standards Institute, European cooperation for Accreditation, European Cooperation in Legal Metrology, European Organisation of Metrology.

(c) effective legal protection for consumers in order to improve the quality of consumer goods and maintain appropriate safety standards;

(d) monitoring of rules by competent authorities and providing access to justice in case of disputes;

(e) exchange information on dangerous products.

Article 79

Working conditions and equal opportunities

Montenegro shall progressively harmonise its legislation to that of the Community in the fields of working conditions, notably on health and safety at work, and equal opportunities.

TITLE VII

JUSTICE, FREEDOM AND SECURITY

Article 80

Reinforcement of institutions and rule of law

In their cooperation on justice, freedom and security, the Parties shall attach particular importance to the consolidation of the rule of law, and the reinforcement of institutions at all levels in the areas of administration in general and law enforcement and the administration of justice in particular. Cooperation shall notably aim at strengthening the independence of the judiciary and improving its efficiency, improving the functioning of the police and other law enforcement bodies, providing adequate training and fighting corruption and organised crime.

Article 81

Protection of personal data

Montenegro shall harmonise its legislation concerning personal data protection with Community law and other European and international legislation on privacy upon the entry into force of this Agreement. Montenegro shall establish one or more independent supervisory bodies with sufficient financial and human resources in order to efficiently monitor and guarantee the enforcement of national personal data protection legislation. The Parties shall cooperate to achieve this goal.

Article 82

Visa, border management, asylum and migration

The Parties shall cooperate in the areas of visa, border control, asylum and migration and shall set up a framework for the cooperation, including at a regional level, in these fields, taking into account and making full use of other existing initiatives in this area as appropriate.

Cooperation in the matters above shall be based on mutual consultations and close coordination between the Parties and should include technical and administrative assistance for:

(a) the exchange of information on legislation and practices;

(b) the drafting of legislation;

(c) enhancing the efficiency of the institutions;

(d) the training of staff;

(e) the security of travel documents and detection of false documents;

(f) border management.

Cooperation shall focus in particular:

(a) on the area of asylum on the implementation of national legislation to meet the standards of the Convention relating to the Status of Refugees done at Geneva on 28 July 1951 and the Protocol relating to the Status of Refugees done at New York on 31 January 1967 thereby to ensure that the principle of 'non-refoulement' is respected as well as other rights of asylum seekers and refugees;

(b) on the field of legal migration, on admission rules and rights and status of the person admitted. In relation to migration, the Parties agree to the fair treatment of nationals of other countries who reside legally on their territories and to promote an integration policy aiming at making their rights and obligations comparable to those of their citizens.

Article 83

Prevention and control of illegal immigration; readmission

1. The Parties shall cooperate in order to prevent and control illegal immigration. To this end, Montenegro and the Member States shall readmit any of their nationals illegally present on their territories and the Parties also agree to conclude and fully implement an Agreement for readmission, including an obligation for the readmission of nationals of other countries and stateless persons.

The Member States and Montenegro shall provide their nationals with appropriate identity documents and shall extend to them the administrative facilities necessary for such purposes.

Specific procedures for the purpose of readmission of nationals, third country nationals and stateless persons shall be laid down in the Agreement between the Community and Montenegro on the readmission of persons residing without authorisation.

2. Montenegro agrees to conclude readmission Agreements with the Stabilisation and Association process countries.

3. Montenegro undertakes to take any necessary measures to ensure the flexible and rapid implementation of all readmission Agreements referred to in this Article.

4. The Stabilisation and Association Council shall establish other joint efforts that can be made to prevent and control illegal immigration, including trafficking and illegal migration networks.

Article 84

Money laundering and financing of terrorism

1. The Parties shall cooperate in order to prevent the use of their financial systems for laundering of proceeds from criminal activities in general and drug offences in particular, as well as for the purpose of financing terrorism.

2. Cooperation in this area may include administrative and technical assistance with the purpose of developing the implementation of regulations and efficient functioning of the suitable standards and mechanisms to combat money laundering and financing of terrorism equivalent to those adopted by the Community and international fora in this field, in particular the Financial Action Task Force (FATF).

Article 85

Cooperation on illicit drugs

1. Within their respective powers and competencies, the Parties shall cooperate to ensure a balanced and integrated approach towards drug issues. Drug policies and actions shall be aimed at reinforcing structures for combating illicit drugs, reducing the supply of, trafficking in and the demand for illicit drugs, coping with the health and social consequences of drug abuse as well as at a more effective control of precursors.

2. The Parties shall agree on the necessary methods of cooperation to attain these objectives. Actions shall be based on commonly agreed principles along the lines of the EU Drug Control Strategy.

Article 86

Preventing and combating organised crime and other illegal activities

The Parties shall cooperate on combating and preventing criminal and illegal activities, organised or otherwise, such as:

(a) smuggling and trafficking in human beings;

(b) illegal economic activities, and in particular counterfeiting of cash and non-cash means of payments, illegal transactions on products such as industrial waste, radioactive material and transactions involving illegal, counterfeit or pirated products;

(c) corruption, both in the private and public sector, in particular linked to non-transparent administrative practices;

(d) fiscal fraud;

(e) identity theft;

(f) illicit trafficking in drugs and psychotropic substances;

(g) illicit arms trafficking;

(h) forging documents;

(i) smuggling and illicit trafficking of goods including cars;

(j) cyber crime.

As regards currency counterfeiting, Montenegro shall cooperate closely with the Community to combat counterfeiting of banknotes and coins and to suppress and punish any counterfeiting of banknotes and coins, which may occur in the territory. At the level of prevention, Montenegro shall aim at implementing measures which are equivalent to those laid down in the relevant Community legislation, and to adhere to any international convention related to this field of law. Montenegro could benefit from Community support, for exchange, assistance and training in the protection against currency counterfeiting. Regional cooperation and compliance with recognised international standards in combating organised crime shall be promoted.

Article 87

Combating terrorism

In compliance with the international conventions to which they are Party and their respective laws and regulations, the Parties agree to cooperate in order to prevent and suppress acts of terrorism and their financing:

(a) in the framework of full implementation of United Nations Security Council Resolution 1373 (2001) and other relevant UN resolutions, international conventions and instruments;

(b) by exchanging information on terrorist groups and their support networks in accordance with international and national law;

(c) by exchanging experiences with regard to means and methods of combating terrorism and in technical areas and training, and by exchanging experience in respect of the prevention of terrorism.

TITLE VIII

COOPERATION POLICIES

Article 88

1. The Community and Montenegro shall establish a close cooperation aimed at contributing to the development and growth potential of Montenegro. Such cooperation shall strengthen existing economic links on the widest possible foundation, to the benefit of both Parties.

2. Policies and other measures shall be designed to bring about sustainable economic and social development of Montenegro. These policies should ensure that environmental considerations are also fully incorporated from the outset and that they are linked to the requirements of harmonious social development.

3. Cooperation policies shall be integrated into a regional framework of cooperation. Special attention will have to be devoted to measures that can foster cooperation between Montenegro and its neighbouring countries including Member States, thus contributing to regional stability. The Stabilisation and Association Council shall define priorities between and within the cooperation policies described hereinafter in line with the European Partnership.

Article 89

Economic and trade policy

The Community and Montenegro shall facilitate the process of economic reform by cooperating to improve understanding of the fundamentals of their respective economies and the formulation and implementation of economic policy in market economies.

To these ends, the Community and Montenegro shall cooperate to:

(a) exchange information on macroeconomic performance and prospects and on strategies for development;

(b) analyse jointly economic issues of mutual interest, including the framing of economic policy and the instruments for implementing it; and

(c) promote wider cooperation with the aim to speed up the inflow of know-how and access to new technologies.

Montenegro shall strive to establish a functioning market economy and to gradually approximate its policies to the stability-oriented policies of the European Economic and Monetary Union. At the request of the authorities of Montenegro, the Community may provide assistance designed to support the efforts of Montenegro in this respect.

Cooperation shall also aim at strengthening the rule of law in the business area through a stable and non-discriminatory trade-related legal framework.

Cooperation in this area shall include exchange of information concerning the principles and functioning of the European Economic and Monetary Union.

Article 90

Statistical cooperation

Cooperation between the Parties shall primarily focus on priority areas related to the Community *acquis* in the field of statistics, including in the economic, trade, monetary and financial areas. It shall notably be aimed at developing efficient and sustainable statistical systems capable of providing, reliable, objective and accurate data needed to plan and monitor the process of transition and reform in Montenegro. It should also enable the Statistical Office in Montenegro to better meet the needs of its customers in the country (both public administration and private sector). The statistical system should respect the fundamental principles of statistics issued by the UN, the European Statistical Code of Practice and the stipulations of the European Statistical law and develop towards the Community *acquis*. The Parties shall cooperate in particular to ensure the confidentiality of individual data, to progressively increase data collection and transmission to the European Statistical System and, to exchange of information on methods, transfer of know-how and training.

Article 91

Banking, insurance and other financial services

Cooperation between Montenegro and the Community shall focus on priority areas related to the Community *acquis* in the fields of banking, insurance and financial services. The Parties shall cooperate with the aim of establishing and developing a suitable framework for the encouragement of the banking, insurance and financial services sectors in Montenegro based on fair competition practices and ensuring the necessary level playing field.

Article 92

Internal control and external audit cooperation

Cooperation between the Parties shall focus on priority areas related to the Community *acquis* in the fields of public internal financial control (PIFC) and external audit. The Parties shall, in particular, cooperate - through elaborating and adopting relevant regulation - with the aim of developing transparent, efficient and economic PIFC (including financial management and control and functionally independent internal audit) and independent external audit systems in Montenegro, in accordance with internationally accepted standards and methodologies and EU best practices.

Cooperation shall also focus on capacity building of the Supreme Audit institution in Montenegro. In order to be able to fulfil the coordination and harmonisation responsibilities stemming from the requirements above, cooperation should also focus on the establishment and strengthening of central harmonisation units for financial management and control and for Internal Audit.

Article 93

Investment Promotion and Protection

Cooperation between the Parties, within the scope of their respective competencies, in the field of investment promotion and protection shall aim to bring about a favourable climate for private investment, both domestic and foreign, which is essential to economic and industrial revitalisation in Montenegro. The particular aims of cooperation shall be for Montenegro to improve the legal frameworks which favours and protects investment.

Article 94

Industrial Cooperation

Cooperation shall aim to promote the modernisation and restructuring of industry and individual sectors in Montenegro. It shall also cover industrial cooperation between economic operators, with the objective of strengthening the private sector under conditions which ensure that the environment is protected.

Industrial cooperation initiatives shall reflect the priorities determined by both Parties. They shall take into account the regional aspects of industrial development, promoting trans-national partnerships when relevant. The initiatives should seek in particular to establish a suitable framework for undertakings, to improve management, know-how and to promote markets, market transparency and the business environment. Special attention shall be devoted to the establishment of efficient export promotion activities in Montenegro.

Cooperation shall take due account of the Community *acquis* in the field of industrial policy.

Article 95

Small and medium-sized enterprises

Cooperation between the Parties shall be aimed at developing and strengthening private sector small and medium-sized enterprises (SMEs), the establishment of new undertakings in areas offering potential for growth and cooperation between SMEs in the Community and in Montenegro. Cooperation shall take due account of priority areas related to the Community *acquis* in the field of SMEs, as well as the ten guidelines enshrined in the European Charter for Small Enterprises.

Article 96

Tourism

Cooperation between the Parties in the field of tourism shall be mainly aimed at strengthening the flow of information on tourism (through international networks, databanks, etc.); encouraging the development of infrastructure conducive to investment in the tourism sector, participation of Montenegro in important European tourism organisations. It shall also aim at studying the opportunities for joint operations and strengthening cooperation between tourism enterprises, experts and governments and their competent agencies in the field of tourism, as well as transferring know-how (through training, exchanges, seminars). Cooperation shall take due account of Community *acquis* related to this sector.

Cooperation may be integrated into a regional framework of cooperation.

Article 97

Agriculture, and the agro-industrial sector

Cooperation between the Parties shall be developed in all priority areas related to the Community *acquis* in the field of agriculture, as well as veterinary and phytosanitary domains. Cooperation shall notably aim at modernising and restructuring the agriculture and agro-industrial sector, in particular to reach community sanitary requirements, to improve water management and rural development as well as to develop the forestry sector in Montenegro and at supporting the gradual approximation of Montenegrin legislation and practices to the Community rules and standards.

Article 98

Fisheries

The Parties shall explore the possibility of identifying mutually beneficial areas of common interest in the fisheries sector. Cooperation shall take due account of priority areas related to the Community *acquis* in the field of fisheries, including the respect of international obligations concerning International and Regional Fisheries Organisation rules of management and conservation of fishery resources.

Article 99

Customs

The Parties shall establish cooperation in this area with a view to guarantee compliance with the provisions to be adopted in the area of trade and to achieve the approximation of the customs systems of Montenegro to that of the Community, thereby helping to pave the way for the liberalisation measures planned under this Agreement and for the gradual approximation of the Montenegrin customs legislation to the *acquis*.

Cooperation shall take due account of priority areas related to the Community *acquis* in the field of customs.

The rules on mutual administrative assistance between the Parties in the customs field are laid down in Protocol 6.

Article 100

Taxation

The Parties shall establish cooperation in the field of taxation including measures aiming at the further reform of Montenegro's fiscal system and the restructuring of tax administration with a view to ensuring effectiveness of tax collection and the fight against fiscal fraud.

Cooperation shall take due account of priority areas related to the Community *acquis* in the field of taxation and in the fight against harmful tax competition. Elimination of harmful tax competition should be carried out on the basis of the principles of the Code of Conduct for business taxation agreed by the Council on 1 December 1997.

Cooperation shall also be geared to enhancing transparency and fighting corruption, and to include exchange of information with the Member States in an effort to facilitate the enforcement of measures preventing tax fraud, evasion and avoidance. Montenegro shall also complete the network of bilateral Agreements with Member States, along the lines of the latest update of the OECD Model Tax Convention on Income and on Capital as well as on the basis of the OECD Model Agreement on Exchange of Information in Tax Matters, to the extent that the requesting Member State subscribes to these.

Article 101

Social cooperation

With regard to employment, cooperation between the Parties shall focus notably on upgrading job-finding and careers advice services, providing back-up measures and promoting local development to assist industrial and labour market restructuring. It shall also include measures such as studies, the secondment of experts and information and training operations.

The Parties shall cooperate to facilitate the reform of the employment policy in Montenegro, in the context of strengthened economic reform and integration. Cooperation shall also seek to support the adaptation of the Montenegrin social security system to the new economic and social requirements, and shall involve the adjustment of the legislation in Montenegro concerning working conditions and equal opportunities for women and men, for people with disabilities and for people belonging to minority groups as well as the improvement of the level of protection of the health and safety of workers, taking as a reference the level of protection existing in the Community. Montenegro shall ensure adherence and effective implementation of ILO fundamental conventions.

Cooperation shall take due account of priority areas related to the Community *acquis* in this field.

Article 102

Education and training

The Parties shall cooperate with the aim of raising the level of general education and vocational education and training in Montenegro as well as youth policy and youth work, including non-formal education. A priority for higher education systems shall be the achievement of the objectives of the Bologna Declaration in the intergovernmental Bologna process.

The Parties shall also cooperate with the aim of ensuring that access to all levels of education and training in Montenegro is free of discrimination on the grounds of gender, colour, ethnic origin or religion.

The relevant Community programmes and instruments shall contribute to the upgrading of educational and training structures and activities in Montenegro.

Cooperation shall take due account of priority areas related to the Community *acquis* in this field.

Article 103

Cultural cooperation

The Parties undertake to promote cultural cooperation. This cooperation serves *inter alia* to raise mutual understanding and esteem between individuals, communities and peoples. The Parties also undertake to cooperate to promote cultural diversity, notably within the framework of the UNESCO Convention on the protection and the promotion of the diversity of cultural expressions.

Article 104

Cooperation in the audio-visual field

The Parties shall cooperate to promote the audio-visual industry in Europe and encourage co-production in the fields of cinema and television.

Cooperation could include *inter alia* programmes and facilities for the training of journalists and other media professionals, as well as technical assistance to the media, the public and private, so as to reinforce their independence, professionalism and links with European media.

Montenegro shall align its policies on the regulation of content aspects of cross-border broadcasting with those of the EC and shall harmonise its legislation with the EU *acquis*. Montenegro shall pay particular attention to matters relating to the acquisition of intellectual property rights for programmes and broadcast by satellite, cable and terrestrial frequencies.

Article 105

Information society

Cooperation shall be developed in all areas related to the Community *acquis* regarding the information society. It shall mainly support Montenegro's gradual alignment of policies and legislation in this sector with those of the Community.

The Parties shall also cooperate with a view to further developing the Information Society in Montenegro. Global objectives will be preparing society as a whole for the digital age, attracting investments and ensuring the interoperability of networks and services.

Article 106

Electronic communications networks and services

Cooperation shall primarily focus on priority areas related to the Community *acquis* in this field. The Parties shall, in particular, strengthen cooperation in the area of electronic communications networks and electronic communications services, with the ultimate objective of the adoption by Montenegro of the Community *acquis* in the sector three years after the entry into force of this Agreement.

Article 107

Information and communication

The Community and Montenegro shall take the measures necessary to stimulate the mutual exchange of information. Priority shall be given to programmes aimed at providing the general public with basic information about the Community and professional circles in Montenegro with more specialised information.

Article 108

Transport

Cooperation between the Parties shall focus on priority areas related to the Community *acquis* in the field of transport.

Cooperation may notably aim at restructuring and modernising the Montenegrin transport modes, improving the free movement of passengers and goods, enhancing the access to the transport market and facilities, including ports and airports. Furthermore cooperation may support the development of multi-modal infrastructures in connection with the main Trans-European networks, notably to reinforce regional links in South East Europe in line with the MoU on the development of the Core Regional Transport Network. The objective of the cooperation should be to achieve operating standards comparable to those in the Community as well as to develop a transport system in Montenegro compatible and aligned with the Community system and improving protection of the environment in transport.

Article 109

Energy

Cooperation shall focus on priority areas related to the Community *acquis* in the field of energy. It shall be based on the Energy Community Treaty, and it shall be developed with a view to the gradual integration of Montenegro into Europe's energy markets. Cooperation may include in particular:

(a) the formulation and planning of energy policy, including modernisation of infrastructure, improvement and diversification of supply and improvement of access to the energy market, including facilitation of transit, transmission and distribution and restoration of electricity interconnections of regional importance with neighbouring countries;

(b) the promotion of energy saving, energy efficiency, renewable energy and studying the environmental impact of energy production and consumption;

(c) the formulation of framework conditions for restructuring of energy companies and cooperation between undertakings in this sector.

Article 110

Nuclear Safety

The Parties shall cooperate in the field of nuclear safety and safeguards. Cooperation could cover the following topics:

(a) upgrading the laws and regulations of the Parties on radiation protection, nuclear safety and nuclear materials accountancy and control as well as strengthening the supervisory authorities and their resources;

(b) encouraging the promotion of Agreements between Member States, or European Atomic Energy Community and Montenegro on early notification and exchange of information in cases of nuclear accidents and on emergency preparedness and on nuclear safety issues in general, if appropriate;

(c) nuclear third party liability.

Article 111

Environment

The Parties shall develop and strengthen their cooperation in the environmental field with the vital task of halting further degradation and start improving the environmental situation with the aim of sustainable development.

The parties shall, in particular, establish cooperation with the aim of strengthening administrative structures and procedures to ensure strategic planning of environment issues and coordination between relevant actors and shall focus on the alignment of Montenegro's legislation to the Community acquis. Cooperation could also centre on the development of strategies to significantly reduce local, regional and trans-boundary air and water pollution,

to establish a framework for efficient, clean, sustainable and renewable production and consumption of energy, and to execute environmental impact assessment and strategic environmental assessment. Special attention shall be paid to the ratification and the implementation of the Kyoto Protocol.

Article 112

Cooperation in research and technological development

The Parties shall encourage cooperation in civil scientific research and technological development (RTD) on the basis of mutual benefit and, taking into account the availability of resources, adequate access to their respective programmes, subject to appropriate levels of effective protection of intellectual, industrial and commercial property rights (IPR).

Cooperation shall take due account of the priority areas related to the Community *acquis* in the field of research and technical development.

Article 113

Regional and local development

The Parties shall seek to strengthen regional and local development cooperation, with the objective of contributing to economic development and reducing regional imbalances. Specific attention shall be given to cross-border, trans-national and interregional cooperation.

Cooperation shall take due account of the priority areas related to the Community *acquis* in the field of regional development.

Article 114

Public administration

Cooperation shall aim at ensuring the development of an efficient and accountable public administration in Montenegro, notably to support rule of law implementation, the proper functioning of the state institutions for the benefit of the entire population of Montenegro as a whole and the smooth development of the relations between the EU and Montenegro.

Cooperation in this area shall mainly focus on institution building, including the development and implementation of transparent and impartial recruitment procedures, human resources management, and career development for the public service, continued training and the promotion of ethics within the public administration. Cooperation shall cover all levels of public administration, including local administration.

TITLE IX

FINANCIAL COOPERATION

Article 115

In order to achieve the objectives of this Agreement and in accordance with Articles 5, 116 and 118, Montenegro may receive financial assistance from the Community in the forms of grants and loans, including loans from the European Investment Bank. Community aid is conditional on further progress in satisfying the Copenhagen political criteria and in particular progress in meeting the specific priorities of the European Partnership. Account shall also be taken of the results of the annual reviews of the countries of the Stabilisation and Association process, in particular as regards the recipients' undertaking to carry out democratic, economic and institutional reforms and of other Council conclusions, pertaining in particular to the respect of adjustment programmes. Aid granted to Montenegro shall be geared to observed needs, agreed priorities, the capacity to absorb and repay, and the measures taken to reform and restructure the economy.

Financial assistance may cover all sectors of cooperation, paying particular attention to Justice, Freedom and Security, approximation of legislation, economic development and environmental protection.

Article 116

Financial assistance, in the form of grants, shall be covered by the operation measures provided for in the relevant Council Regulation within a multiannual indicative framework and based on annual action programmes, established by the Community following consultations with Montenegro.

Article 117

At the request of Montenegro and in case of special need, the Community could examine in coordination with international financial institutions, the possibility of granting on an exceptional basis macro-financial assistance subject to certain conditions and taking into account the availability of all financial resources. This assistance would be released subject to the fulfilment of conditions to be established in the context of a programme agreed between Montenegro and the International Monetary Fund.

Article 118

In order to permit optimum use of the resources available, the Parties shall ensure that Community contributions are made in close coordination with those from other sources such as the Member States, other countries and international financial institutions.

To this effect, information on all sources of assistance shall be exchanged regularly between the Parties.

TITLE X

INSTITUTIONAL, GENERAL AND FINAL PROVISIONS

Article 119

A Stabilisation and Association Council is hereby established which shall supervise the application and implementation of this Agreement. It shall meet at an appropriate level at regular intervals and when circumstances require. It shall examine any major issues arising within the framework of this Agreement and any other bilateral or international issues of mutual interest.

Article 120

1. The Stabilisation and Association Council shall consist of the members of the Council of the European Union and members of the European Commission, on the one hand, and of members of the Government of Montenegro on the other.

2. The Stabilisation and Association Council shall establish its rules of procedure.

3. The members of the Stabilisation and Association Council may arrange to be represented, in accordance with the conditions to be laid down in its rules of procedure.

4. The Stabilisation and Association Council shall be chaired in turn by a representative of the Community and a representative of Montenegro, in accordance with the provisions to be laid down in its rules of procedure.

5. In matters that concern it, the European Investment Bank shall take part, as an observer, in the work of the Stabilisation and Association Council.

Article 121

The Stabilisation and Association Council shall, for the purpose of attaining the objectives of this Agreement, have the power to take decisions within the scope of this Agreement in the cases provided for therein. The decisions taken shall be binding on the Parties, which shall take the measures necessary to implement the decisions taken. The Stabilisation and Association Council may also make appropriate recommendations. It shall draw up its decisions and recommendations by agreement between the Parties.

Article 122

1. The Stabilisation and Association Council shall be assisted in the performance of its duties by a Stabilisation and Association Committee, composed of representatives of the Council of the European Union and of representatives of the European Commission, on the one hand, and of representatives of the Government of Montenegro on the other.

2. In its rules of procedure the Stabilisation and Association Council shall determine the duties of the Stabilisation and Association Committee, which shall include the preparation of meetings of the Stabilisation and Association Council, and shall determine how the Committee shall function.

3. The Stabilisation and Association Council may delegate to the Stabilisation and Association Committee any of its powers. In this event the Stabilisation and Association Committee shall take its decisions in accordance with the conditions laid down in Article 121.

Article 123

The Stabilisation and Association Committee may create subcommittees. Before the end of the first year after the date of entry into force of this Agreement, the Stabilisation and Association Committee shall set up the necessary sub-committees for the adequate implementation of this Agreement.

A sub-committee that will address migration issues shall be created.

Article 124

The Stabilisation and Association Council may decide to set up other special committees or bodies that can assist it in carrying out its duties. In its rules of procedure, the Stabilisation and Association Council shall determine the composition and duties of such committees or bodies and how they shall function.

Article 125

A Stabilisation and Association Parliamentary Committee is hereby established. It shall be a forum for Members of the Parliament of Montenegro and of the European Parliament to meet and exchange views. It shall meet at intervals that it shall itself determine.

The Stabilisation and Association Parliamentary Committee shall consist of members of the European Parliament and of members of the Parliament of Montenegro.

The Stabilisation and Association Parliamentary Committee shall establish its rules of procedure.

The Stabilisation and Association Parliamentary Committee shall be chaired in turn by a member of the European Parliament and by a member of the Parliament of Montenegro, in accordance with the provisions to be laid down in its rules of procedure.

Article 126

Within the scope of this Agreement, each Party undertakes to ensure that natural and legal persons of the other Party have access free of discrimination in relation to its own nationals to the competent courts and administrative organs of the Parties to defend their individual rights and their property rights.

Article 127

Nothing in this Agreement shall prevent a Party from taking any measures:

(a) which it considers necessary to prevent the disclosure of information contrary to its essential security interests;

(b) which relate to the production of, or trade in, arms, munitions or war materials or to research, development or production indispensable for defence purposes, provided that such measures do not impair the conditions of competition in respect of products not intended for specifically military purposes;

(c) which it considers essential to its own security in the event of serious internal disturbances affecting the maintenance of law and order, in time of war or serious international tension constituting threat of war or in order to carry out obligations it has accepted for the purpose of maintaining peace and international security.

Article 128

1. In the fields covered by this Agreement and without prejudice to any special provisions contained therein:

(a) the arrangements applied by Montenegro in respect of the Community shall not give rise to any discrimination between the Member States, their nationals, companies or firms;

(b) the arrangements applied by the Community in respect of Montenegro shall not give rise to any discrimination between nationals of Montenegro as well as between Montenegrin companies or firms.

2. The provisions of paragraph 1 shall be without prejudice to the right of the Parties to apply the relevant provisions of their fiscal legislation to taxpayers who are not in identical situations as regards their place of residence.

Article 129

1. The Parties shall take any general or specific measures required to fulfil their obligations under this Agreement. They shall ensure that the objectives set out in this Agreement are attained.

2. The Parties agree to consult promptly through appropriate channels at the request of either Party to discuss any matter concerning the interpretation or implementation of this Agreement and other relevant aspects of the relations between the Parties.

3. Each Party shall refer to the Stabilisation and Association Council any dispute relating to the application or interpretation of this Agreement. In that case, Article 130 and, as the case may be, Protocol 7 shall apply.

The Stabilisation and Association Council may settle the dispute by means of a binding decision.

4. If either Party considers that the other Party has failed to fulfil an obligation under this Agreement, it may take appropriate measures. Before so doing, except in cases of special urgency, it shall supply the Stabilisation and Association Council with all relevant information required for a thorough examination of the situation with a view to seeking a solution acceptable to the Parties.

In the selection of measures, priority must be given to those which least disturb the functioning of this Agreement. These measures shall be notified immediately to the Stabilisation and Association Council and shall be the subject of consultations if the other Party so requests within the Stabilisation and Association Council, the Stabilisation and Association Committee or any other body set up on the basis of Articles 123 or 124.

5. The provisions of paragraphs 2, 3 and 4 shall in no way affect and are without prejudice to Articles 32, 40, 41, 42, 46 and Protocol 3 (Definition of the concept of originating products and methods of administrative cooperation).

Article 130

1. When a dispute arises between the Parties concerning the interpretation or the implementation of this Agreement, any Party shall notify to the other Party and the Stabilisation and Association Council a formal request that the matter in dispute be resolved.

Where a Party considers that a measure adopted by the other Party, or a failure of the other Party to act, constitutes a breach of its obligations under this Agreement, the formal request that the dispute be resolved shall give the reasons for this opinion and indicate, as the case may be, that the Party may adopt measures as provided for in Article 129, paragraph 4.

2. The Parties shall endeavour to resolve the dispute by entering into good faith consultations within the Stabilisation and Association Council and other bodies as provided in paragraph 3, with the aim of reaching as soon as possible a mutually acceptable solution.

3. The Parties shall provide the Stabilisation and Association Council with all relevant information required for a thorough examination of the situation.

As long as the dispute is not resolved, it shall be discussed at every meeting of the Stabilisation and Association Council, unless the arbitration procedure as provided for in Protocol 7 has been initiated. A dispute shall be deemed to be resolved when the Stabilisation and Association Council has taken a binding decision to settle the matter as provided for in Article 129, paragraph 3, or when it has declared that there is no dispute anymore.

Consultations on a dispute can also be held at any meeting of the Stabilisation and Association Committee or any other relevant committee or body set up on the basis of Articles 123 or 124, as agreed between the Parties or at the request of any of the Parties. Consultations may also be held in writing.

All information disclosed during the consultations shall remain confidential.

4. For matters within the scope of application of Protocol 7, any Party may submit the matter in dispute for settlement through arbitration in accordance with that Protocol, when the Parties have failed to resolve the dispute within two months after the initiation of the dispute settlement procedure in accordance with paragraph 1.

Article 131

This Agreement shall not, until equivalent rights for individuals and economic operators have been achieved under this Agreement, affect rights ensured to them through existing Agreements binding one or more Member States, on the one hand, and Montenegro, on the other.

Article 132

The general principles for the participation of Montenegro in Community programmes are laid down in Protocol 8.

Annexes I to VII and Protocols 1, 2, 3, 4, 5, 6, 7 and 8 shall form an integral part of this Agreement.

Article 133

This Agreement is concluded for an unlimited period.

Either Party may denounce this Agreement by notifying the other Party. This Agreement shall terminate six months after the date of such notification.

Either Party may suspend this Agreement, with immediate effect, in the event of the non-compliance by the other Party of one of the essential elements of this Agreement.

Article 134

For the purposes of this Agreement, the term 'Parties' shall mean the Community, or its Member States, or the Community and its Member States, in accordance with their respective powers, of the one part, and the Republic of Montenegro, of the other part.

Article 135

This Agreement shall apply, on the one hand, to the territories in which the Treaties establishing the European Community and the European Atomic Energy Community are applied and under the conditions laid down in those Treaties, and to the territory of Montenegro on the other.

Article 136

The Secretary General of the Council of the European Union shall be the depository of this Agreement.

Article 137

This Agreement shall be drawn up in duplicate in the Bulgarian, Spanish, Czech, Danish, German, Estonian, Greek, English, French, Italian, Latvian, Lithuanian, Hungarian, Maltese, Dutch, Polish, Portuguese, Romanian, Slovak, Slovene, Finnish and Swedish languages and in the official language used in Montenegro, each text being equally authentic.

Article 138

The Parties shall approve this Agreement in accordance with their own procedures.

This Agreement shall enter into force on the first day of the second month following the date on which the Parties notify each other that the procedures referred to in the first paragraph have been completed.

Article 139

Interim Agreement

In the event that, pending the completion of the procedures necessary for the entry into force of this Agreement, the provisions of certain parts of this Agreement, in particular those relating to the free movement of goods as well as the relevant provisions on Transport, are put into effect by means of Interim Agreements between the Community and Montenegro, the Parties agree that, in such circumstances for the purpose of the provisions of Title IV, Articles 73, 74 and 75 of this Agreement, Protocols 1, 2, 3, 5, 6 and 7, and relevant provisions of Protocol 4, hereto, the terms 'date of entry into force of this Agreement' mean the date of entry into force of the relevant Interim Agreement in relation to obligations contained in the abovementioned provisions.

Съставено в Люксембург, на петнайсти октомври две хиляди и седма година.

Hecho en Luxemburgo, el quince de octubre de dos mil siete.

V Lucemburku dne patnáctého října dva tisíce sedm.

Udfærdiget i Luxembourg den femtende oktober to tusind og syv.

Geschehen zu Luxemburg am fünfzehnten Oktober zweitausendsieben.

Kahe tuhande seitsmenda aasta oktoobrikuu viieteistkümnendal päeval Luxembourgis.

Έγινε στο Λουξεμβούργο, στις δέκα πέντε Οκτωβρίου δύο χιλιάδες επτά.

Done at Luxembourg on the fifteenth day of October in the year two thousand and seven.

Fait à Luxembourg, le quinze octobre deux mille sept.

Fatto a Lussemburgo, addì quindici ottobre duemilasette.

Luksemburgā, divtūkstoš septītā gada piecpadsmitajā oktobrī.

Priimta du tūkstančiai septintųjų metų spalio penkioliktą dieną Liuksemburge.

Kelt Luxembourgban, a kétezer-hetedik év október tizenötödik napján.

Magħmul fil-Lussemburgu, fil-ħmistax-il jum ta' Ottubru tas-sena elfejn u sebgħa.

Gedaan te Luxemburg, de vijftiende oktober tweeduizend zeven.

Sporządzono w Luksemburgu dnia piętnastego października roku dwa tysiące siódmego.

Feito em Luxemburgo, em quinze de Outubro de dois mil e sete.

Întocmit la Luxembourg, la cincisprezece octombrie două mii şapte.

V Luxemburgu dňa pätnásteho októbra dvetisícsedem.

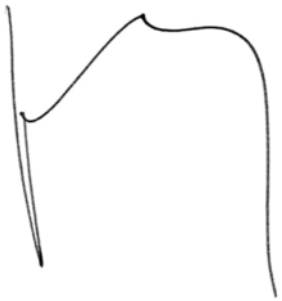
V Luxembourgu, dne petnajstega oktobra leta dva tisoč sedem.

Tehty Luxemburgissa viidentenätoista päivänä lokakuuta vuonna kaksituhattaseitsemän.

Som skedde i Luxemburg den femtonde oktober tjugohundrasju.

Sačinjeno u Luksemburgu petnaestog oktobra dvije hiljade i sedme godine.

Pour le Royaume de Belgique
Voor het Koninkrijk België
Für das Königreich Belgien



Cette signature engage également la Communauté française, la Communauté flamande, la Communauté germanophone, la Région wallonne, la Région flamande et la Région de Bruxelles-Capitale.

Deze handtekening verbindt eveneens de Vlaamse Gemeenschap, de Franse Gemeenschap, de Duitstalige Gemeenschap, het Vlaamse Gewest, het Waalse Gewest en het Brussels Hoofdstedelijk Gewest.

Diese Unterschrift bindet zugleich die Deutschsprachige Gemeinschaft, die Flämische Gemeinschaft, die Französische Gemeinschaft, die Wallonische Region, die Flämische Region und die Region Brüssel-Hauptstadt.

За Република България



Za Českou republiku



På Kongeriget Danmarks vegne



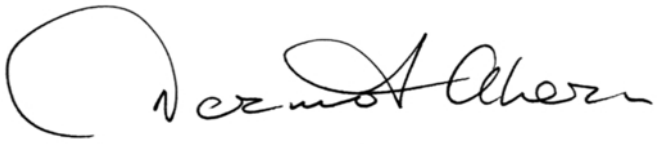
Für die Bundesrepublik Deutschland



Eesti Vabariigi nimel



Thar cheann Na hÉireann
For Ireland



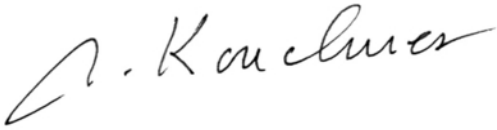
Για την Ελληνική Δημοκρατία



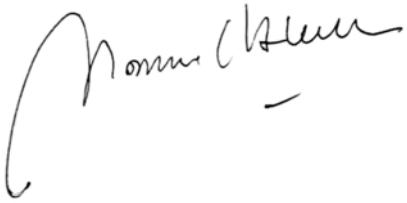
Por el Reino de España



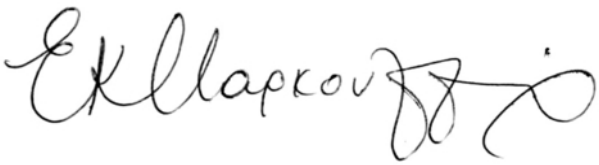
Pour la République française



Per la Repubblica italiana



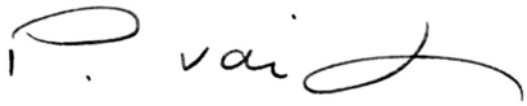
Για την Κυπριακή Δημοκρατία



Latvijas Republikas vārdā



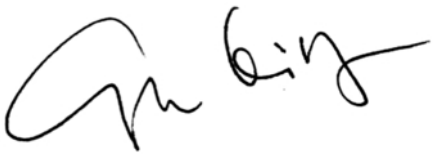
Lietuvos Respublikos vardu



Pour le Grand-Duché de Luxembourg



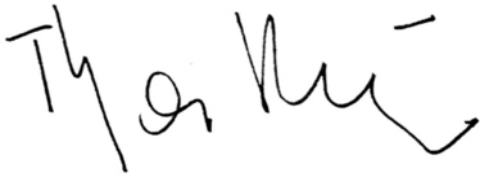
A Magyar Köztársaság részéről



Ghal Malta



Voor het Koninkrijk der Nederlanden



Für die Republik Österreich



W imieniu Rzeczypospolitej Polskiej



Pela República Portuguesa



Pentru România



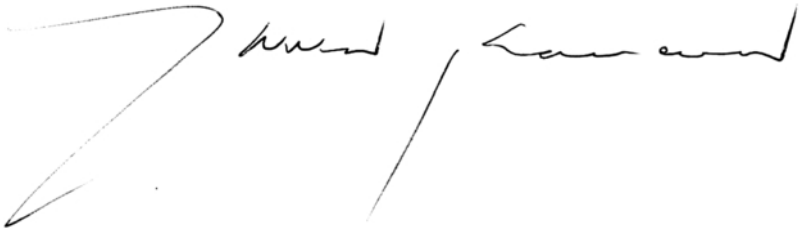
Za Republiko Slovenijo



Za Slovenskú republiku



Suomen tasavallan puolesta
För Republiken Finland



För Konungariket Sverige



For the United Kingdom of Great Britain and Northern Ireland



За Европейската общност
Por las Comunidades Europeas
Za Evropská společenství
For De Europæiske Fællesskaber
Für die Europäischen Gemeinschaften
Euroopa ühenduste nimel
Για τις Ευρωπαϊκές Κοινότητες
For the European Communities
Pour les Communautés européennes
Per le Comunità europee
Eiropas Kopienu vārdā
Europos Bendrijų vardu
Az Európai Közösségek részéről
Għall-Komunitajiet Ewropej
Voor de Europese Gemeenschappen
W imieniu Wspólnot Europejskich
Pelas Comunidades Europeias
Pentru Comunitatea Europeană
Za Európske spoločenstvá
Za Evropske skupnosti
Euroopan yhteisöjen puolesta
På europeiska gemenskapernas vägnar



U ime Republike Crne Gore



ANNEX I

ANNEX I.A

MONTENEGRIN TARIFF CONCESSIONS FOR COMMUNITY INDUSTRIAL PRODUCTS

(referred to in Article 21)

Duty rates will be reduced as follows:

(a) on the date of entry into force of this Agreement, the import duty will be reduced to 80 % of the basic duty;

(b) on 1 January of the first year following the date of entry into force of this Agreement, the import duty will be reduced to 50 % of the basic duty;

(c) on 1 January of the second year following the date of entry into force of this Agreement, the import duty will be reduced to 25 % of the basic duty;

(d) on 1 January of the third year following the date of entry into force of this Agreement, the remaining import duties will be abolished.

CN code	Description
2515	Marble, travertine, ecaussine and other calcareous monumental or building stone of an apparent specific gravity of 2,5 or more, and alabaster, whether or not roughly trimmed or merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape:
	– Marble and travertine:
2515 11 00	– – Crude or roughly trimmed
2515 12	– – Merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape:
2515 12 20	– – – Of a thickness not exceeding 4 cm
2515 12 50	– – – Of a thickness exceeding 4 cm but not exceeding 25 cm
2515 12 90	– – – Other
2522	Quicklime, slaked lime and hydraulic lime, other than calcium oxide and hydroxide of heading 2825:
2522 20 00	– Slaked lime
2523	Portland cement, aluminous cement, slag cement, super sulphate cement and similar hydraulic cements, whether or not coloured or in the form of clinkers:
	– Portland cement:
2523 29 00	– – Other
3602 00 00	Prepared explosives, other than propellent powders
3603 00	Safety fuses; detonating fuses; percussion or detonating caps; igniters; electric detonators:
3603 00 10	– Safety fuses; detonating fuses
3603 00 90	– Other
3820 00 00	Anti-freezing preparations and prepared de-icing fluids
4406	Railway or tramway sleepers (cross-ties) of wood:
4406 90 00	– Other
4410	Particle board, oriented strand board (OSB) and similar board (for example, wafer board) of wood or other ligneous materials, whether or not agglomerated with resins or other organic binding substances:
	– Of wood:
4410 12	– – Oriented strand board (OSB):
4410 12 10	– – – Unworked or not further worked than sanded
4410 19 00	– – Other

CN code	Description
4412	Plywood, veneered panels and similar laminated wood:
4412 10 00	– Of bamboo
	– Other:
4412 94	– – Blockboard, laminboard and battenboard:
4412 94 10	– – – With at least one outer ply of non-coniferous wood
4412 94 90	– – – Other
4412 99	– – Other:
4412 99 70	– – – Other
6403	Footwear with outer soles of rubber, plastics, leather or composition leather and uppers of leather:
	– Other footwear with outer soles of leather:
6403 51	– – Covering the ankle:
	– – – Other:
	– – – – Covering the ankle but no part of the calf, with in-soles of a length:
	– – – – – Of 24 cm or more:
6403 51 15	– – – – – – For men
6403 51 19	– – – – – – For women
	– – – – Other, with insoles of a length:
	– – – – – Of 24 cm or more:
6403 51 95	– – – – – – For men
6403 51 99	– – – – – – For women
6405	Other footwear:
6405 10 00	– With uppers of leather or composition leather
7604	Aluminium bars, rods and profiles:
7604 10	– Of aluminium, not alloyed:
7604 10 90	– – Profiles
	– Of aluminium alloys:
7604 29	– – Other:
7604 29 90	– – – Profiles
7616	Other articles of aluminium:
	– Other:
7616 99	– – Other:
7616 99 90	– – – Other
8415	Air conditioning machines, comprising a motor-driven fan and elements for changing the temperature and humidity, including those machines in which the humidity cannot be separately regulated:
	– Other:
8415 81 00	– – Incorporating a refrigerating unit and a valve for reversal of the cooling/heat cycle (reversible heat pumps):
8507	Electric accumulators, including separators therefor, whether or not rectangular (including square):
8507 20	– Other lead-acid accumulators:
	– – Other:
8507 20 98	– – – Other

CN code	Description
8517	Telephone sets, including telephones for cellular networks or for other wireless networks; other apparatus for the transmission or reception of voice, images or other data, including apparatus for communication in a wired or wireless network (such as a local or wide area network), other than transmission or reception apparatus of heading 8443, 8525, 8527 or 8528:
	– Telephone sets, including telephones for cellular networks or for other wireless networks:
8517 12 00	– – Telephones for cellular networks or for other wireless networks
8703	Motor cars and other motor vehicles principally designed for the transport of persons (other than those of heading 8702), including station wagons and racing cars:
	– Other vehicles, with spark-ignition internal combustion reciprocating piston engine:
8703 22	– – Of a cylinder capacity exceeding 1 000 cm^3 but not exceeding 1 500 cm^3:
8703 22 10	– – – New:
ex 8703 22 10	– – – – Passenger motor cars
8703 22 90	– – – Used
8703 23	– – Of a cylinder capacity exceeding 1 500 cm^3 but not exceeding 3 000 cm^3:
	– – – New:
8703 23 19	– – – – Other:
ex 8703 23 19	– – – – – Passenger motor cars
8703 23 90	– – – Used
	– Other vehicles, with compression-ignition internal combustion piston engine (diesel or semi-diesel):
8703 32	– – Of a cylinder capacity exceeding 1 500cm^3 but not exceeding 2 500 cm^3:
	– – – New:
8703 32 19	– – – – Other:
ex 8703 32 19	– – – – – Passenger motor cars
8703 32 90	– – – Used
8703 33	– – Of a cylinder capacity exceeding 2 500 cm^3:
	– – – New:
8703 33 11	– – – – Motor caravans
8703 33 90	– – – Used

ANNEX I.B

MONTENEGRIN TARIFF CONCESSIONS FOR COMMUNITY INDUSTRIAL PRODUCTS

(referred to in Article 21)

Duty rates will be reduced as follows:

(a) on the date of entry into force of this Agreement, the import duty will be reduced to 85 % of the basic duty;

(b) on 1 January of the first year following the date of entry into force of this Agreement, the import duty will be reduced to 70 % of the basic duty;

(c) on 1 January of the second year following the date of entry into force of this Agreement, the import duty will be reduced to 55 % of the basic duty;

(d) on 1 January of the third year following the date of entry into force of this Agreement, the import duty will be reduced to 40 % of the basic duty;

(e) on 1 January of the fourth year following the date of entry into force of this Agreement, the import duty will be reduced to 20 % of the basic duty;

(f) on 1 January of the fifth year following the date of entry into force of this Agreement, the remaining import duties will be abolished.

CN code	Description
2501	Salt (including table salt and denatured salt) and pure sodium chloride, whether or not in aqueous solution or containing added anti-caking or free-flowing agents; sea water:
	– Salt (including table salt and denatured salt) and pure sodium chloride, whether or not in aqueous solution or containing added anti-caking or free-flowing agents:
	– – Other:
	– – – Other:
2501 00 91	– – – – Salt suitable for human consumption
3304	Beauty or make-up preparations and preparations for the care of the skin (other than medicaments), including sunscreen or suntan preparations; manicure or pedicure preparations:
	– Other:
3304 99 00	– – Other
3305	Preparations for use on the hair:
3305 10 00	– Shampoos
3305 90	– Other:
3305 90 90	– – Other
3306	Preparations for oral or dental hygiene, including denture fixative pastes and powders; yarn used to clean between the teeth (dental floss), in individual retail packages:
3306 10 00	– Dentifrices
3401	Soap; organic surface-active products and preparations for use as soap, in the form of bars, cakes, moulded pieces or shapes, whether or not containing soap; organic surface-active products and preparations for washing the skin, in the form of liquid or cream and put up for retail sale, whether or not containing soap; paper, wadding, felt and non-wovens, impregnated, coated or covered with soap or detergent:
	– Soap and organic surface-active products and preparations, in the form of bars, cakes, moulded pieces or shapes, and paper, wadding, felt and non woven, impregnated, coated or covered with soap or detergent:
3401 11 00	– – For toilet use (including medicated products)
3402	Organic surface-active agents (other than soap); surface-active preparations, washing preparations (including auxiliary washing preparations) and cleaning preparations, whether or not containing soap, other than those of heading 3401:
3402 20	– Preparations put up for retail sale:
3402 20 20	– – Surface-active preparations
3402 20 90	– – Washing preparations and cleaning preparations
3402 90	– Other:
3402 90 90	– – Washing preparations and cleaning preparations
3923	Articles for the conveyance or packing of goods, of plastics; stoppers, lids, caps and other closures, of plastics:
	– Sacks and bags (including cones):
3923 21 00	– – Of polymers of ethylene
3923 29	– – Of other plastics:
3923 29 10	– – – Of poly(vinyl chloride)
3923 90	– Other:
3923 90 10	– – Netting extruded in tubular form
3923 90 90	– – Other
3926	Other articles of plastics and articles of other materials of headings 3901 to 3914:
3926 90	– Other:
	– – Other:

CN code	Description
3926 90 97	– – – Other
4011	New pneumatic tyres, of rubber:
4011 10 00	– Of a kind used on motor cars (including station wagons and racing cars)
4202	Trunks, suitcases, vanity cases, executive-cases, briefcases, school satchels, spectacle cases, binocular cases, camera cases, musical instrument cases, gun cases, holsters and similar containers; travelling-bags, insulated food or beverages bags, toilet bags, rucksacks, handbags, shopping-bags, wallets, purses, map-cases, cigarette cases, tobacco-pouches, tool bags, sports bags, bottle-cases, jewellery boxes, powder boxes, cutlery cases and similar containers, of leather or of composition leather, of sheeting of plastics, of textile materials, of vulcanised fibre or of paperboard, or wholly or mainly covered with such materials or with paper:
	– Trunks, suitcases, vanity cases, executive-cases, briefcases, school satchels and similar containers:
4202 11	– – With outer surface of leather, of composition leather or of patent leather:
4202 11 10	– – – Executive-cases, briefcases, school satchels and similar containers
4202 11 90	– – – Other
4203	Articles of apparel and clothing accessories, of leather or of composition leather:
4203 10 00	– Articles of apparel
	– Gloves, mittens and mitts:
4203 29	– – Other:
4203 29 10	– – – Protective for all trades
4418	Builders' joinery and carpentry of wood, including cellular wood panels, assembled flooring panels, shingles and shakes:
4418 10	– Windows, French windows and their frames:
4418 10 50	– – Coniferous
4418 10 90	– – Other
4418 20	– Doors and their frames and thresholds:
4418 20 50	– – Coniferous
4418 20 80	– – Of other wood
4418 40 00	– Shuttering for concrete constructional work
4418 90	– Other:
4418 90 10	– – Glue-laminated timber
4418 90 80	– – Other
4802	Uncoated paper and paperboard, of a kind used for writing, printing or other graphic purposes, and non-perforated punchcards and punch-tape paper, in rolls or rectangular (including square) sheets, of any size, other than paper of heading 4801 or 4803; handmade paper and paperboard:
	– Other paper and paperboard, not containing fibres obtained by a mechanical process or chemi-mechanical process or of which not more than 10 % by weight of the total fibre content consists of such fibres:
4802 55	– – Weighing 40 g/m^2 or more but not more than 150 g/m^2, in rolls:
4802 55 15	– – – Weighing 40 g/m^2 or more but less than 60 g/m^2:
ex 4802 55 15	– – – – Other than crude decorating paper
4802 55 25	– – – Weighing 60 g/m^2 or more but less than 75 g/m^2:
ex 4802 55 25	– – – – Other than crude decorating paper
4802 55 30	– – – Weighing 75 g/m^2 or more but less than 80 g/m^2:
ex 4802 55 30	– – – – Other than crude decorating paper

CN code	Description
4802 55 90	– – – Weighing 80 g/m^2 or more:
ex 4802 55 90	– – – – Other than crude decorating paper
4819	Cartons, boxes, cases, bags and other packing containers, of paper, paperboard, cellulose wadding or webs of cellulose fibres; box files, letter trays, and similar articles, of paper or paperboard, of a kind used in offices, shops or the like:
4819 10 00	– Cartons, boxes and cases, of corrugated paper or paperboard
4819 20 00	– Folding cartons, boxes and cases, of non- corrugated paper or paperboard
4819 30 00	– Sacks and bags, having a base of a width of 40 cm or more
4819 40 00	– Other sacks and bags, including cones
4820	Registers, account books, notebooks, order books, receipt books, letter pads, memorandum pads, diaries and similar articles, exercise books, blotting pads, binders (loose-leaf or other), folders, file covers, manifold business forms, interleaved carbon sets and other articles of stationery, of paper or paperboard; albums for samples or for collections and book covers, of paper or paperboard:
4820 10	– Registers, account books, notebooks, order books, receipt books, letter pads, memorandum pads, diaries and similar articles:
4820 10 10	– – Registers, account books, order books and receipt books
4820 20 00	– Exercise books
4820 90 00	– Other
4821	Paper or paperboard labels of all kinds, whether or not printed:
4821 10	– Printed:
4821 10 10	– – Self-adhesive
4821 90	– Other:
4821 90 10	– – Self-adhesive
4910 00 00	Calendars of any kind, printed, including calendar blocks
4911	Other printed matter, including printed pictures and photographs:
4911 10	– Trade advertising material, commercial catalogues and the like:
4911 10 10	– – Commercial catalogues
4911 10 90	– – Other
	– Other:
4911 99 00	– – Other
5111	Woven fabrics of carded wool or of carded fine animal hair:
	– Containing 85 % or more by weight of wool or of fine animal hair:
5111 19	– – Other:
5111 19 10	– – – Of a weight exceeding 300 g/m^2 but not exceeding 450 g/m^2
5111 19 90	– – – Of a weight exceeding 450 g/m^2
5112	Woven fabrics of combed wool or of combed fine animal hair:
	– Containing 85 % or more by weight of wool of fine animal hair:
5112 11 00	– – Of weight not exceeding 200 g/m^2
5112 19	– – Other:
5112 19 10	– – – Of a weight exceeding 200 g/m^2 but not exceeding 375 g/m^2
5112 19 90	– – – Of a weight exceeding 375 g/m^2
5209	Woven fabrics of cotton, containing 85 % or more by weight of cotton, weighing more than 200 g/m^2:
	– Bleached:

CN code	Description
5209 21 00	– – Plain weave
5209 22 00	– – 3-thread or 4-thread twill, including cross twill
5209 29 00	– – Other fabrics
	– Dyed:
5209 31 00	– – Plain weave
5209 32 00	– – 3-thread or 4-thread twill, including cross twill
5209 39 00	– – Other fabrics
	– Of yarns of different colours:
5209 41 00	– – Plain weave
5209 43 00	– – Other fabrics of 3-thread or 4-thread twill, including cross twill
5209 49 00	– – Other fabrics
6101	Men's or boys' overcoats, car coats, capes, cloaks, anoraks (including ski jackets), windcheaters, wind-jackets and similar articles, knitted or crocheted, other than those of heading 6103:
6101 90	– Of other textile materials:
6101 90 20	– – Overcoats, car coats, capes, cloaks and similar articles:
ex 6101 90 20	– – – Of wool or fine animal hair
6101 90 80	– – Anoraks (including ski jackets), windcheaters, wind-jackets and similar articles:
ex 6101 90 80	– – – Of wool or fine animal hair
6115	Pantyhose, tights, stockings, socks and other hosiery, including graduated compression hosiery (for example, stockings for varicose veins) and footwear without applied soles, knitted or crocheted:
	– Other:
6115 95 00	– – Of cotton
6115 96	– – Of synthetic fibres:
6115 96 10	– – – Knee-length stockings
	– – – Other:
6115 96 99	– – – – Other
6205	Men's or boys' shirts:
6205 20 00	– Of cotton
6205 30 00	– Of man-made fibres
6205 90	– Of other textile materials:
6205 90 10	– – Of flax or ramie
6205 90 80	– – Other
6206	Women's or girls' blouses, shirts and shirt-blouses:
6206 10 00	– Of silk or silk waste
6206 20 00	– Of wool or fine animal hair
6206 30 00	– Of cotton
6206 40 00	– Of man-made fibres
6206 90	– Of other textile materials:
6206 90 10	– – Of flax or ramie
6206 90 90	– – Other
6207	Men's or boys' singlet and other vests, underpants, briefs, nightshirts, pyjamas, bathrobes, dressing gowns and similar articles:
	– Underpants and briefs:
6207 11 00	– – Of cotton

CN code	Description
6207 19 00	– – Of other textile materials
	– Nightshirts and pyjamas:
6207 21 00	– – Of cotton
6207 22 00	– – Of man-made fibres
6207 29 00	– – Of other textile materials
	– Other:
6207 91 00	– – Of cotton
6207 99	– – Of other textile materials
6207 99 10	– – – Of man-made fibres
6207 99 90	– – – Other
6208	Women's or girls' singlet and other vests, slips, petticoats, briefs, panties, nightdresses, pyjamas, negligees, bathrobes, dressing gowns and similar articles:
	– Slips and petticoats:
6208 11 00	– – Of man-made fibres
6208 19 00	– – Of other textile materials
	– Nightdresses and pyjamas:
6208 21 00	– – Of cotton
6208 22 00	– – Of man-made fibres
6208 29 00	– – Of other textile materials
	– Other:
6208 91 00	– – Of cotton
6208 92 00	– – Of man-made fibres
6208 99 00	– – Of other textile materials
6211	Tracksuits, ski suits and swimwear; other garments:
	– Other garments, men's or boys':
6211 32	– – Of cotton:
6211 32 10	– – – Industrial and occupational clothing
	– – – Tracksuits with lining:
6211 32 31	– – – – With an outer shell of a single identical fabric
	– – – – Other:
6211 32 41	– – – – – Upper parts
6211 32 42	– – – – – Lower parts
	– Other garments, women's or girls':
6211 42	– – Of cotton:
6211 42 10	– – – Aprons, overalls, smock-overalls and other industrial and occupational clothing (whether or not also suitable for domestic use)
	– – – Track suits with lining:
6211 42 31	– – – – With an outer shell of a single identical fabric
	– – – – Other:
6211 42 41	– – – – – Upper parts
6211 42 42	– – – – – Lower parts
6211 42 90	– – – Other
6211 43	– – Of man-made fibres:
6211 43 10	– – – Aprons, overalls, smock-overalls and other industrial and occupational clothing (whether or not also suitable for domestic use)
	– – – Track suits with lining:

CN code	Description
6211 43 31	– – – – With an outer shell of a single identical fabric
	– – – – Other:
6211 43 41	– – – – – Upper parts
6211 43 42	– – – – – Lower parts
6211 43 90	– – – Other
6301	Blankets and travelling rugs:
6301 20	– Blankets (other than electric blankets) and travelling rugs, of wool or of fine animal hair:
6301 20 10	– – Knitted or crocheted
6301 20 90	– – Other
6301 90	– Other blankets and travelling rugs:
6301 90 10	– – Knitted or crocheted
6301 90 90	– – Other
6302	Bed linen, table linen, toilet linen and kitchen linen:
	– Other bed linen, printed:
6302 21 00	– – Of cotton
	– Other bed linen:
6302 31 00	– – Of cotton
	– Other table linen:
6302 51 00	– – Of cotton
6302 53	– – Of man-made fibres:
6302 53 90	– – – Other
6403	Footwear with outer soles of rubber, plastics, leather or composition leather and uppers of leather:
	– Other footwear with outer soles of leather:
6403 59	– – Other:
	– – – Other:
	– – – – Footwear with a vamp made of straps or which has one or several pieces cut out:
	– – – – – Other, with in-soles of a length:
	– – – – – – Of 24 cm or more:
6403 59 35	– – – – – – – For men
6403 59 39	– – – – – – – For women
	– – – – Other, with in-soles of a length:
	– – – – – Of 24 cm or more:
6403 59 95	– – – – – – For men
6403 59 99	– – – – – – For women
6802	Worked monumental or building stone (except slate) and articles thereof, other than goods of heading 6801; mosaic cubes and the like, of natural stone (including slate), whether or not on a backing; artificially coloured granules, chippings and powder, of natural stone (including slate):
	– Other monumental or building stone and articles thereof, simply cut or sawn, with a flat or even surface:
6802 21 00	– – Marble, travertine and alabaster
6802 23 00	– – Granite
6802 29 00	– – Other stone:

CN code	Description
ex 6802 29 00	– – – Other calcareous stone
	– Other:
6802 91	– – Marble, travertine and alabaster:
6802 91 10	– – – Polished alabaster, decorated or otherwise worked, but not carved
6802 91 90	– – – Other
6802 93	– – Granite:
6802 93 10	– – – Polished, decorated or otherwise worked, but not carved, of a net weight of 10 kg or more
6802 93 90	– – – Other
6810	Articles of cement, of concrete or of artificial stone, whether or not reinforced:
	– Tiles, flagstones, bricks and similar articles:
6810 11	– – Building blocks and bricks:
6810 11 10	– – – Of light concrete (with a basis of crushed pumice, granulated slag, etc.)
6810 11 90	– – – Other
	– Other articles:
6810 91	– – Prefabricated structural components for building or civil engineering:
6810 91 90	– – – Other
6810 99 00	– – Other
6904	Ceramic building bricks, flooring blocks, support or filler tiles and the like:
6904 10 00	– Building bricks
6904 90 00	– Other
6905	Roofing tiles, chimney-pots, cowls, chimney liners, architectural ornaments and other ceramic constructional goods:
6905 10 00	– Roofing tiles
7207	Semi-finished products of iron or non-alloy steel:
	– Containing by weight less than 0,25 % of carbon:
7207 11	– – Of rectangular (including square) cross-section, the width measuring less than twice the thickness:
7207 11 90	– – – Forged
7207 12	– – Other, of rectangular (other than square) cross-section:
7207 12 90	– – – Forged
7207 19	– – Other
	– – – Of circular or polygonal cross-section:
7207 19 12	– – – – Rolled or obtained by continuous casting
7207 19 19	– – – – Forged
7207 19 80	– – – Other
7207 20	– Containing by weight 0,25 % or more of carbon:
	– – Of rectangular (including square) cross-section, the width measuring less than twice the thickness:
	– – – Rolled or obtained by continuous casting:
	– – – – Other, containing by weight:
7207 20 15	– – – – – 0,25 % or more but less than 0,6 % of carbon
7207 20 17	– – – – – 0,6 % or more of carbon
7207 20 19	– – – Forged
	– – Other, of rectangular (other than square) cross-section:

CN code	Description
7207 20 32	– – – Rolled or obtained by continuous casting
7207 20 39	– – – Forged
	– – Of circular or polygonal cross-section:
7207 20 52	– – – Rolled or obtained by continuous casting
7207 20 59	– – – Forged
7207 20 80	– – Other
7213	Bars and rods, hot-rolled, in irregularly wound coils, of iron or non-alloy steel:
7213 10 00	– Containing indentations, ribs, grooves or other deformations produced during the rolling process
	– Other:
7213 91	– – Of circular cross-section measuring less than 14 mm in diameter:
7213 91 10	– – – Of a type used for concrete reinforcement
	– – – Other:
7213 91 49	– – – – Containing by weight more than 0,06 % but less than 0,25 % of carbon:
ex 7213 91 49	– – – – – Other than of a diameter of 8 mm or less
7213 99	– – Other:
7213 99 10	– – – Containing by weight less than 0,25 % of than of carbon
7213 99 90	– – – Containing by weight 0,25 % or more of carbon
7214	Other bars and rods of iron or non-alloy steel, not further worked than forged, hot-rolled, hot-drawn or hot-extruded, but including those twisted after rolling:
7214 10 00	– Forged
7214 20 00	– Containing indentations, ribs, grooves or other deformations produced during the rolling process or twisted after rolling
	– Other:
7214 99	– – Other:
	– – – Containing by weight less than 0,25 % of carbon:
7214 99 10	– – – – Of a type used for concrete reinforcement
	– – – – Other, of circular cross-section measuring in diameter:
7214 99 31	– – – – – 80 mm or more
7214 99 39	– – – – – Less than 80 mm
7214 99 50	– – – – Other
	– – – Containing by weight 0,25 % or more of carbon:
	– – – – Of a circular cross-section measuring in diameter:
7214 99 71	– – – – – 80 mm or more
7214 99 79	– – – – – Less than 80 mm
7214 99 95	– – – – Other
7215	Other bars and rods of iron or non-alloy steel:
7215 10 00	– Of free-cutting steel, not further worked than cold-formed or cold-finished
7215 50	– Other, not further worked than cold-formed or cold-finished:
	– – Containing by weight less than 0,25 % of carbon:
7215 50 11	– – – Of rectangular (other than square) cross-section
7215 50 19	– – – Other
7215 50 80	– – Containing by weight 0,25 % or more carbon
7215 90 00	– Other

CN code	Description
7224	Other alloy steel in ingots or other primary forms; semi-finished products of other alloy steel:
7224 10	– Ingots and other primary forms:
7224 10 10	– – Of tool steel
7224 10 90	– – Other
7224 90	– Other:
	– – Other:
	– – – Of rectangular (including square) cross-section:
	– – – – Hot-rolled or obtained by continuous casting:
	– – – – – The width measuring less than twice the thickness:
7224 90 05	– – – – – – Containing by weight not more than 0,7 % of carbon, 0,5 % or more but not more than 1,2 % of manganese and 0,6 % or more but not more than 2,3 % of silicon; containing by weight 0,0008 % or more of boron with any other elements less than the minimum content referred to in note 1(f) to this chapter
7224 90 07	– – – – – – Other
7224 90 14	– – – – – Other
7224 90 18	– – – – Forged
	– – – Other:
	– – – – Hot-rolled or obtained by continuous casting:
7224 90 31	– – – – – Containing by weight not less than 0,9 % but not more than 1,15 % of carbon, not less than 0,5 % but not more than 2 % of chromium and, if present, not more than 0,5 % of molybdenum
7224 90 38	– – – – – Other
7224 90 90	– – – – Forged
7228	Other bars and rods of other alloy steel; angles, shapes and sections, of other alloy steel; hollow drill bars and rods, of alloy or non-alloy steel:
7228 20	– Bars and rods, of silico-manganese steel:
7228 20 10	– – Of rectangular (other than square) cross-section, hot rolled on four faces
	– – Other:
7228 20 99	– – – Other
7228 30	– Other bars and rods, not further worked than hot-rolled, hot-drawn or extruded:
7228 30 20	– – Of tool steel
	– – Containing by weight 0,9 % or more but not more than 1,15 % of carbon, 0,5 % or more but not more than 2 % of chromium and, if present, not more than 0,5 % of molybdenum:
7228 30 41	– – – Of circular cross-section of a diameter of 80 mm or more
7228 30 49	– – – Other
	– – Other:
	– – – Of circular cross-section, of a diameter of:
7228 30 61	– – – – 80 mm or more
7228 30 69	– – – – Less than 80 mm
7228 30 70	– – – Of rectangular (other than square) cross-section, rolled on four faces
7228 30 89	– – – Other
7228 40	– Other bars and rods, not further worked than forged:
7228 40 10	– – Of tool steel
7228 40 90	– – Other
7228 60	– Other bars and rods:
7228 60 20	– – Of tool steel

CN code	Description
7228 60 80	– – Other
7314	Cloth (including endless bands), grill, netting and fencing, of iron or steel wire; expanded metal of iron or steel:
7314 20	– Grill, netting and fencing, welded at the intersection, of wire with a maximum cross-sectional dimension of 3 mm or more an having a mesh size of 100 cm^2 or more:
7314 20 90	– – Other
	– Other grill, netting and fencing, welded at the intersection:
7314 39 00	– – Other
7317 00	Nails, tacks, drawing pins, corrugated nails, staples (other than those of heading 8305) and similar articles, of iron or steel, whether or not with heads of other material, but excluding such articles with heads of copper:
	– Other:
	– – Cold-pressed from wire:
7317 00 40	– – – Nails of steel containing by weight 0,5 % or more of carbon, hardened
	– – – Other:
7317 00 69	– – – – Other
7317 00 90	– – Other
7605	Aluminium wire:
	– Of aluminium, not alloyed:
7605 11 00	– – Of which the maximum cross-sectional dimension exceeds 7 mm
7605 19 00	– – Other
7606	Aluminium plates, sheets and strip, of a thickness exceeding 0,2 mm:
	– Rectangular (including square):
7606 11	– – Of aluminium, not alloyed:
	– – – Other, of a thickness of:
7606 11 91	– – – – Less than 3 mm
7606 11 93	– – – – Not less than 3mm but less than 6 mm
7606 11 99	– – – – Not less than 6 mm
7606 12	– – Of aluminium alloys:
	– – – Other:
	– – – – Other, of a thickness of:
7606 12 91	– – – – – Less than 3 mm
7606 12 93	– – – – – Not less than 3 mm but less than 6 mm
7606 12 99	– – – – – Not less than 6 mm
7607	Aluminium foil (whether or not printed or backed with paper, paperboard, plastics or similar backing materials) of a thickness (excluding any backing) not exceeding 0,2 mm:
	– Not backed:
7607 11	– – Rolled but not further worked:
7607 11 10	– – – Of a thickness of less than 0,021 mm
7607 11 90	– – – Of a thickness of not less than 0,021 mm but not more than 0,2 mm
7607 19	– – Other:
7607 19 10	– – – Of a thickness of less than 0,021 mm
	– – – Of a thickness of not less than 0,021 mm but not more than 0,2 mm:
7607 19 99	– – – – Other
7607 20	– Backed:
7607 20 10	– – Of a thickness (excluding any backing) of less than 0,021 mm

CN code	Description
	– – Of a thickness (excluding any backing) of not less than 0,021 mm but not more than 0,2 mm:
7607 20 99	– – – Other
7610	Aluminium structures (excluding prefabricated buildings of heading 9406) and parts of structures (for example, bridges and bridge-sections, towers, lattice masts, roofs, roofing frameworks, doors and windows and their frames and thresholds for doors, balustrades, pillars and columns); aluminium plates, rods, profiles, tubes and the like, prepared for use in structures:
7610 10 00	– Doors, windows and their frames and thresholds for doors
7610 90	– Other:
7610 90 90	– – Other
7614	Stranded wire, cables, plaited bands and the like, of aluminium, not electrically insulated:
7614 10 00	– With steel core
7614 90 00	– Other
8311	Wire, rods, tubes, plates, electrodes and similar products, of base metal or of metal carbides, coated or cored with flux material, of a kind used for soldering, brazing, welding or deposition of metal or of metal carbides; wire and rods, of agglomerated base metal powder, used for metal spraying:
8311 10	– Coated electrodes of base metal, for electric arc-welding:
8311 10 10	– – Welding electrodes cored with iron or steel and coated with refractory material
8311 10 90	– – Other
8311 20 00	– Cored wire of base metal, for electric arc-welding
8418	Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air-conditioning machines of heading 8415:
8418 10	– Combined refrigerator-freezers, fitted with separate external doors:
8418 10 20	– – Of a capacity exceeding 340 litres:
ex 8418 10 20	– – – Other than for use in civil aircraft
8418 10 80	– – Other:
ex 8418 10 80	– – – Other than for use in civil aircraft
	– Refrigerators, household type:
8418 21	– – Compression-type:
	– – – Other:
	– – – – Other, of a capacity:
8418 21 91	– – – – – Not exceeding 250 litres
8418 21 99	– – – – – Exceeding 250 litres but not exceeding 340 litres
8418 30	– Freezers of the chest type, not exceeding 800 litres capacity:
8418 30 20	– – Of a capacity not exceeding 400 litres:
ex 8418 30 20	– – – Other than for use in civil aircraft
8418 30 80	– – Of a capacity exceeding 400 litres but not exceeding 800 litres:
ex 8418 30 80	– – – Other than for use in civil aircraft
8418 40	– Freezers of the upright type, not exceeding 900 litres capacity:
8418 40 20	– – Of a capacity not exceeding 250 litres:
ex 8418 40 20	– – – Other than for use in civil aircraft

CN code	Description
8418 40 80	– – Of a capacity exceeding 250 litres but not exceeding 900 litres:
ex 8418 40 80	– – – Other than for use in civil aircraft
8422	Dishwashing machines; machinery for cleaning or drying bottles or other containers; machinery for filling, closing, sealing or labelling bottles, cans, boxes, bags or other containers; machinery for capsuling bottles, jars, tubes and similar containers; other packing or wrapping machinery (including heat-shrink wrapping machinery); machinery for aerating beverages:
	– Dishwashing machines:
8422 11 00	– – Of the household type
8426	Ships' derricks; cranes, including cable cranes; mobile lifting frames, straddle carriers and works trucks fitted with a crane:
	– Other machinery:
8426 91	– – Designed for mounting on road vehicles:
8426 91 10	– – – Hydraulic cranes designed for the loading and unloading of the vehicle
8426 91 90	– – – Other
8450	Household or laundry-type washing machines, including machines which both wash and dry:
	– Machines, each of a dry linen capacity not exceeding 10 kg:
8450 11	– – Fully-automatic machines:
	– – – Each of a dry linen capacity not exceeding 6 kg:
8450 11 11	– – – – Front-loading machines
8483	Transmission shafts (including cam shafts and crank shafts) and cranks; bearing housings and plain shaft bearings; gears and gearing; ball or roller screws; gear boxes and other speed changers, including torque converters; flywheels and pulleys, including pulley blocks; clutches and shaft couplings (including universal joints):
8483 30	– Bearing housings, not incorporating ball or roller bearings; plain shaft bearings:
8483 30 80	– – Plain shaft bearings
8703	Motor cars and other motor vehicles principally designed for the transport of persons (other than those of heading 8702), including station wagons and racing cars:
	– Other vehicles, with spark-ignition internal combustion reciprocating piston engine:
8703 24	– – Of a cylinder capacity exceeding 3 000 cm^3:
8703 24 10	– – – New:
ex 8703 24 10	– – – – Passenger motor cars
8703 24 90	– – – Used
	– Other vehicles, with compression-ignition internal combustion piston engine (diesel or semi-diesel):
8703 33	– – Of a cylinder capacity exceeding 2 500 cm^3:
	– – – New:
8703 33 19	– – – – Other:
ex 8703 33 19	– – – – – Passenger motor cars
9401	Seats (other than those of heading 9402), whether or not convertible into beds, and parts thereof:
9401 40 00	– Seats other than garden seats or camping equipment, convertible into beds
	– Other seats, with wooden frames:
9401 61 00	– – Upholstered
9401 69 00	– – Other

CN code	Description
	– Other seats, with metal frames:
9401 71 00	– – Upholstered
9401 79 00	– – Other
9401 80 00	– Other seats
9403	Other furniture and parts thereof:
9403 40	– Wooden furniture of a kind used in the kitchen:
9403 40 90	– – Other
9403 50 00	– Wooden furniture of a kind used in the bedroom
9403 60	– Other wooden furniture:
9403 60 10	– – Wooden furniture of a kind used in the dining room and the living room
9403 60 90	– – Other wooden furniture
9404	Mattress supports; articles of bedding and similar furnishing (for example, mattresses, quilts, eiderdowns, cushions, pouffes and pillows) fitted with springs or stuffed or internally fitted with any material or of cellular rubber or plastics, whether or not covered:
	– Mattresses:
9404 29	– – Of other materials:
9404 29 10	– – – Spring interior
9404 90	– Other:
9404 90 90	– – Other
9406 00	Prefabricated buildings:
	– Other:
9406 00 20	– – Of wood

ANNEX II

DEFINITION OF 'BABY BEEF' PRODUCTS

(referred to in Article 26 paragraph 3)

Notwithstanding the rules for the interpretation of the Combined Nomenclature, the wording for the description of the products is to be considered as having no more than an indicative value, the preferential scheme being determined, within the context of this Annex, by the coverage of the CN codes. Where ex CN codes are indicated, the preferential scheme is to be determined by application of the CN code and corresponding description taken together.

CN code	TARIC subdivision	Description
0102		Live bovine animals:
0102 90		– Other:
		– – Domestic species:
		– – – Of a weight exceeding 300 kg:
		– – – – Heifers (female bovines that have never calved):
ex 0102 90 51		– – – – – For slaughter:
	10	– Not yet having any permanent teeth, of a weight of 320 kg or more but not exceeding 470 kg (1)
ex 0102 90 59		– – – – – Other:
	11	– Not yet having any permanent teeth, of a weight of 320 kg or more but not exceeding 470 kg (1)
	21	
	31	
	91	
		– – – – Other:
ex 0102 90 71		– – – – – For slaughter:
	10	– Bulls and steers not yet having permanent teeth, of a weight of 350 kg or more but not exceeding 500 kg (1)
ex 0102 90 79		– – – – – Other:
	21	– Bulls and steers not yet having permanent teeth, of a weight of 350 kg or more but not exceeding 500 kg (1)
	91	
0201		Meat of bovine animals, fresh or chilled:
ex 0201 10 00		– Carcases and half-carcases
	91	– Carcases of a weight of 180 kg or more but not exceeding 300 kg, and half carcases of a weight of 90 kg or more but not exceeding 150 kg, with a low degree of ossification of the cartilages (in particular those of the symphysis pubis and the vertebral apophyses), the meat of which is a light pink colour and the fat of which, of extremely fine texture, is white to light yellow in colour (1)
0201 20		– Other cuts with bone in:
ex 0201 20 20		– – 'Compensated' quarters:
	91	– 'Compensated' quarters of a weight of 90 kg or more but not exceeding 150 kg, with a low degree of ossification of the cartilages (in particular those of the symphysis pubis and the vertebral apophyses), the meat of which is a light pink colour and the fat of which, of extremely fine texture, is white to light yellow in colour (1)
ex 0201 20 30		– – Unseparated or separated forequarters:
	91	– Separated forequarters, of a weight of 45 kg or more but not exceeding 75 kg, with a low degree of ossification of the cartilages (in particular those of the vertebral apophyses), the meat of which is a light pink colour and the fat of which, of extremely fine texture, is white to light yellow in colour (1)
ex 0201 20 50		– – Unseparated or separated hindquarters:
	91	– Separated hindquarters of a weight of 45 kg or more but not exceeding 75 kg (but 38 kg or more and not exceeding 68 kg in the case of 'Pistola' cuts), with a low degree of ossification of the cartilages (in particular those of the vertebral apophyses), the meat of which is a light pink colour and the fat of which, of extremely fine texture, is white to light yellow in colour (1)

(1) Entry under this subheading is subject to conditions laid down in the relevant Community provisions.

ANNEX III(a)

MONTENEGRIN TARIFF CONCESSIONS FOR AGRICULTURAL PRIMARY PRODUCTS ORIGINATING IN THE COMMUNITY

(referred to in Article 27(2)(a))

Duty-free for unlimited quantities from the date of entry into force of this Agreement:

CN code	Description
0101	Live horses, asses, mules and hinnies:
0101 90	– Other:
	– – Horses:
0101 90 11	– – – For slaughter
0101 90 19	– – – Other
0101 90 30	– – Asses
0101 90 90	– – Mules and hinnies
0105	Live poultry, that is to say, fowls of the species *Gallus domesticus*, ducks, geese, turkeys and guinea fowls:
	– Weighing not more than 185 g:
0105 12 00	– – Turkeys
0105 19	– – Other:
0105 19 20	– – – Geese
0105 19 90	– – – Ducks and guinea fowls
0106	Other live animals:
	– Mammals:
0106 19	– – Other:
0106 19 10	– – – Domestic rabbits
0106 19 90	– – – Other
0106 20 00	– Reptiles (including snakes and turtles)
	– Birds:
0106 39	– – Other:
0106 39 10	– – – Pigeons
0205 00	Meat of horses, asses, mules or hinnies, fresh, chilled or frozen:
0205 00 20	– Fresh or chilled
0205 00 80	– Frozen
0206	Edible offal of bovine animals, swine, sheep, goats, horses, asses, mules or hinnies, fresh, chilled or frozen:
0206 10	– Of bovine animals, fresh or chilled:
0206 10 10	– – For the manufacture of pharmaceutical products
	– – Other:
0206 10 91	– – – Livers
0206 10 95	– – – Thick skirt and thin skirt
0206 10 99	– – – Other
	Of bovine animals, frozen:
0206 21 00	– – Tongues
0206 22 00	– – Livers
0206 29	– – Other:
0206 29 10	– – – For the manufacture of pharmaceutical products

CN code	Description
	– – – Other:
0206 29 91	– – – – Thick skirt and thin skirt
0206 29 99	– – – – Other
0206 30 00	– Of swine, fresh or chilled
	– Of swine, frozen:
0206 41 00	– – Livers
0206 49	– – Other:
0206 49 20	– – – Of domestic swine
0206 49 80	– – – Other
0206 80	– Other, fresh or chilled:
0206 80 10	– – For the manufacture of pharmaceutical products
	– – Other:
0206 80 91	– – – Of horses, asses, mules and hinnies
0206 80 99	– – – Of sheep and goats
0206 90	– Other, frozen:
0206 90 10	– – For the manufacture of pharmaceutical products
	– – Other:
0206 90 91	– – – Of horses, asses, mules and hinnies
0206 90 99	– – – Of sheep and goats
0208	Other meat and edible meat offal, fresh, chilled or frozen:
0208 10	– Of rabbits or hares:
	– – Of domestic rabbits:
0208 10 11	– – – Fresh or chilled
0208 10 19	– – – Frozen
0208 10 90	– – – Other
0208 30 00	– Of primates
0208 40	– Of whales, dolphins and porpoises (mammals of the order *Cetacea*); of manatees and dugongs (mammals of the order *Sirenia*)
0208 40 10	– – Whale meat
0208 40 90	– – Other
0208 50 00	– Of reptiles (including snakes and turtles)
0208 90	– Other
0208 90 10	– – Of domestic pigeons
	– – Of game, other than rabbits or hares:
0208 90 20	– – – Of quails
0208 90 40	– – – Other
0208 90 55	– – Seal meat
0208 90 60	– – Of reindeer
0208 90 70	– – Frogs' legs
0208 90 95	– – Other
0210	Meat and edible meat offal, salted, in brine, dried or smoked; edible flours and meals of meat or meat offal:
	– Other, including edible flours and meals of meat or meat offal:
0210 91 00	– – Of primates

CN code	Description
0210 92 00	– – Of whales, dolphins and porpoises (mammals of the order *Cetacea*); of manatees and dugongs (mammals of the order *Sirenia*)
0210 93 00	– – Of reptiles (including snakes and turtles)
0210 99	– – Other:
	– – – Meat:
0210 99 10	– – – – Of horses, salted, in brine or dried
	– – – – Of sheep and goats:
0210 99 21	– – – – – With bone in
0210 99 29	– – – – – Boneless
0210 99 31	– – – – Of reindeer
0210 99 39	– – – – Other
	– – – Offal:
	– – – – Of domestic swine:
0210 99 41	– – – – – Livers
0210 99 49	– – – – – Other
	– – – – Of bovine animals:
0210 99 51	– – – – – Thick skirt and thin skirt
0210 99 59	– – – – – Other
0210 99 60	– – – – Of sheep and goats
	– – – – Other:
	– – – – – Poultry liver:
0210 99 71	– – – – – – Fatty liver of geese or ducks, salted or in brine
0210 99 79	– – – – – – Other
0210 99 80	– – – – – Other
0210 99 90	– – – Edible flours and meals of meat or meat offal
0407 00	Birds' eggs, in shell, fresh, preserved or cooked:
	– Of poultry:
	– – For hatching:
0407 00 11	– – – Of turkeys or geese
0407 00 19	– – – Other
0408	Birds' eggs, not in shell, and egg yolks, fresh, dried, cooked by steaming or by boiling in water, moulded, frozen or otherwise preserved, whether or not containing added sugar or other sweetening matter:
	– Egg yolks:
0408 11	– – Dried:
0408 11 20	– – – Unfit for human consumption
0408 19	– – Other:
0408 19 20	– – – Unfit for human consumption
	– Other:
0408 91	– – Dried:
0408 91 20	– – – Unfit for human consumption
0408 99	– – Other:
0408 99 20	– – – Unfit for human consumption
0410 00 00	Edible products of animal origin, not elsewhere specified or included

CN code	Description
0601	Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, dormant, in growth or in flower; chicory plants and roots other than roots of heading 1212:
0601 10	– Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, dormant:
0601 10 10	– – Hyacinths
0601 10 20	– – Narcissi
0601 10 30	– – Tulips
0601 10 40	– – Gladioli
0601 10 90	– – Other
0601 20	– Bulbs, tubers, tuberous roots, corms, crowns and rhizomes, in growth or in flower; chicory plants and roots:
0601 20 10	– – Chicory plants and roots
0601 20 30	– – Orchids, hyacinths, narcissi and tulips
0601 20 90	– – Other
0602	Other live plants (including their roots), cuttings and slips; mushroom spawn:
0602 90	– Other:
0602 90 10	– – Mushroom spawn
0602 90 20	– – Pineapple plants
0604	Foliage, branches and other parts of plants, without flowers or flower buds, and grasses, mosses and lichens, being goods of a kind suitable for bouquets or for ornamental purposes, fresh, dried, dyed, bleached, impregnated or otherwise prepared:
	– Other:
0604 91	– – Fresh:
0604 91 20	– – – Christmas trees
0604 91 40	– – – Conifer branches
0604 91 90	– – – Other
0604 99	– – Other:
0604 99 10	– – – Not further prepared than dried
0604 99 90	– – – Other
0713	Dried leguminous vegetables, shelled, whether or not skinned or split:
0713 33	– – Kidney beans, including white pea beans (*Phaseolus vulgaris*):
0713 33 90	– – – Other
0713 39 00	– – Other
0713 40 00	– Lentils
0713 50 00	– Broad beans (*Vicia faba* var. *major*) and horse beans (*Vicia faba* var. *equina*, *Viciafaba* var. *minor*)
0713 90 00	– Other
0714	Manioc, arrowroot, salep, Jerusalem artichokes, sweet potatoes and similar roots and tubers with high starch or inulin content, fresh, chilled, frozen or dried, whether or not sliced or in the form of pellets; sago pith:
0714 10	– Manioc (cassava):
0714 10 10	– – Pellets of flour and meal
	– – Other:
0714 10 91	– – – Of a kind used for human consumption, in immediate packings of a net content not exceeding 28 kg, either fresh and whole or without skin and frozen, whether or not sliced
0714 10 99	– – – Other

CN code	Description
0714 20	– Sweet potatoes:
0714 20 10	– – Fresh, whole, intended for human consumption
0714 20 90	– – Other
0714 90	– Other:
	– – Arrowroot, salep and similar roots and tubers with high starch content:
0714 90 11	– – – Of a kind used for human consumption, in immediate packings of a net content not exceeding 28 kg, either fresh and whole or without skin and frozen, whether or not sliced
0714 90 19	– – – Other
0714 90 90	– – Other
0801	Coconuts, Brazil nuts and cashew nuts, fresh or dried, whether or not shelled or peeled:
	– Coconuts:
0801 11 00	– – Desiccated
0801 19 00	– – Other
0802	Other nuts, fresh or dried, whether or not shelled or peeled:
	– Almonds:
0802 11	– – In shell:
0802 11 10	– – – Bitter
0802 11 90	– – – Other
0802 12	– – Shelled:
0802 12 10	– – – Bitter
0802 12 90	– – – Other
	– Hazelnuts or filberts (*Corylus* spp.):
0802 21 00	– – In shell
0802 22 00	– – Shelled:
ex 0802 22 00	– – – In immediate packings of a net content not exceeding 2,5 kg
ex 0802 22 00	– – – Other
	– Walnuts:
0802 31 00	– – In shell
0802 32 00	– – Shelled
0802 40 00	– Chestnuts (*Castanea* spp.)
0802 50 00	– Pistachios
0802 60 00	– Macadamia nuts
0802 90	– Other:
0802 90 20	– – Areca (or betel), cola and pecans
0802 90 50	– – Pine nuts
0802 90 85	– – Other
0804	Dates, figs, pineapples, avocados, guavas, mangoes and mangosteens, fresh or dried:
0804 10 00	– Dates
0804 30 00	– Pineapples
0804 40 00	– Avocados
0804 50 00	– Guavas, mangoes and mangosteens

CN code	Description
0806	Grapes, fresh or dried:
0806 20	– Dried:
0806 20 10	– – Currants
0806 20 30	– – Sultanas
0806 20 90	– – Other
0810	Other fruit, fresh:
0810 60 00	– Durians
0810 90	– Other:
0810 90 30	– – Tamarinds, cashew apples, lychees, jackfruit, sapodillo plums
0810 90 40	– – Passion fruit, carambola and pitahaya
	– – Black, white or red currants and gooseberries:
0810 90 50	– – – Black-currants
0810 90 60	– – – Red-currants
0810 90 70	– – – Other
0810 90 95	– – Other
0811	Fruit and nuts, uncooked or cooked by steaming or boiling in water, frozen, whether or not containing added sugar or other sweetening matter:
0811 90	– Other:
	– – Containing added sugar or other sweetening matter:
	– – – With a sugar content exceeding 13 % by weight:
0811 90 11	– – – – Tropical fruit and tropical nuts
0811 90 19	– – – – Other
	– – – Other:
0811 90 31	– – – – Tropical fruit and tropical nuts
0811 90 39	– – – – Other
	– – Other:
0811 90 50	– – – Fruit of the species *Vaccinium myrtillus*
0811 90 70	– – – Fruit of the species *Vaccinium myrtilloides* and *Vaccinium angustifolium*
0811 90 85	– – – Tropical fruit and tropical nuts
0812	Fruit and nuts, provisionally preserved (for example, by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions), but unsuitable in that state for immediate consumption:
0812 90	– Other:
0812 90 70	– – Guavas, mangoes, mangosteens, tamarinds, cashew apples, lychees, jackfruit, sapodillo plums, passion fruit, carambola, pitahaya and tropical nuts
0813	Fruit, dried, other than that of headings 0801 to 0806; mixtures of nuts or dried fruits of this Chapter:
0813 40	– Other fruit:
0813 40 50	– – Papaws (papayas)
0813 40 60	– – Tamarinds
0813 40 70	– – Cashew apples, lychees, jackfruit, sapodillo plums, passion fruit, carambola and pitahaya
0813 40 95	– – Other
0813 50	– Mixtures of nuts or dried fruits of this Chapter:
	– – Mixtures of dried fruit, other than that of heading 0801 to 0806:
	– – – Not containing prunes:

CN code	Description
0813 50 12	– – – – Of papaws (papayas), tamarinds, cashew apples, lychees, jackfruit, sapodillo plums, passion fruit, carambola and pitahaya
0813 50 15	– – – – Other
0813 50 19	– – – Containing prunes
	– – Mixtures exclusively of dried nuts of heading 0801 and 0802:
0813 50 31	– – – Of tropical nuts
0813 50 39	– – – Other
	– – Other mixtures:
0813 50 91	– – – Not containing prunes or figs
0813 50 99	– – – Other
0814 00 00	Peel of citrus fruit or melons (including watermelons), fresh, frozen, dried or provisionally preserved in brine, in sulphur water or in other preservative solutions
0901	Coffee, whether or not roasted or decaffeinated; coffee husks and skins; coffee substitutes containing coffee in any proportion:
	– Coffee, not roasted:
0901 11 00	– – Not decaffeinated
0901 12 00	– – Decaffeinated
0902	Tea, whether or not flavoured:
0902 10 00	– Green tea (not fermented) in immediate packings of a content not exceeding 3 kg
0902 20 00	– Other green tea (not fermented)
0902 30 00	– Black tea (fermented) and partly fermented tea, in immediate packings of a content not exceeding 3 kg
0902 40 00	– Other black tea (fermented) and other partly fermented tea
0904	Pepper of the genus *Piper*; dried or crushed or ground fruits of the genus *Capsicum* or of the genus *Pimenta*:
	– Pepper:
0904 11 00	– – Neither crushed nor ground
0904 12 00	– – Crushed or ground
0904 20	– Fruits of the genus *Capsicum* or of the genus *Pimenta*, dried or crushed or ground:
	– – Neither crushed nor ground:
0904 20 10	– – – Sweet peppers
0904 20 30	– – – Other
0904 20 90	– – Crushed or ground
0905 00 00	Vanilla
0906	Cinnamon and cinnamon-tree flowers:
	– Neither crushed nor ground:
0906 11 00	– – Cinnamon (*Cinnamomum zeylanicum Blume*)
0906 19 00	– – Other
0906 20 00	– Crushed or ground
0907 00 00	Cloves (whole fruit, cloves and stems)
0908	Nutmeg, mace and cardamoms:
0908 10 00	– Nutmeg
0908 20 00	– Mace
0908 30 00	– Cardamoms

CN code	Description
0909	Seeds of anise, badian, fennel, coriander, cumin or caraway; juniper berries:
0909 10 00	– Seeds of anise or badian
0909 20 00	– Seeds of coriander
0909 30 00	– Seeds of cumin
0909 40 00	– Seeds of caraway
0909 50 00	– Seeds of fennel; juniper berries
0910	Ginger, saffron, turmeric (curcuma), thyme, bay leaves, curry and other spices:
0910 10 00	– Ginger
0910 20	– Saffron:
0910 20 10	– – Neither crushed nor ground
0910 20 90	– – Crushed or ground
0910 30 00	– Turmeric (curcuma)
	– Other spices:
0910 91	– – Mixtures referred to in Note 1(b) to this Chapter:
0910 91 10	– – – Neither crushed nor ground
0910 91 90	– – – Crushed or ground
0910 99	– – Other:
0910 99 10	– – – Fenugreek seed
	– – – Thyme:
	– – – – Neither crushed nor ground:
0910 99 31	– – – – – Wild thyme (*Thymus serpyllum*)
0910 99 33	– – – – – Other
0910 99 39	– – – – Crushed or ground
0910 99 50	– – – Bay leaves
0910 99 60	– – – Curry
	– – – Other:
0910 99 91	– – – – Neither crushed nor ground
0910 99 99	– – – – Crushed or ground
1006	Rice:
1006 10	– Rice in the husk (paddy or rough):
1006 10 10	– – For sowing
	– – Other:
	– – – Parboiled:
1006 10 21	– – – – Round grain
1006 10 23	– – – – Medium grain
	– – – – Long grain:
1006 10 25	– – – – – Of a length/width ratio greater than 2 but less than 3
1006 10 27	– – – – – Of a length/width ratio equal to or greater than 3
	– – – Other:
1006 10 92	– – – – Round grain
1006 10 94	– – – – Medium grain
	– – – – Long grain:
1006 10 96	– – – – – Of a length/width ratio greater than 2 but less than 3

CN code	Description
1006 10 98	– – – – – Of a length/width ratio equal to or greater than 3
1006 20	– Husked (brown) rice:
	– – Parboiled:
1006 20 11	– – – Round grain
1006 20 13	– – – Medium grain
	– – – Long grain:
1006 20 15	– – – – Of a length/width ratio greater than 2 but less than 3
1006 20 17	– – – – Of a length/width ratio equal to or greater than 3
	– – Other:
1006 20 92	– – – Round grain
1006 20 94	– – – Medium grain
	– – – Long grain:
1006 20 96	– – – – Of a length/width ratio greater than 2 but less than 3
1006 20 98	– – – – Of a length/width ratio equal to or greater than 3
1006 30	– Semi-milled or wholly milled rice, whether or not polished or glazed:
	– – Semi-milled rice:
	– – – Parboiled:
1006 30 21	– – – – Round grain
1006 30 23	– – – – Medium grain
	– – – – Long grain:
1006 30 25	– – – – – Of a length/width ratio greater than 2 but less than 3
1006 30 27	– – – – – Of a length/width ratio equal to or greater than 3
	– – – Other:
1006 30 42	– – – – Round grain
1006 30 44	– – – – Medium grain
	– – – – Long grain:
1006 30 46	– – – – – Of a length/width ratio greater than 2 but less than 3
1006 30 48	– – – – – Of a length/width ratio equal to or greater than 3
	– – Wholly milled rice:
	– – – Parboiled:
1006 30 61	– – – – Round grain
1006 30 63	– – – – Medium grain
	– – – – Long grain:
1006 30 65	– – – – – Of a length/width ratio greater than 2 but less than 3
1006 30 67	– – – – – Of a length/width ratio equal to or greater than 3
	– – – Other:
1006 30 92	– – – – Round grain
1006 30 94	– – – – Medium grain
	– – – – Long grain:
1006 30 96	– – – – – Of a length/width ratio greater than 2 but less than 3
1006 30 98	– – – – – Of a length/width ratio equal to or greater than 3
1006 40 00	– Broken rice
1007	Grain sorghum:
1007 00 10	– Hybrids for sowing

CN code	Description
1007 00 90	– Other
1008	Buckwheat, millet and canary seed; other cereals:
1008 10 00	– Buckwheat
1008 20 00	– Millet
1008 30 00	– Canary seed
1008 90	– Other cereals:
1008 90 10	– – Triticale
1008 90 90	– – Other
1102	Cereal flours other than of wheat or meslin:
1102 10 00	– Rye flour
1102 20	– Maize (corn) flour:
1102 20 10	– – Of a fat content not exceeding 1,5 % by weight
1102 20 90	– – Other
1102 90	– Other:
1102 90 10	– – Barley flour
1102 90 30	– – Oat flour
1102 90 50	– – Rice flour
1102 90 90	– – Other
1103	Cereal groats, meal and pellets:
	– Groats and meal:
1103 11	– – Of wheat:
1103 11 10	– – – Durum wheat
1103 11 90	– – – Common wheat and spelt
1103 13	– – Of maize (corn):
1103 13 10	– – – Of a fat content not exceeding 1,5 % by weight
1103 13 90	– – – Other
1103 19	– – Of other cereals:
1103 19 10	– – – Of rye
1103 19 30	– – – Of barley
1103 19 40	– – – Of oats
1103 19 50	– – – Of rice
1103 19 90	– – – Other
1103 20	– Pellets:
1103 20 10	– – Of rye
1103 20 20	– – Of barley
1103 20 30	– – Of oats
1103 20 40	– – Of maize
1103 20 50	– – Of rice
1103 20 60	– – Of wheat
1103 20 90	– – Other
1104	Cereal grains otherwise worked (for example, hulled, rolled, flaked, pearled, sliced or kibbled), except rice of heading 1006; germ of cereals, whole, rolled, flaked or ground:
	– Rolled or flaked grains:
1104 12	– – Of oats:

CN code	Description
1104 12 10	– – – Rolled
1104 12 90	– – – Flaked
1104 19	– – Of other cereals:
1104 19 10	– – – Of wheat
1104 19 30	– – – Of rye
1104 19 50	– – – Of maize
	– – – Of barley:
1104 19 61	– – – – Rolled
1104 19 69	– – – – Flaked
	– – – Other:
1104 19 91	– – – – Flaked rice
1104 19 99	– – – – Other
	– Other worked grains (for example, hulled, pearled, sliced or kibbled):
1104 22	– – Of oats:
1104 22 20	– – – Hulled (shelled or husked)
1104 22 30	– – – Hulled and sliced or kibbled (‘Grütze’ or ‘grutten’)
1104 22 50	– – – Pearled
1104 22 90	– – – Not otherwise worked than kibbled
1104 22 98	– – – Other
1104 23	– – Of maize (corn):
1104 23 10	– – – Hulled (shelled or husked), whether or not sliced or kibbled
1104 23 30	– – – Pearled
1104 23 90	– – – Not otherwise worked than kibbled
1104 23 99	– – – Other
1104 29	– – Of other cereals:
	– – – Of barley:
1104 29 01	– – – – Hulled (shelled or husked)
1104 29 03	– – – – Hulled and sliced or kibbled (‘Grütze’ or ‘grutten’)
1104 29 05	– – – – Pearled
1104 29 07	– – – – Not otherwise worked than kibbled
1104 29 09	– – – – Other
	– – – Other:
	– – – – Hulled (shelled or husked), whether or not sliced or kibbled:
1104 29 11	– – – – – Of wheat
1104 29 18	– – – – – Other
1104 29 30	– – – – Pearled
	– – – – Not otherwise worked than kibbled:
1104 29 51	– – – – – Of wheat
1104 29 55	– – – – – Of rye
1104 29 59	– – – – – Other
	– – – – Other:
1104 29 81	– – – – – Of wheat
1104 29 85	– – – – – Of rye

CN code	Description
1104 29 89	– – – – – Other
1104 30	– Germ of cereals, whole, rolled, flaked or ground:
1104 30 10	– – Of wheat
1104 30 90	– – Of other cereals
1105	Flour, meal, powder, flakes, granules and pellets of potatoes:
1105 10 00	– Flour, meal and powder
1105 20 00	– Flakes, granules and pellets
1106	Flour, meal and powder of the dried leguminous vegetables of heading 0713, of sago or of roots or tubers of heading 0714 or of the products of Chapter 8:
1106 10 00	– Of the dried leguminous vegetables of heading 0713
1106 20	– Of sago or of roots or tubers of heading 0714:
1106 20 10	– – Denatured
1106 20 90	– – Other
1106 30	– Of the products of Chapter 8:
1106 30 10	– – Of bananas
1106 30 90	– – Other
1107	Malt, whether or not roasted:
1107 10	– Not roasted:
	– – Of wheat:
1107 10 11	– – – In the form of flour
1107 10 19	– – – Other
	– – Other:
1107 10 91	– – – In the form of flour
1107 10 99	– – – Other
1107 20 00	– Roasted
1108	Starches; inulin:
	– Starches:
1108 11 00	– – Wheat starch
1108 12 00	– – Maize (corn) starch
1108 13 00	– – Potato starch
1108 14 00	– – Manioc (cassava) starch
1108 19	– – Other starches:
1108 19 10	– – – Rice starch
1108 19 90	– – – – Other
1108 20 00	– Inulin
1109 00 00	Wheat gluten, whether or not dried
1502 00	Fats of bovine animals, sheep or goats, other than those of heading 1503:
1502 00 10	– For industrial uses other than the manufacture of foodstuffs for human consumption
1502 00 90	– Other
1503 00	Lard stearin, lard oil, oleostearin, oleo-oil and tallow oil, not emulsified or mixed or otherwise prepared:
	– Lard stearin and oleostearin:
1503 00 11	– – For industrial uses
1503 00 19	– – Other

CN code	Description
1503 00 30	– Tallow oil for industrial uses other than the manufacture of foodstuffs for human consumption
1503 00 90	– – Other
1504	Fats and oils and their fractions, of fish or marine mammals, whether or not refined, but not chemically modified:
1504 10	– Fish-liver oils and their fractions:
1504 10 10	– – Of a vitamin A content not exceeding 2 500 International Units per gram
	– – Other:
1504 10 91	– – – Of halibut
1504 10 99	– – – Other
1504 20	– Fats and oils and their fractions, of fish, other than liver oils:
1504 20 90	– – Other
1504 30	– Fats and oils and their fractions, of marine mammals:
1504 30 90	– – Other
1507	Soya-bean oil and its fractions, whether or not refined, but not chemically modified:
1507 10	– Crude oil, whether or not degummed:
1507 10 10	– – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1507 90	– Other:
1507 90 10	– – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1508	Groundnut oil and its fractions, whether or not refined, but not chemically modified:
1508 10	– Crude oil:
1508 10 10	– – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1508 10 90	– – Other
1508 90	– Other:
1508 90 10	– – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1508 90 90	– – Other
1510 00	Other oils and their fractions, obtained solely from olives, whether or not refined, but not chemically modified, including blends of these oils or fractions with oils or fractions of heading 1509:
1510 00 10	– Crude oils
1510 00 90	– Other
1512	Sunflower-seed, safflower or cotton-seed oil and fractions thereof, whether or not refined, but not chemically modified:
	– Cotton-seed oil and its fractions:
1512 21	– – Crude oil, whether or not gossypol has been removed:
1512 21 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1512 21 90	– – – Other
1512 29	– – Other:
1512 29 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1512 29 90	– – – Other
1514	Rape, colza or mustard oil and fractions thereof, whether or not refined, but not chemically modified:
	– Low erucid acid rape or colza oil and its fractions:
1514 11	– – Crude oil:
1514 11 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption

CN code	Description
1514 11 90	– – – Other
1514 19	– – Other:
1514 19 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1514 19 90	– – – Other
	– Other:
1514 91	– – Crude oil:
1514 91 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1514 91 90	– – – Other
1514 99	– – Other:
1514 99 10	– – – For technical or industrial uses other than the manufacture of foodstuffs for human consumption
1514 99 90	– – – Other
1516	Animal or vegetable fats and oils and their fractions, partly or wholly hydrogenated, inter-esterified, re-esterified or elaidinised, whether or not refined, but not further prepared:
1516 20	– Vegetable fats and oils and their fractions:
	– – Other:
	– – – Other:
	– – – – Other:
1516 20 98	– – – – – Other
1518 00	Animal or vegetable fats and oils and their fractions, boiled, oxidised, dehydrated, sulphurised, blown, polymerised by heat in vacuum or in inert gas or otherwise chemically modified, excluding those of heading 1516; inedible mixtures or preparation of animal or vegetable fats or oils or of fractions of different fats or oils of this chapter, not elsewhere specified or included:
	– Fixed vegetable oils, fluid, mixed, for technical or industrial uses other than the manufacture of foodstuffs for human consumption:
1518 00 31	– – Crude
1518 00 39	– – Other
1522 00	Degras; residues resulting from the treatment of fatty substances or animal or vegetable waxes:
	– Residues resulting from the treatment of fatty substances or animal or vegetable waxes:
	– – Containing oil having the characteristics of olive oil:
1522 00 31	– – – Soap stocks
1522 00 39	– – – Other
	– – Other:
1522 00 91	– – – Oil foots and dregs; soap stocks
1522 00 99	– – – Other
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:
	– Lactose and lactose syrup:
1702 11 00	– – Containing by weight 99 % or more lactose, expressed as anhydrous lactose, calculated on the dry matter
1702 19 00	– – Other
1702 20	– Maple sugar and maple syrup:
1702 20 10	– – Maple sugar in solid form, containing added flavouring or colouring matter

CN code	Description
1702 20 90	– – Other
1702 30	– Glucose and glucose syrup, not containing fructose or containing in the dry state less than 20 % by weight of fructose:
1702 30 10	– – Isoglucose
	– – Other:
	– – – Containing in the dry state, 99 % or more by weight of glucose:
1702 30 51	– – – – In the form of white crystalline powder, whether or not agglomerated
1702 30 59	– – – – Other
	– – – Other:
1702 30 91	– – – – In the form of white crystalline powder, whether or not agglomerated
1702 30 99	– – – – Other
1702 40	– Glucose and glucose syrup, containing in the dry state at least 20 % but less than 50 % by weight of fructose, excluding invert sugar:
1702 40 10	– – Isoglucose
1702 40 90	– – Other
1702 60	– Other fructose and fructose syrup, containing in the dry state more than 50 % by weight of fructose, excluding invert sugar:
1702 60 10	– – Isoglucose
1702 60 80	– – Inulin syrup
1702 60 95	– – Other
1702 90	– Other, including invert sugar and other sugar and sugar syrup blends containing in the dry state 50 % by weight of fructose:
1702 90 30	– – Isoglucose
1702 90 50	– – Maltodextrine and maltodextrine syrup
	– – Caramel:
1702 90 71	– – – Containing 50 % or more by weight of sucrose in the dry matter
	– – – Other:
1702 90 75	– – – – In the form of powder, whether or not agglomerated
1702 90 79	– – – – Other
1702 90 80	– – Inulin syrup
1702 90 99	– – Other
1902	Pasta, whether or not cooked or stuffed (with meat or other substances) or otherwise prepared, such as spaghetti, macaroni, noodles, lasagne, gnocchi, ravioli, cannelloni; couscous, whether or not prepared:
1902 20	– Stuffed pasta, whether or not cooked or otherwise prepared:
1902 20 30	– – Containing more than 20 % by weight of sausages and the like, of meat and meat offal of any kind, including fats of any kind or origin
2007	Jams, fruit jellies, marmalades, fruit or nut purée and fruit or nut and fruit or nut pastes, being cooked preparations, whether or not containing added sugar or other sweetening matter:
	– Other:
2007 99	– – Other:
	– – – Other:
2007 99 98	– – – – Other
2008	Fruit, nuts and other edible parts of plants, otherwise prepared or preserved, whether or not containing added sugar or other sweetening matter or spirit, not elsewhere specified or included:
	– Nuts, groundnuts and other seeds, whether or not mixed together:

CN code	Description
2008 19	– – Other, including mixtures:
	– – – In immediate packings of a net content exceeding 1 kg:
	– – – – Other:
2008 19 19	– – – – – Other
2009	Fruit juices (including grape must) and vegetable juices, unfermented and not containing added spirit, whether or not containing added sugar or other sweetening matter:
	– Orange juice:
2009 11	– – Frozen:
	– – – Of a Brix value exceeding 67:
2009 11 11	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 11 19	– – – – Other
	– – – Of a Brix value not exceeding 67:
2009 11 91	– – – – Of a value not exceeding € 30 per 100 kg net weight and with an added sugar content exceeding 30 % by weight
2009 11 99	– – – – Other
2009 19	– – Other:
	– – – Of a Brix value exceeding 67:
2009 19 11	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 19 19	– – – – Other
	– – – Of a Brix value exceeding 20 but not exceeding 67:
2009 19 91	– – – – Of a value not exceeding € 30 per 100 kg net weight and with an added sugar content exceeding 30 % by weight
2009 19 98	– – – – Other
	– Grapefruit (including pomelo) juice:
2009 29	– – Other:
	– – – Of a Brix value exceeding 67:
2009 29 11	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 29 19	– – – – Other
	– – – Of a Brix value exceeding 20 but not exceeding 67:
2009 29 91	– – – – Of a value not exceeding € 30 per 100 kg net weight and with an added sugar content exceeding 30 % by weight
2009 29 99	– – – – Other
	– Juice of any other single citrus fruit:
2009 39	– – Other:
	– – – Of a Brix value exceeding 67:
2009 39 11	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 39 19	– – – – Other
	– – – Of a Brix value exceeding 20 but not exceeding 67:
	– – – – Of a value exceeding € 30 per 100 kg net weight:
2009 39 31	– – – – – Containing added sugar
2009 39 39	– – – – – Not containing added sugar
	– – – – Of a value not exceeding € 30 per 100 kg net weight:
	– – – – – Lemon juice:
2009 39 51	– – – – – – With an added sugar content exceeding 30 % by weight

CN code	Description
2009 39 55	– – – – – – With an added sugar content not exceeding 30 % by weight
2009 39 59	– – – – – – Not containing added sugar
	– – – – – Other citrus fruit juices:
2009 39 91	– – – – – – With an added sugar content exceeding 30 % by weight
2009 39 95	– – – – – – With an added sugar content not exceeding 30 % by weight
2009 39 99	– – – – – – Not containing added sugar
	– Pineapple juice:
2009 49	– – Other:
	– – – Of a Brix value exceeding 67:
2009 49 11	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 49 19	– – – – Other
	– – – Of a Brix value exceeding 20 but not exceeding 67:
2009 49 30	– – – – Of a value exceeding € 30 per 100 kg net weight, containing added sugar
	– – – – Other:
2009 49 91	– – – – – With an added sugar content exceeding 30 % by weight
2009 49 93	– – – – – With an added sugar content not exceeding 30 % by weight
2009 49 99	– – – – – Not containing added sugar
	– Grape juice (including grape must):
2009 69	– – Other:
	– – – Of a Brix value exceeding 67:
2009 69 11	– – – – Of a value not exceeding € 22 per 100 kg net weight
2009 69 19	– – – – Other
	– – – Of a Brix value exceeding 30 but not exceeding 67:
	– – – – Of a value exceeding € 18 per 100 kg net weight:
2009 69 51	– – – – – Concentrated
2009 69 59	– – – – – Other
	– – – – Of a value not exceeding € 18 per 100 kg net weight:
	– – – – – With an added sugar content exceeding 30 % by weight:
2009 69 71	– – – – – – Concentrated
2009 69 79	– – – – – – Other
2009 69 90	– – – – – Other
	– Apple juice:
2009 79	– – Other:
	– – – Of a Brix value exceeding 67:
2009 79 11	– – – – Of a value not exceeding € 22 per 100 kg net weight
2009 79 19	– – – – Other
	– – – Of a Brix value exceeding 20 but not exceeding 67:
2009 79 30	– – – – Of a value exceeding € 18 per 100 kg net weight, containing added sugar
	– – – – Other:
2009 79 91	– – – – – With an added sugar content exceeding 30 % by weight
2009 79 93	– – – – – With an added sugar content not exceeding 30 % by weight
2009 79 99	– – – – – Not containing added sugar

CN code	Description
2009 80	– Juice of any other single fruit or vegetable:
	– – Of a Brix value exceeding 67:
	– – – Pear juice:
2009 80 11	– – – – Of a value not exceeding € 22 per 100 kg net weight
2009 80 19	– – – – Other
	– – – Other:
	– – – – Of a value not exceeding € 30 per 100 kg net weight:
2009 80 34	– – – – – Juices of tropical fruit
2009 80 35	– – – – – Other
	– – – – Other:
2009 80 36	– – – – – Juices of tropical fruit
2009 80 38	– – – – – Other
2009 90	– Mixtures of juices:
	– – Of a Brix value exceeding 67:
	– – – Mixtures of apple and pear juice:
2009 90 11	– – – – Of a value not exceeding € 22 per 100 kg net weight
2009 90 19	– – – – Other
	– – – Other:
2009 90 21	– – – – Of a value not exceeding € 30 per 100 kg net weight
2009 90 29	– – – – Other
2106	Food preparations not elsewhere specified or included:
2106 90	– Other:
	– – Flavoured or coloured sugar syrups:
2106 90 30	– – – Isoglucose syrups
	– – – Other:
2106 90 51	– – – – Lactose syrup
2106 90 55	– – – – Glucose syrup and maltodextrine syrup
2106 90 59	– – – – Other
2302	Bran, sharps and other residues, whether or not in the form of pellets derived from the sifting, milling or other working of cereals or of leguminous plants:
2302 10	– Of maize (corn):
2302 10 10	– – With a starch content not exceeding 35 % by weight
2302 10 90	– – Other
2302 30	– Of wheat:
2302 30 10	– – Of which the starch content does not exceed 28 % by weight, and of which the proportion that passes through a sieve with an aperture of 0,2 mm does not exceed 10 % by weight or alternatively the proportion that passes through the sieve has an ash content, calculated on the dry product, equal to or more than 1,5 % by weight
2302 30 90	– – Other
2302 40	– Of other cereals:
	– – Of rice:
2302 40 02	– – – With a starch content not exceeding 35 % by weight
2302 40 08	– – – Other
	– – Other:
2302 40 10	– – – Of which the starch content does not exceed 28 % by weight, and of which the proportion that passes through a sieve with an aperture of 0,2 mm does not exceed 10 % by weight or alternatively the proportion that passes through the sieve has an ash content, calculated on the dry product, equal to or more than 1,5 % by weight

CN code	Description
2302 40 90	– – – Other
2302 50 00	– Of leguminous plants
2303	Residues of starch manufacture and similar residues, beet-pulp, bagasse and other waste of sugar manufacture, brewing or distilling dregs and waste, whether or not in the form of pellets:
2303 10	– Residues of starch manufacture and similar residues:
	– – Residues from the manufacture of starch from maize (excluding concentrated steeping liquors), of a protein content, calculated on the dry product:
2303 10 11	– – – Exceeding 40 % by weight
2303 10 19	– – – Not exceeding 40 % by weight
2303 20	– Beet-pulp, bagasse and other waste of sugar manufacture:
2303 20 90	– – Other
2303 30 00	– Brewing or distilling dregs and waste
2304 00 00	Oil-cake and other solid residues, whether or not ground or in the form of pellets, resulting from the extraction of soya-bean oil
2305 00 00	Oil-cake and other solid residues, whether or not ground or in the form of pellets, resulting from the extraction of groundnut oil
2306	Oil-cake and other solid residues, whether or not ground or in the form of pellets, resulting from the extraction of vegetable fats or oils, other than those of heading 2304 or 2305:
2306 10 00	– Of cotton seeds
2306 20 00	– Of linseed
2306 30 00	– Of sunflower seeds
	– Of rape or colza seeds:
2306 41 00	– – Of low erucic acid rape or colza seeds
2306 49 00	– – Other
2306 90	– Other:
2306 90 05	– – Of maize (corn) germ
	– – Other:
	– – – Oil-cake and other residues resulting from the extraction of olive oil:
2306 90 11	– – – – Containing 3 % or less by weight of olive oil
2306 90 19	– – – – Containing more than 3 % by weight of olive oil
2306 90 90	– – – Other
2308 00	Vegetable materials and vegetable waste, vegetable residues and by-products, whether or not in the form of pellets, of a kind used in animal feeding, not elsewhere specified or included:
	– Grape marc:
2308 00 11	– – Having a total alcoholic strength by mass not exceeding 4,3 % mass and a dry matter content not less than 40 % by weight
2308 00 19	– – Other
2308 00 40	– Acorns and horse-chestnuts; pomace or marc of fruit, other than grapes
2308 00 90	– Other
2309	Preparations of a kind used in animal feeding:
2309 90	– Other:
2309 90 10	– – Fish or marine mammal solubles
2309 90 20	– – Products referred to in additional note 5 to this chapter
	– – Other, including premixes:

CN code	Description
	– – – Containing starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup of subheadings 1702 30 51 to 1702 30 99, 1702 40 90, 1702 90 50 and 2106 90 55 or milk products:
	– – – – Containing starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup:
	– – – – – Containing no starch or containing 10 % or less by weight of starch:
2309 90 31	– – – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 90 33	– – – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 90 35	– – – – – – Containing not less than 50 % but less than 75 % by weight of milk products
2309 90 39	– – – – – – Containing not less than 75 % by weight of milk products
	– – – – – Containing more than 10 % but not more than 30 % by weight of starch:
2309 90 41	– – – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 90 43	– – – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 90 49	– – – – – – Containing not less than 50 % by weight of milk products
	– – – – – Containing more than 30 % by weight of starch:
2309 90 51	– – – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 90 53	– – – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 90 59	– – – – – – Containing not less than 50 % by weight of milk products
2309 90 70	– – – – Containing no starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup but containing milk products
	– – – Other:
2309 90 91	– – – – Beet-pulp with added molasses
	– – – – Other:
2309 90 95	– – – – – Containing by weight 49 % or more of chlorine chloride, on an organic or inorganic base
2309 90 99	– – – – – Other
3301	Essential oils (terpeneless or not), including concretes and absolutes; resinoids; extracted oleoresins; concentrates of essential oils in fats, in fixed oils, in waxes or the like, obtained by enfleurage or maceration; terpenic by-products of the deterpenation of essential oils; aqueous distillates and aqueous solutions of essential oils:
	– Essential oils of citrus fruit:
3301 12	– – Of orange:
3301 12 10	– – – Not deterpenated
3301 12 90	– – – Deterpenated
3301 13	– – Of lemon:
3301 13 10	– – – Not deterpenated
3301 13 90	– – – Deterpenated
3301 19	– – Other:
3301 19 20	– – – Not deterpenated
3301 19 80	– – – Deterpenated
	– Essential oils other than those of citrus fruit:
3301 24	– – Of peppermint (*Mentha piperita*):
3301 24 10	– – – Not deterpenated
3301 24 90	– – – Deterpenated
3301 25	– – Of other mints:
3301 25 10	– – – Not deterpenated

CN code	Description
3301 25 90	– – – Deterpenated
3301 29	– – Other:
	– – – Of clove, niaouli and ylang-ylang:
3301 29 11	– – – – Not deterpenated
3301 29 31	– – – – Deterpenated
	– – – Other:
3301 29 41	– – – – Not deterpenated
	– – – – Deterpenated:
3301 29 71	– – – – – Of geranium; of jasmin; of vetiver
3301 29 79	– – – – – Of lavender or of lavandin
3301 29 91	– – – – – Other
3301 30 00	– Resinoids
3302	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages:
3302 10	– Of a kind used in the food or drink industries:
	– – Of a kind used in the drink industries:
3302 10 40	– – – Other
3302 10 90	– – Of a kind used in the food industries
3501	Casein, caseinates and other casein derivatives; casein glues:
3501 90	– Other:
3501 90 10	– – Casein glues
3502	Albumins (including concentrates of two or more whey proteins, containing by weight more than 80 % whey proteins, calculated on the dry matter), albuminates and other albumin derivates:
	– Egg albumin:
3502 11	– – Dried:
3502 11 10	– – – Unfit, or to be rendered unfit, for human consumption
3502 11 90	– – – Other
3502 19	– – Other:
3502 19 10	– – – Unfit, or to be rendered unfit, for human consumption
3502 19 90	– – – Other
3502 20	– Milk albumin, including concentrates of two or more whey proteins:
3502 20 10	– – Unfit, or to be rendered unfit, for human consumption
	– – Other:
3502 20 91	– – – Dried (for example, in sheets, scales, flakes, powder)
3502 20 99	– – – Other
3502 90	– Other:
	– – Albumins, other than egg albumin and milk albumin (lactalbumin):
3502 90 20	– – – Unfit, or to be rendered unfit, for human consumption
3502 90 70	– – – Other
3502 90 90	– – Albuminates and other albumin derivatives
3503 00	Gelatin (including gelatin in rectangular (including square) sheets, whether or not surface-worked or coloured) and gelatin derivatives; isinglass; other glues of animal origin, excluding casein glues of heading 3501:
3503 00 10	– Gelatin and derivatives thereof

CN code	Description
3503 00 80	– Other
3504 00 00	Peptones and their derivatives; other protein substances and their derivatives, not elsewhere specified or included; hide powder, whether or not chromed
3505	Dextrins and other modified starches (for example, pregelatinised or esterified starches); glues based on starches, or on dextrins or other modified starches:
3505 10	– Dextrins and other modified starches:
	– – Other modified starches:
3505 10 50	– – – Starches, esterified or etherified
4101	Raw hides and skins of bovine (including buffalo) or equine animals (fresh, or salted, dried, limed, pickled or otherwise preserved, but not tanned, parchment-dressed or further prepared), whether or not dehaired or split:
4101 20	– Whole hides and skins, of a weight per skin not exceeding 8 kg when simply dried, 10 kg when dry-salted, or 16 kg when fresh, wet- salted or otherwise preserved:
4101 20 10	– – Fresh
4101 20 30	– – Wet-salted
4101 20 50	– – Dried or dry-salted
4101 20 90	– – Other
4101 50	– Whole hides and skins, of a weight exceeding 16 kg:
4101 50 10	– – Fresh
4101 50 30	– – Wet-salted
4101 50 50	– – Dried or dry-salted
4101 50 90	– – Other
4101 90 00	– Other, including butts, bends and bellies
4102	Raw skins of sheep or lambs (fresh, or salted, dried, limed, pickled or otherwise preserved, but not tanned, parchment-dressed or further prepared), whether or not with wool on or split, other than those excluded by note 1(c) to this chapter:
4102 10	– With wool on:
4102 10 10	– – Of lambs
4102 10 90	– – Other
	– Without wool on:
4102 21 00	– – Pickled
4102 29 00	– – Other
4103	Other raw hides and skins (fresh, or salted, dried, limed, pickled or otherwise preserved, but not tanned, parchment-dressed or further prepared), whether or not dehaired or split, other than those excluded by note 1(b) or 1(c) to this chapter:
4103 20 00	– Of reptiles
4103 30 00	– Of swine
4103 90	– Other:
4103 90 10	– – Of goats or kids
4103 90 90	– – Other
4301	Raw fur skins (including heads, tails, paws and other pieces or cuttings, suitable for furriers' use), other than raw hides and skins of heading 4101, 4102 or 4103:
4301 10 00	– Of mink, whole, with or without head, tail or paws
4301 30 00	– Of lamb, the following: Astrakhan, Broadtail, Caracul, Persian and similar lamb, Indian, Chinese, Mongolian or Tibetan lamb, whole, with or without head, tail or paws

CN code	Description
4301 60 00	– Of fox, whole, with or without head, tail or paws
4301 80	– Other fur skins, whole, with or without head, tail or paws:
4301 80 30	– – Of marmots
4301 80 50	– – Of wild felines
4301 80 80	– – Other
4301 90 00	– Heads, tails, paws and other pieces or cuttings, suitable for furriers' use
5001 00 00	Silkworm cocoons suitable for reeling
5002 00 00	Raw silk (not thrown)
5003 00 00	Silk waste (including cocoons unsuitable for reeling, yarn waste and garnetted stock)

ANNEX III(b)

MONTENEGRIN TARIFF CONCESSIONS FOR AGRICULTURAL PRIMARY PRODUCTS ORIGINATING IN THE COMMUNITY

(referred to in Article 27(2)(b))

Customs duties for the products listed in this Annex will be reduced and eliminated in accordance with the timetable indicated for each product in this Annex:

— on the date of entry into force of this Agreement, the import duty will be reduced to 80 % of the customs duties

— on 1 January of the first year following the date of entry into force of this Agreement, the import duty will be reduced to 60 % of the customs duties

— on 1 January of the second year following the date of entry into force of this Agreement, the import duty will be reduced to 40 % of the customs duties

— on 1 January of the third year following the date of entry into force of this Agreement, the import duty will be reduced to 20 % of the customs duties

— on 1 January of the fourth year following the date of entry into force of this Agreement, the import duty will be reduced to 0 % of the customs duties

CN code	Description
0102	Live bovine animals:
0102 90	– Other:
	– – Domestic species:
0102 90 05	– – – Of a weight not exceeding 80 kg
	– – – Of a weight exceeding 80 kg but not exceeding 160 kg:
0102 90 21	– – – – For slaughter
0102 90 29	– – – – Other
	– – – Of a weight exceeding 160 kg but not exceeding 300 kg:
0102 90 41	– – – – For slaughter
0102 90 49	– – – – Other
	– – – Of a weight exceeding 300 kg:
	– – – – Heifers (female bovines that have never calved):
0102 90 51	– – – – – For slaughter
0102 90 59	– – – – – Other
	– – – – Cows:
0102 90 61	– – – – – For slaughter
0102 90 69	– – – – – Other
	– – – – Other:
0102 90 71	– – – – – For slaughter
0102 90 79	– – – – – Other
0102 90 90	– – Other
0103	Live swine:
	– Other:
0103 91	– – Weighing less than 50 kg:
0103 91 10	– – – Domestic species
0103 91 90	– – – Other
0103 92	– – Weighing 50 kg or more:
	– – – Domestic species:
0103 92 11	– – – – Sows having farrowed at least once, of a weight of not less than 160 kg

CN code	Description
0103 92 19	– – – – Other
0103 92 90	– – – Other
0105	Live poultry, that is to say, fowls of the species *Gallus domesticus*, ducks, geese, turkeys and guinea fowls:
	– Weighing not more than 185 g:
0105 11	– – Fowls of the species Gallus domesticus:
	– – – Grandparent an parent female chicks:
0105 11 19	– – – – Other
	– – – Other:
0105 11 99	– – – – Other
	– Other:
0105 94 00	– – Fowls of the species *Gallus domesticus*
0105 99	– – Other:
0105 99 10	– – – Ducks
0105 99 20	– – – Geese
0105 99 30	– – – Turkeys
0105 99 50	– – – Guinea fowls
0203	Meat of swine, fresh, chilled or frozen:
	– Fresh or chilled:
0203 11	– – Carcases and half-carcases:
0203 11 10	– – – Of domestic swine
0203 11 90	– – – Other
0203 12	– – Hams, shoulders and cuts thereof, with bone in:
	– – – Of domestic swine:
0203 12 11	– – – – Hams and cuts thereof
0203 12 19	– – – – Shoulders and cuts thereof
0203 12 90	– – – Other
0203 19	– – Other:
	– – – Of domestic swine:
0203 19 11	– – – – Fore-ends and cuts thereof
0203 19 13	– – – – Loins and cuts thereof, with bone in
0203 19 15	– – – – Bellies (streaky) and cuts thereof
	– – – – Other:
0203 19 55	– – – – – Boneless
0203 19 59	– – – – – Other
0203 19 90	– – – Other
	– Frozen:
0203 21	– – Carcases and half-carcases:
0203 21 10	– – – Of domestic swine
0203 21 90	– – – Other
0203 22	– – Hams, shoulders and cuts thereof, with bone in:
	– – – Of domestic swine:
0203 22 11	– – – – Hams and cuts thereof
0203 22 19	– – – – Shoulders and cuts thereof
0203 22 90	– – – Other

CN code	Description
0203 29	– – Other:
	– – – Of domestic swine:
0203 29 11	– – – – Fore-ends and cuts thereof
0203 29 13	– – – – Loins and cuts thereof, with bone in
0203 29 15	– – – – Bellies (streaky) and cuts thereof
	– – – – Other:
0203 29 55	– – – – – Boneless
0203 29 59	– – – – – Other
0203 29 90	– – – Other
0207	Meat and edible offal, of the poultry of heading 0105, fresh, chilled or frozen:
	– Of turkeys:
0207 24	– – Not cut in pieces, fresh or chilled:
0207 24 10	– – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '80 % turkey'
0207 24 90	– – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '73 % turkey', or otherwise presented
0207 25	– – Not cut in pieces, frozen:
0207 25 10	– – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '80 % turkey'
0207 25 90	– – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '73 % turkey', or otherwise presented
0207 26	– – Cuts and offal, fresh or chilled:
	– – – Cuts:
0207 26 10	– – – – Boneless
	– – – – With bone in:
0207 26 20	– – – – – Halves or quarters
0207 26 30	– – – – – Whole wings, with or without tips
0207 26 40	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
0207 26 50	– – – – – Breasts and cuts thereof
	– – – – – Legs and cuts thereof:
0207 26 60	– – – – – – Drumsticks and cuts of drumsticks
0207 26 70	– – – – – – Other
0207 26 80	– – – – – Other
	– – – Offal:
0207 26 91	– – – – Livers
0207 26 99	– – – – Other
0207 27	– – Cuts and offal, frozen:
	– – – Cuts:
0207 27 10	– – – – Boneless
	– – – – With bone in:
0207 27 20	– – – – – Halves or quarters
0207 27 30	– – – – – Whole wings, with or without tips
0207 27 40	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
0207 27 50	– – – – – Breasts and cuts thereof
	– – – – – Legs and cuts thereof:

CN code	Description
0207 27 60	– – – – – – Drumsticks and cuts of drumsticks
0207 27 70	– – – – – – Other
0207 27 80	– – – – – Other
	– – – Offal:
0207 27 91	– – – – Livers
0207 27 99	– – – – Other
	– Of ducks, geese or guinea fowls:
0207 32	– – Not cut in pieces, fresh or chilled:
	– – – Of ducks:
0207 32 11	– – – – Plucked, bled, gutted but not drawn, with heads and feet known as '85 % ducks'
0207 32 15	– – – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % ducks'
0207 32 19	– – – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '63 % ducks', or otherwise presented
	– – – Of geese:
0207 32 51	– – – – Plucked, bled, not drawn, with heads and feet known as '82 % geese'
0207 32 59	– – – – Plucked and drawn, without heads and feet, with or without hearts and gizzards, known as '75 % geese', or otherwise presented
0207 32 90	– – – Of guinea fowls
0207 33	– – Not cut in pieces, frozen:
	– – – Of ducks:
0207 33 11	– – – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % ducks'
0207 33 19	– – – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '63 % ducks', or otherwise presented
	– – – Of geese:
0207 33 51	– – – – Plucked, bled, not drawn, with heads and feet known as '82 % geese'
0207 33 59	– – – – Plucked and drawn, without heads and feet, with or without hearts and gizzards, known as '75 % geese', or otherwise presented
0207 33 90	– – – Of guinea fowls
0207 34	– – Fatty livers, fresh or chilled:
0207 34 10	– – – Of geese
0207 34 90	– – – Of ducks
0207 35	– – Other fresh or chilled:
	– – – Cuts:
	– – – – Boneless:
0207 35 11	– – – – – Of geese
0207 35 15	– – – – – Of ducks or guinea fowls
	– – – – With bone in:
	– – – – – Halves or quarters:
0207 35 21	– – – – – – Of ducks
0207 35 23	– – – – – – Of geese
0207 35 25	– – – – – – Of guinea fowls
0207 35 31	– – – – – Whole wings, with or without tips
0207 35 41	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
	– – – – – Breasts and cuts thereof:
0207 35 51	– – – – – – Of geese

CN code	Description
0207 35 53	– – – – – – Of ducks or guinea fowls
	– – – – – Legs and cuts thereof:
0207 35 61	– – – – – – Of geese
0207 35 63	– – – – – – Of ducks or guinea fowls
0207 35 71	– – – – – Goose or duck paletots
0207 35 79	– – – – – Other
	– – – Offal:
0207 35 91	– – – – Livers, other than fatty livers
0207 35 99	– – – – Other
0207 36	– – Other, frozen:
	– – – Cuts:
	– – – – Boneless:
0207 36 11	– – – – – Of geese
0207 36 15	– – – – – Of ducks or guinea fowls
	– – – – With bone in:
	– – – – – Halves or quarters:
0207 36 21	– – – – – – Of ducks
0207 36 23	– – – – – – Of geese
0207 36 25	– – – – – – Of guinea fowls
0207 36 31	– – – – – Whole wings, with or without tips
0207 36 41	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
	– – – – – Breasts and cuts thereof:
0207 36 51	– – – – – – Of geese
0207 36 53	– – – – – – Of ducks or guinea fowls
	– – – – – Legs and cuts thereof:
0207 36 61	– – – – – – Of geese
0207 36 63	– – – – – – Of ducks or guinea fowls
0207 36 71	– – – – – Goose or duck paletots
0207 36 79	– – – – – Other
	– – – Offal:
	– – – – Livers:
0207 36 81	– – – – – Fatty livers of geese
0207 36 85	– – – – – Fatty livers of ducks
0207 36 89	– – – – – Other
0207 36 90	– – – – Other
0209 00	Pig fat, free of lean meet, and poultry fat, not rendered or otherwise extracted, fresh, chilled, frozen, salted, in brine, dried or smoked:
	– Subcutaneous pig fat:
0209 00 11	– – Fresh, chilled, frozen, salted or in brine
0209 00 19	– – Dried or smoked
0209 00 30	– Pig fat, other than that of subheading 0209 00 11 or 0209 00 19
0209 00 90	– Poultry fat

CN code	Description
0404	Whey, whether or not concentrated or containing added sugar or other sweetening matter; products consisting of natural milk constituents, whether or not containing added sugar or other sweetening matter, not elsewhere specified or included:
0404 10	– Whey and modified whey, whether or not concentrated or containing added sugar or other sweetening matter:
	– – In powder, granules or other solid forms:
	– – – Not containing added sugar or other sweetening matter, of a protein content (nitrogen content × 6,38), by weight:
	– – – – Not exceeding 15 %, and of a fat content, by weight:
0404 10 02	– – – – – Not exceeding 1,5 %
0404 10 04	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 06	– – – – – Exceeding 27 %
	– – – – Exceeding 15 %, and of a fat content, by weight:
0404 10 12	– – – – – Not exceeding 1,5 %
0404 10 14	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 16	– – – – – Exceeding 27 %
	– – – Other, of a protein content (nitrogen content 6,38), by weight:
	– – – – Not exceeding 15 %, and of a fat content, by weight:
0404 10 26	– – – – – Not exceeding 1,5 %
0404 10 28	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 32	– – – – – Exceeding 27 %
	– – – – Exceeding 15 %, and of a fat content, by weight:
0404 10 34	– – – – – Not exceeding 1,5 %
0404 10 36	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 38	– – – – – Exceeding 27 %
	– – Other:
	– – – Not containing added sugar or other sweetening matter, of a protein content (nitrogen content × 6,38), by weight:
	– – – – Not exceeding 15 %, and of a fat content, by weight:
0404 10 48	– – – – – Not exceeding 1,5 %
0404 10 52	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 54	– – – – – Exceeding 27 %
	– – – – Exceeding 15 %, and of a fat content, by weight:
0404 10 56	– – – – – Not exceeding 1,5 %
0404 10 58	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 62	– – – – – Exceeding 27 %
	– – – Other, of a protein content (nitrogen content × 6,38), by weight:
	– – – – Not exceeding 15 %, and of a fat content, by weight:
0404 10 72	– – – – – Not exceeding 1,5 %
0404 10 74	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 76	– – – – – Exceeding 27 %
	– – – – Exceeding 15 %, and of a fat content, by weight:
0404 10 78	– – – – – Not exceeding 1,5 %
0404 10 82	– – – – – Exceeding 1,5 % but not exceeding 27 %
0404 10 84	– – – – – Exceeding 27 %

CN code	Description
0404 90	– Other:
	– – Not containing added sugar or other sweetening matter, of a fat content, by weight:
0404 90 21	– – – Not exceeding 1,5 %
0404 90 23	– – – Exceeding 1,5 % but not exceeding 27 %
0404 90 29	– – – Exceeding 27 %
	– – Other, of a fat content, by weight:
0404 90 81	– – – Not exceeding 1,5 %
0404 90 83	– – – Exceeding 1,5 % but not exceeding 27 %
0404 90 89	– – – Exceeding 27 %
0407 00	Birds' eggs, in shell, fresh, preserved or cooked:
	– Of poultry:
0407 00 30	– – Other
0407 00 90	– Other
0408	Birds' eggs, not in shell, and egg yolks, fresh, dried, cooked by steaming or by boiling in water, moulded, frozen or otherwise preserved, whether or not containing added sugar or other sweetening matter:
	– Egg yolks:
0408 11	– – Dried:
0408 11 80	– – – Other
0408 19	– – Other:
	– – – Other:
0408 19 81	– – – – Liquid
0408 19 89	– – – – Other, including frozen
	– Other:
0408 91	– – Dried:
0408 91 80	– – – Other
0408 99	– – Other:
0408 99 80	– – – Other
0602	Other live plants (including their roots), cuttings and slips; mushroom spawn:
0602 10	– Unrooted cuttings and slips:
0602 10 90	– – Other
0602 20	– Trees, shrubs and bushes, grafted or not, of kinds which bear edible fruit or nuts:
0602 20 10	– – Vine slips, grafted or rooted
0602 30 00	– Rhododendrons and azaleas, grafted or not
0602 40	– Roses, grafted or not:
0602 40 10	– – Neither budded nor grafted
0602 40 90	– – Budded or grafted
0602 90	– Other:
0602 90 30	– – Vegetable and strawberry plants
	– – Other:
	– – – Outdoor plants:
	– – – – Trees, shrubs and bushes:
0602 90 41	– – – – – Forest trees
	– – – – – Other:
0602 90 45	– – – – – – Rooted cuttings and young plants

CN code	Description
0602 90 49	– – – – – – Other
	– – – – Other outdoor plants:
0602 90 51	– – – – – Perennial plants
0602 90 59	– – – – – Other
	– – – Indoor plants:
0602 90 70	– – – – Rooted cuttings and young plants, excluding cacti
	– – – – Other:
0602 90 91	– – – – – Flowering plants with buds or flowers, excluding cacti
0602 90 99	– – – – – Other
0603	Cut flowers and flower buds of a kind suitable for bouquets or for ornamental purposes, fresh, dried, dyed, bleached, impregnated or otherwise prepared:
	– Fresh:
0603 11 00	– – Roses
0603 12 00	– – Carnations
0603 13 00	– – Orchids
0603 14 00	– – Chrysanthemums
0603 19	– – Other:
0603 19 10	– – – Gladioli
0603 19 90	– – – Other
0603 90 00	– Other
0703	Onions, shallots, garlic, leeks and other alliaceous vegetables, fresh or chilled:
0703 10	– Onions and shallots:
	– – Onions:
0703 10 11	– – – Sets
0703 10 19	– – – Other
0703 10 90	– – Shallots
0703 20 00	– Garlic
0703 90 00	– Leeks and other alliaceous vegetables
0704	Cabbages, cauliflowers, kohlrabi, kale and similar edible brassicas, fresh and chilled:
0704 90	– Other:
0704 90 90	– – Other
0705	Lettuce (*Lactuca sativa*) and chicory (*Cichorium* spp.), fresh or chilled:
	– Lettuce:
0705 11 00	– – Cabbage lettuce (head lettuce)
0705 19 00	– – Other
	– Chicory:
0705 21 00	– – Witloof chicory (*Cichorium intybus* var. *foliosum*)
0705 29 00	– – Other
0706	Carrots, turnips, salad beetroot, salsify, celeriac, radishes and similar edible roots, fresh or chilled:
0706 10 00	– Carrots and turnips
0706 90	– Other:
0706 90 10	– – Celeriac (rooted celery or German celery)

CN code	Description
0706 90 30	– – Horseradish (*Cochlearia armoracia*)
0706 90 90	– – Other
0708	Leguminous vegetables, shelled or unshelled, fresh or chilled:
0708 10 00	– Peas (*Pisum sativum*)
0708 20 00	– Beans (*Vigna* spp., *Phaseolus* spp.)
0708 90 00	– Other leguminous vegetables
0709	Other vegetables, fresh or chilled:
0709 20 00	– Asparagus
0709 30 00	– Aubergines (eggplants)
0709 40 00	– Celery other than celeriac
	– Mushrooms and truffles:
0709 51 00	– – Mushrooms of the genus *Agaricus*
0709 59	– – Other:
0709 59 10	– – – Chantarelles
0709 59 30	– – – Flap mushrooms
0709 59 50	– – – Truffles
0709 59 90	– – – Other
0709 90	– Other:
0709 90 10	– – Salad vegetables, other than lettuce (*Lactuca sativa*) and chicory (*Cichorium* spp.)
0709 90 20	– – Chard (or white beet) and cardoons
	– – Olives:
0709 90 31	– – – For uses other than the production of oil
0709 90 39	– – – Other
0709 90 40	– – Capers
0709 90 50	– – Fennel
0709 90 60	– – Sweetcorn
0709 90 70	– – Courgettes
0709 90 80	– – Globe artichokes
0709 90 90	– – Other
0710	Vegetables (uncooked or cooked by steaming or boiling in water), frozen:
0710 10 00	– Potatoes
	– Leguminous vegetables, shelled or unshelled:
0710 21 00	– – Peas (*Pisum sativum*)
0710 22 00	– – Beans (*Vigna* spp., *Phaseolus* spp.)
0710 29 00	– – Other
0710 30 00	– Spinach, New Zealand spinach and orache spinach (garden spinach)
0710 80	– Other vegetables:
0710 80 10	– – Olives
	– – Fruits of the genus *Capsicum* or of the genus *Pimenta*:
0710 80 51	– – – Sweet peppers
0710 80 59	– – – Other
	– – Mushrooms:
0710 80 61	– – – Of the genus *Agaricus*
0710 80 69	– – – Other

CN code	Description
0710 80 70	– – Tomatoes
0710 80 80	– – Globe Artichokes
0710 80 85	– – Asparagus
0710 80 95	– – Other
0710 90 00	– Mixtures of vegetables
0711	Vegetables provisionally preserved (for example, by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions), but unsuitable in that state for immediate consumption:
0711 20	– Olives:
0711 20 10	– – For uses other than the production of oil
0711 20 90	– – Other
0711 40 00	– Cucumbers and gherkins
	– Mushrooms and truffles:
0711 51 00	– – Mushrooms of the genus *Agaricus*
0711 59 00	– – Other
0711 90	– Other vegetables; mixtures of vegetables:
	– – Vegetables:
0711 90 10	– – – Fruits of the genus *Capsicum* or of the genus *Pimenta*, excluding sweet peppers
0711 90 50	– – – Onions
0711 90 80	– – – Other
0711 90 90	– – Mixtures of vegetables
0712	Dried vegetables, whole, cut, sliced, broken or in powder, but not further prepared:
0712 20 00	– Onions
	– Mushrooms, wood ears (*Auricularia* spp.), jelly fungi (*Tremella* spp.) and truffles:
0712 31 00	– – Mushrooms of the genus *Agaricus*
0712 32 00	– – Wood ears (*Auricularia* spp.)
0712 33 00	– – Jelly fungi (*Tremella* spp.)
0712 39 00	– – Other
0712 90	– Other vegetables; mixtures of vegetables:
0712 90 05	– – Potatoes whether or not cut or sliced but not further prepared
	– – Sweetcorn (*Zea mays* var. *saccharata*):
0712 90 19	– – – Other
0712 90 30	– – Tomatoes
0712 90 50	– – Carrots
0712 90 90	– – Other
0713	Dried leguminous vegetables, shelled, whether or not skinned or split:
0713 10	– Peas (*Pisum sativum*):
0713 10 90	– – Other
0713 20 00	– Chickpeas (garbanzos)
	– Beans (*Vigna* spp., *Phaseolus* spp.):
0713 31 00	– – Beans of the species *Vigna mungo* (L.) *Hepper* or *Vigna radiata* (L.) *Wilczek*
0713 32 00	– – Small red (Adzuki) beans (*Phaseolus* or *Vigna angularis*)

CN code	Description
0803 00	Bananas, including plantains, fresh or dried:
	– Fresh:
0803 00 11	– – Plantains
0803 00 19	– – Other
0803 00 90	– Dried
0804	Dates, figs, pineapples, avocados, guavas, mangoes and mangosteens, fresh or dried:
0804 20	– Figs:
0804 20 10	– – Fresh
0804 20 90	– – Dried
0805	Citrus fruit, fresh or dried:
0805 10	– Oranges:
0805 10 20	– – Sweet oranges, fresh:
0805 10 80	– – Other
0805 40 00	– Grapefruit, including pomelos
0805 50	– Lemons (*Citrus limon*, *Citrus limonum*) and limes (*Citrus aurantifolia*, *Cirrus latifolia*):
0805 50 10	– – Lemons (*Citrus limon*, *Citrus limonum*)
0805 50 90	– – Limes (*Citrus aurantifolia*, *Cirrus latifolia*)
0805 90 00	– Other
0807	Melons (including watermelons) and papaws (papayas), fresh:
	– Melons (including watermelons):
0807 19 00	– – Other
0807 20 00	– Papaws (papayas)
0810	Other fruits, fresh:
0810 40	– Cranberries, bilberries and other fruits of the genus *Vaccinium*:
0810 40 10	– – Cowberries, foxberries or mountain cranberries (fruit of the species *Vaccinium vitis-idaea*)
0810 40 30	– – Fruit of the species *Vaccinium myrtillus*
0810 40 50	– – Fruit of the species *Vaccinium macrocarpon* and *Vaccinium corymbosum*
0810 40 90	– – Other
0811	Fruit and nuts, uncooked or cooked by steaming or boiling in water, frozen, whether or not containing added sugar or other sweetening matter:
0811 10	– Strawberries:
	– – Containing added sugar or other sweetening matter:
0811 10 11	– – – With a sugar content exceeding 13 % by weight
0811 10 19	– – – Other
0811 10 90	– – Other
0811 20	– Raspberries, blackberries, mulberries, loganberries, black-, white- or red-currants and gooseberries:
	– – Containing added sugar or other sweetening matter:
0811 20 11	– – – With a sugar content exceeding 13 % by weight
0811 20 19	– – – Other
	– – Other:
0811 20 31	– – – Raspberries
0811 20 39	– – – Black-currants
0811 20 51	– – – Red-currants

CN code	Description
0811 20 59	– – – Blackberries and mulberries
0811 20 90	– – – Other
0811 90	– Other:
	– – Other:
	– – – Cherries:
0811 90 75	– – – – Sour cherries (*Prunus cerasus*)
0811 90 80	– – – – Other
0811 90 95	– – – Other:
ex 0811 90 95	– – – – Apricots
ex 0811 90 95	– – – – Peaches
ex 0811 90 95	– – – – Other
0812	Fruit and nuts, provisionally preserved (for example, by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions), but unsuitable in that state for immediate consumption:
0812 10 00	– Cherries
0812 90	– Other:
0812 90 10	– – Apricots
0812 90 20	– – Oranges
0812 90 30	– – Papaws (papayas)
0812 90 40	– – Fruit of the species *Vaccinium myrtillus*
0812 90 98	– – Other:
ex 0812 90 98	– – – Blackberries
ex 0812 90 98	– – – Raspberries
ex 0812 90 98	– – – Other
0813	Fruit, dried, other than that of headings 0801 to 0806; mixtures of nuts or dried fruits of this chapter:
0813 10 00	– Apricots
0813 20 00	– Prunes
0813 30 00	– Apples
0813 40	– Other fruit:
0813 40 10	– – Peaches, including nectarines
0813 40 30	– – Pears
0901	Coffee, whether or not roasted or decaffeinated; coffee husks and skins; coffee substitutes containing coffee in any proportion:
	– Coffee, roasted:
0901 21 00	– – Not decaffeinated
0901 22 00	– – Decaffeinated
0901 90	– Other:
0901 90 10	– – Coffee husks and skins
0901 90 90	– – Coffee substitutes containing coffee
1101 00	Wheat or meslin flour:
	– Wheat flour:
1101 00 11	– – Of durum wheat
1101 00 15	– – Of common wheat and spelt
1101 00 90	– Meslin flour

CN code	Description
1501 00	Pig fat (including lard) and poultry fat, other than that of heading 0209 or 1503:
1501 00 90	– Poultry fat
1603 00	Extracts and juices of meat, fish or crustaceans, molluscs or other aquatic invertebrates:
1603 00 10	– In immediate packings of a net content of 1 kg or less
1603 00 80	– Other
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:
1702 90	– Other, including invert sugar and other sugar and sugar syrup blends containing in the dry state 50 % by weight of fructose:
1702 90 60	– – Artificial honey, whether or not mixed with natural honey
2001	Vegetables, fruit, nuts and other edible parts of plants, prepared or preserved by vinegar or acetic acid:
2001 10 00	– Cucumbers and gherkins
2001 90	– Other:
2001 90 10	– – Mango chutney
2001 90 20	– – Fruit of the genus *Capsicum* other than sweet peppers or pimentos
2001 90 50	– – Mushrooms
2001 90 65	– – Olives
2001 90 70	– – Sweet peppers
2001 90 91	– – Tropical fruit and tropical nuts
2001 90 93	– – Onions
2001 90 99	– – Other
2002	Tomatoes prepared or preserved otherwise than by vinegar or acetic acid:
2002 10	– Tomatoes, whole or in pieces:
2002 10 10	– – Peeled
2002 10 90	– – Other
2002 90	– Other:
	– – With a dry matter content of less than 12 % by weight:
2002 90 11	– – – In immediate packings of a net content exceeding 1 kg
2002 90 19	– – – In immediate packings of a net content not exceeding 1 kg
	– – With a dry matter content of not less than 12 % but not more than 30 % by weight:
2002 90 31	– – – In immediate packings of a net content exceeding 1 kg
2002 90 39	– – – In immediate packings of a net content not exceeding 1 kg
	– – With a dry matter content of more than 30 % by weight:
2002 90 91	– – – In immediate packings of a net content exceeding 1 kg
2002 90 99	– – – In immediate packings of a net content not exceeding 1 kg
2003	Mushrooms and truffles, prepared or preserved otherwise than by vinegar or acetic acid:
2003 10	– Mushrooms of the genus *Agaricus*:
2003 10 20	– – Provisonally preserved, completely cooked
2003 10 30	– – Other
2003 20 00	– Truffles
2003 90 00	– Other

CN code	Description
2004	Other vegetables prepared or preserved otherwise than by vinegar or vinegar or acetic acid, frozen, other than products of heading 2006:
2004 10	– Potatoes:
2004 10 10	– – Cooked, not otherwise prepared
	– – Other:
2004 10 99	– – – Other
2004 90	– Other vegetables and mixtures of vegetables:
2004 90 30	– – Sauerkraut, capers and olives
2004 90 50	– – Peas (*Pisum sativum*) and immature beans of the species *Phaseolus* spp., in pod
	– – Other, including mixtures:
2004 90 91	– – – Onions, cooked, not otherwise prepared
2004 90 98	– – – Other
2005	Other vegetables prepared or preserved otherwise than by vinegar or acetic acid, not frozen, other than products of heading 2006:
2005 10 00	– Homogenized vegetables
2005 20	– Potatoes:
	– – Other:
2005 20 20	– – – Thinly sliced, fried or baked, whether or not salted or flavoured, in airtight packings, suitable for immediate consumption
2005 20 80	– – – Other
2005 40 00	– Peas (*Pisum sativum*)
	– Beans (*Vigna* spp., *Phaseolus* spp.):
2005 51 00	– – Beans, shelled
2005 59 00	– – Other
2005 60 00	– Asparagus
2005 70	– Olives:
2005 70 10	– – In immediate packings of a net content not exceeding 5 kg
2005 70 90	– – Other
	– Other vegetables and mixtures of vegetables:
2005 91 00	– – Bamboo shoots
2005 99	– – Other:
2005 99 10	– – – Fruit of the genus *Capsicum* other than sweet peppers or pimentos
2005 99 20	– – – Capers
2005 99 30	– – – Globe artichokes
2005 99 40	– – – Carrots
2005 99 50	– – – Mixtures of vegetables
2005 99 60	– – – Sauerkraut
2005 99 90	– – – Other
2006 00	Vegetables, fruit, nuts, fruit-peel and other parts of plants, preserved by sugar (drained, glacé or crystallized):
2006 00 10	– Ginger
	– Other:
	– – With a sugar content exceeding 13 % by weight:
2006 00 31	– – – Cherries
2006 00 35	– – – Tropical fruit and tropical nuts

CN code	Description
2006 00 38	– – – Other
	– – Other:
2006 00 91	– – – Tropical fruit and tropical nuts
2006 00 99	– – – Other
2007	Jams, fruit jellies, marmalades, fruit or nut purée and fruit or nut pastes, obtained by cooking, whether or not containing added sugar or other sweetening matter:
2007 10	– Homogenised preparations:
2007 10 10	– – With a sugar content exceeding 13 % by weight
	– – Other:
2007 10 91	– – – Of tropical fruit
2007 10 99	– – – Other
	– Other:
2007 91	– – Citrus fruit:
2007 91 10	– – – With a sugar content exceeding 30 % by weight
2007 91 30	– – – With a sugar content exceeding 13 % but not exceeding 30 % by weight
2007 91 90	– – – Other
2007 99	– – Other:
	– – – With a sugar content exceeding 30 % by weight:
2007 99 10	– – – – Plum purée and paste and prune purée and paste, in immediate packings of a net content exceeding 100 kg, for industrial processing
2007 99 20	– – – – Chestnut purée and paste
	– – – – Other:
2007 99 31	– – – – – Of cherries
2007 99 33	– – – – – Of strawberries
2007 99 35	– – – – – Of raspberries
2007 99 39	– – – – – Other
	– – – With a sugar content exceeding 13 % but not exceeding 30 % by weight:
2007 99 55	– – – – Apple purée, including compotes
2007 99 57	– – – – Other
	– – – Other:
2007 99 91	– – – – Apple purée, including compotes
2007 99 93	– – – – Of tropical fruit and tropical nuts
2008	Fruit, nuts and other edible parts of plants, otherwise prepared or preserved, whether or not containing added sugar or other sweetening matter or spirit, not elsewhere specified or included:
	– Nuts, groundnuts and other seeds, whether or not mixed together:
2008 11	– – Groundnuts:
	– – – Other, in immediate packings of a net content:
	– – – – Exceeding 1 kg:
2008 11 92	– – – – – Roasted
2008 11 94	– – – – – Other
	– – – – – Not exceeding 1 kg:
2008 11 96	– – – – – Roasted
2008 11 98	– – – – – Other

CN code	Description
2008 19	– – Other, including mixtures:
	– – – In immediate packings of a net content exceeding 1 kg:
2008 19 11	– – – – Tropical nuts; mixtures containing 50 % or more by weight of tropical nuts and tropical fruit
	– – – – Other:
2008 19 13	– – – – – Roasted almonds and pistachios
	– – – In immediate packings of a net content not exceeding 1 kg:
2008 19 91	– – – – Tropical nuts; mixtures containing by weight 50 % or more of tropical nuts and tropical fruit
	– – – – Other:
	– – – – – Roasted nuts:
2008 19 93	– – – – – – Almonds and pistachios
2008 19 95	– – – – – – Other
2008 19 99	– – – – – Other
2008 20	– Pineapples:
	– – Containing added spirit:
	– – – In immediate packings of a net content exceeding 1 kg:
2008 20 11	– – – – With a sugar content exceeding 17 % by weight
2008 20 19	– – – – Other
	– – – In immediate packings of a net content not exceeding 1 kg:
2008 20 31	– – – – With a sugar content exceeding 19 % by weight
2008 20 39	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 20 51	– – – – With a sugar content exceeding 17 % by weight
2008 20 59	– – – – Other
	– – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg:
2008 20 71	– – – – With a sugar content exceeding 19 % by weight
2008 20 79	– – – – Other
2008 20 90	– – – Not containing added sugar
2008 30	– Citrus fruit:
	– – Containing added spirit:
	– – – With a sugar content exceeding 9 % by weight:
2008 30 11	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 30 19	– – – – Other
	– – – Other:
2008 30 31	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 30 39	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 30 51	– – – – Grapefruit segments
2008 30 55	– – – – Mandarins (including tangerines and satsumas); clementines, wilkings and other similar citrus hybrids

CN code	Description
2008 30 59	– – – – Other
	– – – Containing added sugar, in immediate packings of a net content not exceeding 1kg:
2008 30 71	– – – – Grapefruit segments
2008 30 75	– – – – Mandarins(including tangerines and satsumas); clementines, wilkings and other similar citrus hybrids
2008 30 79	– – – – Other
2008 30 90	– – – Not containing added sugar
2008 40	– Pears:
	– – Containing added spirit:
	– – – In immediate packings of a net content exceeding 1 kg:
	– – – – With a sugar content exceeding 13 % by weight:
2008 40 11	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 40 19	– – – – – Other
	– – – – Other:
2008 40 21	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 40 29	– – – – – Other
	– – – In immediate packings of a net content not exceeding 1 kg:
2008 40 31	– – – – With a sugar content exceeding 15 % by weight
2008 40 39	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 40 51	– – – – With a sugar content exceeding 13 % by weight
2008 40 59	– – – – Other
	– – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg:
2008 40 71	– – – – With a sugar content exceeding 15 % by weight
2008 40 79	– – – – Other
	– – – Not containing added sugar
2008 50	– Apricots:
	– – Containing added spirit:
	– – – In immediate packings of a net content exceeding 1 kg:
	– – – – With a sugar content exceeding 13 % by weight:
2008 50 11	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 50 19	– – – – – Other
	– – – – Other:
2008 50 31	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 50 39	– – – – – Other
	– – – In immediate packings of a net content not exceeding 1 kg:
2008 50 51	– – – – With a sugar content exceeding 15 % by weight
2008 50 59	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 50 61	– – – – With a sugar content exceeding 13 % by weight

CN code	Description
2008 50 69	– – – – Other
	– – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg:
2008 50 71	– – – – With a sugar content exceeding 15 % by weight
2008 50 79	– – – – Other
	– – – Not containing added sugar, in immediate packings of a net content:
2008 50 92	– – – – Of 5 kg or more
2008 50 94	– – – – Of 4,5 kg or more but less than 5 kg
2008 50 99	– – – – Of less than 4,5 kg
2008 60	– Cherries:
	– – Containing added spirit:
	– – – With a sugar content exceeding 9 % by weight:
2008 60 11	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 60 19	– – – – Other
	– – – Other:
2008 60 31	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 60 39	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content:
2008 60 50	– – – – Exceeding 1 kg
2008 60 60	– – – – Not exceeding 1 kg
	– – – Not containing added sugar, in immediate packings of a net content:
2008 60 70	– – – – Of 4,5 kg or more
2008 60 90	– – – – Of less than 4,5 kg
2008 70	– Peaches, including nectarines:
	– – Containing added spirit:
	– – – In immediate packings of a net content exceeding 1 kg:
	– – – – With a sugar content exceeding 13 % by weight:
2008 70 11	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 70 19	– – – – – Other
	– – – – Other:
2008 70 31	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 70 39	– – – – – Other
	– – – In immediate packings of a net content not exceeding 1 kg:
2008 70 51	– – – – With a sugar content exceeding 15 % by weight
2008 70 59	– – – – Other
	– – Not containing added spirit:
	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 70 61	– – – – With a sugar content exceeding 13 % by weight
2008 70 69	– – – – Other
	– – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg:

CN code	Description
2008 70 71	– – – – With a sugar content exceeding 15 % by weight
2008 70 79	– – – – Other
	– – – Not containing added sugar, in immediate packings of a net content:
2008 70 92	– – – – Of 5 kg or more
2008 70 98	– – – – Of less than 5 kg
2008 80	– Strawberries:
	– – Containing added spirit:
	– – – With a sugar content exceeding 9 % by weight:
2008 80 11	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 80 19	– – – – Other
	– – – Other:
2008 80 31	– – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 80 39	– – – – Other
	– – Not containing added spirit:
2008 80 50	– – – Containing added sugar, in immediate packings of a net content exceeding 1 kg
2008 80 70	– – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg
2008 80 90	– – – Not containing added sugar
	– Other, including mixtures other than those of subheading 2008 19:
2008 92	– – Mixtures:
	– – – Containing added spirit:
	– – – – With a sugar content exceeding 9 % by weight:
	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass:
2008 92 12	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 14	– – – – – – Other
	– – – – – Other:
2008 92 16	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 18	– – – – – – Other
	– – – – Other:
	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass:
2008 92 32	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 34	– – – – – – Other
	– – – – – Other:
2008 92 36	– – – – – – Of tropical fruit(including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 38	– – – – – – Other
	– – – Not containing added spirit:
	– – – – Containing added sugar:
	– – – – – In immediate packings of a net content exceeding 1 kg:
2008 92 51	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)

CN code	Description
2008 92 59	– – – – – – Other
	– – – – – Other:
	– – – – – – Mixtures of fruit in which no single fruit exceeds 50 % of the total weight of the fruits:
2008 92 72	– – – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 74	– – – – – – – Other
	– – – – – – Other:
2008 92 76	– – – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 78	– – – – – – – Other
	– – – – Not containing added sugar, in immediate packings of a net content:
	– – – – – Of 5 kg or more:
2008 92 92	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 93	– – – – – – Other
	– – – – – Of 4,5 kg or more but less than 5 kg:
2008 92 94	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 96	– – – – – – Other
	– – – – – Of less than 4,5 kg:
2008 92 97	– – – – – – Of tropical fruit (including mixtures containing 50 % or more by weight of tropical nuts and tropical fruit)
2008 92 98	– – – – – – Other
2008 99	– – Other:
	– – – Containing added spirit:
	– – – – Ginger:
2008 99 11	– – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass
2008 99 19	– – – – – Other
	– – – – Grapes:
2008 99 21	– – – – – With a sugar content exceeding 13 % by weight
2008 99 23	– – – – – Other
	– – – – Other:
	– – – – – With a sugar content exceeding 9 % by weight:
	– – – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass:
2008 99 24	– – – – – – Tropical fruit
2008 99 28	– – – – – – – Other
	– – – – – – Other:
2008 99 31	– – – – – – – Tropical fruit
2008 99 34	– – – – – – – Other
	– – – – – Other:
	– – – – – – Of an actual alcoholic strength by mass not exceeding 11,85 % mass:
2008 99 36	– – – – – – – Tropical fruit
2008 99 37	– – – – – – – Other
	– – – – – – Other:
2008 99 38	– – – – – – – Tropical fruit

CN code	Description
2008 99 40	– – – – – – – Other
	– – – Not containing added spirit:
	– – – – Containing added sugar, in immediate packings of a net content exceeding 1 kg:
2008 99 41	– – – – – Ginger
2008 99 43	– – – – – Grapes
2008 99 45	– – – – – Plums and prunes
2008 99 46	– – – – – Passion fruit, guavas and tamarinds
2008 99 47	– – – – – Mangoes, mangosteens, papaws (papayas), cashew apples, lychees, jackfruit, sapodillo plums, carambola and pitahaya
2008 99 49	– – – – – Other
	– – – – Containing added sugar, in immediate packings of a net content not exceeding 1 kg:
2008 99 51	– – – – – Ginger
2008 99 61	– – – – – Passion fruit and guavas
2008 99 62	– – – – – Mangoes, mangosteens, papaws (papayas), tamarinds, cashew apples, lychees, jackfruit, sapodillo plums, carambola and pitahaya
2008 99 67	– – – – – Other
	– – – – Not containing added sugar:
	– – – – – Plums and prunes, in immediate packings of a net content:
2008 99 72	– – – – – – Of 5 kg or more
2008 99 78	– – – – – – Of less than 5 kg
2008 99 99	– – – – – Other
2009	Fruit juices (including grape must) and vegetable juices, unfermented and not containing added spirit, whether or not containing added sugar or other sweetening matter:
	– Orange juice:
2009 12 00	– – Not frozen, of a Brix value not exceeding 20
	– Grapefruit (including pomelo) juice:
2009 21 00	– – Of a Brix value not exceeding 20
	– Juice of any other single citrus fruit:
2009 31	– – Of a Brix value not exceeding 20:
	– – – Of a value exceeding € 30 per 100 kg net weight:
2009 31 11	– – – – Containing added sugar
2009 31 19	– – – – Not containing added sugar
	– – – – Of a value not exceeding € 30 per 100 kg net weight:
	– – – – Lemon juice:
2009 31 51	– – – – – Containing added sugar
2009 31 59	– – – – – Not containing added sugar
	– – – – Other citrus fruit juices:
2009 31 91	– – – – – Containing added sugar
2009 31 99	– – – – – Not containing added sugar
	– Pineapple juice:
2009 41	– – Of a Brix value not exceeding 20:
2009 41 10	– – – Of a value exceeding € 30 per 100 kg net weight, containing added sugar
	– – – Other:
2009 41 91	– – – – Containing added sugar

CN code	Description
2009 41 99	– – – – Not containing added sugar
2009 50	– Tomato juice:
2009 50 10	– – Containing added sugar
2009 50 90	– – Other
	– Grape juice (including grape must):
2009 61	– – Of a Brix value not exceeding 30:
2009 61 10	– – – Of a value exceeding € 18 per 100 kg net weight
2009 61 90	– – – Of a value not exceeding € 18 per 100 kg net weight
	– Apple juice:
2009 71	– – Of a Brix value not exceeding 20:
2009 71 10	– – – Of a value exceeding € 18 per 100 kg net weight, containing added sugar
	– – – Other:
2009 71 91	– – – – Containing added sugar
2009 71 99	– – – – Not containing added sugar
2009 80	– Juice of any other single fruit or vegetable
	– – Of a Brix value not exceeding 67:
	– – – Pear juice:
2009 80 50	– – – – Of a value exceeding € 18 per 100 kg net weight, containing added sugar
	– – – – Other:
2009 80 61	– – – – – With an added sugar content exceeding 30 % by weight
2009 80 63	– – – – – With an added sugar content not exceeding 30 % by weight
2009 80 69	– – – – – Not containing added sugar
	– – – Other:
	– – – – Of a value exceeding € 30 per 100 kg net weight, containing added sugar:
2009 80 71	– – – – – Cherry juice
2009 80 73	– – – – – Juices of tropical fruit
2009 80 79	– – – – – Other
	– – – – Other:
	– – – – – With an added sugar content exceeding 30 % by weight:
2009 80 85	– – – – – – Juices of tropical fruit
2009 80 86	– – – – – – Other
	– – – – – With an added sugar content not exceeding 30 % by weight:
2009 80 88	– – – – – – Juices of tropical fruit
2009 80 89	– – – – – – Other
	– – – – – Not containing added sugar:
2009 80 95	– – – – – – Juice of fruit of the species *Vaccinium macrocarpon*
2009 80 96	– – – – – – Cherry juice
2009 80 97	– – – – – – Juices of tropical fruit
2009 80 99	– – – – – – Other
2009 90	– Mixtures of juices:
	– – Of a Brix value not exceeding 67:
	– – – Mixtures of apple and pear juice:
2009 90 31	– – – – Of a value not exceeding € 18 per 100 kg net weight and with an added sugar content exceeding 30 % by weight

CN code	Description
2009 90 39	– – – – Other
	– – – Other:
	– – – – Of a value exceeding € 30 per 100 kg net weight:
	– – – – – Mixtures of citrus fruit juices and pineapple juice:
2009 90 41	– – – – – – Containing added sugar
2009 90 49	– – – – – – Other
	– – – – – Other:
2009 90 51	– – – – – – Containing added sugar
2009 90 59	– – – – – – Other
	– – – – Of a value not exceeding € 30 per 100 kg net weight:
	– – – – – Mixtures of citrus fruit juices and pineapple juice:
2009 90 71	– – – – – – With an added sugar content exceeding 30 % by weight
2009 90 73	– – – – – – With an added sugar content not exceeding 30 % by weight
2009 90 79	– – – – – – Not containing added sugar
	– – – – – Other:
	– – – – – – With an added sugar content exceeding 30 % by weight:
2009 90 92	– – – – – – – Mixtures of juices of tropical fruit
2009 90 94	– – – – – – – Other
	– – – – – – With an added sugar content not exceeding 30 % by weight:
2009 90 95	– – – – – – – Mixtures of juices of tropical fruit
2009 90 96	– – – – – – – Other
	– – – – – – Not containing added sugar:
2009 90 97	– – – – – – – Mixtures of juices of tropical fruit
2009 90 98	– – – – – – – Other
2206 00	Other fermented beverages (for example, cider, perry, mead); mixtures of fermented beverages and mixtures of fermented beverages and non-alcoholic beverages, not elsewhere specified or included:
2206 00 10	– Piquette
	– Other:
	– – Sparkling:
2206 00 31	– – – Cider and perry
2206 00 39	– – – Other
	– – Still, in containers holding:
	– – – 2 litres or less:
2206 00 51	– – – – Cider and perry
2206 00 59	– – – – Other
	– – – More than 2 litres:
2206 00 81	– – – – Cider and perry
2206 00 89	– – – – Other
2209 00	Vinegar and substitutes for vinegar obtained from acetic acid:
	– Wine vinegar, in containers holding:
2209 00 11	– – 2 litres or less
2209 00 19	– – More than 2 litres
	– Other, in containers holding:
2209 00 91	– – 2 litres or less

CN code	Description
2209 00 99	– – More than 2 litres
2309	Preparations of a kind used in animal feeding:
2309 10	– Dog or cat food, put up for retail sale:
	– – Containing starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup of subheadings 1702 30 51 to 1702 30 99, 1702 40 90, 1702 90 50 and 2106 90 55 or milk products:
	– – – Containing starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup:
	– – – – Containing no starch or containing 10 % or less by weight of starch:
2309 10 11	– – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 10 13	– – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 10 15	– – – – – Containing not less than 50 % but less than 75 % by weight of milk products
2309 10 19	– – – – – Containing not less than 75 % by weight of milk products
	– – – – Containing more than 10 % but not more than 30 % by weight of starch:
2309 10 31	– – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 10 33	– – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 10 39	– – – – – Containing not less than 50 % by weight of milk products
	– – – – Containing more than 30 % by weight of starch:
2309 10 51	– – – – – Containing no milk products or containing less than 10 % by weight of such products
2309 10 53	– – – – – Containing not less than 10 % but less than 50 % by weight of milk products
2309 10 59	– – – – – Containing not less than 50 % by weight of milk products
2309 10 70	– – – Containing no starch, glucose, glucose syrup, maltodextrine or maltodextrine syrup but containing milk products
2309 10 90	– – Other
2401	Unmanufactured tobacco; tobacco refuse:
2401 10	– Tobacco, not stemmed/stripped:
	– – Flue-cured Virginia type and light air-cured Burley type tobacco (including Burley hybrids); light air-cured Maryland type and fire-cured tobacco:
2401 10 10	– – – Flue-cured Virginia type
2401 10 20	– – – Light air-cured Burley type (including Burley hybrids)
2401 10 30	– – – Light air-cured Maryland type
	– – – Fire-cured tobacco:
2401 10 41	– – – – Kentucky type
2401 10 49	– – – – Other
	– – Other:
2401 10 50	– – – Light air-cured tobacco
2401 10 60	– – – Sun-cured Oriental type tobacco
2401 10 70	– – – Dark air-cured tobacco
2401 10 80	– – – Flue-cured tobacco
2401 10 90	– – – Other tobacco
2401 20	– Tobacco, partly or wholly stemmed/stripped:
	– – Flue-cured Virginia type and light air-cured Burley type tobacco (including Burley hybrids); light air-cured Maryland type and fire-cured tobacco:
2401 20 10	– – – Flue-cured Virginia type
2401 20 20	– – – Light air-cured Burley type (including Burley hybrids)

CN code	Description
2401 20 30	– – – Light air-cured Maryland type
	– – – Fire-cured tobacco:
2401 20 41	– – – – Kentucky type
2401 20 49	– – – – Other
	– – Other:
2401 20 50	– – – Light air-cured tobacco
2401 20 60	– – – Sun-cured Oriental type tobacco
2401 20 70	– – – Dark air-cured tobacco
2401 20 80	– – – Flue-cured tobacco
2401 20 90	– – – Other tobacco
2401 30 00	– Tobacco refuse

ANNEX III(c)

MONTENEGRIN TARIFF CONCESSIONS FOR AGRICULTURAL PRIMARY PRODUCTS ORIGINATING IN THE COMMUNITY

(referred to in Article 27(2)(c))

Customs duties for the products listed in this Annex will be reduced to 50 % in accordance with the timetable indicated for each product in this Annex:

— on the date of entry into force of this Agreement, the import duty will be reduced to 90 % of the customs duties

— on 1 January of the first year following the date of entry into force of this Agreement, the import duty will be reduced to 80 % of the customs duties

— on 1 January of the second year following the date of entry into force of this Agreement, the import duty will be reduced to 70 % of the customs duties

— on 1 January of the third year following the date of entry into force of this Agreement, the import duty will be reduced to 60 % of the customs duties

— on 1 January of the fourth year following the date of entry into force of this Agreement, the import duty will be reduced to 50 % of the customs duties

CN code	Description
0104	Live sheep and goats:
0104 10	– Sheep:
	– – Other:
0104 10 30	– – – Lambs (up to a year old)
0104 10 80	– – – Other
0104 20	– Goats:
0104 20 90	– – Other
0201	Meat of bovine animals, fresh or chilled:
0201 10 00	– Carcases and half-carcases:
ex 0201 10 00	– – Of veal
ex 0201 10 00	– – Of young beef
ex 0201 10 00	– – Of other
0201 20	– Other cuts with bone in:
0201 20 20	– – 'Compensated' quarters:
ex 0201 20 20	– – – Of veal
ex 0201 20 20	– – – Of young beef
ex 0201 20 20	– – – Of other
0201 20 30	– – Unseparated or separated forequarters:
ex 0201 20 30	– – – Of veal
ex 0201 20 30	– – – Of young beef
ex 0201 20 30	– – – Of other
0201 20 50	– – Unseparated or separated hindquarters:
ex 0201 20 50	– – – Of veal
ex 0201 20 50	– – – Of young beef
ex 0201 20 50	– – – Of other
0201 20 90	– – Other:
ex 0201 20 90	– – – Of veal
ex 0201 20 90	– – – Of young beef

CN code	Description
ex 0201 20 90	– – – Of other
0201 30 00	– Boneless:
ex 0201 30 00	– – – Of veal
ex 0201 30 00	– – – Of young beef
ex 0201 30 00	– – – Of other
0202	Meat of bovine animals, frozen:
0202 10 00	– Carcases and half-carcases:
ex 0202 10 00	– – Of veal
ex 0202 10 00	– – Of young beef
ex 0202 10 00	– – Of other
0202 20	– Other cuts with bone in:
0202 20 10	– – 'Compensated' quarters:
ex 0202 20 10	– – – Of veal
ex 0202 20 10	– – – Of young beef
ex 0202 20 10	– – – Of other
0202 20 30	– – Unseparated or separated forequarters:
ex 0202 20 30	– – – Of veal
ex 0202 20 30	– – – Of young beef
ex 0202 20 30	– – – Of other
0202 20 50	– – Unseparated or separated hindquarters:
ex 0202 20 50	– – – Of veal
ex 0202 20 50	– – – Of young beef
ex 0202 20 50	– – – Of other
0202 20 90	– – Other:
ex 0202 20 90	– – – Of veal
ex 0202 20 90	– – – Of young beef
ex 0202 20 90	– – – Of other
0202 30	– Boneless:
0202 30 10	– – Forequarters, whole or cut into a maximum of five pieces, each quarter being in a single block; 'compensated' quarters in two blocks, one of which contains the forequarter, whole or cut into a maximum of five pieces, and the other, the hindquarter, excluding the tenderloin, in one piece:
ex 0202 30 10	– – – Of veal
ex 0202 30 10	– – – Of young beef
ex 0202 30 10	– – – Of other
0202 30 50	– – Crop, chuck and blade and brisket cuts:
ex 0202 30 50	– – – Of veal
ex 0202 30 50	– – – Of young beef
ex 0202 30 50	– – – Of other
0202 30 90	– – Other
ex 0202 30 90	– – – Of veal
ex 0202 30 90	– – – Of young beef
ex 0202 30 90	– – – Of other

CN code	Description
0204	Meat of sheep or goats, fresh, chilled or frozen:
0204 10 00	– Carcases and half-carcases of lamb, fresh or chilled
	– Other meat of sheep, fresh or chilled:
0204 21 00	– – Carcases and half-carcases
0204 22	– – Other cuts with bone in:
0204 22 10	– – – Short forequarters
0204 22 30	– – – Chines and/or best ends
0204 22 50	– – – Legs
0204 22 90	– – – Other
0204 23 00	– – Boneless
0204 30 00	– Carcases and half-carcases of lamb, frozen
	– Other meat of sheep, frozen:
0204 41 00	– – Carcases and half-carcases
0204 42	– – Other cuts with bone in:
0204 42 10	– – – Short forequarters
0204 42 30	– – – Chines and/or best ends
0204 42 50	– – – Legs
0204 42 90	– – – Other
0204 43	– – Boneless:
0204 43 10	– – – Of lamb
0204 43 90	– – – Other
0204 50	– Meat of goats:
	– – Fresh or chilled:
0204 50 11	– – – Carcases and half-carcases
0204 50 13	– – – Short forequarters
0204 50 15	– – – Chines and/or best ends
0204 50 19	– – – Legs
	– – – Other:
0204 50 31	– – – – Cuts with bone in
0204 50 39	– – – – Boneless cuts
	– – Frozen:
0204 50 51	– – – Carcases and half-carcases
0204 50 53	– – – Short forequarters
0204 50 55	– – – Chines and/or best ends
0204 50 59	– – – Legs
	– – – Other:
0204 50 71	– – – – Cuts with bone in
0204 50 79	– – – – Boneless cuts
0207	Meat and edible offal, of the poultry of heading 0105, fresh, chilled or frozen:
	– Of the fowls of the species *Gallus Domesticus*:
0207 11	– – Not cut in pieces, fresh or chilled:

CN code	Description
0207 11 10	– – – Plucked and gutted, with heads and feet, known as '83 % chickens'
0207 11 30	– – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'
0207 11 90	– – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '65 % chickens' or otherwise presented
0207 12	– – Not cut in pieces, frozen:
0207 12 10	– – – Plucked and drawn, without heads and feet but with necks, hearts, livers and gizzards, known as '70 % chickens'
0207 12 90	– – – Plucked and drawn, without heads and feet and without necks, hearts, livers and gizzards, known as '65 % chickens' or otherwise presented
0207 13	– – Cuts and offal, fresh or chilled:
	– – – Cuts:
0207 13 10	– – – – Boneless
	– – – – With bone in:
0207 13 20	– – – – – Halves or quarters
0207 13 30	– – – – – Whole wings, with or without tips
0207 13 40	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
0207 13 50	– – – – – Breasts and cuts thereof
0207 13 60	– – – – – Legs and cuts thereof
0207 13 70	– – – – – Other
	– – – Offal:
0207 13 91	– – – – Livers
0207 13 99	– – – – Other
0207 14	– – Cuts and offal, frozen:
	– – – Cuts:
0207 14 10	– – – – Boneless
	– – – – With bone in:
0207 14 20	– – – – – Halves or quarters
0207 14 30	– – – – – Whole wings, with or without tips
0207 14 40	– – – – – Backs, necks, backs with necks attached, rumps and wing-tips
0207 14 50	– – – – – Breasts and cuts thereof
0207 14 60	– – – – – Legs and cuts thereof
0207 14 70	– – – – – Other
	– – – Offal:
0207 14 91	– – – – Livers
0207 14 99	– – – – Other
0210	Meat and edible meat offal, salted, in brine, dried or smoked; edible flours and meals of meat or meat offal:
	– Meat of swine:
0210 11	– – Hams, shoulders and cuts thereof, with bone in:
	– – – Of domestic swine:
	– – – – Salted or in brine:
0210 11 11	– – – – – Hams and cuts thereof
0210 11 19	– – – – – Shoulders and cuts thereof
	– – – – Dried or smoked:
0210 11 31	– – – – – Hams and cuts thereof

CN code	Description
0210 11 39	– – – – – Shoulders and cuts thereof
0210 11 90	– – – Other
0210 12	– – Bellies (streaky) and cuts thereof:
	– – – Of domestic swine:
0210 12 11	– – – – Salted or in brine
0210 12 19	– – – – Dried or smoked
0210 12 90	– – – Other
0210 19	– – Other:
	– – – Of domestic swine:
	– – – – Salted or in brine:
0210 19 10	– – – – – Bacon sides or spencers
0210 19 20	– – – – – Three-quarter sides or middles
0210 19 30	– – – – – Fore-ends and cuts thereof
0210 19 40	– – – – – Loins and cuts thereof
0210 19 50	– – – – – Other
	– – – – Dried or smoked:
0210 19 60	– – – – – Fore-ends and cuts thereof
0210 19 70	– – – – – Loins and cuts thereof
	– – – – – Other:
0210 19 81	– – – – – – Boneless
0210 19 89	– – – – – – Other
0210 19 90	– – – Other
0210 20	– Meat of bovine animals:
0210 20 10	– – With bone in
0210 20 90	– – Boneless
0401	Milk and cream, not concentrated nor containing added sugar or other sweetening matter:
0401 10	– Of a fat content, by weight, not exceeding 1 %:
0401 10 10	– – In immediate packings of a net content not exceeding two litres
0401 10 90	– – Other
0401 20	– Of a fat content, by weight, exceeding 1 % but not exceeding 6 %:
	– – Not exceeding 3 %:
0401 20 11	– – – In immediate packings of a net content not exceeding two litres
0401 20 19	– – – Other
	– – Exceeding 3 %:
0401 20 91	– – – In immediate packings of a net content not exceeding two litres
0401 20 99	– – – Other
0401 30	– Of a fat content, by weight, exceeding 6 %:
	– – Not exceeding 21 %:
0401 30 11	– – – In immediate packings of a net content not exceeding two litres
0401 30 19	– – – Other
	– – Exceeding 21 % but not exceeding 45 %:
0401 30 31	– – – In immediate packings of a net content not exceeding two litres

CN code	Description
0401 30 39	– – – Other
	– – Exceeding 45 %:
0401 30 91	– – – In immediate packings of a net content not exceeding two litres
0401 30 99	– – – Other
0402	Milk and cream, concentrated or containing added sugar or other sweetening matter:
0402 10	– In powder, granules or other solid forms, of a fat content, by weight, not exceeding 1,5 %:
	– – Not containing added sugar or other sweetening matter:
0402 10 11	– – – In immediate packings of a net content not exceeding 2,5 kg
0402 10 19	– – – Other
	– – Other:
0402 10 91	– – – In immediate packings of a net content not exceeding 2,5 kg
0402 10 99	– – – Other
	– In powder, granules or other solid forms, of a fat content, by weight, exceeding 1,5 %:
0402 21	– – Not containing added sugar or other sweetening matter:
	– – – Of a fat content, by weight, not exceeding 27 %:
0402 21 11	– – – – In immediate packings of a net content not exceeding 2,5 kg
	– – – – Other:
0402 21 17	– – – – – Of a fat content, by weight, not exceeding 11 %
0402 21 19	– – – – – Of a fat content, by weight, exceeding 11 % but not exceeding 27 %
	– – – Of a fat content, by weight, exceeding 27 %:
0402 21 91	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 21 99	– – – – Other
0402 29	– – Other:
	– – – Of a fat content, by weight, not exceeding 27 %:
	– – – – Other:
0402 29 15	– – – – – In immediate packings of a net content not exceeding 2,5 kg
0402 29 19	– – – – – Other
	– – – Of a fat content, by weight, exceeding 27 %:
0402 29 91	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 29 99	– – – – Other
	– Other:
0402 91	– – Not containing added sugar or other sweetening matter:
	– – – Of a fat content, by weight, not exceeding 8 %:
0402 91 11	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 91 19	– – – – Other
	– – – Of a fat content, by weight, exceeding 8 % but not exceeding 10 %:
0402 91 31	– – – – In immediate packings of a net content not exceeding 2,5 kg

CN code	Description
0402 91 39	– – – – Other
	– – – Of a fat content, by weight, exceeding 10 % but not exceeding 45 %:
0402 91 51	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 91 59	– – – – Other
	– – – Of a fat content, by weight, exceeding 45 %:
0402 91 91	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 91 99	– – – – Other
0402 99	– – Other:
	– – – Of a fat content, by weight, not exceeding 9,5 %:
0402 99 11	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 99 19	– – – – Other
	– – – Of a fat content, by weight, exceeding 9,5 % but not exceeding 45 %:
0402 99 31	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 99 39	– – – – Other
	– – – Of a fat content, by weight, exceeding 45 %:
0402 99 91	– – – – In immediate packings of a net content not exceeding 2,5 kg
0402 99 99	– – – – Other
0403	Buttermilk, curdled milk and cream, yogurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa:
0403 10	– Yoghurt:
	– – Not flavoured nor containing added fruit, nuts or cocoa:
	– – – Not containing added sugar or other sweetening matter, of a fat content, by weight:
0403 10 11	– – – – Not exceeding 3 %
0403 10 13	– – – – Exceeding 3 % but not exceeding 6 %
0403 10 19	– – – – Exceeding 6 %
	– – – Other, of a fat content, by weight:
0403 10 31	– – – – Not exceeding 3 %
0403 10 33	– – – – Exceeding 3 % but not exceeding 6 %
0403 10 39	– – – – Exceeding 6 %
0403 90	– Other:
	– – Not flavoured nor containing added fruit, nuts or cocoa:
	– – – In powder, granules or other solid forms:
	– – – – Not containing added sugar or other sweetening matter, of a fat content, by weight:
0403 90 11	– – – – – Not exceeding 1,5 %
0403 90 13	– – – – – Exceeding 1,5 % but not exceeding 27 %
0403 90 19	– – – – – Exceeding 27 %
	– – – – Other, of a fat content, by weight:
0403 90 31	– – – – – Not exceeding 1,5 %
0403 90 33	– – – – – Exceeding 1,5 % but not exceeding 27 %

CN code	Description
0403 90 39	– – – – – Exceeding 27 %
	– – – Other:
	– – – – Not containing added sugar or other sweetening matter, of a fat content, by weight:
0403 90 51	– – – – – Not exceeding 3 %
0403 90 53	– – – – – Exceeding 3 % but not exceeding 6 %
0403 90 59	– – – – – Exceeding 6 %
	– – – – Other, of a fat content, by weight:
0403 90 61	– – – – – Not exceeding 3 %
0403 90 63	– – – – – Exceeding 3 % but not exceeding 6 %
0403 90 69	– – – – – Exceeding 6 %
0405	Butter and other fats and oils derived from milk; dairy spreads:
0405 10	– Butter:
	– – Of a fat content, by weight, not exceeding 85 %:
	– – – Natural butter:
0405 10 11	– – – – In immediate packings of a net content not exceeding 1 kg
0405 10 19	– – – – Other
0405 10 30	– – – Recombined butter
0405 10 50	– – – Whey butter
0405 10 90	– – Other
0405 20	– Dairy spreads:
0405 20 90	– – Of a fat content, by weight, of more than 75 % but less than 80 %
0405 90	– Other:
0405 90 10	– – Of a fat content, by weight, of 99,3 % or more and of a water content, by weight, not exceeding 0,5 %
0405 90 90	– – Other
0406	Cheese and curd:
0406 10	– Fresh (unripened or uncured) cheese, including whey cheese, and curd:
0406 10 20	– – Of a fat content, by weight, not exceeding 40 %
0406 10 80	– – Other
0406 20	– Grated or powdered cheese, of all kinds:
0406 20 10	– – Glarus herb cheese (known as Schabziger) made from skimmed milk and mixed with finely ground herbs
0406 20 90	– – Other
0406 30	– Processed cheese, not grated or powdered:
0406 30 10	– – In the manufacture of which no cheeses other than Emmentaler, Gruyère and Appenzell have been used and which may contain, as an addition, Glarus herb cheese (known as Schabziger); put up for retail sale, of a fat content by weight in the dry matter not exceeding 56 %
	– – Other:
	– – – Of a fat content, by weight, not exceeding 36 % and of a fat content, by weight, in the dry matter:
0406 30 31	– – – – Not exceeding 48 %
0406 30 39	– – – – Exceeding 48 %
0406 30 90	– – – Of a fat content, by weight, exceeding 36 %
0406 40	– Blue-veined cheese and other cheese containing veins produced by *Penicillium roqueforti*:
0406 40 10	– – Roquefort
0406 40 50	– – Gorgonzola

CN code	Description
0406 40 90	– – Other
0406 90	– Other cheese:
0406 90 01	– – For processing
	– – Other:
0406 90 13	– – – Emmentaler
0406 90 15	– – – Gruyère, Sbrinz
0406 90 17	– – – Bergkäse, Appenzell
0406 90 18	– – – Fromage fribourgeois, Vacherin Mont d'Or and Tête de Moine
0406 90 19	– – – Glarus herb cheese (known as Schabziger) made from skimmed milk and mixed with finely ground herbs
0406 90 21	– – – Cheddar
0406 90 23	– – – Edam
0406 90 25	– – – Tilsit
0406 90 27	– – – Butterkäse
0406 90 29	– – – Kashkaval
0406 90 32	– – – Feta:
0406 90 35	– – – Kefalo-Tyri
0406 90 37	– – – Finlandia
0406 90 39	– – – Jarlsberg
	– – – Other:
0406 90 50	– – – – Cheese of sheep's milk or buffalo milk in containers containing brine, or in sheepskin or goatskin bottles
	– – – – Other:
	– – – – – Of a fat content, by weight, not exceeding 40 % and a water content, by weight, in the non-fatty matter:
	– – – – – – Not exceeding 47 %:
0406 90 61	– – – – – – – Grana Padano, Parmigiano Reggiano
0406 90 63	– – – – – – – Fiore Sardo, Pecorino
0406 90 69	– – – – – – – Other
	– – – – – – Exceeding 47 % but not exceeding 72 %:
0406 90 73	– – – – – – – Provolone
0406 90 75	– – – – – – – Asiago, Caciocavallo, Montasio, Ragusano
0406 90 76	– – – – – – – Danbo, Fontal, Fontina, Fynbo, Havarti, Maribo, Sams¢
0406 90 78	– – – – – – – Gouda
0406 90 79	– – – – – – – Esrom, Italico, Kernhem, Saint-Nectaire, Saint-Paulin, Taleggio
0406 90 81	– – – – – – – Cantal, Cheshire, Wensleydale, Lancashire, Double Gloucester, Blarney, Colby, Monterey
0406 90 82	– – – – – – – Camembert
0406 90 84	– – – – – – – Brie
0406 90 85	– – – – – – – Kefalograviera, Kasseri
	– – – – – – – Other cheese, of a water content calculated, by weight, in the non-fatty matter:
0406 90 86	– – – – – – – – Exceeding 47 % but not exceeding 52 %
0406 90 87	– – – – – – – – Exceeding 52 % but not exceeding 62 %
0406 90 88	– – – – – – – – Exceeding 62 % but not exceeding 72 %
0406 90 93	– – – – – – Exceeding 72 %
0406 90 99	– – – – – Other

CN code	Description
0409 00 00	Natural honey
0701	Potatoes, fresh or chilled:
0701 90	– Other:
0701 90 10	– – For the manufacture of starch
	– – Other:
0701 90 50	– – – New, from 1 January to 30 June
0701 90 90	– – – Other
0702 00 00	Tomatoes, fresh or chilled:
ex 0702 00 00	– From 1 April to 31 August
0704	Cabbages, cauliflowers, kohlrabi, kale and similar edible brassicas, fresh or chilled:
0704 10 00	– Cauliflowers and headed broccoli:
ex 0704 10 00	– – Cauliflowers
ex 0704 10 00	– – Headed broccoli
0704 20 00	– Brussels sprouts
0704 90	– Other:
0704 90 10	– – White cabbages and red cabbages
0707 00	Cucumbers and gherkins, fresh or chilled:
0707 00 05	– Cucumbers:
ex 0707 00 05	– – From 1 April to 30 June
0707 00 90	– Gherkins:
ex 0707 00 90	– – From 1 September to 31 October
0709	Other vegetables, fresh or chilled:
0709 60	– Fruits of the genus *Capsicum* or of the genus *Pimenta*:
0709 60 10	– – Sweet peppers
	– – Other:
0709 60 91	– – – Of the genus *Capsicum*, for the manufacture of capsicin or capsicum oleoresin dyes
0709 60 95	– – – For the industrial manufacture of essential oils or resinoids
0709 60 99	– – – Other
0709 70 00	– Spinach, New Zealand spinach and orache spinach (garden spinach)
0805	Citrus fruit, dried or fresh:
0805 20	– Mandarins (including tangerines and satsumas); clementines, wilkings and similar citrus hybrids:
0805 20 10	– – Clementines:
ex 0805 20 10	– – – From 1 October to 31 December
0805 20 30	– – Monreales and satsumas:
ex 0805 20 30	– – – From 1 October to 31 December
0805 20 50	– – Mandarins and wilkings:
ex 0805 20 50	– – – From 1 October to 31 December
0805 20 70	– – Tangerines:
ex 0805 20 70	– – – From 1 October to 31 December
0805 20 90	– – Other:
ex 0805 20 90	– – – From 1 October to 31 December

CN code	Description
0806	Grapes, fresh or dried:
0806 10	– Fresh:
0806 10 10	– – Table grapes:
ex 0806 10 10	– – – From 1 July to 30 September
0806 10 90	– – Other:
ex 0806 10 90	– – – From 1 July to 30 September
0807	Melons (including watermelons) and papaws (papayas), fresh:
	– Melons (including watermelons):
0807 11 00	– – Watermelons:
ex 0807 11 00	– – – From 1 July to 30 August
0808	Apples, pears and quinces, fresh:
0808 10	– Apples:
0808 10 10	– – Cider apples, in bulk, from 16 September to 15 December
0808 10 80	– – Other
0808 20	– Pears and quinces:
	– – Pears:
0808 20 10	– – – Perry pears, in bulk, from 1 August to 31 December
0808 20 50	– – – Other
0808 20 90	– – Quinces
0809	Apricots, cherries, peaches (including nectarines), plums and sloes, fresh:
0809 10 00	– Apricots
0809 20	– Cherries:
0809 20 05	– – Sour cherries (*Prunus cerasus*)
0809 20 95	– – Other
0809 30	– Peaches, including nectarines:
0809 30 10	– – Nectarines
0809 30 90	– – Other:
ex 0809 30 90	– – – From 1 June to 30 August
0809 40	– Plums and sloes:
0809 40 05	– – Plums
0809 40 90	– – Sloes
0810	Other fruit, fresh:
0810 10 00	– Strawberries
0810 20	– Raspberries, blackberries, mulberries and loganberries:
0810 20 10	– – Raspberries
0810 20 90	– – Other
0810 50 00	– Kiwifruit:
ex 0810 50 00	– – From 1 November to 31 March
1509	Olive oil and its fractions, whether or not refined, but not chemically modified:
1509 10	– Virgin:
1509 10 10	– – Lampante olive oil
1509 10 90	– – Other
1509 90 00	– Other:
ex 1509 90 00	– – In packings over 25 litres

CN code	Description
ex 1509 90 00	– – Other
1601 00	Sausages and similar products, of meat, meat offal or blood; food preparations based on these products:
1601 00 10	– Of liver
	– Other:
1601 00 91	– – Sausages, dry or for spreading, uncooked
1601 00 99	– – Other
1602	Other prepared or preserved meat, meat offal or blood:
1602 10 00	– Homogenised preparations
1602 20	– Of liver of any animal:
	– – Goose or duck liver:
1602 20 11	– – – Containing 75 % or more by weight of fatty livers
1602 20 19	– – – Other
1602 20 90	– – Other
	– Of poultry of heading 0105:
1602 31	– – Of turkeys:
	– – – Containing 57 % or more by weight of poultry meat or offal:
1602 31 11	– – – – Containing exclusively uncooked turkey meat
1602 31 19	– – – – Other
1602 31 30	– – – Containing 25 % or more but less than 57 % by weight of poultry meat or offal
1602 31 90	– – – Other
1602 32	– – Of fowls of the species *Gallus domesticus*:
	– – – Containing 57 % or more by weight of poultry meat or offal:
1602 32 11	– – – – Uncooked
1602 32 19	– – – – Other
1602 32 30	– – – Containing 25 % or more but less than 57 % by weight of poultry meat or offal
1602 32 90	– – – Other
1602 39	– – Other:
	– – – Containing 57 % or more by weight of poultry meat or offal:
1602 39 21	– – – – Uncooked
1602 39 29	– – – – Other
1602 39 40	– – – Containing 25 % or more but less than 57 % by weight of poultry meat or offal
1602 39 80	– – – Other
	– Of swine:
1602 41	– – Hams and cuts thereof:
1602 41 10	– – – Of domestic swine
1602 41 90	– – – Other
1602 42	– – Shoulders and cuts thereof:
1602 42 10	– – – Of domestic swine
1602 42 90	– – – Other

CN code	Description
1602 49	– – Other, including mixtures:
	– – – Of domestic swine:
	– – – – Containing by weight 80 % or more of meat or meat offal, of any kind, including fats of any kind or origin:
1602 49 11	– – – – – Loins (excluding collars) and cuts thereof, including mixtures of loins or hams
1602 49 13	– – – – – Collars and cuts thereof, including mixtures of collars and shoulders
1602 49 15	– – – – – Other mixtures containing hams (legs), shoulders, loins or collars, and cuts thereof
1602 49 19	– – – – – Other
1602 49 30	– – – – Containing by weight 40 % or more but less than 80 % of meat or meat offal, of any kind, including fats of any kind or origin
1602 49 50	– – – – Containing by weight less than 40 % of meat or meat offal, of any kind, including fats of any kind or origin
1602 49 90	– – – Other
1602 50	– Of bovine animals:
1602 50 10	– – Uncooked; mixtures of cooked meat or offal and uncooked meat or offal
	– – Other:
	– – – In airtight containers:
1602 50 31	– – – – Corned beef
1602 50 39	– – – – Other
1602 50 80	– – – Other
1602 90	– Other, including preparations of blood of any animal:
1602 90 10	– – Preparations of blood of any animal
	– – Other:
1602 90 31	– – – Of game or rabbit
1602 90 41	– – – Of reindeer
	– – – Other:
1602 90 51	– – – – Containing meat or meat offal of domestic swine
	– – – – Other:
	– – – – – Containing bovine meat or offal:
1602 90 61	– – – – – – Uncooked; mixtures of cooked meat or offal and uncooked meat or offal
1602 90 69	– – – – – – Other
	– – – – – Other:
	– – – – – – Of sheep or goats:
	– – – – – – – Uncooked; mixtures of cooked meat or offal and uncooked meat or offal:
1602 90 72	– – – – – – – – Of sheep
1602 90 74	– – – – – – – – Of goats
	– – – – – – – Other:
1602 90 76	– – – – – – – – Of sheep
1602 90 78	– – – – – – – – Of goats
1602 90 98	– – – – – – Other

ANNEX IV

COMMUNITY CONCESSIONS FOR MONTENEGRIN FISHERY PRODUCTS PRODUCTS REFERRED TO IN ARTICLE 29(2) OF THIS AGREEMENT

Imports into the Community of the following products originating in Montenegro shall be subject to the concessions set out below:

CN code	TARIC Sub-division	Description	From entry into force of this Agreement until 31 December of same year (n)	From 1 January to 31 December (n + 1)	For every year thereafter, from 1 January to 31 December
0301 91 10		Trout (*Salmo trutta, Oncorhynchus mykiss, Oncorhynchus clarki, Oncorhynchus aguabonita, Oncorhynchus gilae, Oncorhynchus apache and Oncorhynchus chrysogaster*): live; fresh or chilled; frozen; dried, salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 90 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 70 % of MFN duty
0301 91 90					
0302 11 10					
0302 11 20					
0302 11 80					
0303 21 10					
0303 21 20					
0303 21 80					
0304 19 15					
0304 19 17					
ex 0304 19 19	30				
ex 0304 19 91	10				
0304 29 15					
0304 29 17					
ex 0304 29 19	30				
ex 0304 99 21	11, 12, 20				
ex 0305 10 00	10				
ex 0305 30 90	50				
0305 49 45	61				
ex 0305 59 80	61				
ex 0305 69 80					
0301 93 00		Carp: live; fresh or chilled; frozen; dried, salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 10 t at 0 % Over the TQ: 90 % of MFN duty	TQ: 10 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 10 t at 0 % Over the TQ: 70 % of MFN duty
0302 69 11					
0303 79 11					
ex 0304 19 19	20				
ex 0304 19 91	20				
ex 0304 29 19	20				
ex 0304 99 21	16				
ex 0305 10 00	20				
ex 0305 30 90	60				
ex 0305 49 80	30				
ex 0305 59 80	63				
ex 0305 69 80	63				

CN code	TARIC Sub-division	Description	From entry into force of this Agreement until 31 December of same year (n)	From 1 January to 31 December (n + 1)	For every year thereafter, from 1 January to 31 December
ex 0301 99 80 0302 69 61 0303 79 71 ex 0304 19 39 ex 0304 19 99 ex 0304 29 99 ex 0304 99 99 ex 0305 10 00 ex 0305 30 90 ex 0305 49 80 ex 0305 59 80 ex 0305 69 80	80 80 77 50 20 30 70 40 65 65	Sea bream (*Dentex dentex and Pagellus spp.*): live; fresh or chilled frozen; dried, salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 55 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 30 % of MFN duty
ex 0301 99 80 0302 69 94 ex 0303 77 00 ex 0304 19 39 ex 0304 19 99 ex 0304 29 99 ex 0304 99 99 ex 0305 10 00 ex 0305 30 90 ex 0305 49 80 ex 0305 59 80 ex 0305 69 80	22 10 85 79 60 70 40 80 50 67 67	Sea bass (*Dicentrarchus labrax*): live; fresh or chilled; frozen; dried salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 55 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 30 % of MFN duty

CN code	TARIC Subdivision	Description	Annual tariff quota volume (net weight)
1604 13 11 1604 13 19 ex 1604 20 50	10, 19	Prepared or preserved sardines	TQ: 200 t at 6 % Over the TQ: full MFN duty (1)
1604 16 00 1604 20 40		Prepared or preserved anchovies	TQ: 200 t at 12,5 % Over the TQ: full MFN duty (1)

(1) The initial quota volume shall be 200 tonnes. From 1 January of the fourth year following the entry into force of this Agreement, the quota volume shall be increased to 250 tonnes provided that at least 80 % of the total amount of the previous quota has been used by 31 December of that year. The increased quota volume, if implemented, will continue to apply until such time as the parties to this Agreement agree other arrangements.

The duty rate applicable to all products of HS heading 1604 except prepared or preserved sardines and anchovies will be reduced according to the following timetable:

Year	Year 1 (duty %)	Year 3 (duty %)	Year 5 and subsequent years (duty %)
Duty	90 % of MFN	80 % of MFN	70 % of MFN

ANNEX V

MONTENEGRIN CONCESSIONS FOR COMMUNITY FISHERY PRODUCTS PRODUCTS REFERRED TO IN ARTICLE 30(2) OF THIS AGREEMENT

Imports into Montenegro of the following products originating in the Community shall be subject to the concessions set out below:

CN code	Description	From entry into force of this Agreement until 31 December of same year (n)	From 1 January to 31 December (n + 1)	For every year thereafter, from 1 January to 31 December
0301 91 10 0301 91 90 0302 11 10 0302 11 20 0302 11 80 0303 21 10 0303 21 20 0303 21 80 0304 19 15 0304 19 17 ex 0304 19 19 ex 0304 19 91 0304 29 15 0304 29 17 ex 0304 29 19 ex 0304 99 21 ex 0305 10 00 ex 0305 30 90 0305 49 45 ex 0305 59 80 ex 0305 69 80	Trout (*Salmo trutta, Oncorhynchus mykiss, Oncorhynchus clarki, Oncorhynchus aguabonita, Oncorhynchus gilae, Oncorhynchus apache and Oncorhynchus chrysogaster*): live; fresh or chilled; frozen; dried, salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 90 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 70 % of MFN duty
ex 0301 99 80 0302 69 61 0303 79 71 ex 0304 19 39 ex 0304 19 99 ex 0304 29 99 ex 0304 99 99 ex 0305 10 00 ex 0305 30 90 ex 0305 49 80 ex 0305 59 80 ex 0305 69 80	Sea bream (*Dentex dentex and Pagellus spp.*): live; fresh or chilled frozen; dried, salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 60 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 40 % of MFN duty
ex 0301 99 80 0302 69 94 ex 0303 77 00 ex 0304 19 39 ex 0304 19 99 ex 0304 29 99 ex 0304 99 99 ex 0305 10 00 ex 0305 30 90 ex 0305 49 80 ex 0305 59 80 ex 0305 69 80	Sea bass (*Dicentrarchus labrax*): live; fresh or chilled; frozen; dried salted or in brine, smoked; fillets and other fish meat; flours, meals and pellets, fit for human consumption	TQ: 20 t at 0 % Over the TQ: 80 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 60 % of MFN duty	TQ: 20 t at 0 % Over the TQ: 40 % of MFN duty

CN code	Description	Annual tariff quota volume (net weight)
1604 13 11 1604 13 19 ex 1604 20 50	Prepared or preserved sardines	TQ: 20 t at 50 % of MFN Over the TQ: full MFN duty
1604 16 00 1604 20 40	Prepared or preserved anchovies	TQ: 10 t at 50 % Over the TQ: full MFN duty

The duty rate applicable to all products of HS heading 1604 except prepared or preserved sardines and anchovies will be reduced according to the following timetable:

Year	Year 1 (duty %)	Year 2 (duty %)	Year 3 (duty %)	Year 4 and subsequent years (duty %)
Duty	80 % of MFN	70 % of MFN	60 % of MFN	50 % of MFN

ANNEX VI

ESTABLISHMENT: FINANCIAL SERVICES

(Referred to in Title V, Chapter II of this Agreement)

FINANCIAL SERVICES: DEFINITIONS

A financial service is any service of a financial nature offered by a financial service provider of a Party.

Financial services include the following activities:

A. All Insurance and insurance-related services:

1. direct insurance (including co-insurance):

   (a) life;

   (b) non-life;

2. reinsurance and retrocession;

3. insurance intermediation, such as brokerage and agency;

4. services auxiliary to insurance, such as consultancy, actuarial, risk assessment and claim settlement services.

B. Banking and other financial services (excluding insurance):

1. acceptance of deposits and other repayable funds from the public;

2. lending of all types, including, *inter alia*, consumer-credit, mortgage credit, factoring and financing of commercial transaction;

3. financial leasing;

4. all payment and money transmission services, including credit, charge and debit cards, travellers cheques and bankers draft;

5. guarantees and commitments;

6. trading for own account or for account of customers, whether on an exchange, in an over the counter market or otherwise, the following:

   (a) money market instruments (cheques, bills, certificates of deposits, etc.);

   (b) foreign exchange;

   (c) derivative products including, but not limited to, futures and options;

   (d) exchange rates and interest rate instruments, including products such as swaps, forward rate agreements, etc.;

   (e) transferable securities;

   (f) other negotiable instruments and financial assets, including bullion.

7. participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of services related to such issues;

8. money broking;

9. asset management, such as cash or portfolio management, all forms of collective investment management, pension-fund management, custodial, depository and trust services;

10. settlement and clearing services for financial assets, including securities, derivative products, and other negotiable instruments;

11. provision and transfer of financial information, and processing of financial data and related software by providers of other financial services;

12. advisory, intermediation and other auxiliary financial services on all the activities listed in points 1 to 11 above, including credit reference and analysis, investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy.

The following activities are excluded from the definition of financial services:

(a) activities carried out by central banks or by any other public institution in pursuit of monetary and exchange rate policies;

(b) activities conducted by central banks, government agencies or departments, or public institutions, for the account or with the guarantee of the government, except when those activities may be carried out by financial service providers in competition with such public entities;

(c) activities forming part of a statutory system of social security or public retirement plans, except when those activities may be carried by financial service providers in competition with public entities or private institutions.

ANNEX VII

INTELLECTUAL, INDUSTRIAL AND COMMERCIAL PROPERTY RIGHTS

(referred to in Article 75 of this Agreement)

Article 75(4) of this Agreement concerns the following Multilateral Conventions to which Member States are Parties, or which are de facto applied by Member States:

— Convention establishing the World Intellectual Property Organization (WIPO Convention, Stockholm, 1967, as amended in 1979);

— Berne Convention for the Protection of Literary and Artistic Works (Paris Act, 1971);

— Brussels Convention Relating to the Distribution of Programme-Carrying Signals Transmitted by Satellite (Brussels, 1974);

— Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure (Budapest, 1977, as amended in 1980);

— Hague Agreement Concerning the International Deposit of Industrial Designs (London Act, 1934 and The Hague Act, 1960);

— Locarno Agreement Establishing an International Classification for Industrial Designs (Locarno, 1968, as amended in 1979);

— Madrid Agreement concerning the International Registration of Marks (Stockholm Act, 1967 and amended in 1979);

— Protocol Relating to the Madrid Agreement Concerning the International Registration of Marks (Madrid Protocol, 1989);

— Nice Agreement concerning the International Classification of Goods and Services for the purposes of the Registration of Marks (Geneva, 1977 and amended in 1979);

— Paris Convention for the Protection of Industrial Property (Stockholm Act, 1967 and amended in 1979);

— Patent Cooperation Treaty (Washington, 1970, as amended in 1979 and modified in 1984);

— Patent Law Treaty (Geneva, 2000);

— International Convention for the Protection of New Varieties of Plants (UPOV Convention, Paris, 1961, as revised in 1972, 1978 and 1991);

— Convention for the Protection of Producers of Phonograms against Unauthorised Duplications of their Phonograms (Phonograms Convention, Geneva, 1971);

— International Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organizations (Rome Convention, 1961);

— Strasbourg Agreement Concerning the International Patent Classification (Strasbourg, 1971, as amended in 1979);

— Trademark Law Treaty (Geneva, 1994);

— Vienna Agreement Establishing an International Classification of the Figurative Elements of Marks (Vienna, 1973, as amended in 1985);

— WIPO Copyright Treaty (Geneva, 1996);

— WIPO Performances and Phonograms Treaty (Geneva, 1996);

— The European Patent Convention;

— WTO Agreement of Trade-Related Aspects of Intellectual Property Rights.

PROTOCOL 1

on trade between the Community and Montenegro in processed agricultural products

Article 1

1. The Community and Montenegro apply to processed agricultural products the duties, listed in Annex I and Annex II respectively in accordance with the conditions mentioned therein, whether limited by quota or not.

2. The Stabilisation and Association Council shall decide on:

(a) extensions of the list of processed agricultural products under this Protocol,

(b) amendments to the duties referred to in Annexes I and II,

(c) increases in or the abolition of tariff quotas.

3. The Stabilisation and Association Council may replace the duties established by this Protocol by a regime established on the basis of the respective market prices of the Community and Montenegro of agricultural products actually used in the manufacture of processed agricultural products subject to this Protocol.

Article 2

The duties applied pursuant to Article 1 may be reduced by decision of the Stabilisation and Association Council:

(a) when in trade between the Community and Montenegro the duties applied to the basic products are reduced, or

(b) in response to reductions resulting from mutual concessions relating to processed agricultural products.

The reductions provided for under point (a) shall be calculated on the part of the duty designated as the agricultural component which shall correspond to the agricultural products actually used in the manufacture of the processed agricultural products in question and deducted from the duties applied to these basic agricultural products.

Article 3

The Community and Montenegro shall inform each other of the administrative arrangements adopted for the products covered by this Protocol. These arrangements should ensure equal treatment for all interested parties and should be as simple and flexible as possible.

ANNEX I

DUTIES APPLICABLE UPON IMPORTS INTO THE COMMUNITY OF GOODS ORIGINATING IN MONTENEGRO

Duties are set to zero for imports into the Community of processed agricultural products originating in Montenegro as listed hereafter.

CN Code	Description
(1)	(2)
0403	Buttermilk, curdled milk and cream, yogurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa:
0403 10	– Yoghurt:
	– – Flavoured or containing added fruit, nuts or cocoa:
	– – – In powder, granules or other solid forms, of a milkfat content, by weight:
0403 10 51	– – – – Not exceeding 1,5 %
0403 10 53	– – – – Exceeding 1,5 % but not exceeding 27 %
0403 10 59	– – – – Exceeding 27 %
	– – – Other, of a milkfat content, by weight:
0403 10 91	– – – – Not exceeding 3 %
0403 10 93	– – – – Exceeding 3 % but not exceeding 6 %
0403 10 99	– – – – Exceeding 6 %
0403 90	– Other:
	– – Flavoured or containing added fruit, nuts or cocoa:
	– – – In powder, granules or other solid forms, of a milkfat content, by weight:
0403 90 71	– – – – Not exceeding 1,5 %
0403 90 73	– – – – Exceeding 1,5 % but not exceeding 27 %
0403 90 79	– – – – Exceeding 27 %
	– – – Other, of a milkfat content, by weight:
0403 90 91	– – – – Not exceeding 3 %
0403 90 93	– – – – Exceeding 3 % but not exceeding 6 %
0403 90 99	– – – – Exceeding 6 %
0405	Butter and other fats and oils derived from milk; dairy spreads:
0405 20	– Dairy spreads:
0405 20 10	– – Of a fat content, by weight, of 39 % or more but less than 60 %
0405 20 30	– – Of a fat content, by weight, of 60 % or more but not exceeding 75 %
0501 00 00	Human hair, unworked, whether or not washed or scoured; waste of human hair
0502	Pigs', hogs' or boars' bristles and hair; badger hair and other brush making hair; waste of such bristles or hair
0505	Skins and other parts of birds, with their feathers or down, feathers and parts of feathers (whether or not with trimmed edges) and down, not further worked than cleaned, disinfected or treated for preservation; powder and waste of feathers or parts of feathers
0506	Bones and horn-cores, unworked, defatted, simply prepared (but not cut to shape), treated with acid or degelatinised; powder and waste of these products
0507	Ivory, tortoiseshell, whalebone and whalebone hair, horns, antlers, hooves, nails, claws and beaks, unworked or simply prepared but not cut to shape; powder and waste of these products
0508 00 00	Coral and similar materials, unworked or simply prepared but not otherwise worked; shells of molluscs, crustaceans or echinoderms and cuttle-bone, unworked or simply prepared but not cut to shape, powder and waste thereof

CN Code	Description
(1)	(2)
0510 00 00	Ambergris, castoreum, civet and musk; cantharides; bile, whether or not dried; glands and other animal products used in the preparation of pharmaceutical products, fresh chilled, frozen or otherwise provisionally preserved
0511	Animal products not elsewhere specified or included; dead animals of Chapter 1 or 3, unfit for human consumption:
	– Other:
0511 99	– – Other:
	– – – Natural sponges of animal origin:
0511 99 31	– – – – Raw
0511 99 39	– – – – Other
0511 99 85	– – – Other
ex 0511 99 85	– – – – Horsehair and horsehair waste, whether or not put up as a layer with or without supporting material
0710	Vegetables (uncooked or cooked by steaming or boiling in water), frozen:
0710 40 00	– Sweet corn
0711	Vegetables provisionally preserved (for example, by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions), but unsuitable in that state for immediate consumption:
0711 90	– Other vegetables; mixtures of vegetables:
	– – Vegetables:
0711 90 30	– – – Sweet corn
0903 00 00	Maté
1212	Locust beans, seaweeds and other algae, sugar beet and sugar cane, fresh, chilled, frozen or dried, whether or not ground; fruit stones and kernels and other vegetable products (including unroasted chicory roots of the variety *Cichorium intybus sativum*) of a kind used primarily for human consumption, not elsewhere specified or included:
1212 20 00	– Seaweeds and other algae
1302	Vegetable saps and extracts; pectic substances, pectinates and pectates; agar-agar and other mucilages and thickeners, whether or not modified, derived from vegetable products:
	– Vegetable saps and extracts:
1302 12 00	– – Of liquorice
1302 13 00	– – Of hops
1302 19	– – Other:
1302 19 80	– – – Other
1302 20	– Pectic substances, pectinates and pectates:
1302 20 10	– – Dry
1302 20 90	– – Other
	– Mucilages and thickeners, whether or not modified, derived from vegetable products:
1302 31 00	– – Agar-agar
1302 32	– – Mucilages and thickeners, whether or not modified, derived from locust beans, locust bean seeds or sugar seeds:
1302 32 10	– – – Of locust beans or locust bean seeds
1401	Vegetable materials of a kind used primarily for plaiting (for example, bamboos, rattans, reeds, rushes, osier, raffia, cleaned, bleached or dyed cereal straw, and lime bark):
1404	Vegetable products not elsewhere specified or included:
1505	Wool grease and fatty substances derived there from (including lanolin):
1506 00 00	Other animal fats and oils and their fractions, whether or not refined, but not chemically modified

CN Code	Description
(1)	(2)
1515	Other fixed vegetable fats and oils (including jojoba oil) and their fractions, whether or not refined, but not chemically modified:
1515 90	– Other:
1515 90 11	– – Tung oil; jojoba and oiticica oils; myrtle wax and Japan wax; their fractions
ex 1515 90 11	– – – Jojoba and oiticica oils; myrtle wax and Japan Wax; their fractions
1516	Animal or vegetable fats and oils and their fractions, partly or wholly hydrogenated, inter-esterified, re-esterified or elaidinised, whether or not refined, but not further prepared:
1516 20	– Vegetable fats and oils and their fractions:
1516 20 10	– – Hydrogenated castor oil, so called 'opal-wax'
1517	Margarine; edible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this chapter, other than edible fats or oils or their fractions of heading 1516:
1517 10	– Margarine, excluding liquid margarine:
1517 10 10	– – Containing, by weight more than 10 % but not more than 15 % of milkfats
1517 90	– Other:
1517 90 10	– – Containing, by weight more than 10 % but not more than 15 % of milkfats
	– – Other:
1517 90 93	– – – Edible mixtures or preparations of a kind used as mould-release preparations
1518 00	Animal or vegetable fats and oils and their fractions, boiled, oxidized, dehydrated, sulphurised, blown, polymerized by heat in vacuum or in inert gas or otherwise chemically modified, excluding those of heading 1516; inedible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this chapter, not elsewhere specified or included:
1518 00 10	– Linoxyn
	– Other:
1518 00 91	– – Animal or vegetable fats and oils and their fractions, boiled, oxidized, dehydrated, sulphurised, blown, polymerized by heat in vacuum or in inert gas or otherwise chemically modified, excluding those of heading 1516
	– – Other:
1518 00 95	– – – Inedible mixtures or preparations of animal or of animal and vegetable fats and oils and their fractions
1518 00 99	– – – Other
1520 00 00	Glycerol, crude; glycerol waters and glycerol lyes
1521	Vegetable waxes (other than triglycerides), beeswax, other insect waxes and spermaceti, whether or not refined or coloured:
1522 00	Degras; residues resulting from the treatment of fatty substances or animal or vegetable waxes:
1522 00 10	– Degras
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:
1702 50 00	– Chemically pure fructose
1702 90	– Other, including invert sugar and other sugar and sugar syrup blends containing in the dry state 50 % by weight of fructose
1702 90 10	– – Chemically pure maltose
1704	Sugar confectionery (including white chocolate), not containing cocoa:
1803	Cocoa paste, whether or not defatted:
1804 00 00	Cocoa butter, fat and oil
1805 00 00	Cocoa powder, not containing added sugar or other sweetening matter

CN Code	Description
(1)	(2)
1806	Chocolate and other food preparations containing cocoa:
1901	Malt extract; food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing less than 40 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included; food preparations of goods of headings 0401 to 0404, not containing cocoa or containing less than 5 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included:
1902	Pasta, whether or not cooked or stuffed (with meat or other substances) or otherwise prepared such as spaghetti, macaroni, noodles, lasagne, gnocchi, ravioli, cannelloni; couscous, whether or not prepared:
	– Uncooked pasta, not stuffed or otherwise prepared:
1902 11 00	– – Containing eggs
1902 19	– – Other:
1902 19 10	– – – Containing no common wheat flour or meal
1902 19 90	– – – Other
1902 20	– Stuffed pasta whether or not cooked or otherwise prepared:
	– – Other:
1902 20 91	– – – Cooked
1902 20 99	– – – Other
1902 30	– Other pasta:
1902 30 10	– – Dried
1902 30 90	– – Other
1902 40	– Couscous:
1902 40 10	– – Unprepared
1902 40 90	– – Other
1903 00 00	Tapioca and substitutes therefor prepared from starch, in the form of flakes, grains, pearls, siftings or similar forms
1904	Prepared foods obtained by the swelling or roasting of cereals or cereal products (for example, cornflakes); cereals (other than maize (corn)), in grain form, or in the form of flakes or other worked grains (except flour, groats and meal), pre-cooked, or otherwise prepared, not elsewhere specified or included:
1905	Bread, pastry, cakes, biscuits and other bakers' wares, whether or not containing cocoa; communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice paper and similar products:
2001	Vegetables, fruits, nuts and other edible parts of plants, prepared or preserved by vinegar or acetic acid:
2001 90	– Other:
2001 90 30	– – Sweet corn (Zea mays var. saccharata)
2001 90 40	– – Yams, sweet potatoes and similar edible parts of plants containing 5 % or more by weight of starch
2001 90 60	– – Palm hearts
2004	Other vegetables prepared or preserved otherwise than by vinegar or acetic acid, frozen, other than products of heading 2006
2004 10	– Potatoes:
	– – Other
2004 10 91	– – – In the form of flour, meal or flakes
2004 90	– Other vegetables and mixtures of vegetables:
2004 90 10	– – Sweet corn (Zea mays var. saccharata)

CN Code	Description
(1)	(2)
2005	Other vegetables prepared or preserved otherwise than by vinegar or acetic acid, not frozen, other than products of heading 2006
2005 20	– Potatoes:
2005 20 10	– – In the form of flour, meal or flakes
2005 80 00	– Sweet corn (Zea mays var. saccharata)
2008	Fruits, nuts and other edible parts of plants, otherwise prepared or preserved, whether or not containing added sugar or other sweetening matter or spirit, not elsewhere specified or included:
	– Nuts, groundnuts and other seeds, whether or not mixed together:
2008 11	– – Groundnuts:
2008 11 10	– – – Peanut butter
	– Other, including mixtures other than those of subheading 2008 19:
2008 91 00	– – Palm hearts
2008 99	– – Other:
	– – – Not containing added spirit:
	– – – – Not containing added sugar:
2008 99 85	– – – – – Maize (corn), other than sweet corn (Zea mays var. saccharata)
2008 99 91	– – – – – Yams, sweet potatoes and similar edible parts of plants, containing 5 % or more by weight of starch
2101	Extracts, essences and concentrates, of coffee, tea or maté and preparations with a basis of these products or with a basis of coffee, tea or maté; roasted chicory and other roasted coffee substitutes, and extracts, essences and concentrates thereof:
2102	Yeasts (active or inactive); other single-cell micro-organisms, dead (but not including vaccines of heading 3002); prepared baking powders:
2103	Sauces and preparations therefor; mixed condiments and mixed seasonings; mustard flour and meal and prepared mustard:
2104	Soups and broths and preparations therefor; homogenised composite food preparations:
2105 00	Ice cream and other edible ice, whether or not containing cocoa:
2106	Food preparations not elsewhere specified or included:
2106 10	– Protein concentrates and textured protein substances:
2106 10 20	– – Containing no milkfats, sucrose, isoglucose, glucose or starch or containing, by weight, less than 1,5 % milkfat, 5 % sucrose or isoglucose, 5 % glucose or starch
2106 10 80	– – Other
2106 90	– Other:
2106 90 20	– – Compound alcoholic preparations, other than those based on odoriferous substances, of a kind used for the manufacture of beverages
	– – Other:
2106 90 92	– – – Containing no milkfats, sucrose, isoglucose, glucose or starch or containing, by weight, less than 1,5 % milkfat, 5 % sucrose or isoglucose, 5 % glucose or starch:
2106 90 98	– – – Other
2201	Waters, including natural or artificial mineral waters and aerated waters, not containing added sugar or other sweetening matter nor flavoured; ice and snow:
2202	Waters, including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavoured, and other non-alcoholic beverages, not including fruit or vegetable juices of heading 2009:
2203 00	Beer made from malt:
2205	Vermouth and other wine of fresh grapes flavoured with plants or aromatic substances:

CN Code	Description
(1)	(2)
2207	Undenatured ethyl alcohol of an alcoholic strength by volume of 80 % vol. or higher; ethyl alcohol and other spirits, denatured, of any strength:
2208	Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80 % vol; spirits, liqueurs and other spirituous beverages:
2402	Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes:
2403	Other manufactured tobacco and manufactured tobacco substitutes; 'homogenised' or 'reconstituted' tobacco; tobacco extracts and essences:
2905	Acyclic alcohols and their halogenated, sulphonated, nitrated or nitrosated derivatives:
	– Other polyhydric alcohols:
2905 43 00	– – Mannitol
2905 44	– – D-glucitol (sorbitol):
	– – – In aqueous solution:
2905 44 11	– – – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content
2905 44 19	– – – – Other
	– – – Other:
2905 44 91	– – – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content
2905 44 99	– – – – Other
2905 45 00	– – Glycerol
3301	Essential oils (terpeneless or not), including concretes and absolutes; resinoids; extracted oleoresins; concentrates of essential oils in fats, in fixed oils, in waxes or the like, obtained by enfleurage or maceration; terpenic by-products of the deterpenation of essential oils; aqueous distillates and aqueous solutions of essential oils:
3301 90	– Other:
3301 90 10	– – Terpenic by-products of the deterpenation of essential oils
	– – Extracted oleoresins
3301 90 21	– – – Of liquorice and hops
3301 90 30	– – – Other
3301 90 90	– – Other
3302	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages:
3302 10	– Of a kind used in the food or drink industries
	– – Of the type used in the drink industries:
	– – – Preparations containing all flavouring agents characterizing a beverage:
3302 10 10	– – – – Of an actual alcoholic strength by volume exceeding 0,5 %
	– – – – Other:
3302 10 21	– – – – – Containing no milkfats, sucrose, isoglucose, glucose, or starch or containing, by weight, less than 1,5 % milkfat, 5 %sucrose or isoglucose, 5 % glucose or starch
3302 10 29	– – – – – Other
3501	Casein, caseinates and other casein derivates; casein glues:
3501 10	– Casein:
3501 10 10	– – For the manufacture of regenerated textile fibres
3501 10 50	– – For industrial uses other than the manufacture of foodstuffs or fodder
3501 10 90	– – Other

CN Code	Description
(1)	(2)
3501 90	– Other:
3501 90 90	– – Other
3505	Dextrins and other modified starches (for example, pregelatinised or esterified starches); glues based on starches, or on dextrins or other modified starches:
3505 10	– Dextrins and other modified starches:
3505 10 10	– – Dextrins
	– – Other modified starches:
3505 10 90	– – – Other
3505 20	– Glues:
3505 20 10	– – Containing, by weight, less than 25 % of starches or dextrins or other modified starches
3505 20 30	– – Containing, by weight, 25 % or more but less than 55 % of starches or dextrins or other modified starches
3505 20 50	– – Containing, by weight, 55 % or more but less than 80 % of starches or dextrins or other modified starches
3505 20 90	– – Containing by weight 80 % or more of starches or dextrins or other modified starches
3809	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations (for example, dressings and mordants), of a kind used in the textile, paper, leather or like industries, not elsewhere specified or included:
3809 10	– With a basis of amylaceouos substances:
3809 10 10	– – Containing by weight of such substances less than 55 %
3809 10 30	– – Containing by weight of such substances 55 % or more but less than 70 %
3809 10 50	– – Containing by weight of such substances 70 % or more but less than 83 %
3809 10 90	– – Containing by weight of such substances 83 % or more
3823	Industrial monocarboxylic fatty acids; acid oils from refining; industrial fatty alcohols:
3824	Prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included:
3824 60	– Sorbitol other than that of subheading 2905 44:
	– – In aqueous solution:
3824 60 11	– – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content
3824 60 19	– – – Other
	– – Other:
3824 60 91	– – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content
3824 60 99	– – – Other

ANNEX II

DUTIES APPLICABLE TO GOODS ORIGINATING IN THE COMMUNITY ON IMPORT INTO MONTENEGRO

(immediately or gradually)

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
0403	Buttermilk, curdled milk and cream, yogurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa:					
0403 10	– Yoghurt:					
	– – Flavoured or containing added fruit, nuts or cocoa:					
	– – – In powder, granules or other solid forms, of a milkfat content, by weight:					
0403 10 51	– – – – Not exceeding 1,5 %	80	60	40	20	0
0403 10 53	– – – – Exceeding 1,5 % but not exceeding 27 %	80	60	40	20	0
0403 10 59	– – – – Exceeding 27 %	80	60	40	20	0
	– – – Other, of a milkfat content, by weight:					
0403 10 91	– – – – Not exceeding 3 %	80	60	40	20	0
0403 10 93	– – – – Exceeding 3 % but not exceeding 6 %	80	60	40	20	0
0403 10 99	– – – – Exceeding 6 %	80	60	40	20	0
0403 90	– Other:					
	– – Flavoured or containing added fruit, nuts or cocoa:					
	– – – In powder, granules or other solid forms, of a milkfat content, by weight:					
0403 90 71	– – – – Not exceeding 1,5 %	80	60	40	20	0
0403 90 73	– – – – Exceeding 1,5 % but not exceeding 27 %	80	60	40	20	0
0403 90 79	– – – – Exceeding 27 %	80	60	40	20	0
	– – – Other, of a milkfat content, by weight:					
0403 90 91	– – – – Not exceeding 3 %	80	60	40	20	0
0403 90 93	– – – – Exceeding 3 % but not exceeding 6 %	80	60	40	20	0
0403 90 99	– – – – Exceeding 6 %	80	60	40	20	0
0405	Butter and other fats and oils derived from milk; dairy spreads:					
0405 20	– Dairy spreads:					
0405 20 10	– – Of a fat content, by weight, of 39 % or more but less than 60 %	90	80	70	60	50
0405 20 30	– – Of a fat content, by weight, of 60 % or more but not exceeding 75 %	90	80	70	60	50

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
0501 00 00	Human hair, unworked, whether or not washed or scoured; waste of human hair	0	0	0	0	0
0502	Pigs', hogs' or boars' bristles and hair; badger hair and other brush making hair; waste of such bristles or hair:					
0502 10 00	– Pigs', hogs' or boars' bristles and hair and waste thereof	0	0	0	0	0
0502 90 00	– Other	0	0	0	0	0
0505	Skins and other parts of birds, with their feathers or down, feathers and parts of feathers (whether or not with trimmed edges) and down, not further worked than cleaned, disinfected or treated for preservation; powder and waste of feathers or parts of feathers:					
0505 10	– Feathers of a kind used for stuffing; down:					
0505 10 10	– – Raw	0	0	0	0	0
0505 10 90	– – Other	0	0	0	0	0
0505 90 00	– Other	0	0	0	0	0
0506	Bones and horn-cores, unworked, defatted, simply prepared (but not cut to shape), treated with acid or degelatinised; powder and waste of these products:					
0506 10 00	– Ossein and bones treated with acid	0	0	0	0	0
0506 90 00	– Other	0	0	0	0	0
0507	Ivory, tortoiseshell, whalebone and whalebone hair, horns, antlers, hooves, nails, claws and beaks, unworked or simply prepared but not cut to shape; powder and waste of these products:					
0507 10 00	– Ivory; ivory powder and waste	0	0	0	0	0
0507 90 00	– Other	0	0	0	0	0
0508 00 00	Coral and similar materials, unworked or simply prepared but not otherwise worked; shells of molluscs, crustaceans or echinoderms and cuttle-bone, unworked or simply prepared but not cut to shape, powder and waste thereof	0	0	0	0	0
0510 00 00	Ambergris, castoreum, civet and musk; cantharides; bile, whether or not dried; glands and other animal products used in the preparation of pharmaceutical products, fresh chilled, frozen or otherwise provisionally preserved	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
0511	Animal products not elsewhere specified or included; dead animals of Chapter 1 or 3, unfit for human consumption:					
	– Other:					
0511 99	– – Other:					
	– – – Natural sponges of animal origin:					
0511 99 31	– – – – Raw	0	0	0	0	0
0511 99 39	– – – – Other	0	0	0	0	0
0511 99 85	– – – Other					
ex 0511 99 85	– – – – Horsehair and horsehair waste, whether or not put up as a layer with or without supporting material	0	0	0	0	0
0710	Vegetables (uncooked or cooked by steaming or boiling in water), frozen:					
0710 40 00	– Sweet corn	0	0	0	0	0
0711	Vegetables provisionally preserved (for example, by sulphur dioxide gas, in brine, in sulphur water or in other preservative solutions), but unsuitable in that state for immediate consumption:					
0711 90	– Other vegetables; mixtures of vegetables:					
	– – Vegetables:					
0711 90 30	– – – Sweet corn	0	0	0	0	0
0903 00 00	Maté	0	0	0	0	0
1212	Locust beans, seaweeds and other algae, sugar beet and sugar cane, fresh, chilled, frozen or dried, whether or not ground; fruit stones and kernels and other vegetable products (including unroasted chicory roots of the variety *Cichorium intybus sativum*) of a kind used primarily for human consumption, not elsewhere specified or included:					
1212 20 00	– Seaweeds and other algae	0	0	0	0	0
1302	Vegetable saps and extracts; pectic substances, pectinates and pectates; agar-agar and other mucilages and thickeners, whether or not modified, derived from vegetable products:					
	– Vegetable saps and extracts:					
1302 12 00	– – Of liquorice	0	0	0	0	0
1302 13 00	– – Of hops	0	0	0	0	0
1302 19	– – Other:					
1302 19 80	– – – Other	0	0	0	0	0
1302 20	– Pectic substances, pectinates and pectates:					
1302 20 10	– – Dry	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1302 20 90	– – Other	0	0	0	0	0
	– Mucilages and thickeners, whether or not modified, derived from vegetable products:					
1302 31 00	– – Agar-agar	0	0	0	0	0
1302 32	– – Mucilages and thickeners, whether or not modified, derived from locust beans, locust bean seeds or sugar seeds:					
1302 32 10	– – – Of locust beans or locust bean seeds	0	0	0	0	0
1401	Vegetable materials of a kind used primarily for plaiting (for example, bamboos, rattans, reeds, rushes, osier, raffia, cleaned, bleached or dyed cereal straw, and lime bark):					
1401 10 00	– Bamboos	0	0	0	0	0
1401 20 00	– Rattans	0	0	0	0	0
1401 90 00	– Other	0	0	0	0	0
1404	Vegetable products not elsewhere specified or included:					
1404 20 00	– Cotton linters	0	0	0	0	0
1404 90 00	– Other	0	0	0	0	0
1505	Wool grease and fatty substances derived there from (including lanolin):					
1505 00 10	– Wool grease, crude	0	0	0	0	0
1505 00 90	– Other	0	0	0	0	0
1506 00 00	Other animal fats and oils and their fractions, whether or not refined, but not chemically modified	0	0	0	0	0
1515	Other fixed vegetable fats and oils (including jojoba oil) and their fractions, whether or not refined, but not chemically modified:					
1515 90	– Other:					
1515 90 11	– – Tung oil; jojoba and oiticica oils; myrtle wax and Japan wax; their fractions					
ex 1515 90 11	– – Jojoba and oiticica oils; myrtle wax and Japan Wax; their fractions	0	0	0	0	0
1516	Animal or vegetable fats and oils and their fractions, partly or wholly hydrogenated, inter-esterified, re-esterified or elaidinised, whether or not refined, but not further prepared:					
1516 20	– Vegetable fats and oils and their fractions:					
1516 20 10	– – Hydrogenated castor oil, so called ‘opal-wax’	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1517	Margarine; edible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this chapter, other than edible fats or oils or their fractions of heading 1516:					
1517 10	– Margarine, excluding liquid margarine:					
1517 10 10	– – Containing, by weight more than 10 % but not more than 15 % of milkfats	0	0	0	0	0
1517 90	– Other:					
1517 90 10	– – Containing, by weight more than 10 % but not more than 15 % of milkfats	0	0	0	0	0
	– – Other:					
1517 90 93	– – – Edible mixtures or preparations of a kind used as mould-release preparations	0	0	0	0	0
1518 00	Animal or vegetable fats and oils and their fractions, boiled, oxidized, dehydrated, sulphurised, blown, polymerized by heat in vacuum or in inert gas or otherwise chemically modified, excluding those of heading 1516; inedible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this chapter, not elsewhere specified or included:					
1518 00 10	– Linoxyn	0	0	0	0	0
	– Other:					
1518 00 91	– – Animal or vegetable fats and oils and their fractions, boiled, oxidized, dehydrated, sulphurised, blown, polymerized by heat in vacuum or in inert gas or otherwise chemically modified, excluding those of heading1516	0	0	0	0	0
	– – Other:					
1518 00 95	– – – Inedible mixtures or preparations of animal or of animal and vegetable fats and oils and their fractions	0	0	0	0	0
1518 00 99	– – – Other	0	0	0	0	0
1520 00 00	Glycerol, crude; glycerol waters and glycerol lyes	0	0	0	0	0
1521	Vegetable waxes (other than triglycerides), beeswax, other insect waxes and spermaceti, whether or not refined or coloured:					
1521 10 00	– Vegetable waxes	0	0	0	0	0
1521 90	– Other:					
1521 90 10	– – Spermaceti, whether or not refined or coloured	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
	– – Beeswax and other insect waxes, whether or not refined or coloured:					
1521 90 91	– – – Raw	0	0	0	0	0
1521 90 99	– – – Other	0	0	0	0	0
1522 00	Degras; residues resulting from the treatment of fatty substances or animal or vegetable waxes:					
1522 00 10	– Degras	0	0	0	0	0
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:					
1702 50 00	– Chemically pure fructose	0	0	0	0	0
1702 90	– Other, including invert sugar and other sugar and sugar syrup blends containing in the dry state 50 % by weight of fructose					
1702 90 10	– – Chemically pure maltose	0	0	0	0	0
1704	Sugar confectionery (including white chocolate), not containing cocoa:					
1704 10	– Chewing gum, whether or not sugar-coated:					
	– – Containing less than 60 % by weight of sucrose (including invert sugar expressed as sucrose):					
1704 10 11	– – – Gum in strips	80	60	40	20	0
1704 10 19	– – – Other	80	60	40	20	0
	– – Containing 60 % or more by weight of sucrose (including invert sugar expressed as sucrose):					
1704 10 91	– – – Gum in strips	80	60	40	20	0
1704 10 99	– – – Other	80	60	40	20	0
1704 90	– Other:					
1704 90 10	– – Liquorice extract containing more than 10 % by weight of sucrose but not containing other added substances	80	60	40	20	0
1704 90 30	– – White chocolate	80	60	40	20	0
	– – Other:					
1704 90 51	– – – Pastes, including marzipan, in immediate packings of a net content of 1 kg or more	80	60	40	20	0
1704 90 55	– – – Throat pastilles and cough drops	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1704 90 61	– – – Sugar-coated (panned) goods	80	60	40	20	0
	– – – Other:					
1704 90 65	– – – – Gum confectionery and jelly confectionery including fruit pastes in the form of sugar confectionery	80	60	40	20	0
1704 90 71	– – – – Boiled sweets whether or not filled	80	60	40	20	0
1704 90 75	– – – – Toffees, caramels and similar sweets	80	60	40	20	0
	– – – – Other:					
1704 90 81	– – – – – Compressed tablets	80	60	40	20	0
1704 90 99	– – – – – Other	80	60	40	20	0
1803	Cocoa paste, whether or not defatted:					
1803 10 00	– Not defatted	0	0	0	0	0
1803 20 00	– Wholly or partly defatted	0	0	0	0	0
1804 00 00	Cocoa butter, fat and oil	0	0	0	0	0
1805 00 00	Cocoa powder, not containing added sugar or other sweetening matter	0	0	0	0	0
1806	Chocolate and other food preparations containing cocoa:					
1806 10	– Cocoa powder, containing added sugar or other sweetening matter:					
1806 10 15	– – Containing no sucrose or containing less than 5 % by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose	0	0	0	0	0
1806 10 20	– – Containing 5 % or more but less than 65 % by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose	0	0	0	0	0
1806 10 30	– – Containing 65 % or more but less than 80 % by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose	0	0	0	0	0
1806 10 90	– – Containing 80 % or more by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose	0	0	0	0	0
1806 20	– Other preparations in blocks, slabs or bars weighing more than 2 kg or in liquid, paste, powder, granular or other bulk form in containers or immediate packings, of a content exceeding 2 kg:					

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1806 20 10	– – Containing 31 % or more by weight of cocoa butter or containing a combined weight of 31 % or more of cocoa butter and milkfat	0	0	0	0	0
1806 20 30	– – Containing a combined weight of 25 % or more, but less than 31 % of cocoa butter and milkfat	0	0	0	0	0
	– – Other:					
1806 20 50	– – – Containing 18 % or more by weight of cocoa butter	0	0	0	0	0
1806 20 70	– – – Chocolate milk crumb	0	0	0	0	0
1806 20 80	– – – Chocolate flavour coating	0	0	0	0	0
1806 20 95	– – – Other	0	0	0	0	0
	– Other, in blocks, slabs or bars:					
1806 31 00	– – Filled	80	60	40	20	0
1806 32	– – Not filled					
1806 32 10	– – – With added cereal, fruit or nuts	80	60	40	20	0
1806 32 90	– – – Other	80	60	40	20	0
1806 90	– Other:					
	– – Chocolate and chocolate products:					
	– – – Chocolates (including pralines), whether or not filled:					
1806 90 11	– – – – Containing alcohol	80	60	40	20	0
1806 90 19	– – – – Other	80	60	40	20	0
	– – – Other:					
1806 90 31	– – – – Filled	80	60	40	20	0
1806 90 39	– – – – Not filled	80	60	40	20	0
1806 90 50	– – Sugar confectionery and substitutes therefor made from sugar substitution products, containing cocoa	80	60	40	20	0
1806 90 60	– – Spreads containing cocoa	80	60	40	20	0
1806 90 70	– – Preparations containing cocoa for making beverages	80	60	40	20	0
1806 90 90	– – Other	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1901	Malt extract; food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing less than 40 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included; food preparations of goods of headings 0401 to 0404, not containing cocoa or containing less than 5 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included:					
1901 10 00	– Preparations for infant use, put up for retail sale	0	0	0	0	0
1901 20 00	– Mixes and doughs for the preparation of bakers' wares of heading 1905	0	0	0	0	0
1901 90	– Other:					
	– – Malt extract:					
1901 90 11	– – – With a dry extract content of 90 % or more by weight	0	0	0	0	0
1901 90 19	– – – Other	0	0	0	0	0
	– – Other:					
1901 90 91	– – – Containing no milkfats, sucrose, isoglucose, glucose or starch or containing less than 1,5 % milkfat, 5 % sucrose (including invert sugar) or isoglucose, 5 % glucose or starch, excluding food preparations in powder form of goods of headings 0401 to 0404	0	0	0	0	0
1901 90 99	– – – Other	0	0	0	0	0
1902	Pasta, whether or not cooked or stuffed (with meat or other substances) or otherwise prepared such as spaghetti, macaroni, noodles, lasagne, gnocchi, ravioli, cannelloni; couscous, whether or not prepared:					
	– Uncooked pasta, not stuffed or otherwise prepared:					
1902 11 00	– – Containing eggs	0	0	0	0	0
1902 19	– – Other:					
1902 19 10	– – – Containing no common wheat flour or meal	0	0	0	0	0
1902 19 90	– – – Other	0	0	0	0	0
1902 20	– Stuffed pasta whether or not cooked or otherwise prepared:					
	– – Other:					
1902 20 91	– – – Cooked	0	0	0	0	0
1902 20 99	– – – Other	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1902 30	– Other pasta:					
1902 30 10	– – Dried	0	0	0	0	0
1902 30 90	– – Other	0	0	0	0	0
1902 40	– Couscous:					
1902 40 10	– – Unprepared	0	0	0	0	0
1902 40 90	– – Other	0	0	0	0	0
1903 00 00	Tapioca and substitutes therefor prepared from starch, in the form of flakes, grains, pearls, siftings or similar forms	0	0	0	0	0
1904	Prepared foods obtained by the swelling or roasting of cereals or cereal products (for example, cornflakes); cereals (other than maize (corn)), in grain form, or in the form of flakes or other worked grains (except flour, groats and meal), precooked, or otherwise prepared, not elsewhere specified or included:					
1904 10	– Prepared foods obtained by the swelling or roasting of cereals or cereal products:					
1904 10 10	– – Obtained from maize	0	0	0	0	0
1904 10 30	– – Obtained from rice	0	0	0	0	0
1904 10 90	– – Other:	0	0	0	0	0
1904 20	– Prepared foods obtained from unroasted cereal flakes or from mixtures of unroasted cereal flakes and roasted cereal flakes or swelled cereals:					
1904 20 10	– – Preparation of the Müsli type based on unroasted cereal flakes	0	0	0	0	0
	– – Other:					
1904 20 91	– – – Obtained from maize	0	0	0	0	0
1904 20 95	– – – Obtained from rice	0	0	0	0	0
1904 20 99	– – – Other	0	0	0	0	0
1904 30 00	Bulgur wheat	0	0	0	0	0
1904 90	– Other:					
1904 90 10	– – Rice	0	0	0	0	0
1904 90 80	– – Other	0	0	0	0	0
1905	Bread, pastry, cakes, biscuits and other bakers' wares, whether or not containing cocoa; communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice paper and similar products:					
1905 10 00	– Crispbread	0	0	0	0	0
1905 20	– Gingerbread and the like:					
1905 20 10	– – Containing by weight less than 30 % of sucrose (including invert sugar expressed as sucrose)	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1905 20 30	-- Containing by weight 30 % or more but less than 50 % of sucrose (including invert sugar expressed as sucrose)	0	0	0	0	0
1905 20 90	-- Containing by weight 50 % or more of sucrose (including invert sugar expressed as sucrose)	0	0	0	0	0
	- Sweet biscuits; waffles and wafers:					
1905 31	-- Sweet biscuits:					
	--- Completely or partially coated or covered with chocolate or other preparations containing cocoa:					
1905 31 11	---- In immediate packings of a net content not exceeding 85g	0	0	0	0	0
1905 31 19	---- Other	0	0	0	0	0
	--- Other:					
1905 31 30	---- Containing 8 % or more by weight of milkfats	0	0	0	0	0
	---- Other:					
1905 31 91	----- Sandwich biscuits	0	0	0	0	0
1905 31 99	----- Other	0	0	0	0	0
1905 32	-- Waffles and wafers:					
1905 32 05	--- With a water content exceeding 10 % by weight	0	0	0	0	0
	--- Other					
	---- Completely or partially coated or covered with chocolate or other preparations containing cocoa:					
1905 32 11	----- In immediate packings of a net content not exceeding 85g	0	0	0	0	0
1905 32 19	----- Other	0	0	0	0	0
	---- Other:					
1905 32 91	----- Salted, whether or not filled	0	0	0	0	0
1905 32 99	----- Other	0	0	0	0	0
1905 40	- Rusks, toasted bread and similar toasted products:					
1905 40 10	-- Rusks	0	0	0	0	0
1905 40 90	-- Other	0	0	0	0	0
1905 90	- Other:					
1905 90 10	-- Matzos	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1905 90 20	– – Communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice paper and similar products	0	0	0	0	0
	– – Other:					
1905 90 30	– – – Bread, not containing added honey, eggs, cheese or fruit, and containing by weight in the dry matter state not more than 5 % of sugars and not more than 5 % of fat	0	0	0	0	0
1905 90 45	– – – Biscuits	0	0	0	0	0
1905 90 55	– – – Extruded or expanded products, savoury or salted	0	0	0	0	0
	– – – Other:					
1905 90 60	– – – – With added sweetening matter	0	0	0	0	0
1905 90 90	– – – – Other	0	0	0	0	0
2001	Vegetables, fruits, nuts and other edible parts of plants, prepared or preserved by vinegar or acetic acid:					
2001 90	– Other:					
2001 90 30	– – Sweet corn (Zea mays var. saccharata)	80	60	40	20	0
2001 90 40	– – Yams, sweet potatoes and similar edible parts of plants containing 5 % or more by weight of starch	80	60	40	20	0
2001 90 60	– – Palm hearts	80	60	40	20	0
2004	Other vegetables prepared or preserved otherwise than by vinegar or acetic acid, frozen, other than products of heading 2006					
2004 10	– Potatoes:					
	– – Other					
2004 10 91	– – – In the form of flour, meal or flakes	80	60	40	20	0
2004 90	– Other vegetables and mixtures of vegetables:					
2004 90 10	– – Sweet corn (Zea mays var. saccharata)	80	60	40	20	0
2005	Other vegetables prepared or preserved otherwise than by vinegar or acetic acid, not frozen, other than products of heading 2006					
2005 20	– Potatoes:					
2005 20 10	– – In the form of flour, meal or flakes	80	60	40	20	0
2005 80 00	– Sweet corn (Zea mays var. saccharata)	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2008	Fruits, nuts and other edible parts of plants, otherwise prepared or preserved, whether or not containing added sugar or other sweetening matter or spirit, not elsewhere specified or included:					
	– Nuts, groundnuts and other seeds, whether or not mixed together:					
2008 11	– – Groundnuts:					
2008 11 10	– – – Peanut butter	80	60	40	20	0
	– Other, including mixtures other than those of subheading 2008 19:					
2008 91 00	– – Palm hearts	80	60	40	20	0
2008 99	– – Other:					
	– – – Not containing added spirit:					
	– – – – Not containing added sugar:					
2008 99 85	– – – – – Maize (corn), other than sweet corn (Zea mays var. saccharata)	0	0	0	0	0
2008 99 91	– – – – – Yams, sweet potatoes and similar edible parts of plants, containing 5 % or more by weight of starch	0	0	0	0	0
2101	Extracts, essences and concentrates, of coffee, tea or maté and preparations with a basis of these products or with a basis of coffee, tea or maté; roasted chicory and other roasted coffee substitutes, and extracts, essences and concentrates thereof:					
	– Extracts, essences and concentrates of coffee, and preparations with a basis of these extracts, essences or concentrates or with a basis of coffee:					
2101 11	– – Extracts, essences or concentrates:					
2101 11 11	– – – With a coffee-based dry matter content of 95 % or more by weight	0	0	0	0	0
2101 11 19	– – – Other	0	0	0	0	0
2101 12	– – Preparations with a basis of these extracts, essences or concentrates or with a basis of coffee:					
2101 12 92	– – – Preparations with a basis of these extracts, essences or concentrates of coffee	0	0	0	0	0
2101 12 98	– – – Other	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2101 20	– Extracts, essences and concentrates, of tea or maté, and preparations with a basis of these extracts, essences and concentrates or with a basis of tea or maté:					
2101 20 20	– – Extracts, essences or concentrates	0	0	0	0	0
	– – Preparations:					
2101 20 92	– – – With a basis of extracts, essences or concentrates of tea or maté	0	0	0	0	0
2101 20 98	– – – Other	0	0	0	0	0
2101 30	– Roasted chicory and other roasted coffee substitutes and extracts, essences and concentrates thereof:					
	– – Roasted chicory and other roasted coffee substitutes:					
2101 30 11	– – – Roasted chicory	0	0	0	0	0
2101 30 19	– – – Other	0	0	0	0	0
	– – Extracts, essences and concentrates of roasted chicory and other roasted coffee substitutes:					
2101 30 91	– – – Of roasted chicory	0	0	0	0	0
2101 30 99	– – – Other	0	0	0	0	0
2102	Yeasts (active or inac ive); other single-cell micro-organisms, dead (but not including vaccines of heading 3002); prepared baking powders:					
2102 10	– Active yeasts:					
2102 10 10	– – Culture yeast	80	60	40	20	0
	– – Baker's yeast:					
2102 10 31	– – – Dried	80	60	40	20	0
2102 10 39	– – – Other	80	60	40	20	0
2102 10 90	– – Other	80	60	40	20	0
2102 20	– Inactive yeasts; other single-cell micro-organisms, dead:					
	– – Inactive yeasts:					
2102 20 11	– – – In tablet, cube or similar form, or in immediate packings of a net content not exceeding 1 kg.	0	0	0	0	0
2102 20 19	– – – Other	0	0	0	0	0
2102 20 90	– – Other	0	0	0	0	0
2102 30 00	– Prepared baking powders	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2103	Sauces and preparations therefor; mixed condiments and mixed seasonings; mustard flour and meal and prepared mustard:					
2103 10 00	– Soya sauce	0	0	0	0	0
2103 20 00	– Tomato ketchup and other tomato sauces	0	0	0	0	0
2103 30	– Mustard flour and meal and prepared mustard:					
2103 30 10	– – Mustard flour and meal	0	0	0	0	0
2103 30 90	– – Prepared mustard	0	0	0	0	0
2103 90	– Other:					
2103 90 10	– – Mango chutney, liquid	0	0	0	0	0
2103 90 30	– – Aromatic bitters of an alcoholic strength by volume of 44,2 to 49,2 % vol. containing from 1,5 to 6 % by weight of gentian, spices and various ingredients and from 4 to 10 % of sugar, in containers holding 0,5 litre or less	0	0	0	0	0
2103 90 90	– – Other	0	0	0	0	0
2104	Soups and broths and preparations therefor; homogenised composite food preparations:					
2104 10	– Soups and broths and preparation therefor:					
2104 10 10	– – Dried	80	60	40	20	0
2104 10 90	– – Other	80	60	40	20	0
2104 20 00	– Homogenised composite food preparations	80	60	40	20	0
2105 00	Ice cream and other edible ice, whether or not containing cocoa:					
2105 00 10	– Containing no milkfats or containing less than 3 % by weight of such fats	80	60	40	20	0
	– Containing by weight of milkfats:					
2105 00 91	– – 3 % or more but less than 7 %	80	60	40	20	0
2105 00 99	– – 7 % or more	80	60	40	20	0
2106	Food preparations not elsewhere specified or included:					
2106 10	– Protein concentrates and textured protein substances:					
2106 10 20	– – Containing no milkfats, sucrose, isoglucose, glucose or starch or containing, by weight, less than 1,5 % milkfat, 5 % sucrose or isoglucose, 5 % glucose or starch	80	60	40	20	0
2106 10 80	– – Other	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2106 90	– Other:					
2106 90 20	– – Compound alcoholic preparations, other than those based on odoriferous substances, of a kind used for the manufacture of beverages	80	60	40	20	0
	– – Other:					
2106 90 92	– – – Containing no milkfats, sucrose, isoglucose, glucose or starch or containing, by weight, less than 1,5 % milkfat, 5 % sucrose or isoglucose, 5 % glucose or starch:	80	60	40	20	0
2106 90 98	– – – Other	80	60	40	20	0
2201	Waters, including natural or artificial mineral waters and aerated waters, not containing added sugar or other sweetening matter nor flavoured; ice and snow:					
2201 10	– Mineral waters and aerated waters:					
	– – Natural mineral waters:					
2201 10 11	– – – Not carbonated	90	80	70	60	50
2201 10 19	– – – Other	90	80	70	60	50
2201 10 90	– – Other:	90	80	70	60	50
2201 90 00	– Other	90	80	70	60	50
2202	Waters, including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavoured, and other non-alcoholic beverages, not including fruit or vegetable juices of heading 2009:					
2202 10 00	– Waters including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavoured	90	80	70	60	50
2202 90	– Other:					
2202 90 10	– – Not containing products of headings 0401 to 0404 or fat obtained from products of headings 0401 to 0404	90	80	70	60	50
	– – Other, containing by weight of fat obtained from the products of headings 0401 to 0404:					
2202 90 91	– – – Less than 0,2 %	90	80	70	60	50
2202 90 95	– – – 0,2 % or more but less than 2 %	90	80	70	60	50
2202 90 99	– – – 2 % or more	90	80	70	60	50
2203 00	Beer made from malt:					
	– In containers holding 10 litres or less:					
2203 00 01	– – In bottles	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2203 00 09	– – Other	80	60	40	20	0
2203 00 10	– In containers holding more than 10 litres	80	60	40	20	0
2205	Vermouth and other wine of fresh grapes flavoured with plants or aromatic substances:					
2205 10	– In containers holding 2 litres or less:					
2205 10 10	– – Of an actual alcoholic strength by volume of 18 % vol. or less	80	60	40	20	0
2205 10 90	– – Of an actual alcoholic strength by volume exceeding 18 % vol.	80	60	40	20	0
2205 90	– Other:					
2205 90 10	– – Of an actual alcoholic strength by volume of 18 % vol. or less	80	60	40	20	0
2205 90 90	– – Of an actual alcoholic strength by volume exceeding 18 % vol.	80	60	40	20	0
2207	Undenatured ethyl alcohol of an alcoholic strength by volume of 80 % vol. or higher; ethyl alcohol and other spirits, denatured, of any strength:					
2207 10 00	– Undenatured ethyl alcohol of an alcoholic strength by volume of 80 % vol. or higher	80	60	40	20	0
2207 20 00	– Ethyl alcohol and other spirits, denatured, of any strength	80	60	40	20	0
2208	Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80 % vol; spirits, liqueurs and other spirituous beverages:					
2208 20	– Spirits obtained by distilling grape wine or grape marc:					
	– – In containers holding 2 litres or less:					
2208 20 12	– – – Cognac	80	60	40	20	0
2208 20 14	– – – Armagnac	80	60	40	20	0
2208 20 26	– – – Grappa	80	60	40	20	0
2208 20 27	– – – Brandy de Jerez	80	60	40	20	0
2208 20 29	– – – Other	80	60	40	20	0
	– – In containers holding more than 2 litres:					
2208 20 40	– – – Raw distillate	80	60	40	20	0
	– – – Other:					
2208 20 62	– – – – Cognac:	80	60	40	20	0
2208 20 64	– – – – Armagnac	80	60	40	20	0
2208 20 86	– – – – Grappa	80	60	40	20	0
2208 20 87	– – – – Brandy de Jerez	80	60	40	20	0
2208 20 89	– – – – Other	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2208 30	– Whiskies:					
	– – Bourbon whiskey, in containers holding:					
2208 30 11	– – – 2 litres or less	80	60	40	20	0
2208 30 19	– – – More than 2 litres	80	60	40	20	0
	– – Scotch whisky:					
	– – – Malt whisky, in containers holding:					
2208 30 32	– – – – 2 litres or less	80	60	40	20	0
2208 30 38	– – – – More than 2 litres	80	60	40	20	0
	– – – Blended whisky, in containers holding:					
2208 30 52	– – – – 2 litres or less	80	60	40	20	0
2208 30 58	– – – – More than 2 litres	80	60	40	20	0
	– – – Other, in containers holding:					
2208 30 72	– – – – 2 litres or less	80	60	40	20	0
2208 30 78	– – – – More than 2 litres	80	60	40	20	0
	– – Other in containers holding:					
2208 30 82	– – – 2 litres or less	80	60	40	20	0
2208 30 88	– – – More than 2 litres	80	60	40	20	0
2208 40	– Rum and other spirits obtained by distilling fermented sugar-cane products:					
	– – In containers holding 2 litres or less					
2208 40 11	– – – Rum with a content of volatile substances other than ethyl and methyl alcohol equal to or exceeding 225 grams per hectolitre of pure alcohol (with a 10 % tolerance)	80	60	40	20	0
	– – – Other:					
2208 40 31	– – – – Of a value exceeding € 7.9 per litre of pure alcohol	80	60	40	20	0
2208 40 39	– – – – Other	80	60	40	20	0
	– – In containers holding more than 2 litres:					
2208 40 51	– – – Rum with a content of volatile substances other than ethyl and methyl alcohol equal to or exceeding 225 grams per hectolitre of pure alcohol (with a 10 % tolerance)	80	60	40	20	0
	– – Other:					
2208 40 91	– – – – Of a value exceeding € 2 per litre of pure alcohol	80	60	40	20	0
2208 40 99	– – – – Other	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2208 50	– Gin and Geneva:					
	– – Gin, in containers holding:					
2208 50 11	– – – 2 litres or less	80	60	40	20	0
2208 50 19	– – – More than 2 litres	80	60	40	20	0
	– – Geneva, in containers holding:					
2208 50 91	– – – 2 litres or less	80	60	40	20	0
2208 50 99	– – – More than 2 litres	80	60	40	20	0
2208 60	– Vodka:					
	– – Of an alcoholic strength by volume of 45,4 % vol. or less in containers holding:					
2208 60 11	– – – 2 litres or less	80	60	40	20	0
2208 60 19	– – – More than 2 litres	80	60	40	20	0
	– – Of an alcoholic strength by volume of more than 45,4 % vol. in containers holding:					
2208 60 91	– – – 2 litres or less	80	60	40	20	0
2208 60 99	– – – More than 2 litres	80	60	40	20	0
2208 70	– Liqueurs and cordials:					
2208 70 10	– – In containers holding 2 litres or less	80	60	40	20	0
2208 70 90	– – In containers holding more than 2 litres	80	60	40	20	0
2208 90	– Other:					
	– – Arrack, in containers holding:					
2208 90 11	– – – 2 litres or less	80	60	40	20	0
2208 90 19	– – – More than 2 litres	80	60	40	20	0
	– – Plum, pear or cherry spirit (excluding liqueurs), in containers holding:					
2208 90 33	– – – 2 litres or less:	80	60	40	20	0
2208 90 38	– – – More than 2 litres:	80	60	40	20	0
	– – Other spirits and other spirituous beverages, in containers holding:					
	– – – 2 litres or less:					
2208 90 41	– – – – Ouzo	80	60	40	20	0
	– – – – Other:					
	– – – – – Spirits (excluding liqueurs):					
	– – – – – – Distilled from fruit:					
2208 90 45	– – – – – – – Calvados	80	60	40	20	0
2208 90 48	– – – – – – – Other	80	60	40	20	0
	– – – – – – Other:					
2208 90 52	– – – – – – – Korn	80	60	40	20	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2208 90 54	– – – – – – – – Tequilla	80	60	40	20	0
2208 90 56	– – – – – – – – Other	80	60	40	20	0
2208 90 69	– – – – – Other spirituous beverages	80	60	40	20	0
	– – – More than 2 litres:					
	– – – – Spirits (excluding liqueurs):					
2208 90 71	– – – – – Distilled from fruit	80	60	40	20	0
2208 90 75	– – – – – Tequilla	80	60	40	20	0
2208 90 77	– – – – – Other	80	60	40	20	0
2208 90 78	– – – – Other spirituous beverages	80	60	40	20	0
	– – Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80 % vol, in containers holding:					
2208 90 91	– – – 2 litres or less	80	60	40	20	0
2208 90 99	– – – More than 2 litres	80	60	40	20	0
2402	Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes:					
2402 10 00	– Cigars, cheroots and cigarillos, containing tobacco	80	60	40	20	0
2402 20	– Cigarettes containing tobacco:					
2402 20 10	– – Containing cloves	80	60	40	20	0
2402 20 90	– – Other	80	60	40	20	0
2402 90 00	– Other	80	60	40	20	0
2403	Other manufactured tobacco and manufactured tobacco substitutes; 'homogenised' or 'reconstituted' tobacco; tobacco extracts and essences:					
2403 10	– Smoking tobacco, whether or not containing tobacco substitutes in any proportion:					
2403 10 10	– – In immediate packings of a net content not exceeding 500 g	80	60	40	20	0
2403 10 90	– – Other	80	60	40	20	0
	– Other:					
2403 91 00	– – 'Homogenised' or 'reconstituted' tobacco	80	60	40	20	0
2403 99	– – Other:					
2403 99 10	– – – Chewing tobacco and snuff	80	60	40	20	0
2403 99 90	– – – Other	80	60	40	20	0
2905	Acyclic alcohols and their halogenated, sulphonated, nitrated or nitrosated derivatives:					
	– Other polyhydric alcohols:					
2905 43 00	– – Mannitol	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
2905 44	– – D-glucitol (sorbitol):					
	– – – In aqueous solution:					
2905 44 11	– – – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content	0	0	0	0	0
2905 44 19	– – – – Other	0	0	0	0	0
	– – – Other:					
2905 44 91	– – – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content	0	0	0	0	0
2905 44 99	– – – – Other	0	0	0	0	0
2905 45 00	– – Glycerol	0	0	0	0	0
3301	Essential oils (terpeneless or not), including concretes and absolutes; resinoids; extracted oleoresins; concentrates of essential oils in fats, in fixed oils, in waxes or the like, obtained by enfleurage or maceration; terpenic by-products of the deterpenation of essential oils; aqueous distillates and aqueous solutions of essential oils:					
3301 90	– Other:					
3301 90 10	– – Terpenic by-products of the deterpenation of essential oils	0	0	0	0	0
	– – Extracted oleoresins					
3301 90 21	– – – Of liquorice and hops	0	0	0	0	0
3301 90 30	– – – Other	0	0	0	0	0
3301 90 90	– – Other	0	0	0	0	0
3302	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages:					
3302 10	– Of a kind used in the food or drink industries					
	– – Of the type used in the drink industries:					
	– – – Preparations containing all flavouring agents characterising a beverage:					
3302 10 10	– – – – Of an actual alcoholic strength by volume exceeding 0,5 %	0	0	0	0	0

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
	– – – – Other:					
3302 10 21	– – – – – Containing no milkfats, sucrose, isoglucose, glucose, or starch or containing, by weight, less than 1,5 % milkfat, 5 %sucrose or isoglucose, 5 % glucose or starch	0	0	0	0	0
3302 10 29	– – – – – Other	0	0	0	0	0
3501	Casein, caseinates and other casein derivates; casein glues:					
3501 10	– Casein:					
3501 10 10	– – For the manufacture of regenerated textile fibres	0	0	0	0	0
3501 10 50	– – For industrial uses other than the manufacture of foodstuffs or fodder	0	0	0	0	0
3501 10 90	– – Other	0	0	0	0	0
3501 90	– Other:					
3501 90 90	– – Other	0	0	0	0	0
3505	Dextrins and other modified starches (for example, pregelatinised or esterified starches); glues based on starches, or on dextrins or other modified starches:					
3505 10	– Dextrins and other modified starches:					
3505 10 10	– – Dextrins	0	0	0	0	0
	– – Other modified starches:					
3505 10 90	– – – Other	0	0	0	0	0
3505 20	– Glues:					
3505 20 10	– – Containing, by weight, less than 25 % of starches or dextrins or other modified starches	0	0	0	0	0
3505 20 30	– – Containing, by weight, 25 % or more but less than 55 % of starches or dextrins or other modified starches	0	0	0	0	0
3505 20 50	– – Containing, by weight, 55 % or more but less than 80 % of starches or dextrins or other modified starches	0	0	0	0	0
3505 20 90	– – Containing by weight 80 % or more of starches or dextrins or other modified starches	0	0	0	0	0
3809	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations (for example, dressings and mordants), of a kind used in the textile, paper, leather or like industries, not elsewhere specified or included:					

CN Code	Description	Rate of duty (% of MFN)				
		2008	2009	2010	2011	2012 and after
(1)	(2)	(3)	(4)	(5)	(6)	(7)
3809 10	– With a basis of amylaceouos substances:					
3809 10 10	– – Containing by weight of such substances less than 55 %	0	0	0	0	0
3809 10 30	– – Containing by weight of such substances 55 % or more but less than 70 %	0	0	0	0	0
3809 10 50	– – Containing by weight of such substances 70 % or more but less than 83 %	0	0	0	0	0
3809 10 90	– – Containing by weight of such substances 83 % or more	0	0	0	0	0
3823	Industrial monocarboxylic fatty acids; acid oils from refining; industrial fatty alcohols:					
	– Industrial monocarboxylic fatty acids, acid oils from refining:					
3823 11 00	– – Stearic acid	0	0	0	0	0
3823 12 00	– – Oleic acid	0	0	0	0	0
3823 13 00	– – Tall oil fatty acids	0	0	0	0	0
3823 19	– – Other:					
3823 19 10	– – – Distilled fatty acids	0	0	0	0	0
3823 19 30	– – – Fatty acid distillate	0	0	0	0	0
3823 19 90	– – – Other	0	0	0	0	0
3823 70 00	– Industrial fatty alcohols	0	0	0	0	0
3824	Prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included:					
3824 60	– Sorbitol other than that of subheading 2905 44:					
	– – In aqueous solution:					
3824 60 11	– – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content	0	0	0	0	0
3824 60 19	– – – Other	0	0	0	0	0
	– – Other:					
3824 60 91	– – – Containing 2 % or less by weight of D-mannitol, calculated on the D-glucitol content	0	0	0	0	0
3824 60 99	– – – Other	0	0	0	0	0

PROTOCOL 2

on reciprocal preferential concessions for certain wines, the reciprocal recognition, protection and control of wine, spirit drinks and aromatised wine names

Article 1

This Protocol includes:

1) an Agreement on reciprocal preferential trade concessions for certain wines (Annex I to this Protocol),

2) an Agreement on reciprocal recognition, protection and control of wine, spirits drinks and aromatised wine names (Annex II to this Protocol).

Article 2

The Agreements referred to in Article 1 apply to:

1) wines falling under heading 2204 of the Harmonised System of the International Convention on the Harmonised Commodity Description and Coding System, done at Brussels on 14 June 1983 which have been produced from fresh grapes,

   (a) originate in the Community and have been produced in accordance with the rules governing the oenological practices and processes referred to in Title V of Council Regulation (EC) No 1493/1999 of 17 May 1999 on the common organisation of the market in wine [1], and Commission Regulation (EC) No 1622/2000 of 24 July 2000 laying down detailed rules for implementing Regulation (EC) No 1493/1999 on the common market organisation in wine and establishing a Community code of oenological practices and processes [2];

   or

   (b) originate in Montenegro and have been produced in accordance with the rules governing the oenological practices and processes in conformity with the law of Montenegro. These rules governing the oenological practices and processes shall be in conformity with the Community legislation.

2) spirit drinks falling under heading 2208 of the Convention referred to in paragraph 1 which:

   (a) originate in the Community and comply with Council Regulation (EEC) No 1576/89 of 29 May 1989 laying down general rules on the definition, description and presentation of spirit drinks [3] and Commission Regulation (EEC) No 1014/90 of 24 April 1990 laying down detailed implementing rules on the definition, description and presentation of spirit drinks [4];

   or

   (b) originate in Montenegro, and have been produced in conformity with the law of Montenegro which shall be in conformity with Community legislation.

3) aromatised wines falling under heading 2205 of the Convention referred to in paragraph 1, which:

   (a) originate in the Community and comply with Council Regulation (EEC) No 1601/91 of 10 June 1991 laying down general rules on the definition, description and presentation of aromatised wines, aromatised wine-based drinks and aromatised wine-product cocktails [5];

   or

   (b) originate in Montenegro, and have been produced in conformity with the law of Montenegro which shall be in conformity with Community legislation.

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[1] OJ L 179, 14.7.1999, p. 1. Regulation as last amended by Council Regulation (EC) No 1791/2006 of 20 November 2006 adapting certain Regulations and Decisions in the fields of free movement of goods, freedom of movement of persons, company law, competition policy, agriculture (including veterinary and phytosanitary legislation), transport policy, taxation, statistics, energy, environment, cooperation in the fields of justice and home affairs, customs union, external relations, common foreign and security policy and institutions, by reason of the accession of Bulgaria and Romania (OJ L 363, 20.12.2006, p. 1).

[2] OJ L 194, 31.7.2000, p. 1, Regulation as last amended by Commission Regulation (EC) No 556/2007 (OJ L 132, 24.5.2007, p. 3).

[3] OJ L 160, 12.6.1989, p. 1. Regulation as last amended by the 2005 Act of Accession.

[4] OJ L 105, 25.4.1990, p. 9, Regulation as last amended by Commission Regulation (EC) No 2140/98 (OJ L 270, 7.10.1998, p. 9).

[5] OJ L 149, 14.6.1991, p. 1. Regulation as last amended by the 2005 Act of Accession.

ANNEX I

AGREEMENT

between the Community and Montenegro on reciprocal preferential trade concessions for certain wines

1. Imports into the Community of the following wines referred to in Article 2 of this Protocol shall be subject to the concessions set out below:

CN code	Description (in accordance with Article 2(1)(b) of Protocol 2)	applicable duty	quantities (hl)
ex 2204 10 ex 2204 21	Quality sparkling wine Wine of fresh grapes	exemption	16 000

2. The Community shall grant a preferential zero-duty within the tariff quotas determined in point 1, subject to the condition that no export subsidies shall be paid for exports of these quantities by Montenegro.

3. Imports into Montenegro of the following wines referred to in Article 2 of this Protocol shall be subject to the concessions set out below:

Montenegrin customs tariff code	Description (in accordance with Article 2(1)(a) of Protocol 2	applicable duty	entry into force quantity (hl)	yearly increase (hl)	specific provisions
ex 2204 10 ex 2204 21	Quality sparkling wine Wine of fresh grapes	exemption	1 500	1 000	(1)

(1) The yearly increase is applied until the quota reaches a maximum of 3 500 hl.

4. Montenegro shall grant a preferential zero-duty within tariff quotas determined in point 3, subject to the condition that no export subsidies shall be paid for exports of these quantities by the Community.

5. The rules of origin applicable under this Agreement shall be as set out in Protocol 3.

6. Imports of wine under the concessions provided in this Agreement shall be subject to the presentation of a certificate and an accompanying document in accordance with Commission Regulation (EC) No 883/2001 of 24 April 2001 laying down detailed rules for implementing Council Regulation (EC) No 1493/1999 as regards trade with third countries in products in the wine sector (1) to the effect that the wine in question complies with Article 2(1) of Protocol 2. The certificate and an accompanying document shall be issued by a mutually recognised official body appearing on the lists drawn up jointly.

7. The Parties shall examine the opportunities for granting each other further concessions taking into account the development of wine trade between the Parties no later than three years after the entry into force of this Agreement.

8. The Parties shall ensure that the benefits granted reciprocally are not called into question by other measures.

9. Consultations shall take place at the request of either Party on any problem relating to the way this Agreement operates.

(1) OJ L 128, 10.5.2001, p. 1. Regulation as last amended by Council Regulation (EC) No 1791/2006 of 20 November 2006 adapting certain Regulations and Decisions in the fields of free movement of goods, freedom of movement of persons, company law, competition policy, agriculture (including veterinary and phytosanitary legislation), transport policy, taxation, statistics, energy, environment, cooperation in the fields of justice and home affairs, customs union, external relations, common foreign and security policy and institutions, by reason of the accession of Bulgaria and Romania (OJ L 363, 20.12.2006, p. 1).

ANNEX II

AGREEMENT

between the Community and Montenegro on the reciprocal recognition, protection and control of wine, spirit drinks and aromatised wine names

Article 1

Objectives

1. The Parties shall, on the basis of non-discrimination and reciprocity, recognise, protect and control names of the products referred to in Article 2 of this Protocol in accordance with the conditions provided for in this Annex.

2. The Parties shall take all general and specific measures necessary to ensure that the obligations laid down by this Annex are fulfilled and that the objectives set out in this Annex are attained.

Article 2

Definitions

For the purposes of this Agreement and except where otherwise expressly provided herein:

(a) 'originating', when used in relation to the name of a Party, shall mean that:

— a wine is produced entirely within the Party concerned solely from grapes which have been wholly harvested in that Party,

— a spirit drink or aromatised wine is produced within that Party;

(b) 'geographical indication' as listed in Appendix 1 means an indication as defined in Article 22(1) of the Agreement on Trade Related Aspects of Intellectual Property Rights (hereinafter referred to as 'the TRIPS Agreement');

(c) 'traditional expression' means a traditionally used name, as specified in Appendix 2, referring in particular to the method of production or to the quality, colour, type or place, or a particular event linked to the history of the wine concerned and recognised by the laws and regulations of a Party for the purpose of describing and presenting of such a wine originating in the territory of that Party;

(d) 'homonymous' means the same geographical indication or same traditional expression, or such a term so similar as to be likely to cause confusion, to denote different places, procedures or things;

(e) 'description' means the words used to describe a wine, spirit drink or aromatised wine on a label or documents accompanying the transport of wine, spirit drink or aromatised wine, on commercial documents particularly invoices and delivery notes, and advertising material;

(f) 'labelling' means all descriptions and other references, signs, designs, geographical indications or trademarks which distinguish wines, spirit drinks or aromatised wines and which appear on the same container, including its sealing device or the tag attached to the container and the sheathing covering the neck of bottles;

(g) 'presentation' means the entirety of terms, allusions and the like referring to a wine, spirit drink or aromatised wine used on the labelling, on the packaging; on the containers, the closure, in advertising and/or sales promotion of any kind;

(h) 'packaging' means the protective wrappings, such as papers, straw envelopes of any kind, cartons and cases, used in transport of one or more containers or for sale to the ultimate consumer;

(i) 'produced' means the entire process of wine-making, spirit drink-making and aromatised wine-making;

(j) 'wine' means solely the beverage resulting from full or partial alcoholic fermentation of fresh grapes of the vine varieties, referred to in this Agreement whether or not pressed, or of its must;

(k) 'vine varieties' means varieties of plants of Vitis Vinifera without prejudice to any legislation which a Party may have in respect of the use of different vine varieties in wine produced in that Party;

(l) 'WTO Agreement' means the Marrakesh Agreement establishing the World Trade Organisation done on 15 April 1994.

Article 3

General importation and marketing rules

Unless otherwise provided for in this Agreement, importation and marketing of the products referred to in Article 2 shall be conducted in compliance with the laws and regulations applying in the territory of the Party.

TITLE I

RECIPROCAL PROTECTION OF WINE, SPIRIT DRINKS AND AROMATISED WINE NAMES

Article 4

Protected names

Without prejudice to Articles 5, 6 and 7, the following shall be protected:

(a) as regards the products referred to in Article 2:

— references to the name of the Member State in which the wine, spirit drink and aromatised wine originates or other names to indicate the Member State,

— the geographical indications, listed in Appendix 1, Part A, points (a) for wines (b) for spirit drinks and (c) for aromatised wines,

— the traditional expressions listed in Appendix 2, Part A;

(b) as regards wines, spirit drinks or aromatised wines originating in Montenegro:

— references to the name 'Montenegro' or any other name designating that country,

— the geographical indications, listed in Appendix 1, Part B, points (a) for wines (b) for spirit drinks and (c) for aromatised wines.

Article 5

Protection of names referring to Member States of the Community and of Montenegro

1. In Montenegro, references to the Member States of the Community, and other names used to indicate a Member State, for the purpose of identifying origin of the wine, spirit drink and aromatised wine:

(a) shall be reserved for wines, spirit drinks and aromatised wines originating in the Member State concerned, and

(b) shall not be used by the Community otherwise than under the conditions provided for by the laws and regulations of the Community.

2. In the Community, references to Montenegro, and other names used to indicate Montenegro (whether or not followed by the name of a vine variety), for the purpose of identifying origin of the wine, spirit drink and aromatised wine:

(a) shall be reserved for wines, spirit drinks and aromatised wines originating in Montenegro, and

(b) shall not be used by Montenegro otherwise than under the conditions provided for by the laws and regulations of Montenegro.

Article 6

Protection of geographical indications

1. In Montenegro, the geographical indications for the Community which are listed in Appendix 1, Part A:

(a) shall be protected for wines, spirit drinks and aromatised wines originating in the Community, and

(b) shall not be used otherwise than under the conditions provided for by the laws and regulations of the Community;

2. In the Community, the geographical indications for Montenegro which are listed in Appendix 1, Part B:

(a) shall be protected for wines, spirit drinks and aromatised wines originating in Montenegro, and

(b) shall not be used otherwise than under the conditions provided for by the laws and regulations of Montenegro.

3. The Parties shall take all measures necessary, in accordance with this Agreement, for the reciprocal protection of the names referred to in Article 4(a) and (b) second indents, which are used for the description and presentation of wines, spirit drinks and aromatised wines originating in the territory of the Parties. To that end, each Party shall make use of the appropriate legal means referred to in Article 23 of the TRIPS Agreement to ensure an effective protection and prevent geographical indications from being used to identify wines, spirit drinks and aromatised wines not covered by the indications or the descriptions concerned.

4. The geographical indications referred to in Article 4 shall be reserved exclusively for the products originating in the territory of the Party to which they apply and may be used only under the conditions laid down in the laws and regulations of that Party.

5. The protection provided for in this Agreement shall prohibit in particular any use of protected names for wines, spirit drinks and aromatised wines which do not originate in the geographical area indicated, and shall apply even when:

(a) the true origin of the wine, spirit drink or aromatised wine is indicated;

(b) the geographical indication in question is used in translation;

(c) the name is accompanied by terms such as 'kind', 'type', 'style', 'imitation', 'method' or other expressions of the sort.

(d) the protected name is used in any way for products falling under heading 2009 of the Harmonized System of the International Convention on the Harmonized Commodity Description and Coding System, done at Brussels on 14 June 1983.

6. If geographical indications listed in Appendix 1 are homonymous, protection shall be granted to each indication provided that it has been used in good faith. The Parties shall mutually decide the practical conditions of use under which the homonymous geographical indications will be differentiated from each other, taking into account the need to ensure equitable treatment of the producers concerned and that consumers are not misled.

7. If a geographical indication listed in Appendix 1 is homonymous with a geographical indication for a third country, Article 23(3) of the TRIPS Agreement applies.

8. The provisions of this Agreement shall in no way prejudice the right of any person to use, in the course of trade, that person's name or the name of that person's predecessor in business, except where such name is used in such a manner as to mislead consumers.

9. Nothing in this Agreement shall oblige a Party to protect a geographical indication of the other Party listed in Appendix 1 which is not or ceases to be protected in its country of origin or which has fallen into disuse in that country.

10. On the entry into force of this Agreement, the Parties shall no longer deem that the protected geographical names listed in Appendix 1 are customary in the common language of the Parties as a common name for wines, spirit drinks and aromatised wines as foreseen in Article 24(6) of the TRIPS Agreement.

Article 7

Protection of traditional expressions

1. In Montenegro, the traditional expressions for the Community listed in Appendix 2:

(a) shall not be used for the description or presentation of wine originating in Montenegro; and

(b) may not be used for the description or presentation of wine originating in the Community otherwise than in relation to the wines of the origin and the category and in the language as listed in Appendix 2 and under the conditions provided for by the laws and regulations of the Community.

2. Montenegro shall take the measures necessary, in accordance with this Agreement, for the protection of the traditional expressions referred to in Article 4 and used for the description and presentation of wines originating in the territory of the Community. To that end, Montenegro shall provide appropriate legal means to ensure an effective protection and prevent traditional expressions from being used to describe wine not entitled to those traditional expressions, even where the traditional expressions used are accompanied by expressions such as 'kind', 'type', 'style', 'imitation', 'method' or the like.

3. The protection of a traditional expression shall apply only:

(a) to the language or languages in which it appear(s) in Appendix 2 and not in translation; and

(b) for a category of product in relation to which it is protected for the Community as set out in Appendix 2.

4. The protection provided for in paragraph 3 is without prejudice to Article 4.

Article 8

Trademarks

1. The responsible offices of the Parties shall refuse the registration of a trademark for a wine, spirit drink or aromatised wine which is identical with, or similar to, or contains or consists of a reference to a geographical indication protected under Article 4 of Title I of this Agreement with respect to such wine, spirit drink or aromatised wine not having this origin and not complying with the relevant rules governing its use.

2. The responsible offices of the Parties shall refuse the registration of a trademark for a wine which contains or consists of a traditional expression protected under this Agreement if the wine in question is not one to which the traditional expression is reserved as indicated in Appendix 2.

3. Montenegro shall adopt the necessary measures to amend all trademarks so as to fully remove all reference to Community geographical indications protected under Article 4 of Title I of this Agreement. All said references shall be removed at the latest by 31 December 2008.

Article 9

Exports

The Parties shall take all steps necessary to ensure that, where wines, spirit drinks and aromatised wines originating in a Party are exported and marketed outside that Party, the protected geographical indications referred to in Article 4(a) and (b) second indents and in the case of wines, the traditional expressions of that Party referred to in Article 4(a)(iii) are not used to describe and present such products which originate in the other Party.

TITLE II

ENFORCEMENT AND MUTUAL ASSISTANCE BETWEEN COMPETENT AUTHORITIES AND MANAGEMENT OF THIS AGREEMENT

Article 10

Working Group

1. A Working Group functioning under the auspices of the Sub-Committee on Agriculture to be created in accordance with Article 123 of this Agreement between Montenegro and the Community shall be established.

2. The Working Group shall see to the proper functioning of this Agreement and shall examine all questions which may arise in implementing it.

3. The Working Group may make recommendations, discuss and put forward suggestions on any matter of mutual interest in the wine, spirit drink and aromatised wine sector which would contribute to the attainment of the objectives of this Agreement. It shall meet at the request of either of the Parties, alternatively in the Community and in Montenegro, at time and a place and in a manner mutually determined by the Parties.

Article 11

Tasks of the Parties

1. The Parties shall either directly or through the Working Group referred to in Article 10 maintain contact on all matters relating to the implementation and functioning of this Agreement.

2. Montenegro designates the Ministry of Agriculture, Forestry and Water Management as its representative body. The Community designates the Directorate-General Agriculture and Rural Development of the European Commission, as its representative body. A Party shall notify the other Party if it changes its representative body.

3. The representative body shall ensure the coordination of the activities of all the bodies responsible for ensuring the enforcement of this Agreement.

4. The Parties shall:

(a) mutually amend the lists referred to in Article 4 to this Agreement by decision of the Stabilisation and Association Committee to take account of any amendments to the laws and regulations of the Parties;

(b) mutually decide, by decision of the Stabilisation and Association Committee, that the Appendices to this Agreement should be modified. The Appendices shall be deemed to be modified from the date recorded in an exchange of letters between the Parties, or the date of the Working Group decision, as the case requires;

(c) mutually decide the practical conditions referred to in Article 6(6).

(d) inform each other of the intention to decide new regulations or amendments of existing regulations of public policy concern, such as health or consumer protection, with implications for the wine, spirit and aromatised wine sector;

(e) notify each other of any legislative, administrative and judicial decisions concerning the implementation of this Agreement and inform each other of measures adopted on the basis of such decisions.

Article 12

Application and operation of this Agreement

The Parties designate the contact points set out in Appendix 3 to be responsible for the application and operation of this Agreement.

Article 13

Enforcement and mutual assistance between the Parties

1. If the description or presentation of a wine, spirit drink or aromatised wine in particular on the labelling, in official or commercial documents or in advertising, is in breach of this Agreement, the Parties shall apply the necessary administrative measures and/or shall initiate legal proceedings with a view to combating unfair competition or preventing the wrongful use of the protected name in any other way.

2. The measures and proceedings referred to in paragraph 1 shall be taken in particular:

(a) where descriptions or translation of description, names, inscriptions or illustrations relating to wine, spirit or aromatised wine drinks whose names are protected under this Agreement are used, directly or indirectly, which give false or misleading information as to the origin, nature or quality of the wine, spirit drink or aromatised wine;

(b) where, for packaging, containers are used which are misleading as to the origin of the wine.

3. If one of the Parties has reason to suspect that:

(a) a wine, spirit drink or aromatised wine as defined in Article 2, being or having been traded in Montenegro and the Community, does not comply with rules governing the wine, spirit drink or aromatised wine sector in the Community or in Montenegro or with this Agreement; and

(b) this non-compliance is of particular interest to the other Party and could result in administrative measures and/or legal proceedings being taken,

it shall immediately inform the representative body of the other Party.

4. The information to be provided in accordance with paragraph 3 shall include details of the non-compliance with the rules governing the wine, spirit drink and aromatised wine sector of the Party and/or this Agreement and shall be accompanied by official, commercial or other appropriate documents, with details of any administrative measures or legal proceedings that may, if necessary, be taken.

Article 14

Consultations

1. The Parties shall enter into consultations if one of them considers that the other has failed to fulfil an obligation under this Agreement.

2. The Party which requests the consultations shall provide the other Party with all the information necessary for a detailed examination of the case in question.

3. In cases where any delay could endanger human health or impair the effectiveness of measures to control fraud, appropriate interim protective measures may be taken, without prior consultation, provided that consultations are held immediately after the taking of these measures.

4. If, following the consultations provided for in paragraphs 1 and 3, the Parties have not reached agreement, the Party which requested the consultations or which took the measures referred to in paragraph 3 may take appropriate measures in accordance with Article 129 of this Agreement so as to permit the proper application of this Agreement.

TITLE III

GENERAL PROVISIONS

Article 15

Transit of small quantities

1. This Agreement shall not apply to wines, spirit drinks and aromatised wines, which:

(a) pass in transit through the territory of one of the Parties, or

(b) originate in the territory of one of the Parties and which are consigned in small quantities between those Parties under the conditions and according to the procedures provided for in paragraph II.

2. The following products referred to wines, spirit drinks and aromatised wines shall be considered to be small quantities:

1) quantities in labelled containers of not more than 5 litres fitted with a non-reusable closing device where the total quantity transported, whether or not made up of separate consignments, does not exceed 50 litres;

2) (a) quantities which are contained in the personal luggage of travellers in quantities not exceeding 30 litres;

(b) quantities which are sent in consignments from one private individual to another in quantities not exceeding 30 litres;

(c) quantities which are forming part of the belongings of private individuals who are moving house;

(d) quantities which are imported for the purpose of scientific or technical experiments, subject to a maximum of 1 hectolitre;

(e) quantities which are imported for diplomatic, consular or similar establishments as part of their duty-free allowance;

(f) quantities which are held on board international means of transport as victualling supplies.

The case of exemption referred to in point 1 may not be combined with one or more of the cases of exemption referred to in point 2.

Article 16

Marketing of pre-existing stocks

1. Wines, spirit drinks or aromatised wines which, at the time of the entry into force of this Agreement, have been produced, prepared, described and presented in compliance with the internal laws and regulations of the Parties but are prohibited by this Agreement may be sold until stocks run out.

2. Except where provisions to the contrary are adopted by the Parties, wines, spirit drinks or aromatised wines which have been produced, prepared, described and presented in compliance with this Agreement but whose production, preparation, description and presentation cease to comply therewith as a result of an amendment thereto may continue to be marketed until stocks run out.

APPENDIX 1

LIST OF PROTECTED NAMES

(as referred to in Articles 4 and 6 of Annex II of Protocol 2)

PART A: IN THE COMMUNITY

(a) **WINES ORIGINATING IN THE COMMUNITY**

AUSTRIA

1. Quality wines produced in a specified region

Specified regions
Burgenland
Carnuntum
Donauland
Kamptal
Kärnten
Kremstal
Mittelburgenland
Neusiedlersee
Neusiedlersee-Hügelland
Niederösterreich
Oberösterreich
Salzburg
Steiermark
Südburgenland
Süd-Oststeiermark
Südsteiermark
Thermenregion
Tirol
Traisental
Vorarlberg
Wachau
Weinviertel
Weststeiermark
Wien

2. Table wines with a geographical indication

Bergland
Steirerland
Weinland
Wien

BELGIUM

1. Quality wines produced in a specified region

Names of specified regions
Côtes de Sambre et Meuse
Hagelandse Wijn
Haspengouwse Wijn
Heuvellandse wijn
Vlaamse mousserende kwaliteitswijn

2. Table wines with a geographical indication

Vin de pays des jardins de Wallonie
Vlaamse landwijn

BULGARIA

1. Quality wines produced in a specified region

Specified regions
Асеновград (*Asenovgrad*)
Черноморски район (*Black Sea Region*)
Брестник (*Brestnik*)
Драгоево (*Dragoevo*)
Евксиноград (*Evksinograd*)
Хан Крум (*Han Krum*)
Хърсово (*Harsovo*)
Хасково (*Haskovo*)
Хисаря (*Hisarya*)
Ивайловград (*Ivaylovgrad*)
Карлово (*Karlovo*)
Карнобат (*Karnobat*)
Ловеч (*Lovech*)
Лозица (*Lozitsa*)
Лом (*Lom*)
Любимец (*Lyubimets*)
Лясковец (*Lyaskovets*)
Мелник (*Melnik*)
Монтана (*Montana*)
Нова Загора (*Nova Zagora*)
Нови Пазар (*Novi Pazar*)
Ново село (*Novo Selo*)
Оряховица (*Oryahovitsa*)
Павликени (*Pavlikeni*)
Пазарджик (*Pazardjik*)
Перущица (*Perushtitsa*)
Плевен (*Pleven*)
Пловдив (*Plovdiv*)

Specified regions
Поморие (*Pomorie*)
Русе (*Ruse*)
Сакар (*Sakar*)
Сандански (*Sandanski*)
Септември (*Septemvri*)
Шивачево (*Shivachevo*)
Шумен (*Shumen*)
Славянци (*Slavyantsi*)
Сливен (*Sliven*)
Южно Черноморие (*Southern Black Sea Coast*)
Стамболово (*Stambolovo*)
Стара Загора (*Stara Zagora*)
Сухиндол (*Suhindol*)
Сунгурларе (*Sungurlare*)
Свищов (*Svishtov*)
Долината на Струма (*Struma valley*)
Търговище (*Targovishte*)
Върбица (*Varbitsa*)
Варна (*Varna*)
Велики Преслав (*Veliki Preslav*)
Видин (*Vidin*)
Враца (*Vratsa*)
Ямбол (*Yambol*)

2. Table wines with a geographical indication

Дунавска равнина (*Danube Plain*)
Тракийска низина (*Thracian Lowlands*)

CYPRUS

1. Quality wines produced in a specified region

In Greek		*In English*	
Specified regions	*Sub-regions (whether or not preceeded by the name of the specified region)*	*Specified regions*	*Sub-regions (whether or not preceeded by the name of the specified region)*
Κουμανδαρία		Commandaria	
Λαόνα Ακάμα		Laona Akama	
Βουνί Παναγιάς – Αμπελίτης		Vouni Panayia – Ambelitis	
Πιτσιλιά		Pitsilia	
Κρασοχώρια Λεμεσού	Αφάμης *or* Λαόνα	Krasohoria Lemesou	Afames *or* Laona

2. Table wines with a geographical indication

In Greek	*In English*
Λεμεσός	Lemesos
Πάφος	Pafos
Λευκωσία	Lefkosia
Λάρνακα	Larnaka

CZECH REPUBLIC

1. Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions (whether or not followed by either the name of a wine-growing commune and/or the name of a vineyard estate)*
čechy	litoměřická
	mělnická
Morava	mikulovská
	slovácká
	velkopavlovická
	znojemská

2. Table wines with a geographical indication

české zemské víno
moravské zemské víno

FRANCE

1. Quality wines produced in a specified region

Alsace Grand Cru, *followed by the name of a smaller geographical unit*
Alsace, *whether or not followed by the name of a smaller geographical unit*
Alsace*or* Vin d'Alsace, *whether or notfollowed by 'Edelzwicker' or the name of a vine variety and/or the name of a smaller geographical unit*
Ajaccio
Aloxe-Corton
Anjou, *whether or not followed by* Val de Loire *or* Coteaux de la Loire, *or* Villages Brissac
Anjou, *whether or not followed by 'Gamay', 'Mousseux' or 'Villages'*
Arbois
Arbois Pupillin
Auxey-Duresses *or* Auxey-Duresses Côte de Beaune *or* Auxey-Duresses Côte de Beaune-Villages
Bandol
Banyuls
Barsac
Bâtard-Montrachet
Béarn *or* Béarn Bellocq
Beaujolais Supérieur
Beaujolais, *whether or not followed by the name of a smaller geographical unit*
Beaujolais-Villages
Beaumes-de-Venise, *whether or not preceeded by 'Muscat de'*
Beaune
Bellet *or* Vin de Bellet
Bergerac
Bienvenues Bâtard-Montrachet
Blagny
Blanc Fumé de Pouilly

Blanquette de Limoux

Blaye

Bonnes Mares

Bonnezeaux

Bordeaux Côtes de Francs

Bordeaux Haut-Benauge

Bordeaux, *whether or not followed or not by 'Clairet' or 'Supérieur' or 'Rosé' or 'mousseux'*

Bourg

Bourgeais

Bourgogne, *whether or not followed by 'Clairet' or 'Rosé' or by the name of a smaller geographical unit*

Bourgogne Aligoté

Bourgueil

Bouzeron

Brouilly

Buzet

Cabardès

Cabernet d'Anjou

Cabernet de Saumur

Cadillac

Cahors

Canon-Fronsac

Cap Corse, *preceeded by 'Muscat de'*

Cassis

Cérons

Chablis Grand Cru, *whether or not followed by the name of a smaller geographical unit*

Chablis, *whether or not followed by the name of a smaller geographical unit*

Chambertin

Chambertin Clos de Bèze

Chambolle-Musigny

Champagne

Chapelle-Chambertin

Charlemagne

Charmes-Chambertin

Chassagne-Montrachet *or* Chassagne-Montrachet Côte de Beaune *or* Chassagne-Montrachet Côte de Beaune-Villages

Château Châlon

Château Grillet

Châteaumeillant

Châteauneuf-du-Pape

Châtillon-en-Diois

Chenas

Chevalier-Montrachet

Cheverny

Chinon

Chiroubles

Chorey-lès-Beaune *or* Chorey-lès-Beaune Côte de Beaune *or* Chorey-lès-Beaune Côte de Beaune-Villages

Clairette de Bellegarde

Clairette de Die

Clairette du Languedoc, *whether or not followed by the name of a smaller geographical unit*

Clos de la Roche

Clos de Tart

Clos des Lambrays

Clos Saint-Denis

Clos Vougeot

Collioure

Condrieu

Corbières, *whether or not followed by* Boutenac

Cornas

Corton

Corton-Charlemagne

Costières de Nîmes

Côte de Beaune, *whether or not followed by the name of a smaller geographical unit*

Côte de Beaune-Villages

Côte de Brouilly

Côte de Nuits

Côte Roannaise

Côte Rôtie

Coteaux Champenois, *whether or not followed by a the name of a smaller geographical unit*

Coteaux d'Aix-en-Provence

Coteaux d'Ancenis, *whether or not followed by the of a vine variety*

Coteaux de Die

Coteaux de l'Aubance

Coteaux de Pierrevert

Coteaux de Saumur

Coteaux du Giennois

Coteaux du Languedoc Picpoul de Pinet

Coteaux du Languedoc, *whether or not followed by the name of a smaller geographical unit*

Coteaux du Layon *or* Coteaux du Layon Chaume

Coteaux du Layon, *whether or not followed by the name of a smaller geographical unit*

Coteaux du Loir

Coteaux du Lyonnais

Coteaux du Quercy

Coteaux du Tricastin

Coteaux du Vendômois

Coteaux Varois

Côte-de-Nuits-Villages

Côtes Canon-Fronsac

Côtes d'Auvergne, *whether or not followed by the name of a smaller geographical unit*

Côtes de Beaune, *whether or not followed by the name of a smaller geographical unit*

Côtes de Bergerac

Côtes de Blaye

Côtes de Bordeaux Saint-Macaire

Côtes de Bourg

Côtes de Brulhois

Côtes de Castillon

Côtes de Duras

Côtes de la Malepère

Côtes de Millau

Côtes de Montravel

Côtes de Provence, *whether or not followed by* Sainte Victoire

Côtes de Saint-Mont

Côtes de Toul

Côtes du Frontonnais, *whether or not followed by* Fronton *or* Villaudric

Côtes du Jura

Côtes du Lubéron

Côtes du Marmandais

Côtes du Rhône

Côtes du Rhône Villages, *whether or not followed by the name of a smaller geographical unit*

Côtes du Roussillon

Côtes du Roussillon Villages, *whether or not followed by the following communes* Caramany *or* Latour de France *or* Les Aspres *or* Lesquerde *or* Tautavel

Côtes du Ventoux

Côtes du Vivarais

Cour-Cheverny

Crémant d'Alsace

Crémant de Bordeaux

Crémant de Bourgogne

Crémant de Die

Crémant de Limoux

Crémant de Loire

Crémant du Jura

Crépy

Criots Bâtard-Montrachet

Crozes Ermitage

Crozes-Hermitage

Echezeaux

Entre-Deux-Mers *or* Entre-Deux-Mers Haut-Benauge

Ermitage

Faugères

Fiefs Vendéens, *whether or not followed by the 'lieu dits'* Mareuil *or* Brem *or* Vix *or* Pissotte

Fitou

Fixin

Fleurie

Floc de Gascogne

Fronsac

Frontignan

Gaillac

Gaillac Premières Côtes

Gevrey-Chambertin

Gigondas

Givry

Grand Roussillon

Grands Echezeaux

Graves

Graves de Vayres

Griotte-Chambertin

Gros Plant du Pays Nantais

Haut Poitou

Haut-Médoc

Haut-Montravel

Hermitage

Irancy

Irouléguy

Jasnières

Juliénas

Jurançon

L'Etoile

La Grande Rue

Ladoix *or* Ladoix Côte de Beaune *or* Ladoix Côte de beaune-Villages

Lalande de Pomerol

Languedoc, *whether or not followed by the name of a smaller geographical unit*

Latricières-Chambertin

Les-Baux-de-Provence

Limoux

Lirac

Listrac-Médoc

Loupiac

Lunel, *whether or not preceeded by 'Muscat de'*

Lussac Saint-Émilion

Mâcon *or* Pinot-Chardonnay-Macôn

Mâcon, *whether or not followed by the name of a smaller geographical unit*

Mâcon-Villages

Macvin du Jura

Madiran

Maranges Côte de Beaune *or* Maranges Côtes de Beaune-Villages

Maranges, *whether or not followed by the name of a smaller geographical unit*

Marcillac

Margaux

Marsannay

Maury

Mazis-Chambertin

Mazoyères-Chambertin

Médoc

Menetou Salon, *whether or not followed by the name of a smaller geographical unit*

Mercurey

Meursault *or* Meursault Côte de Beaune *or* Meursault Côte de Beaune-Villages

Minervois

Minervois-la-Livinière

Mireval

Monbazillac

Montagne Saint-Émilion

Montagny

Monthélie *or* Monthélie Côte de Beaune *or* Monthélie Côte de Beaune-Villages

Montlouis, *whether or not followed by 'mousseux' or 'pétillant'*

Montrachet

Montravel

Morey-Saint-Denis

Morgon

Moselle

Moulin-à-Vent

Moulis

Moulis-en-Médoc

Muscadet

Muscadet Coteaux de la Loire

Muscadet Côtes de Grandlieu

Muscadet Sèvre-et-Maine

Musigny

Néac

Nuits

Nuits-Saint-Georges

Orléans

Orléans-Cléry

Pacherenc du Vic-Bilh

Palette

Patrimonio

Pauillac

Pécharmant

Pernand-Vergelesses *or* Pernand-Vergelesses Côte de Beaune *or* Pernand-Vergelesses Côte de Beaune-Villages

Pessac-Léognan

Petit Chablis, *whether or not followed by the name of a smaller geographical unit*

Pineau des Charentes

Pinot-Chardonnay-Macôn

Pomerol

Pommard

Pouilly Fumé

Pouilly-Fuissé

Pouilly-Loché

Pouilly-sur-Loire

Pouilly-Vinzelles

Premières Côtes de Blaye

Premières Côtes de Bordeaux, *whether or not followed by the name of a smaller geographical unit*

Puisseguin Saint-Émilion

Puligny-Montrachet *or* Puligny-Montrachet Côte de Beaune *or* Puligny-Montrachet Côte de Beaune-Villages

Quarts-de-Chaume

Quincy

Rasteau

Rasteau Rancio

Régnié

Reuilly

Richebourg

Rivesaltes, *whether or not preceeded by 'Muscat de'*

Rivesaltes Rancio

Romanée (La)

Romanée Conti

Romanée Saint-Vivant

Rosé des Riceys

Rosette

Roussette de Savoie, *whether or not followed by the name of a smaller geographical unit*

Roussette du Bugey, *whether or not followed by the name of a smaller geographical unit*

Ruchottes-Chambertin

Rully

Saint Julien

Saint-Amour

Saint-Aubin *or* Saint-Aubin Côte de Beaune *or* Saint-Aubin Côte de Beaune-Villages

Saint-Bris

Saint-Chinian

Sainte-Croix-du-Mont

Sainte-Foy Bordeaux

Saint-Émilion

Saint-Emilion Grand Cru

Saint-Estèphe

Saint-Georges Saint-Émilion

Saint-Jean-de-Minervois, *whether or not preceeded by 'Muscat de'*

Saint-Joseph

Saint-Nicolas-de-Bourgueil

Saint-Péray

Saint-Pourçain

Saint-Romain *or* Saint-Romain Côte de Beaune *or* Saint-Romain Côte de Beaune-Villages

Saint-Véran

Sancerre

Santenay *or* Santenay Côte de Beaune *or* Santenay Côte de Beaune-Villages

Saumur Champigny

Saussignac

Sauternes

Savennières

Savennières-Coulée-de-Serrant

Savennières-Roche-aux-Moines

Savigny *or* Savigny-lès-Beaune

Seyssel

Tâche (La)

Tavel

Thouarsais

Touraine Amboise

Touraine Azay-le-Rideau

Touraine Mesland

Touraine Noble Joue

Touraine

Tursan

Vacqueyras

Valençay

Vin d'Entraygues et du Fel

Vin d'Estaing

Vin de Corse, *whether or not followed by the name of a smaller geographical unit*

Vin de Lavilledieu

Vin de Savoie *or* Vin de Savoie-Ayze, *whether or not followed by the name of a smaller geographical unit*

Vin du Bugey, *whether or not followed by the name of a smaller geographical unit*

Vin Fin de la Côte de Nuits

Viré Clessé

Volnay

Volnay Santenots

Vosne-Romanée

Vougeot

Vouvray, *whether or not followed by 'mousseux' or 'pétillant'*

2. Table wines with a geographical indication

Vin de pays de l'Agenais

Vin de pays d'Aigues

Vin de pays de l'Ain

Vin de pays de l'Allier

Vin de pays d'Allobrogie

Vin de pays des Alpes de Haute-Provence

Vin de pays des Alpes Maritimes

Vin de pays de l'Ardèche

Vin de pays d'Argens

Vin de pays de l'Ariège

Vin de pays de l'Aude

Vin de pays de l'Aveyron

Vin de pays des Balmes dauphinoises

Vin de pays de la Bénovie

Vin de pays du Bérange

Vin de pays de Bessan

Vin de pays de Bigorre

Vin de pays des Bouches du Rhône

Vin de pays du Bourbonnais

Vin de pays du Calvados

Vin de pays de Cassan

Vin de pays Cathare

Vin de pays de Caux

Vin de pays de Cessenon

Vin de pays des Cévennes, *whether or not followed by* Mont Bouquet

Vin de pays Charentais, *whether or not followed by* Ile de Ré *or* Ile d'Oléron *or* Saint-Sornin

Vin de pays de la Charente

Vin de pays des Charentes-Maritimes

Vin de pays du Cher

Vin de pays de la Cité de Carcassonne

Vin de pays des Collines de la Moure

Vin de pays des Collines rhodaniennes

Vin de pays du Comté de Grignan

Vin de pays du Comté tolosan

Vin de pays des Comtés rhodaniens

Vin de pays de la Corrèze

Vin de pays de la Côte Vermeille

Vin de pays des coteaux charitois

Vin de pays des coteaux d'Enserune

Vin de pays des coteaux de Besilles

Vin de pays des coteaux de Cèze

Vin de pays des coteaux de Coiffy

Vin de pays des coteaux Flaviens

Vin de pays des coteaux de Fontcaude

Vin de pays des coteaux de Glanes

Vin de pays des coteaux de l'Ardèche

Vin de pays des coteaux de l'Auxois

Vin de pays des coteaux de la Cabrerisse

Vin de pays des coteaux de Laurens

Vin de pays des coteaux de Miramont

Vin de pays des coteaux de Montélimar

Vin de pays des coteaux de Murviel

Vin de pays des coteaux de Narbonne

Vin de pays des coteaux de Peyriac

Vin de pays des coteaux des Baronnies

Vin de pays des coteaux du Cher et de l'Arnon

Vin de pays des coteaux du Grésivaudan

Vin de pays des coteaux du Libron

Vin de pays des coteaux du Littoral Audois

Vin de pays des coteaux du Pont du Gard

Vin de pays des coteaux du Salagou

Vin de pays des coteaux de Tannay

Vin de pays des coteaux du Verdon

Vin de pays des coteaux et terrasses de Montauban

Vin de pays des côtes catalanes

Vin de pays des côtes de Gascogne

Vin de pays des côtes de Lastours

Vin de pays des côtes de Montestruc

Vin de pays des côtes de Pérignan

Vin de pays des côtes de Prouilhe

Vin de pays des côtes de Thau

Vin de pays des côtes de Thongue

Vin de pays des côtes du Brian

Vin de pays des côtes de Ceressou

Vin de pays des côtes du Condomois

Vin de pays des côtes du Tarn

Vin de pays des côtes du Vidourle

Vin de pays de la Creuse

Vin de pays de Cucugnan

Vin de pays des Deux-Sèvres

Vin de pays de la Dordogne

Vin de pays du Doubs

Vin de pays de la Drôme

Vin de pays Duché d'Uzès

Vin de pays de Franche-Comté, *whether or not followed by* Coteaux de Champlitte

Vin de pays du Gard

Vin de pays du Gers

Vin de pays des Hautes-Alpes

Vin de pays de la Haute-Garonne

Vin de pays de la Haute-Marne

Vin de pays des Hautes-Pyrénées

Vin de pays d'Hauterive, *whether or not followed by* Val d'Orbieu *or* Coteaux du Termenès *or* Côtes de Lézignan

Vin de pays de la Haute-Saône

Vin de pays de la Haute-Vienne

Vin de pays de la Haute vallée de l'Aude

Vin de pays de la Haute vallée de l'Orb

Vin de pays des Hauts de Badens

Vin de pays de l'Hérault

Vin de pays de l'Ile de Beauté

Vin de pays de l'Indre et Loire

Vin de pays de l'Indre

Vin de pays de l'Isère

Vin de pays du Jardin de la France, *whether or not followed by* Marches de Bretagne *or* Pays de Retz

Vin de pays des Landes

Vin de pays de Loire-Atlantique

Vin de pays du Loir et Cher

Vin de pays du Loiret

Vin de pays du Lot

Vin de pays du Lot et Garonne

Vin de pays des Maures

Vin de pays de Maine et Loire

Vin de pays de la Mayenne

Vin de pays de Meurthe-et-Moselle

Vin de pays de la Meuse

Vin de pays du Mont Baudile

Vin de pays du Mont Caume

Vin de pays des Monts de la Grage

Vin de pays de la Nièvre

Vin de pays d'Oc

Vin de pays du Périgord, *followed or not by* Vin de Domme

Vin de pays de la Petite Crau

Vin de pays des Portes de Méditerranée

Vin de pays de la Principauté d'Orange

Vin de pays du Puy de Dôme

Vin de pays des Pyrénées-Atlantiques

Vin de pays des Pyrénées-Orientales

Vin de pays des Sables du Golfe du Lion

Vin de pays de la Sainte Baume

Vin de pays de Saint Guilhem-le-Désert

Vin de pays de Saint-Sardos

Vin de pays de Sainte Marie la Blanche

Vin de pays de Saône et Loire

Vin de pays de la Sarthe

Vin de pays de Seine et Marne

Vin de pays du Tarn

Vin de pays du Tarn et Garonne

Vin de pays des Terroirs landais, *whether or not followed by* Coteaux de Chalosse *or* Côtes de L'Adour *or* Sables Fauves *or* Sables de l'Océan

Vin de pays de Thézac-Perricard

Vin de pays du Torgan

Vin de pays d'Urfé

Vin de pays du Val de Cesse

Vin de pays du Val de Dagne

Vin de pays du Val de Montferrand

Vin de pays de la Vallée du Paradis

Vin de pays du Var

Vin de pays du Vaucluse

Vin de pays de la Vaunage

Vin de pays de la Vendée

Vin de pays de la Vicomté d'Aumelas

Vin de pays de la Vienne

Vin de pays de la Vistrenque

Vin de pays de l'Yonne

GERMANY

1. Quality wines produced in a specified region

Names of specified regions (whether or not followed by the name of a sub-region)	*Sub-regions*
Ahr	Walporzheim *or* Ahrtal
Baden	Badische Bergstraße
	Bodensee
	Breisgau
	Kaiserstuhl
	Kraichgau
	Markgräflerland
	Ortenau
	Tauberfranken
	Tuniberg
Franken	Maindreieck
	Mainviereck
	Steigerwald
Hessische Bergstraße	Starkenburg
	Umstadt
Mittelrhein	Loreley
	Siebengebirge
Mosel-Saar-Ruwer *or* Mosel *or* Saar*or* Ruwer	Bernkastel
	Burg Cochem
	Moseltor
	Obermosel
	Ruwertal
	Saar
Nahe	Nahetal
Pfalz	Mittelhaardt Deutsche Weinstraße
	Südliche Weinstraße
Rheingau	Johannisberg
Rheinhessen	Bingen
	Nierstein
	Wonnegau
Saale-Unstrut	Mansfelder Seen
	Schloß Neuenburg
	Thüringen
Sachsen	Elstertal
	Meißen
Württemberg	Bayerischer Bodensee
	Kocher-Jagst-Tauber
	Oberer Neckar
	Remstal-Stuttgart
	Württembergischer Bodensee
	Württembergisch Unterland

2. Table wines with a geographical indication

Landwein	*Tafelwein*
Ahrtaler Landwein	Albrechtsburg
Badischer Landwein	Bayern
Bayerischer Bodensee-Landwein	Burgengau
Landwein Main	Donau
Landwein der Mosel	Lindau

Landwein	*Tafelwein*
Landwein der Ruwer	Main
Landwein der Saar	Mosel
Mecklenburger Landwein	Neckar
Mitteldeutscher Landwein	Oberrhein
Nahegauer Landwein	Rhein
Pfälzer Landwein	Rhein-Mosel
Regensburger Landwein	Römertor
Rheinburgen-Landwein	StargarderLand
Rheingauer Landwein	
Rheinischer Landwein	
Saarländischer Landwein der Mosel	
Sächsischer Landwein	
Schwäbischer Landwein	
Starkenburger Landwein	
Taubertäler Landwein	

GREECE

1. Quality wines produced in a specified region

Specified regions	
In Greek	*In English*
Σάμος	Samos
Μοσχάτος Πατρών	Moschatos Patra
Μοσχάτος Ρίου – Πατρών	Moschatos Riou Patra
Μοσχάτος Κεφαλληνίας	Moschatos Kephalinia
Μοσχάτος Λήμνου	Moschatos Lemnos
Μοσχάτος Ρόδου	Moschatos Rhodos
Μαυροδάφνη Πατρών	Mavrodafni Patra
Μαυροδάφνη Κεφαλληνίας	Mavrodafni Kephalinia
Σητεία	Sitia
Νεμέα	Nemea
Σαντορίνη	Santorini
Δαφνές	Dafnes
Ρόδος	Rhodos
Νάουσα	Naoussa
Ρομπόλα Κεφαλληνίας	Robola Kephalinia
Ραψάνη	Rapsani
Μαντινεία	Mantinia
Μεσενικόλα	Mesenicola
Πεζά	Peza
Αρχάνες	Archanes
Πάτρα	Patra
Ζίτσα	Zitsa
Αμύνταιο	Amynteon
Γουμένισσα	Goumenissa

Specified regions	
In Greek	*In English*
Πάρος	Paros
Λήμνος	Lemnos
Αγχίαλος	Anchialos
Πλαγιές Μελίτωνα	Slopes of Melitona

2. Table wines with a geogrpahicl indication

In Greek	*In English*
Ρετσίνα Μεσογείων, *whether or not followed by* Αττικής	Retsina of Mesogia, *whether or not followed by* Attika
Ρετσίνα Κρωπίας *or* Ρετσίνα Κορωπίου, *whether or not followed by* Αττικής	Retsina of Kropia *or* Retsina Koropi, *whether or not followed by* Attika
Ρετσίνα Μαρκοπούλου, *whether or not followed by* Αττικής	Retsina of Markopoulou, *whether or not followed by* Attika
Ρετσίνα Μεγάρων, *whether or not followed by* Αττικής	Retsina of Megara, *whether or not followed by* Attika
Ρετσίνα Παιανίας *or* Ρετσίνα Λιοπεσίου, *whether or not followed by* Αττικής	Retsina of Peania *or* Retsina of Liopesi, *whether or not followed by* Attika
Ρετσίνα Παλλήνης, *whether or not followed by* Αττικής	Retsina of Pallini, *whether or not followed by* Attika
Ρετσίνα Πικερμίου, *whether or not followed by* Αττικής	Retsina of Pikermi, *whether or not followed by* Attika
Ρετσίνα Σπάτων, *whether or not followed by* Αττικής	Retsina of Spata, *whether or not followed by* Attika
Ρετσίνα Θηβών, *whether or not followed by* Βοιωτίας	Retsina of Thebes, *whether or not followed by* Viotias
Ρετσίνα Γιάλτρων, *whether or not followed by* Ευβοίας	Retsina of Gialtra, *whether or not followed by* Evvia
Ρετσίνα Καρύστου, *whether or not followed by* Ευβοίας	Retsina of Karystos, *whether or not followed by* Evvia
Ρετσίνα Χαλκίδας, *whether or not followed by* Ευβοίας	Retsina of Halkida, *whether or not followed by* Evvia
Βερντεα Ζακύνθου	Verntea Zakynthou
Αγιορείτικος Τοπικός Οίνος	Regional wine of Mount Athos Agioritikos
Τοπικός Οίνος Αναβύσσου	Regional wine of Anavyssos
Αττικός Τοπικός Οίνος	Regional wine of Attiki-Attikos
Τοπικός Οίνος Βίλιτσας	Regional wine of Vilitsa
Τοπικός Οίνος Γρεβενών	Regional wine of Grevena
Τοπικός Οίνος Δράμας	Regional wine of Drama
Δωδεκανησιακός Τοπικός Οίνος	Regional wine of Dodekanese - Dodekanissiakos
Τοπικός Οίνος Επανομής	Regional wine of Epanomi
Ηρακλειώτικος Τοπικός Οίνος	Regional wine of Heraklion - Herakliotikos
Θεσσαλικός Τοπικός Οίνος	Regional wine of Thessalia - Thessalikos
Θηβαϊκός Τοπικός Οίνος	Regional wine of Thebes - Thivaikos
Τοπικός Οίνος Κισσάμου	Regional wine of Kissamos
Τοπικός Οίνος Κρανιάς	Regional wine of Krania
Κρητικός Τοπικός Οίνος	Regional wine of Crete - Kritikos
Λασιθιώτικος Τοπικός Οίνος	Regional wine of Lasithi - Lasithiotikos
Μακεδονικός Τοπικός Οίνος	Regional wine of Macedonia - Macedonikos
Τοπικός Οίνος Νέας Μεσήμβριας	Regional wine of Nea Messimvria
Μεσσηνιακός Τοπικός Οίνος	Regional wine of Messinia - Messiniakos
Παιανίτικος Τοπικός Οίνος	Regional wine of Peanea
Παλληνιώτικος Τοπικός Οίνος	Regional wine of Pallini - Palliniotikos
Πελοποννησιακός Τοπικός Οίνος	Regional wine of Peloponnese - Peloponnisiakos
Τοπικός Οίνος Πλαγιές Αμπέλου	Regional wine of Slopes of Ambelos
Τοπικός Οίνος Πλαγιές Βερτίσκου	Regional wine of Slopes of Vertiskos

In Greek	*In English*
Τοπικός Οίνος Πλαγιών Κιθαιρώνα	Regional wine of Slopes of Kitherona
Κορινθιακός Τοπικός Οίνος	Regional wine of Korinthos - Korinthiakos
Τοπικός Οίνος Πλαγιών Πάρνηθας	Regional wine of Slopes of Parnitha
Τοπικός Οίνος Πυλίας	Regional wine of Pylia
Τοπικός Οίνος Τριφυλίας	Regional wine of Trifilia
Τοπικός Οίνος Τυρνάβου	Regional wine of Tyrnavos
Τοπικός Οίνος Σιάτιστας	Regional wine of Siatista
Τοπικός Οίνος Ριτσώνας Αυλίδας	Regional wine of Ritsona Avlidas
Τοπικός Οίνος Λετρίνων	Regional wine of Letrines
Τοπικός Οίνος Σπάτων	Regional wine of Spata
Τοπικός Οίνος Πλαγιών Πεντελικού	Regional wine of Slopes of Pendeliko
Αιγαιοπελαγίτικος Τοπικός Οίνος	Regional wine of Aegean Sea
Τοπικός Οίνος Ληλάντιου πεδίου	Regional wine of Lilantio Pedio
Τοπικός Οίνος Μαρκόπουλου	Regional wine of Markopoulo
Τοπικός Οίνος Τεγέας	Regional wine of Tegea
Τοπικός Οίνος Αδριανής	Regional wine of Adriani
Τοπικός Οίνος Χαλικούνας	Regional wine of Halikouna
Τοπικός Οίνος Χαλκιδικής	Regional wine of Halkidiki
Καρυστινός Τοπικός Οίνος	Regional wine of Karystos - Karystinos
Τοπικός Οίνος Πέλλας	Regional wine of Pella
Τοπικός Οίνος Σερρών	Regional wine of Serres
Συριανός Τοπικός Οίνος	Regional wine of Syros - Syrianos
Τοπικός Οίνος Πλαγιών Πετρωτού	Regional wine of Slopes of Petroto
Τοπικός Οίνος Γερανείων	Regional wine of Gerania
Τοπικός Οίνος Οπούντιας Λοκρίδος	Regional wine of Opountia Lokridos
Τοπικός Οίνος Στερεάς Ελλάδας	Regional wine of Sterea Ellada
Τοπικός Οίνος Αγοράς	Regional wine of Agora
Τοπικός Οίνος Κοιλάδος Αταλάντης	Regional wine of Valley of Atalanti
Τοπικός Οίνος Αρκαδίας	Regional wine of Arkadia
Τοπικός Οίνος Παγγαίου	Regional wine of Pangeon
Τοπικός Οίνος Μεταξάτων	Regional wine of Metaxata
Τοπικός Οίνος Ημαθίας	Regional wine of Imathia
Τοπικός Οίνος Κλημέντι	Regional wine of Klimenti
Τοπικός Οίνος Κέρκυρας	Regional wine of Corfu
Τοπικός Οίνος Σιθωνίας	Regional wine of Sithonia
Τοπικός Οίνος Μαντζαβινάτων	Regional wine of Mantzavinata
Ισμαρικός Τοπικός Οίνος	Regional wine of Ismaros - Ismarikos
Τοπικός Οίνος Αβδήρων	Regional wine of Avdira
Τοπικός Οίνος Ιωαννίνων	Regional wine of Ioannina
Τοπικός Οίνος Πλαγιές Αιγιαλείας	Regional wine of Slopes of Egialia
Τοπικός Οίνος Πλαγίες Αίνου	Regional wine of Slopes of Enos
Θρακικός Τοπικός Οίνος *or* Τοπικός Οίνος Θράκης	Regional wine of Thrace - Thrakikos *or* Regional wine of Thrakis
Τοπικός Οίνος Ιλίου	Regional wine of Ilion
Μετσοβίτικος Τοπικός Οίνος	Regional wine of Metsovo - Metsovitikos

In Greek	*In English*
Τοπικός Οίνος Κορωπίου	Regional wine of Koropi
Τοπικός Οίνος Φλώρινας	Regional wine of Florina
Τοπικός Οίνος Θαψανών	Regional wine of Thapsana
Τοπικός Οίνος Πλαγιών Κνημίδος	Regional wine of Slopes of Knimida
Ηπειρωτικός Τοπικός Οίνος	Regional wine of Epirus - Epirotikos
Τοπικός Οίνος Πισάτιδος	Regional wine of Pisatis
Τοπικός Οίνος Λευκάδας	Regional wine of Lefkada
Μονεμβάσιος Τοπικός Οίνος	Regional wine of Monemvasia - Monemvasios
Τοπικός Οίνος Βελβεντού	Regional wine of Velvendos
Λακωνικός Τοπικός Οίνος	Regional wine of Lakonia – Lakonikos
Τοπικός Οίνος Μαρτίνου	Regional wine of Martino
Αχαϊκός Τοπικός Οίνος	Regional wine of Achaia
Τοπικός Οίνος Ηλιείας	Regional wine of Ilia
Τοπικός Οίνος Θεσσαλονίκης	Regional wine of Thessaloniki
Τοπικός Οίνος Κραννώνος	Regional wine of Krannona
Τοπικός Οίνος Παρνασσού	Regional wine of Parnassos
Τοπικός Οίνος Μετεώρων	Regional wine of Meteora
Τοπικός Οίνος Ικαρίας	Regional wine of Ikaria
Τοπικός Οίνος Καστοριάς	Regional wine of Kastoria

HUNGARY

1. Quality wines produced in a specified region

Specified regions	*Sub-regions (whether or not preceeded by the name of the specified region)*
Ászár-Neszmély(-i)	Ászár(-i)
	Neszmély(-i)
Badacsony(-i)	
Balatonboglár(-i)	Balatonlelle(-i)
	Marcali
Balatonfelvidék(-i)	Balatonederics-Lesence(-i)
	Cserszeg(-i)
	Kál(-i)
Balatonfüred-Csopak(-i)	Zánka(-i)
Balatonmelléke *or* Balatonmelléki	Muravidéki
Bükkalja(-i)	
Csongrád(-i)	Kistelek(-i)
	Mórahalom *or* Mórahalmi
	Pusztamérges(-i)
Eger *or* Egri	Debrő(-i), *followed or not by*Andornaktálya(-i) *or* Demjén(-i) *or* Egerbakta(-i) *or* Egerszalók(-i) *or* Egerszólát(-i) *or* Felsőtárkány(-i) *or* Kerecsend(-i) *or* Maklár(-i) *or* Nagytálya(-i) *or* Noszvaj(-i) *or* Novaj(-i) *or* Ostoros(-i) *or* Szomolya(-i) *or*Aldebrő(-i) *or* Feldebrő(-i) *or* Tófalu(-i) *or* Verpelét(-i) *or* Kompolt(-i) *or* Tarnaszentmária(-i)
Etyek-Buda(-i)	Buda(-i)
	Etyek(-i)
	Velence(-i)

Specified regions	*Sub-regions (whether or not preceeded by the name of the specified region)*
Hajós-Baja(-i)	
Kőszegi	
Kunság(-i)	Bácska(-i) Cegléd(-i) Duna mente *or* Duna menti Izsák(-i) Jászság(-i) Kecskemét-Kiskunfélegyháza *or* Kecskemét-Kiskunfélegyházi Kiskunhalas-Kiskunmajsa(-i) Kiskőrös(-i) Monor(-i) Tisza mente *or* Tisza menti
Mátra(-i)	
Mór(-i)	
Pannonhalma (Pannonhalmi)	
Pécs(-i)	Versend(-i) *Szigetvár(-i)* Kapos(-i)
Szekszárd(-i)	
Somló(-i)	Kissomlyó-Sághegyi
Sopron(-i)	Köszeg(-i)
Tokaj(-i)	Abaújszántó(-i) *or* Bekecs(-i) *or* Bodrogkeresztúr(-i) *or* Bodrogkisfalud(-i) *or* Bodrogolaszi *or* Erdőbénye(-i) *or* Erdőhorváti *or* Golop(-i) *or* Hercegkút(-i) *or* Legyesbénye(-i) *or* Makkoshotyka(-i) *or* Mád(-i) *or* Mezőzombor(-i) *or* Monok(-i) *or* Olaszliszka(-i) *or* Rátka(-i) *or* Sárazsadány(-i) *or* Sárospatak(-i) *or* Sátoraljaújhely(-i) *or* Szegi *or* Szegilong(-i) *or* Szerencs(-i) *or* Tarcal(-i) *or* Tállya(-i) *or* Tolcsva(-i) *or* Vámosújfalu(-i)
Tolna(-i)	Tamási Völgység(-i)
Villány(-i)	Siklós(-i), *followed or not by* Kisharsány(-i) *or* Nagyharsány(-i) *or* Palkonya(-i) *or* Villánykövesd(-i) *or* Bisse(-i) *or* Csarnóta(-i) *or* Diósviszló(-i) *or* Harkány(-i) *or* Hegyszentmárton(-i) *or* Kistótfalu(-i) *or* Márfa(-i) *or* Nagytótfalu(-i) *or* Szava(-i) *or* Túrony(-i) *or* Vokány(-i)

ITALY

1. Quality wines produced in a specified region

D.O.C.G. (Denominazioni di Origine Controllata e Garantita)
Albana di Romagna
Asti *or* Moscato d'Asti *or* Asti Spumante
Barbaresco
Bardolino superiore
Barolo
Brachetto d'Acqui *or* Acqui
Brunello di Motalcino
Carmignano
Chianti, *whether or not followed by* Colli Aretini *or* Colli Fiorentini *or* Colline Pisane *or* Colli Senesi *or* Montalbano *or* Montespertoli *or* Rufina

D.O.C.G. (Denominazioni di Origine Controllata e Garantita)

Chianti Classico

Fiano di Avellino

Forgiano

Franciacorta

Gattinara

Gavi *or* Cortese di Gavi

Ghemme

Greco di Tufo

Montefalco Sagrantino

Montepulciano d'Abruzzo Colline Tramane

Ramandolo

Recioto di Soave

Sforzato di Valtellina *or* Sfursat di Valtellina

Soave superiore

Taurasi

Valtellina Superiore, *whether or not followed by* Grumello *or* Inferno *or* Maroggia *or* Sassella *or* Stagafassli *or* Vagella

Vermentino di Gallura *or* Sardegna Vermentino di Gallura

Vernaccia di San Gimignano

Vino Nobile di Montepulciano

D.O.C. (Denominazioni di Origine Controllata)

Aglianico del Taburno *or* Taburno

Aglianico del Vulture

Albugnano

Alcamo *or* Alcamo classico

Aleatico di Gradoli

Aleatico di Puglia

Alezio

Alghero *or* Sardegna Alghero

Alta Langa

Alto Adige *or* dell'Alto Adige (Südtirol *or* Südtiroler), *whether or not followed by*:

— Colli di Bolzano (Bozner Leiten),

— Meranese di Collina *or* Meranese (Meraner Hugel *or* Meraner),

— Santa Maddalena (St. Magdalener),

— Terlano (Terlaner),

— Valle Isarco (Eisacktal *or* Eisacktaler),

— Valle Venosta (Vinschgau)

Ansonica Costa dell'Argentario

Aprilia

Arborea *or* Sardegna Arborea

Arcole

Assisi

Atina

Aversa

Bagnoli di Sopra *or* Bagnoli

D.O.C. (Denominazioni di Origine Controllata)
Barbera d'Asti
Barbera del Monferrato
Barbera d'Alba
Barco Reale di Carmignano *or* Rosato di Carmignano *or* Vin Santo di Carmignano *or* Vin Santo Carmignano Occhio di Pernice
Bardolino
Bianchello del Metauro
Bianco Capena
Bianco dell'Empolese
Bianco della Valdinievole
Bianco di Custoza
Bianco di Pitigliano
Bianco Pisano di S. Torpè
Biferno
Bivongi
Boca
Bolgheri e Bolgheri Sassicaia
Bosco Eliceo
Botticino
Bramaterra
Breganze
Brindisi
Cacc'e mmitte di Lucera
Cagnina di Romagna
Caldaro (Kalterer) *or* Lago di Caldaro (Kalterersee), *whether or not followed by 'Classico'*
Campi Flegrei
Campidano di Terralba *or* Terralba *or* Sardegna Campidano di Terralba *or* Sardegna Terralba
Canavese
Candia dei Colli Apuani
Cannonau di Sardegna, *whether or not followed by* Capo Ferrato *or* Oliena *or* Nepente di Oliena Jerzu
Capalbio
Capri
Capriano del Colle
Carema
Carignano del Sulcis *or* Sardegna Carignano del Sulcis
Carso
Castel del Monte
Castel San Lorenzo
Casteller
Castelli Romani
Cellatica
Cerasuolo di Vittoria
Cerveteri
Cesanese del Piglio
Cesanese di Affile *or* Affile

D.O.C. (Denominazioni di Origine Controllata)
Cesanese di Olevano Romano *or* Olevano Romano
Cilento
Cinque Terre *or* Cinque Terre Sciacchetrà, *whether or not followed by* Costa de sera *or* Costa de Campu *or* Costa da Posa
Circeo
Cirò
Cisterna d'Asti
Colli Albani
Colli Altotiberini
Colli Amerini
Colli Berici, *whether or not followed by* 'Barbarano'
Colli Bolognesi, *whether or not followed by* Colline di Riposto *or* Colline Marconiane *or* Zola Predona *or* Monte San Pietro *or* Colline di Oliveto *or* Terre di Montebudello *or* Serravalle
Colli Bolognesi Classico-Pignoletto
Colli del Trasimeno *or* Trasimeno
Colli della Sabina
Colli dell'Etruria Centrale
Colli di Conegliano, *whether or not followed by* Refrontolo *or* Torchiato di Fregona
Colli di Faenza
Colli di Luni (*Regione Liguria*)
Colli di Luni (*Regione Toscana*)
Colli di Parma
Colli di Rimini
Colli di Scandiano e di Canossa
Colli d'Imola
Colli Etruschi Viterbesi
Colli Euganei
Colli Lanuvini
Colli Maceratesi
Colli Martani, *whether or not followed by* Todi
Colli Orientali del Friuli Picolit, *whether or not followed by* Cialla *or* Rosazzo
Colli Perugini
Colli Pesaresi, *whether or not followed by* Focara *or* Roncaglia
Colli Piacentini, *whether or not followed by* Vigoleno *or* Gutturnio *or* Monterosso Val d'Arda *or* Trebbianino Val Trebbia *or* Val Nure
Colli Romagna Centrale
Colli Tortonesi
Collina Torinese
Colline di Levanto
Colline Lucchesi
Colline Novaresi
Colline Saluzzesi
Collio Goriziano *or* Collio
Conegliano-Valdobbiadene, *whether or not followed by* Cartizze
Conero

D.O.C. (Denominazioni di Origine Controllata)
Contea di Sclafani
Contessa Entellina
Controguerra
Copertino
Cori
Cortese dell'Alto Monferrato
Corti Benedettine del Padovano
Cortona
Costa d'Amalfi, *whether or not followed by* Furore *or* Ravello *or* Tramonti
Coste della Sesia
Delia Nivolelli
Dolcetto d'Acqui
Dolcetto d'Alba
Dolcetto d'Asti
Dolcetto delle Langhe Monregalesi
Dolcetto di Diano d'Alba *or* Diano d'Alba
Dolcetto di Dogliani *superior or* Dogliani
Dolcetto di Ovada
Donnici
Elba
Eloro, *whether or not followed by* Pachino
Erbaluce di Caluso *or* Caluso
Erice
Esino
Est! Est!! Est!!! Di Montefiascone
Etna
Falerio dei Colli Ascolani *or* Falerio
Falerno del Massico
Fara
Faro
Frascati
Freisa d'Asti
Freisa di Chieri
Friuli Annia
Friuli Aquileia
Friuli Grave
Friuli Isonzo *or* Isonzo del Friuli
Friuli Latisana
Gabiano
Galatina
Galluccio
Gambellara
Garda (*Regione Lombardia*)
Garda (*Regione Veneto*)
Garda Colli Mantovani

D.O.C. (Denominazioni di Origine Controllata)
Genazzano
Gioia del Colle
Girò di Cagliari *or* Sardegna Girò di Cagliari
Golfo del Tigullio
Gravina
Greco di Bianco
Greco di Tufo
Grignolino d'Asti
Grignolino del Monferrato Casalese
Guardia Sanframondi o Guardiolo
Irpinia
I Terreni di Sanseverino
Ischia
Lacrima di Morro *or* Lacrima di Morro d'Alba
Lago di Corbara
Lambrusco di Sorbara
Lambrusco Grasparossa di Castelvetro
Lambrusco Mantovano, *whether or not followed by*: Oltrepò Mantovano *or* Viadanese-Sabbionetano
Lambrusco Salamino di Santa Croce
Lamezia
Langhe
Lessona
Leverano
Lison Pramaggiore
Lizzano
Loazzolo
Locorotondo
Lugana (*Regione Veneto*)
Lugana (*Regione Lombardia*)
Malvasia delle Lipari
Malvasia di Bosa *or* Sardegna Malvasia di Bosa
Malvasia di Cagliari *or* Sardegna Malvasia di Cagliari
Malvasia di Casorzo d'Asti
Malvasia di Castelnuovo Don Bosco
Mandrolisai *or* Sardegna Mandrolisai
Marino
Marmetino di Milazzo *or* Marmetino
Marsala
Martina *or* Martina Franca
Matino
Melissa
Menfi, *whether or not followed by* Feudo *or* Fiori *or* Bonera
Merlara
Molise
Monferrato, *whether or not followed by* Casalese

D.O.C. (Denominazioni di Origine Controllata)
Monica di Cagliari *or* Sardegna Monica di Cagliari
Monica di Sardegna
Monreale
Montecarlo
Montecompatri Colonna *or* Montecompatri *or* Colonna
Montecucco
Montefalco
Montello e Colli Asolani
Montepulciano d'Abruzzo, *whether or not followed by*: Casauri *or* Terre di Casauria *or* Terre dei Vestini
Monteregio di Massa Marittima
Montescudaio
Monti Lessini *or* Lessini
Morellino di Scansano
Moscadello di Montalcino
Moscato di Cagliari *or* Sardegna Moscato di Cagliari
Moscato di Noto
Moscato di Pantelleria *or* Passito di Pantelleria *or* Pantelleria
Moscato di Sardegna, *whether or not followed by*: Gallura *or* Tempio Pausania *or* Tempio
Moscato di Siracusa
Moscato di Sorso-Sennori *or* Moscato di Sorso *or* Moscato di Sennori *or* Sardegna Moscato di Sorso-Sennori *or* Sardegna Moscato di Sorso *or* Sardegna Moscato di Sennori
Moscato di Trani
Nardò
Nasco di Cagliari *or* Sardegna Nasco di Cagliari
Nebiolo d'Alba
Nettuno
Nuragus di Cagliari *or* Sardegna Nuragus di Cagliari
Offida
Oltrepò Pavese
Orcia
Orta Nova
Orvieto (*Regione Umbria*)
Orvieto (*Regione Lazio*)
Ostuni
Pagadebit di Romagna, *whether or not followed by* Bertinoro
Parrina
Penisola Sorrentina, *whether or not followed by* Gragnano *or* Lettere *or*Sorrento
Pentro di Isernia *or* Pentro
Pergola
Piemonte
Pietraviva
Pinerolese
Pollino
Pomino

D.O.C. (Denominazioni di Origine Controllata)

Pornassio *or* Ormeasco di Pornassio

Primitivo di Manduria

Reggiano

Reno

Riesi

Riviera del Brenta

Riviera del Garda Bresciano *or* Garda Bresciano

Riviera Ligure di Ponente, *whether or not followed by*: Riviera dei Fiori *or* Albenga *or* Albenganese *or* Finale *or* Finalese *or* Ormeasco

Roero

Romagna Albana spumante

Rossese di Dolceacqua *or* Dolceacqua

Rosso Barletta

Rosso Canosa *or* Rosso Canosa Canusium

Rosso Conero

Rosso di Cerignola

Rosso di Montalcino

Rosso di Montepulciano

Rosso Orvietano *or* Orvietano Rosso

Rosso Piceno

Rubino di Cantavenna

Ruchè di Castagnole Monferrato

Salice Salentino

Sambuca di Sicilia

San Colombano al Lambro *or* San Colombano

San Gimignano

San Martino della Battaglia (*Regione Veneto*)

San Martino della Battaglia (*Regione Lombardia*)

San Severo

San Vito di Luzzi

Sangiovese di Romagna

Sannio

Sant'Agata de Goti

Santa Margherita di Belice

Sant'Anna di Isola di Capo Rizzuto

Sant'Antimo

Sardegna Semidano, *whether or not followed by* Mogoro

Savuto

Scanzo *or* Moscato di Scanzo

Scavigna

Sciacca, *whether or not followed by* Rayana

Serrapetrona

Sizzano

Soave

Solopaca

D.O.C. (Denominazioni di Origine Controllata)
Sovana
Squinzano
Strevi
Tarquinia
Teroldego Rotaliano
Terracina, *preceeded or not by 'Moscato di'*
Terre dell'Alta Val Agri
Terre di Franciacorta
Torgiano
Trebbiano d'Abruzzo
Trebbiano di Romagna
Trentino, *whether or not followed by* Sorni *or* Isera *or* d'Isera *or* Ziresi *or* dei Ziresi
Trento
Val d'Arbia
Val di Cornia, *whether or not followed by* Suvereto
Val Polcevera, *whether or not followed by* Coronata
Valcalepio
Valdadige (Etschaler) (*Regione Trentino Alto Adige*)
Valdadige (Etschtaler), *whether or not followed or preceeded by* TerradeiForti (*Regieno Veneto*)
Valdichiana
Valle d'Aosta*or* Vallée d'Aoste, *whether or not followed by*: Arnad-Montjovet *or* Donnas *or* Enfer d'Arvier *or* Torrette *or* Blanc de Morgex et de la Salle *or* Chambave *or* Nus
Valpolicella, *whether or not followed by* Valpantena
Valsusa
Valtellina
Valtellina superiore, *whether or not followed by* Grumello *or* Inferno *or* Maroggia *or* Sassella *or* Vagella
Velletri
Verbicaro
Verdicchio dei Castelli di Jesi
Verdicchio di Matelica
Verduno Pelaverga *or* Verduno
Vermentino di Sardegna
Vernaccia di Oristano *or* Sardegna Vernaccia di Oristano
Vernaccia di San Gimignano
Vernacia di Serrapetrona
Vesuvio
Vicenza
Vignanello
Vin Santo del Chianti
Vin Santo del Chianti Classico
Vin Santo di Montepulciano
Vini del Piave *or* Piave
Vittoria
Zagarolo

2. Table wines with a geographical indication:

Allerona

Alta Valle della Greve

Alto Livenza (*Regione veneto*)

Alto Livenza (*Regione Fruili Venezia Giula*)

Alto Mincio

Alto Tirino

Arghillà

Barbagia

Basilicata

Benaco bresciano

Beneventano

Bergamasca

Bettona

Bianco di Castelfranco Emilia

Calabria

Camarro

Campania

Cannara

Civitella d'Agliano

Colli Aprutini

Colli Cimini

Colli del Limbara

Colli del Sangro

Colli della Toscana centrale

Colli di Salerno

Colli Ericini

Colli Trevigiani

Collina del Milanese

Colline del Genovesato

Colline Frentane

Colline Pescaresi

Colline Savonesi

Colline Teatine

Condoleo

Conselvano

Costa Viola

Daunia

Del Vastese *or* Histonium

Delle Venezie (*Regione Veneto*)

Delle Venezie (*Regione Friuli Venezia Giulia*)

Delle Venezie (*Regione Trentino – Alto Adige*)

Dugenta

Emilia *or* dell'Emilia

Epomeo

Esaro

Fontanarossa di Cerda

Forlì

Fortana del Taro

Frusinate *or* del Frusinate

Golfo dei Poeti La Spezia *or* Golfo dei Poeti

Grottino di Roccanova

Isola dei Nuraghi

Lazio

Lipuda

Locride

Marca Trevigiana

Marche

Maremma toscana

Marmilla

Mitterberg *or* Mitterberg tra Cauria e Tel *or* Mitterberg zwischen Gfrill und Toll

Modena *or* Provincia di Modena

Montecastelli

Montenetto di Brescia

Murgia

Narni

Nurra

Ogliastra

Osco *or* Terre degli Osci

Paestum

Palizzi

Parteolla

Pellaro

Planargia

Pompeiano

Provincia di Mantova

Provincia di Nuoro

Provincia di Pavia

Provincia di Verona *or* Veronese

Puglia

Quistello

Ravenna

Roccamonfina

Romangia

Ronchi di Brescia

Ronchi Varesini

Rotae

Rubicone

Sabbioneta

Salemi

Salento

Salina

Scilla

Sebino

Sibiola

Sicilia

Sillaro *or* Bianco del Sillaro

Spello

Tarantino

Terrazze Retiche di Sondrio

Terre del Volturno

Terre di Chieti

Terre di Veleja

Tharros

Toscana *or* Toscano

Trexenta

Umbria

Valcamonica

Val di Magra

Val di Neto

Val Tidone

Valdamato

Vallagarina (*Regione Trentino – Alto Adige*)

Vallagarina (*Regione Veneto*)

Valle Belice

Valle del Crati

Valle del Tirso

Valle d'Itria

Valle Peligna

Valli di Porto Pino

Veneto

Veneto Orientale

Venezia Giulia

Vigneti delle Dolomiti *or* Weinberg Dolomiten (*Regione Trentino – Alto Adige*)

Vigneti delle Dolomiti *or* Weinberg Dolomiten (*Regione Veneto*)

LUXEMBOURG

Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the commune or parts of commune)	*Names of communes or parts of communes*
Moselle Luxembourgeoise	Ahn
	Assel
	Bech-Kleinmacher
	Born
	Bous
	Burmerange
	Canach
	Ehnen

Specified regions (whether or not followed by the name of the commune or parts of commune)	*Names of communes or parts of communes*
	Ellingen
	Elvange
	Erpeldingen
	Gostingen
	Greiveldingen
	Grevenmacher
	Lenningen
	Machtum
	Mertert
	Moersdorf
	Mondorf
	Niederdonven
	Oberdonven
	Oberwormeldingen
	Remerschen
	Remich
	Rolling
	Rosport
	Schengen
	Schwebsingen
	Stadtbredimus
	Trintingen
	Wasserbillig
	Wellenstein
	Wintringen
	Wormeldingen

MALTA

1. Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Island of Malta	Rabat
	Mdina *or* Medina
	Marsaxlokk
	Marnisi
	Mgarr
	Ta' Qali
	Siggiewi
Gozo	Ramla
	Marsalforn
	Nadur
	Victoria Heights

2. Table wines with a geographical indication

In Maltese	*In English*
Gzejjer Maltin	Maltese Islands

PORTUGAL

1. Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Alenquer	
Alentejo	Borba
	Évora
	Granja-Amareleja
	Moura
	Portalegre
	Redondo
	Reguengos
	Vidigueira
Arruda	
Bairrada	
Beira Interior	Castelo Rodrigo
	Cova da Beira
	Pinhel
Biscoitos	
Bucelas	
Carcavelos	
Colares	
Dão, *whether or not followed by Nobre*	Alva
	Besteiros
	Castendo
	Serra da Estrela
	Silgueiros
	Terras de Azurara
	Terras de Senhorim
Douro, *whether or not preceded by Vinho do or Moscatel do* ...	Baixo Corgo
	Cima Corgo
	Douro Superior
Encostas d'Aire	Alcobaça
	Ourém
Graciosa	
Lafões	
Lagoa	
Lagos	
Lourinhã	
Madeira *or* Madère *or* Madera *or* Vinho da Madeira *or* Madeira Weine *or* Madeira Wine *or* Vin de Madère *or* Vino di Madera *or* Madeira Wijn	

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Madeirense	
Óbidos	
Palmela	
Pico	
Portimão	
Port *or* Porto *or* Oporto *or* Portwein *or* Portvin *or* Portwijn *or* Vin de Porto *or* Port Wine *or* Vinho do Porto	
Ribatejo	Almeirim
	Cartaxo
	Chamusca
	Coruche
	Santarém
	Tomar
Setúbal, *whether or not preceded by Moscatel or followed by Roxo*	
Tavira	
Távora-Varosa	
Torres Vedras	
Trás-os-Montes	Chaves
	Planalto Mirandês
	Valpaços
Vinho Verde	Amarante
	Ave
	Baião
	Basto
	Cávado
	Lima
	Monção
	Paiva
	Sousa

2. Table wines with a geographical indication

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Açores	
Alentejano	
Algarve	
Beiras	Beira Alta
	Beira Litoral
	Terras de Sicó
Duriense	
Estremadura	Alta Estremadura
Minho	
Ribatejano	
Terras Madeirenses	
Terras do Sado	
Transmontano	

ROMANIA

1. Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Aiud	
Alba Iulia	
Babadag	
Banat, *whether or not followed by*	Dealurile Tirolului
	Moldova Nouă
	Silagiu
Banu Mărăcine	
Bohotin	
Cernăteşti - Podgoria	
Coteşti	
Cotnari	
Crişana, *whether or not followed by*	Biharia
	Diosig
	Şimleu Silvaniei
Dealu Bujorului	
Dealu Mare, *whether or not followed by*	Boldeşti
	Breaza
	Ceptura
	Merei
	Tohani
	Urlaţi
	Valea Călugărească
	Zoreşti
Drăgăşani	
Huşi, *whether or not followed by*	Vutcani
Iana	
Iaşi, *whether or not followed by*	Bucium
	Copou
	Uricani
Lechinţa	
Mehedinţi, *whether or not followed by*	Corcova
	Golul Drâncei
	Oreviţa
	Severin
	Vânju Mare
Miniş	
Murfatlar, *whether or not followed by*	Cernavodă
	Medgidia
Nicoreşti	
Odobeşti	
Oltina	
Panciu	
Pietroasa	
Recaş	

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Sâmbureşti	
Sarica Niculiţel, *whether or not followed by*	Tulcea
Sebeş - Apold	
Segarcea	
Ştefăneşti, *whether or not followed by*	Costeşti
Târnave, *whether or not followed by*	Blaj
	Jidvei
	Mediaş

2. Table wines with a geographical indication

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Colinele Dobrogei	
Dealurile Crişanei	
Dealurile Moldovei, *or*	Dealurile Covurluiului
	Dealurile Hârlăului
	Dealurile Huşilor
	Dealurile laşilor
	Dealurile Tutovei
	Terasele Siretului
Dealurile Munteniei	
Dealurile Olteniei	
Dealurile Sătmarului	
Dealurile Transilvaniei	
Dealurile Vrancei	
Dealurile Zarandului	
Terasele Dunării	
Viile Caraşului	
Viile Timişului	

SLOVAKIA

Quality wines produced in a specified region

Specified regions (followed by the term 'vinohradnícka oblasť')	*Sub-regions (whether or not followed by the name of the specified region) (followed by the term 'vinohradnícky rajón')*
Južnoslovenská	Dunajskostredský
	Galantský
	Hurbanovský
	Komárňanský
	Palárikovský
	Šamorínsky
	Strekovský
	Štúrovský

Specified regions (followed by the term 'vinohradnícka oblasť')	*Sub-regions (whether or not followed by the name of the specified region) (followed by the term 'vinohradnícky rajón')*
Malokarpatská	Bratislavský
	Doľanský
	Hlohovecký
	Modranský
	Orešanský
	Pezinský
	Senecký
	Skalický
	Stupavský
	Trnavský
	Vrbovský
	Záhorský
Nitrianska	Nitriansky
	Pukanecký
	Radošinský
	Šintavský
	Tekovský
	Vrábeľský
	Želiezovský
	Žitavský
	Zlatomoravecký
Stredoslovenská	Fiľakovský
	Gemerský
	Hontiansky
	Ipeľský
	Modrokamenecký
	Tornaľský
	Vinický
Tokaj / -ská / -sky / -ské	Čerhov
	Černochov
	Malá Tŕňa
	Slovenské Nové Mesto
	Veľká Bara
	Veľká Tŕňa
	Viničky
Východoslovenská	Kráľovskochlmecký
	Michalovský
	Moldavský
	Sobranecký

SLOVENIA

1. Quality wines produced in a specified region

Specified regions (whether or followed by either the name of a wine-growing commune and/or the name of a vineyard estate)
Bela krajina *or* Belokranjec
Bizeljsko-Sremič *or* Sremič-Bizeljsko
Dolenjska

Specified regions (whether or followed by either the name of a wine-growing commune and/or the name of a vineyard estate)
Dolenjska, cviček
Goriška Brda *or* Brda
Haloze *or* Haložan
Koper *or* Koprčan
Kras
Kras, teran
Ljutomer-Ormož *or* Ormož-Ljutomer
Maribor *or* Mariborčan
Radgona-Kapela *or* Kapela Radgona
Prekmurje *or* Prekmurčan
Šmarje-Virštanj *or* Virštanj-Šmarje
Srednje Slovenske gorice
Vipavska dolina *or* Vipavec *or* Vipavčan

2. Table wines with a geographical indication

Podravje
Posavje
Primorska

SPAIN

1. Quality wines produced in a specified region

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Abona	
Alella	
Alicante	Marina Alta
Almansa	
Ampurdán-Costa Brava	
Arabako Txakolina-Txakolí de Alava *or* Chacolí de Álava	
Arlanza	
Arribes	
Bierzo	
Binissalem-Mallorca	
Bullas	
Calatayud	
Campo de Borja	
Cariñena	
Cataluña	
Cava	
Chacolí de Bizkaia-Bizkaiko Txakolina	
Chacolí de Getaria-Getariako Txakolina	
Cigales	
Conca de Barberá	

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Condado de Huelva	
Costers del Segre	Raimat
	Artesa
	Valls de Riu Corb
	Les Garrigues
Dehesa del Carrizal	
Dominio de Valdepusa	
El Hierro	
Finca Élez	
Guijoso	
Jerez-Xérès-Sherry *or* Jerez *or* Xérès *or* Sherry	
Jumilla	
La Mancha	
La Palma	Hoyo de Mazo
	Fuencaliente
	Norte de la Palma
Lanzarote	
Málaga	
Manchuela	
Manzanilla	
Manzanilla-Sanlúcar de Barrameda	
Méntrida	
Mondéjar	
Monterrei	Ladera de Monterrei
	Val de Monterrei
Montilla-Moriles	
Montsant	
Navarra	Baja Montaña
	Ribera Alta
	Ribera Baja
	Tierra Estella
	Valdizarbe
Penedés	
Pla de Bages	
Pla i Llevant	
Priorato	
Rías Baixas	Condado do Tea
	O Rosal
	Ribera do Ulla
	Soutomaior
	Val do Salnés
Ribeira Sacra	Amandi
	Chantada
	Quiroga-Bibei
	Ribeiras do Miño
	Ribeiras do Sil

Specified regions (whether or not followed by the name of the sub-region)	*Sub-regions*
Ribeiro	
Ribera del Duero	
Ribera del Guardiana	Cañamero
	Matanegra
	Montánchez
	Ribera Alta
	Ribera Baja
	Tierra de Barros
Ribera del Júcar	
Rioja	Alavesa
	Alta
	Baja
Rueda	
Sierras de Málaga	Serranía de Ronda
Somontano	
Tacoronte-Acentejo	Anaga
Tarragona	
Terra Alta	
Tierra de León	
Tierra del Vino de Zamora	
Toro	
Uclés	
Utiel-Requena	
Valdeorras	
Valdepeñas	
Valencia	Alto Turia
	Clariano
	Moscatel de Valencia
	Valentino
Valle de Güímar	
Valle de la Orotava	
Valles de Benavente (Los)	
Vinos de Madrid	Arganda
	Navalcarnero
	San Martín de Valdeiglesias
Ycoden-Daute-Isora	
Yecla	

2. Table wines with a geographical indication

Vino de la Tierra de Abanilla
Vino de la Tierra de Bailén
Vino de la Tierra de Bajo Aragón
Vino de la Tierra Barbanza e Iria
Vino de la Tierra de Betanzos
Vino de la Tierra de Cádiz

Vino de la Tierra de Campo de Belchite

Vino de la Tierra de Campo de Cartagena

Vino de la Tierra de Cangas

Vino de la Terra de Castelló

Vino de la Tierra de Castilla

Vino de la Tierra de Castilla y León

Vino de la Tierra de Contraviesa-Alpujarra

Vino de la Tierra de Córdoba

Vino de la Tierra de Costa de Cantabria

Vino de la Tierra de Desierto de Almería

Vino de la Tierra de Extremadura

Vino de la Tierra Formentera

Vino de la Tierra de Gálvez

Vino de la Tierra de Granada Sur-Oeste

Vino de la Tierra de Ibiza

Vino de la Tierra de Illes Balears

Vino de la Tierra de Isla de Menorca

Vino de la Tierra de La Gomera

Vino de la Tierra de Laujar-Alapujarra

Vino de la Tierra de Liébana

Vino de la Tierra de Los Palacios

Vino de la Tierra de Norte de Granada

Vino de la Tierra Norte de Sevilla

Vino de la Tierra de Pozohondo

Vino de la Tierra de Ribera del Andarax

Vino de la Tierra de Ribera del Arlanza

Vino de la Tierra de Ribera del Gállego-Cinco Villas

Vino de la Tierra de Ribera del Queiles

Vino de la Tierra de Serra de Tramuntana-Costa Nord

Vino de la Tierra de Sierra de Alcaraz

Vino de la Tierra de Torreperojil

Vino de la Tierra de Valdejalón

Vino de la Tierra de Valle del Cinca

Vino de la Tierra de Valle del Jiloca

Vino de la Tierra del Valle del Miño-Ourense

Vino de la Tierra Valles de Sadacia

UNITED KINGDOM

1. Quality wines produced in a specified region

English Vineyards

Welsh Vineyards

2. Table wines with a geographical indication

England*or* Berkshire
Buckinghamshire
Cheshire
Cornwall
Derbyshire
Devon
Dorset
East Anglia
Gloucestershire
Hampshire
Herefordshire
Isle of Wight
Isles of Scilly
Kent
Lancashire
Leicestershire
Lincolnshire
Northamptonshire
Nottinghamshire
Oxfordshire
Rutland
Shropshire
Somerset
Staffordshire
Surrey
Sussex
Warwickshire
West Midlands
Wiltshire
Worcestershire
Yorkshire
Wales*or* Cardiff
Cardiganshire
Carmarthenshire
Denbighshire
Gwynedd
Monmouthshire
Newport
Pembrokeshire
Rhondda Cynon Taf
Swansea
The Vale of Glamorgan
Wrexham

(b) **SPIRIT DRINKS ORIGINATING IN THE COMMUNITY**

1. **Rum**

Rhum de la Martinique / Rhum de la Martinique traditionnel

Rhum de la Guadeloupe / Rhum de la Guadeloupe traditionnel

Rhum de la Réunion / Rhum de la Réunion traditionnel

Rhum de la Guyane / Rhum de la Guyane traditionnel

Ron de Málaga

Ron de Granada

Rum da Madeira

2. (a) **Whisky**

Scotch Whisky

Irish Whisky

Whisky español

(These designations may be supplemented by the terms 'malt' or 'grain')

(b) **Whiskey**

Irish Whiskey

Uisce Beatha Eireannach / Irish Whiskey

(These designations may be supplemented by the terms 'Pot Still')

3. **Grain spirit**

Eau-de-vie de seigle de marque nationale luxembourgeoise

Korn

Kornbrand

4. **Wine spirit**

Eau-de-vie de Cognac

Eau-de-vie des Charentes

Cognac

(The designation 'Cognac' may be supplemented by the following terms:

— Fine

— Grande Fine Champagne

— Grande Champagne

— Petite Champagne

— Petite Fine Champagne

— Fine Champagne

— Borderies

— Fins Bois

— Bons Bois)

Fine Bordeaux

Armagnac

Bas-Armagnac

Haut-Armagnac

Ténarèse

Eau-de-vie de vin de la Marne

Eau-de-vie de vin originaire d'Aquitaine

Eau-de-vie de vin de Bourgogne

Eau-de-vie de vin originaire du Centre-Est

Eau-de-vie de vin originaire de Franche-Comté

Eau-de-vie de vin originaire du Bugey

Eau-de-vie de vin de Savoie

Eau-de-vie de vin originaire des Coteaux de la Loire

Eau-de-vie de vin des Côtes-du-Rhône

Eau-de-vie de vin originaire de Provence

Eau-de-vie de Faugères / Faugères

Eau-de-vie de vin originaire du Languedoc

Aguardente do Minho

Aguardente do Douro

Aguardente da Beira Interior

Aguardente da Bairrada

Aguardente do Oeste

Aguardente do Ribatejo

Aguardente do Alentejo

Aguardente do Algarve

Сунгурларска гроздова ракия / Sungurlarska grozdova rakiya

Гроздова ракия от Сунгурларе / Grozdova rakiya from Sungurlare

Сливенска перла (Сливенска гроздова ракия / Гроздова ракия от Сливен) /Slivenska perla (Slivenska grozdova rakiya / Grozdova rakiya from Sliven)

Стралджанска Мускатова ракия / Straldjanska Muscatova rakiya

Мускатова ракия от Стралджа / Muscatova rakiya from Straldja

Поморийска гроздова ракия / Pomoriyska grozdova rakiya

Гроздова ракия от Поморие / Grozdova rakiya from Pomorie

Русенска бисерна гроздова ракия / Russenska biserna grozdova rakiya

Бисерна гроздова ракия от Русе / Biserna grozdova rakiya from Russe

Бургаска Мускатова ракия / Bourgaska Muscatova rakiya

Мускатова ракия от Бургас / Muscatova rakiya from Bourgas

Добруджанска мускатова ракия / Dobrudjanska muscatova rakiya

Мускатова ракия от Добруджа / muscatova rakiya from Dobrudja

Сухиндолска гроздова ракия / Suhindolska grozdova rakiya

Гроздова ракия от Сухиндол / Grozdova rakiya from Suhindol

Карловска гроздова ракия / Karlovska grozdova rakiya

Гроздова Ракия от Карлово / Grozdova Rakiya from Karlovo

Vinars Târnave

Vinars Vaslui

Vinars Murfatlar

Vinars Vrancea

Vinars Segarcea

5. **Brandy**

Brandy de Jerez

Brandy del Penedés

Brandy italiano

Brandy Αττικής / Brandy of Attica

Brandy Πελλοπονήσου / Brandy of the Peloponnese

Brandy Κεντρικής Ελλάδας / Brandy of Central Greece

Deutscher Weinbrand

Wachauer Weinbrand

Weinbrand Dürnstein

Karpatské brandy špeciál

6. **Grape marc spirit**

Eau-de-vie de marc de Champagne or

Marc de Champagne

Eau-de-vie de marc originaire d'Aquitaine

Eau-de-vie de marc de Bourgogne

Eau-de-vie de marc originaire du Centre-Est

Eau-de-vie de marc originaire de Franche-Comté

Eau-de-vie de marc originaire de Bugey

Eau-de-vie de marc originaire de Savoie

Marc de Bourgogne

Marc de Savoie

Marc d'Auvergne

Eau-de-vie de marc originaire des Coteaux de la Loire

Eau-de-vie de marc des Côtes du Rhône

Eau-de-vie de marc originaire de Provence

Eau-de-vie de marc originaire du Languedoc

Marc d'Alsace Gewürztraminer

Marc de Lorraine

Bagaceira do Minho

Bagaceira do Douro

Bagaceira da Beira Interior

Bagaceira da Bairrada

Bagaceira do Oeste

Bagaceira do Ribatejo

Bagaceiro do Alentejo

Bagaceira do Algarve

Orujo gallego

Grappa

Grappa di Barolo

Grappa piemontese / Grappa del Piemonte

Grappa lombarda / Grappa di Lombardia

Grappa trentina / Grappa del Trentino

Grappa friulana / Grappa del Friuli

Grappa veneta / Grappa del Veneto

Südtiroler Grappa / Grappa dell'Alto Adige

Τσικουδιά Κρήτης / Tsikoudia of Crete

Τσίπουρο Μακεδονίας / Tsipouro of Macedonia

Τσίπουρο Θεσσαλίας / Tsipouro of Thessaly

Τσίπουρο Τυρνάβου / Tsipouro of Tyrnavos

Eau-de-vie de marc de marque nationale luxembourgeoise

Ζιβανία / Zivania

Pálinka

7. **Fruit spirit**

Schwarzwälder Kirschwasser

Schwarzwälder Himbeergeist

Schwarzwälder Mirabellenwasser

Schwarzwälder Williamsbirne

Schwarzwälder Zwetschgenwasser

Fränkisches Zwetschgenwasser

Fränkisches Kirschwasser

Fränkischer Obstler

Mirabelle de Lorraine

Kirsch d'Alsace

Quetsch d'Alsace

Framboise d'Alsace

Mirabelle d'Alsace

Kirsch de Fougerolles

Südtiroler Williams / Williams dell'Alto Adige

Südtiroler Aprikot / Südtiroler

Marille / Aprikot dell'Alto Adige / Marille dell'Alto Adige

Südtiroler Kirsch / Kirsch dell'Alto Adige

Südtiroler Zwetschgeler / Zwetschgeler dell'Alto Adige

Südtiroler Obstler / Obstler dell'Alto Adige

Südtiroler Gravensteiner / Gravensteiner dell'Alto Adige

Südtiroler Golden Delicious / Golden Delicious dell'Alto Adige

Williams friulano / Williams del Friuli

Sliwovitz del Veneto

Sliwovitz del Friuli-Venezia Giulia

Sliwovitz del Trentino-Alto Adige

Distillato di mele trentino / Distillato di mele del Trentino

Williams trentino / Williams del Trentino

Sliwovitz trentino / Sliwovitz del Trentino

Aprikot trentino / Aprikot del Trentino

Medronheira do Algarve

Medronheira do Buçaco

Kirsch Friulano / Kirschwasser Friulano

Kirsch Trentino / Kirschwasser Trentino

Kirsch Veneto / Kirschwasser Veneto

Aguardente de pêra da Lousã

Eau-de-vie de pommes de marque nationale luxembourgeoise

Eau-de-vie de poires de marque nationale luxembourgeoise

Eau-de-vie de kirsch de marque nationale luxembourgeoise

Eau-de-vie de quetsch de marque nationale luxembourgeoise

Eau-de-vie de mirabelle de marque nationale luxembourgeoise

Eau-de-vie de prunelles de marque nationale luxembourgeoise

Wachauer Marillenbrand

Bošácka Slivovica

Szatmári Szilvapálinka

Kecskeméti Barackpálinka

Békési Szilvapálinka

Szabolcsi Almapálinka

Slivovice

Pálinka

Троянска сливова ракия / Troyanska slivova rakiya

Сливова ракия от Троян / Slivova rakiya from Troyan

Силистренска кайсиева ракия / Silistrenska kayssieva rakiya

Кайсиева ракия от Силистра / Kayssieva rakiya from Silistra

Тервелска кайсиева ракия / Tervelska kayssieva rakiya

Кайсиева ракия от Тервел / Kayssieva rakiya from Tervel

Ловешка сливова ракия / Loveshka slivova rakiya

Сливова ракия от Ловеч / Slivova rakiya from Lovech

Pălincă

Țuică Zetea de Medieşu Aurit

Țuică de Valea Milcovului

Țuică de Buzău

Țuică de Argeş

Țuică de Zalău

Țuică Ardelenească de Bistrița

Horincă de Maramureş

Horincă de Cămârzan

Horincă de Seini

Horincă de Chioar

Horincă de Lăpuş

Turț de Oaş

Turț de Maramureş

8. **Cider spirit and perry spirit**

Calvados

Calvados du Pays d'Auge

Eau-de-vie de cidre de Bretagne

Eau-de-vie de poiré de Bretagne

Eau-de-vie de cidre de Normandie

Eau-de-vie de poiré de Normandie

Eau-de-vie de cidre du Maine

Aguardiente de sidra de Asturias

Eau-de-vie de poiré du Maine

9. **Gentian spirit**

Bayerischer Gebirgsenzian

Südtiroler Enzian / Genzians dell'Alto Adige

Genziana trentina / Genziana del Trentino

10. **Fruit spirit drinks**

Pacharán

Pacharán navarro

11. **Juniper-flavoured spirit drinks**

Ostfriesischer Korngenever

Genièvre Flandres Artois

Hasseltse jenever

Balegemse jenever

Péket de Wallonie

Steinhäger

Plymouth Gin

Gin de Mahón

Vilniaus Džinas

Spišská Borovička

Slovenská Borovička Juniperus

Slovenská Borovička

Inovecká Borovička

Liptovská Borovička

12. **Caraway-flavoured spirit drinks**

Dansk Akvavit / Dansk Aquavit

Svensk Aquavit / Svensk Akvavit / Swedish Aquavit

13. **Aniseed-flavoured spirit drinks**

Anis español

Évoca anisada

Cazalla

Chinchón

Ojén

Rute

Ούζο / Ouzo

14. **Liqueur**

Berliner Kümmel

Hamburger Kümmel

Münchener Kümmel

Chiemseer Klosterlikör

Bayerischer Kräuterlikör

Cassis de Dijon

Cassis de Beaufort

Irish Cream

Palo de Mallorca

Ginjinha portuguesa

Licor de Singeverga

Benediktbeurer Klosterlikör

Ettaler Klosterlikör

Ratafia de Champagne

Ratafia catalana

Anis português

Finnish berry / Finnish fruit liqueur

Grossglockner Alpenbitter

Mariazeller Magenlikör

Mariazeller Jagasaftl

Puchheimer Bitter

Puchheimer Schlossgeist

Steinfelder Magenbitter

Wachauer Marillenlikör

Jägertee / Jagertee / Jagatee

Allažu Kimelis

Čepkelių

Demänovka Bylinný Likér

Polish Cherry

Karlovarská Hořká

15. **Spirit drinks**

Pommeau de Bretagne

Pommeau du Maine

Pommeau de Normandie

Svensk Punsch / Swedish Punch

Slivovice

16. **Vodka**

Svensk Vodka / Swedish Vodka

Suomalainen Vodka / Finsk Vodka / Vodka of Finland

Polska Wódka / Polish Vodka

Laugarício Vodka

Originali Lietuviška Degtinė

Wódka ziołowa z Niziny Północnopodlaskiej aromatyzowana ekstraktem z trawy żubrowej / Herbal vodka from the North Podlasie Lowland aromatised with an extract of bison grass

Latvijas Dzidrais

Rīgas Degvīns

LB Degvīns

LB Vodka

17. **Bitter-tasting spirit drinks**

Rīgas melnais Balzāms / Riga Black Balsam

Demänovka bylinná horká

(c) **AROMATISED WINES ORIGINATING IN THE COMMUNITY**

Nürnberger Glühwein

Pelin

Thüringer Glühwein

Vermouth de Chambéry

Vermouth di Torino

PART B: IN MONTENEGRO

(a) **WINES ORIGINATING IN MONTENEGRO**

1. **Quality wines produced in a specified region**

Specified regions	Sub-regions (whether or not followed by the name of wine-growing commune and/or the name of a vineyard estate)
Crnogorsko primorje	Boko-kotorski Budvansko-barski Ulcinjski Grahovsko-nudoski
Crnogorski basen Skadarskog jezera	Podgorički Crmnički Riječki Bjelopavlićki Katunski

APPENDIX 2

LIST OF TRADITIONAL EXPRESSIONS AND QUALITY TERMS FOR WINE IN THE COMMUNITY

As referred to in Articles 4 and 7 of Annex II of Protocol 2

Traditional expressions	Wines concerned	Wine category	Language
CZECH REPUBLIC			
pozdní sběr	*All*	*Quality wine psr*	*Czech*
archivní víno	*All*	*Quality wine psr*	*Czech*
panenské víno	*All*	*Quality wine psr*	*Czech*
GERMANY			
Qualitätswein	*All*	*Quality wine psr*	*German*
Qualitätswein garantierten Ursprungs / Q.g.U	*All*	*Quality wine psr*	*German*
Qualitätswein mit Prädikät / at/Q.b.A.m.Pr / Prädikatswein	*All*	*Quality wine psr*	*German*
Qualitätsschaumwein garantierten Ursprungs / Q.g.U	*All*	*Quality sparkling wine psr*	*German*
Auslese	*All*	*Quality wine psr*	*German*
Beerenauslese	*All*	*Quality wine psr*	*German*
Eiswein	*All*	*Quality wine psr*	*German*
Kabinett	*All*	*Quality wine psr*	*German*
Spätlese	*All*	*Quality wine psr*	*German*
Trockenbeerenauslese	*All*	*Quality wine psr*	*German*
Landwein	*All*	*Table wine with GI*	
Affentaler	*Altschweier, Bühl, Eisental, Neusatz / Bühl, Bühlertal, Neuweier / Baden-Baden*	*Quality wine psr*	*German*
Badisch Rotgold	*Baden*	*Quality wine psr*	*German*
Ehrentrudis	*Baden*	*Quality wine psr*	*German*
Hock	*Rhein, Ahr, Hessische Bergstraße, Mittelrhein, Nahe, Rheinhessen, Pfalz, Rheingau*	*Table wine with GI* *Quality wine psr*	*German*
Klassik / Classic	*All*	*Quality wine psr*	*German*
Liebfrau(en)milch	*Nahe, Rheinhessen, Pfalz, Rheingau*	*Quality wine psr*	*German*
Moseltaler	*Mosel-Saar-Ruwer*	*Quality wine psr*	*German*
Riesling-Hochgewächs	*All*	*Quality wine psr*	*German*
Schillerwein	*Württemberg*	*Quality wine psr*	*German*
Weißherbst	*All*	*Quality wine psr*	*German*
Winzersekt	*All*	*Quality sparkling wine psr*	*German*
GREECE			
Ονομασια Προελεύσεως Ελεγχόμενη (ΟΠΕ) (Appellation d'origine controlée)	*All*	*Quality wine psr*	*Greek*
Ονομασια Προελεύσεως Ανωτέρας Ποιότητος (ΟΠΑΠ) (Appellation d'origine de qualité supérieure)	*All*	*Quality wine psr*	*Greek*

Traditional expressions	Wines concerned	Wine category	Language
Οίνος γλυκός φυσικός (Vin doux naturel)	*Μοσχάτος Κεφαλληνίας (Muscat de Céphalonie), Μοσχάτος Πατρών (Muscat de Patras), Μοσχάτος Ρίου-Πατρών (Muscat Rion de Patras), Μοσχάτος Λήμνου (Muscat de Lemnos), Μοσχάτος Ρόδου (Muscat de Rhodos), Μαυροδάφνη Πατρών (Mavrodaphne de Patras), Μαυροδάφνη Κεφαλληνίας (Mavrodaphne de Céphalonie), Σάμος (Samos), Σητεία (Sitia), Δαφνές (Dafnès), Σαντορίνη (Santorini)*	*Quality liqueur wine psr*	*Greek*
Οίνος φυσικώς γλυκός (Vin naturellement doux)	*Vins de paille: Κεφαλληνίας (de Céphalonie), Δαφνές (de Dafnès), Λήμνου (de Lemnos), Πατρών (de Patras), Ρίου-Πατρών (de Rion de Patras), Ρόδου (de Rhodos), Σάμος(de Samos), Σητεία (de Sitia), Σαντορίνη (Santorini)*	*Quality wine psr*	*Greek*
Ονομασία κατά παράδοση (Onomasia kata paradosi)	*All*	*Table wine with GI*	*Greek*
Τοπικός Οίνος (vins de pays)	*All*	*Table wine with GI*	*Greek*
Αγρέπαυλη (Agrepavlis)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Αμπέλι (Ampeli)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Αμπελώνας (ες) (Ampelonas ès)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Αρχοντικό (Archontiko)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Κάβα [1] (Cava)	*All*	*Table wine with GI*	*Greek*
Από διαλεκτούς αμπελώνες (Grand Cru)	*Μοσχάτος Κεφαλληνίας (Muscat de Céphalonie), Μοσχάτος Πατρών (Muscat de Patras), Μοσχάτος Ρίου-Πατρών (Muscat Rion de Patras), Μοσχάτος Λήμνου (Muscat de Lemnos), Μοσχάτος Ρόδου (Muscat de Rhodos), Σάμος (Samos)*	*Quality liqueur wine psr*	*Greek*
Ειδικά Επιλεγμένος (Grand réserve)	*All*	*Quality wine psr, Quality liqueur wine psr*	*Greek*

Traditional expressions	Wines concerned	Wine category	Language
Κάστρο (Kastro)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Κτήμα (Ktima)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Λιαστός (Liastos)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Μετόχι (Metochi)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Μοναστήρι (Monastiri)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Νάμα (Nama)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Νυχτέρι (Nychteri)	*Σαντορίνη*	*Quality wine psr*	*Greek*
Ορεινό κτήμα (Orino Ktima)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Ορεινός αμπελώνας (Orinos Ampelonas)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Πύργος (Pyrgos)	*All*	*Quality wine psr, Table wine with GI*	*Greek*
Επιλογή ή Επιλεγμένος (Réserve)	*All*	*Quality wine psr, quality liqueur wine psr*	*Greek*
Παλαιωθείς επιλεγμένος (Vieille réserve)	*All*	*Quality liqueur wine psr*	*Greek*
Βερντέα (Verntea)	*Ζάκυνθος*	*Table wine with GI*	*Greek*
Vinsanto	*Σαντορίνη*	*Quality wine psr, quality liqueur wine psr*	*Greek*
SPAIN			
Denominacion de origen (DO)	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*Spanish*
Denominacion de origen calificada (DOCa)	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*Spanish*
Vino dulce natural	*All*	*Quality liquor wine psr*	*Spanish*
Vino generoso	(2)	*Quality liquor wine psr*	*Spanish*
Vino generoso de licor	(3)	*Quality liquor wine psr*	*Spanish*
Vino de la Tierra	*Tous*	*Table wine with GI*	
Aloque	*DO Valdepeñas*	*Quality wine psr*	*Spanish*

Traditional expressions	Wines concerned	Wine category	Language
Amontillado	*DDOO Jerez-Xérès-Sherry y Manzanilla Sanlúcar de Barrameda* *DO Montilla Moriles*	*Quality liqueur wine psr*	*Spanish*
Añejo	*All*	*Quality wine psr Table wine with GI*	*Spanish*
Añejo	*DO Malaga*	*Quality liqueur wine psr*	*Spanish*
Chacoli / Txakolina	*DO Chacoli de Bizkaia* *DO Chacoli de Getaria* *DO Chacoli de Alava*	*Quality wine psr*	*Spanish*
Clásico	*DO Abona* *DO El Hierro* *DO Lanzarote* *DO La Palma* *DO Tacoronte-Acentejo* *DO Tarragona* *DO Valle de Güimar* *DO Valle de la Orotava* *DO Ycoden-Daute-Isora*	*Quality wine psr*	*Spanish*
Cream	*DDOO Jérez-Xerès-Sherry y Manzanilla Sanlúcar de Barrameda* *DO Montilla Moriles* *DO Málaga* *DO Condado de Huelva*	*Quality liqueur wine psr*	*English*
Criadera	*DDOO Jérez-Xerès-Sherry y Manzanilla Sanlúcar de Barrameda* *DO Montilla Moriles* *DO Málaga* *DO Condado de Huelva*	*Quality liqueur wine psr*	*Spanish*
Criaderas y Soleras	*DDOO Jérez-Xerès-Sherry y Manzanilla Sanlúcar de Barrameda* *DO Montilla Moriles* *DO Málaga* *DO Condado de Huelva*	*Quality liqueur wine psr*	*Spanish*
Crianza	*All*	*Quality wine psr*	*Spanish*
Dorado	*DO Rueda* *DO Malaga*	*Quality liqueur wine psr*	*Spanish*
Fino	*DO Montilla Moriles* *DDOO Jerez-Xérès-Sherry y Manzanilla Sanlúcar de Barrameda*	*Quality liqueur wine psr*	*Spanish*
Fondillon	*DO Alicante*	*Quality wine psr*	*Spanish*
Gran Reserva	*All quality wines psr* *Cava*	*Quality wine psr* *Quality sparkling wine psr*	*Spanish*
Lágrima	*DO Málaga*	*Quality liqueur wine psr*	*Spanish*
Noble	*All*	*Quality wine psr Table wine with GI*	*Spanish*
Noble	*DO Malaga*	*Quality liqueur wine psr*	*Spanish*

Traditional expressions	Wines concerned	Wine category	Language
Oloroso	*DDOO Jerez-Xérès-Sherry y Manzanilla Sanlúcar de Barrameda DO Montilla- Moriles*	*Quality liqueur wine psr*	*Spanish*
Pajarete	*DO Málaga*	*Quality liqueur wine psr*	*Spanish*
Pálido	*DO Condado de Huelva DO Rueda DO Málaga*	*Quality liqueur wine psr*	*Spanish*
Palo Cortado	*DDOO Jerez-Xérès-Sherry y Manzanilla Sanlúcar de Barrameda DO Montilla- Moriles*	*Quality liqueur wine psr*	*Spanish*
Primero de cosecha	*DO Valencia*	*Quality wine psr*	*Spanish*
Rancio	*All*	*Quality wine psr, Quality liqueur wine psr*	*Spanish*
Raya	*DO Montilla-Moriles*	*Quality liqueur wine psr*	*Spanish*
Reserva	*All*	*Quality wine psr*	*Spanish*
Sobremadre	*DO vinos de Madrid*	*Quality wine psr*	*Spanish*
Solera	*DDOO Jérez-Xerès-Sherry y Manzanilla Sanlúcar de Barrameda DO Montilla Moriles DO Málaga DO Condado de Huelva*	*Quality liqueur wine psr*	*Spanish*
Superior	*All*	*Quality wine psr*	*Spanish*
Trasañejo	*DO Málaga*	*Quality liqueur wine psr*	*Spanish*
Vino Maestro	*DO Málaga*	*Quality liqueur wine psr*	*Spanish*
Vendimia inicial	*DO Utiel-Requena*	*Quality wine psr*	*Spanish*
Viejo	*All*	*Quality wine psr, Quality liqueur wine psr, Table wine with GI*	*Spanish*
Vino de tea	*DO La Palma*	*Quality wine psr*	*Spanish*
FRANCE			
Appellation d'origine contrôlée	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*French*
Appellation contrôlée	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	
Appellation d'origine Vin Délimité de qualité supérieure	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*French*

Traditional expressions	Wines concerned	Wine category	Language
Vin doux naturel	*AOC Banyuls, Banyuls Grand Cru, Muscat de Frontignan, Grand Roussillon, Maury, Muscat de Beaume de Venise, Muscat du Cap Corse, Muscat de Lunel, Muscat de Mireval, Muscat de Rivesaltes, Muscat de St Jean de Minervois, Rasteau, Rivesaltes*	*Quality wine psr*	*French*
Vin de pays	*All*	*Table wine with GI*	*French*
Ambré	*All*	*Quality liqueur wine psr, table wine with GI*	*French*
Château	*All*	*Quality wine psr, Quality liqueur wine psr, quality sparkling wine psr*	*French*
Clairet	*AOC Bourgogne AOC Bordeaux*	*Quality wine psr*	*French*
Claret	*AOC Bordeaux*	*Quality wine psr*	*French*
Clos	*All*	*Quality wine psr, quality sparkling wine psr, quality liqueur wine psr*	*French*
Cru Artisan	*AOC Médoc, Haut-Médoc, Margaux, Moulis, Listrac, St Julien, Pauillac, St Estèphe*	*Quality wine psr*	*French*
Cru Bourgeois	AOC Médoc, Haut-Médoc, Margaux, Moulis, Listrac, St Julien, Pauillac, St Estèphe	*Quality wine psr*	*French*
Cru Classé, *éventuellement précédé de:* Grand, Premier Grand, Deuxième, Troisième, Quatrième, Cinquième.	AOC Côtes de Provence, Graves, St Emilion Grand Cru, Haut-Médoc, Margaux, St Julien, Pauillac, St Estèphe, Sauternes, Pessac Léognan, Barsac	*Quality wine psr*	*French*
Edelzwicker	*AOC Alsace*	*Quality wine psr*	*German*

Traditional expressions	Wines concerned	Wine category	Language
Grand Cru	*AOC Alsace, Banyuls, Bonnes Mares, Chablis, Chambertin, Chapelle Chambertin, Chambertin Clos-de-Bèze, Mazoyeres ou Charmes Chambertin, Latricières-Chambertin, Mazis Chambertin, Ruchottes Chambertin, Griottes-Chambertin, Clos de la Roche, Clos Saint Denis, Clos de Tart, Clos de Vougeot, Clos des Lambray, Corton, Corton Charlemagne, Charlemagne, Echézeaux, Grand Echézeaux, La Grande Rue, Montrachet, Chevalier-Montrachet, Bâtard-Montrachet, Bienvenues-Bâtard-Montrachet, Criots-Bâtard-Montrachet, Musigny, Romanée St Vivant, Richebourg, Romanée-Conti, La Romanée, La Tâche, St Emilion*	*Quality wine psr*	*French*
Grand Cru	*Champagne*	*Quality sparkling wine psr*	*French*
Hors d'âge	*AOC Rivesaltes*	*Quality liqueur wine psr*	*French*
Passe-tout-grains	*AOC Bourgogne*	*Quality wine psr*	*French*
Premier Cru	*AOC Aloxe Corton, Auxey Duresses, Beaune, Blagny, Chablis, Chambolle Musigny, Chassagne Montrachet, Champagne, Côtes de Brouilly, Fixin, Gevrey Chambertin, Givry, Ladoix, Maranges, Mercurey, Meursault, Monthélie, Montagny, Morey St Denis, Musigny, Nuits, Nuits-Saint-Georges, Pernand-Vergelesses, Pommard, Puligny-Montrachet, Rully, Santenay, Savigny-les-Beaune, St Aubin, Volnay, Vougeot, Vosne-Romanée*	*Quality wine psr, quality sparkling wine psr*	*French*
Primeur	*All*	*Quality wine psr, table wine with GI*	*French*
Rancio	*AOC Grand Roussillon, Rivesaltes, Banyuls, Banyuls grand cru, Maury, Clairet--te du Languedoc, Rasteau*	*Quality liqueur wine psr*	*French*

Traditional expressions	Wines concerned	Wine category	Language
Sélection de grains nobles	*AOC Alsace, Alsace Grand cru, Monbazillac, Graves supérieures, Bonnezeaux, Jurançon, Cérons, Quarts de Chaume, Sauternes, Loupiac, Côteaux du Layon, Barsac, Ste Croix du Mont, Coteaux de l'Aubance, Cadillac*	*Quality wine psr*	*French*
Sur Lie	*AOC Muscadet, Muscadet –Coteaux de la Loire, Muscadet-Côtes de Grandlieu, Muscadet-Sèvres et Maine, AOVDQS Gros Plant du Pays Nantais, VDT avec IG Vin de pays d'Oc et Vin de pays des Sables du Golfe du Lion*	*Quality wine psr, Table wine with GI*	*French*
Tuilé	*AOC Rivesaltes*	*Quality liqueur wine psr*	*French*
Vendanges tardives	*AOC Alsace, Jurançon*	*Quality wine psr*	*French*
Villages	*AOC Anjou, Beaujolais, Côte de Beaune, Côte de Nuits, Côtes du Rhône, Côtes du Roussillon, Mâcon*	*Quality wine psr*	*French*
Vin de paille	*AOC Côtes du Jura, Arbois, L'Etoile, Hermitage*	*Quality wine psr*	*French*
Vin jaune	*AOC du Jura (Côtes du Jura, Arbois, L'Etoile, Château-Châlon)*	*Quality wine psr*	*French*
ITALY			
Denominazione di Origine Controllata / D.O.C.	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr, Partial fermented grape musts with GI*	*Italian*
Denominazione di Origine Controllata e Garantita / D.O.C.G.	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr, Partial fermented grape musts with GI*	*Italian*
Vino Dolce Naturale	*All*	*Quality wine psr, quality liqueur wine psr*	*Italian*
Inticazione geografica tipica (IGT)	*All*	*Table wine, 'vin de pays', wine of over-ripe grapes and grape must partially fermented with GI*	*Italian*

Traditional expressions	Wines concerned	Wine category	Language
Landwein	*Wine with GI of the autonomous province of Bolzano*	*Table wine, 'vin de pays', wine of over-ripe grapes and grape must partially fermented with GI*	*German*
Vin de pays	*Wine with GI of Aosta region*	*Table wine, 'vin de pays', wine of over-ripe grapes and grape must partially fermented with GI*	*French*
Alberata o vigneti ad alberata	*DOC Aversa*	*Quality wine psr, quality sparkling wine psr*	*Italian*
Amarone	*DOC Valpolicella*	*Quality wine psr*	*Italian*
Ambra	*DOC Marsala*	*Quality wine psr*	*Italian*
Ambrato	*DOC Malvasia delle Lipari* *DOC Vernaccia di Oristano*	*Quality wine psr, quality liqueur wine psr*	*Italian*
Annoso	*DOC Controguerra*	*Quality wine psr*	*Italian*
Apianum	*DOC Fiano di Avellino*	*Quality wine psr*	*Latin*
Auslese	*DOC Caldaro e Caldaro classico- Alto Adige*	*Quality wine psr*	*German*
Barco Reale	*DOC Barco Reale di Carmignano*	*Quality wine psr*	*Italian*
Brunello	*DOC Brunello di Montalcino*	*Quality wine psr*	*Italian*
Buttafuoco	*DOC Oltrepò Pavese*	*Quality wine psr, quality semi sparkling wine psr*	*Italian*
Cacc'e mitte	*DOC Cacc'e Mitte di Lucera*	*Quality wine psr*	*Italian*
Cagnina	*DOC Cagnina di Romagna*	*Quality wine psr*	*Italian*
Cannellino	*DOC Frascati*	*Quality wine psr*	*Italian*
Cerasuolo	*DOC Cerasuolo di Vittoria* *DOC Montepulciano d'Abruzzo*	*Quality wine psr*	*Italian*
Chiaretto	*All*	*Quality wine psr, quality sparkling wine psr, quality liqueur wine psr, Table wine with GI*	*Italian*
Ciaret	*DOC Monferrato*	*Quality wine psr*	*Italian*
Château	*DOC de la région Valle d'Aosta*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*French*
Classico	*All*	*Quality wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*Italian*
Dunkel	*DOC Alto Adige* *DOC Trentino*	*Quality wine psr*	*German*

Traditional expressions	Wines concerned	Wine category	Language
Est! Est!! Est!!!	*DOC Est! Est!! Est!!! di Montefiascone*	*Quality wine psr, quality sparkling wine psr*	*Latin*
Falerno	*DOC Falerno del Massico*	*Quality wine psr*	*Italian*
Fine	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Fior d'Arancio	*DOC Colli Euganei*	*Quality wine psr, quality sparkling wine psr, Table wine with GI*	*Italian*
Falerio	*DOC Falerio dei colli Ascolani*	*Quality wine psr*	*Italian*
Flétri	*DOC Valle d'Aosta o Vallée d'Aoste*	*Quality wine psr*	*Italian*
Garibaldi Dolce (ou GD)	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Governo all'uso toscano	*DOCG Chianti / Chianti Classico* *IGT Colli della Toscana Centrale*	*Quality wine psr, Table wine with GI*	*Italian*
Gutturnio	*DOC Colli Piacentini*	*Quality wine psr, quality semi-sparkling wine psr*	*Italian*
Italia Particolare (ou IP)	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Klassisch / Klassisches Ursprungsgebiet	*DOC Caldaro* *DOC Alto Adige (avec la dénomination Santa Maddalena e Terlano)*	*Quality wine psr*	*German*
Kretzer	*DOC Alto Adige* *DOC Trentino* *DOC Teroldego Rotaliano*	*Quality wine psr*	*German*
Lacrima	*DOC Lacrima di Morro d'Alba*	*Quality wine psr*	*Italian*
Lacryma Christi	*DOC Vesuvio*	*Quality wine psr, quality liqueur wine psr*	*Italian*
Lambiccato	*DOC Castel San Lorenzo*	*Quality wine psr*	*Italian*
London Particolar (ou LP ou Inghilterra)	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Morellino	*DOC Morellino di Scansano*	*Quality wine psr*	*Italian*
Occhio di Pernice	*DOC Bolgheri, Vin Santo Di Carmignano, Colli dell'Etruria Centrale, Colline Lucchesi, Cortona, Elba, Montecarlo, Monteregio di Massa Maritima, San Gimignano, Sant'Antimo, Vin Santo del Chianti, Vin Santo del Chianti Classico, Vin Santo di Montepulciano*	*Quality wine psr*	*Italian*
Oro	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Pagadebit	*DOC pagadebit di Romagna*	*Quality wine psr, quality liqueur wine psr*	*Italian*

Traditional expressions	Wines concerned	Wine category	Language
Passito	*All*	*Quality wine psr, quality liqueur wine psr, table wine with GI*	*Italian*
Ramie	*DOC Pinerolese*	*Quality wine psr*	*Italian*
Rebola	*DOC Colli di Rimini*	*Quality wine psr*	*Italian*
Recioto	*DOC Valpolicella* *DOC Gambellara* *DOCG Recioto di Soave*	*Quality wine psr, quality sparkling wine psr*	*Italian*
Riserva	*All*	*Quality wine psr, quality sparkling wine psr, quality semi sparkling wine psr, quality liqueur wine psr*	*Italian*
Rubino	*DOC Garda Colli Mantovani* *DOC Rubino di Cantavenna* *DOC Teroldego Rotaliano* *DOC Trentino*	*Quality wine psr*	*Italian*
Rubino	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Sangue di Giuda	*DOC Oltrepò Pavese*	*Quality wine psr, quality semi-sparkling wine psr*	*Italian*
Scelto	*All*	*Quality wine psr*	*Italian*
Sciacchetrà	*DOC Cinque Terre*	*Quality wine psr*	*Italian*
Sciac-trà	*DOC Pornassio o Ormeasco di Pornassio*	*Quality wine psr*	*Italian*
Sforzato, Sfursàt	*DO Valtellina*	*Quality wine psr*	*Italian*
Spätlese	*DOC / IGT de Bolzano*	*Quality wine psr, Table wine with GI*	*German*
Soleras	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Stravecchio	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Strohwein	*DOC / IGT de Bolzano*	*Quality wine psr, Table wine with GI*	*German*
Superiore	*All*	*Quality wine psr, Quality sparkling wine psr, Quality semi-sparkling wine psr, Quality liqueur wine psr,*	*Italian*
Superiore Old Marsala (ou SOM)	*DOC Marsala*	*Quality liqueur wine psr*	*Italian*
Torchiato	*DOC Colli di Conegliano*	*Quality wine psr*	*Italian*
Torcolato	*DOC Breganze*	*Quality wine psr*	*Italian*
Vecchio	*DOC Rosso Barletta, Aglianico del Vuture, Marsala, Falerno del Massico*	*Quality wine psr, quality liqueur wine psr*	*Italian*
Vendemmia Tardiva	*All*	*Quality wine psr, quality semi sparkling wine psr, table wine with GI*	*Italian*

Traditional expressions	Wines concerned	Wine category	Language
Verdolino	*All*	*Quality wine psr, Table wine with GI*	*Italian*
Vergine	*DOC Marsala* *DOC Val di Chiana*	*Quality wine psr, quality liqueur wine psr*	*Italian*
Vermiglio	*DOC Colli dell Etruria Centrale*	*Quality liqueur wine psr*	*Italian*
Vino Fiore	*All*	*Quality wine psr*	*Italian*
Vino Nobile	*Vino Nobile di Montepulciano*	*Quality wine psr*	*Italian*
Vino Novello o Novello	*All*	*Quality wine psr, Table wine with GI*	*Italian*
Vin santo / Vino Santo / Vinsanto	*DOC et DOCG Bianco dell'Empolese, Bianco della Valdinievole, Bianco Pisano di San Torpé, Bolgheri, Candia dei Colli Apuani, Capalbio, Carmignano, Colli dell'Etruria Centrale, Colline Lucchesi, Colli del Trasimeno, Colli Perugini, Colli Piacentini, Cortona, Elba, Gambellera, Montecarlo, Monteregio di Massa Maritima, Montescudaio, Offida, Orcia, Pomino, San Gimignano, San'Antimo, Val d'Arbia, Val di Chiana, Vin Santo del Chianti, Vin Santo del Chianti Classico, Vin Santo di Montepulciano, Trentino*	*Quality wine psr*	*Italian*
Vivace	*All*	*Quality wine psr, quality liqueur wine psr, table wine with GI*	*Italian*
CYPRUS			
Οίνος Ελεγχόμενης Ονομασίας Προέλευσης (ΟΕΟΠ)	*All*	*Quality wine psr*	*Greek*
Τοπικός Οίνος (Regional Wine)	*All*	*Table wine with GI*	*Greek*
Μοναστήρι (Monastiri)	*All*	*Quality wine psr and table wine with GI*	*Greek*
Κτήμα (Ktima)	*All*	*Quality wine psr and table wine with GI*	*Greek*
Αμπελώνας (-ες) (Ampelonas (-es))	*All*	*Quality wine psr and table wine with GI*	*Greek*
Μονή (Moni)	*All*	*Quality wine psr and table wine with GI*	*Greek*

Traditional expressions	Wines concerned	Wine category	Language
LUXEMBOURG			
Marque nationale	*All*	*Quality wine psr, quality sparkling wine psr*	*French*
Appellation contrôlée	*All*	*Quality wine psr, quality sparkling wine psr*	*French*
Appellation d'origine controlée	*All*	*Quality wine psr, quality sparkling wine psr*	*French*
Vin de pays	*All*	*Table wine with GI*	*French*
Grand premier cru	*All*	*Quality wine psr*	*French*
Premier cru	*All*	*Quality wine psr*	*French*
Vin classé	*All*	*Quality wine psr*	*French*
Château	*All*	*Quality wine psr, quality sparkling wine psr*	*French*
HUNGARY			
minőségi bor	*All*	*Quality wine psr*	*Hungarian*
különleges minőségű bor	*All*	*Quality wine psr*	*Hungarian*
fordítás	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
máslás	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
szamorodni	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
aszú … puttonyos, *completed by the numbers 3-6*	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
aszúeszencia	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
eszencia	*Tokaj / -i*	*Quality wine psr*	*Hungarian*
tájbor	*All*	*Table wine with GI*	*Hungarian*
bikavér	*Eger, Szekszárd*	*Quality wine psr*	*Hungarian*
késői szüretelésű bor	*All*	*Quality wine psr*	*Hungarian*
válogatott szüretelésű bor	*All*	*Quality wine psr*	*Hungarian*
muzeális bor	*All*	*Quality wine psr*	*Hungarian*
siller	*All*	*Table wine with GI, and quality wine psr*	*Hungarian*
AUSTRIA			
Qualitätswein	*All*	*Quality wine psr*	*German*
Qualitätswein besonderer Reife und Leseart / Prädikatswein	*All*	*Quality wine psr*	*German*
Qualitätswein mit staatlicher Prüfnummer	*All*	*Quality wine psr*	*German*
Ausbruch / Ausbruchwein	*All*	*Quality wine psr*	*German*
Auslese / Auslesewein	*All*	*Quality wine psr*	*German*
Beerenauslese (wein)	*All*	*Quality wine psr*	*German*
Eiswein	*All*	*Quality wine psr*	*German*
Kabinett / Kabinettwein	*All*	*Quality wine psr*	*German*
Schilfwein	*All*	*Quality wine psr*	*German*

Traditional expressions	Wines concerned	Wine category	Language
Spätlese / Spätlesewein	*All*	*Quality wine psr*	*German*
Strohwein	*All*	*Quality wine psr*	*German*
Trockenbeerenauslese	*All*	*Quality wine psr*	*German*
Landwein	*All*	*Table wine with GI*	
Ausstich	*All*	*Quality wine psr and table wine with GI*	*German*
Auswahl	*All*	*Quality wine psr and table wine with GI*	*German*
Bergwein	*All*	*Quality wine psr and table wine with GI*	*German*
Klassik / Classic	*All*	*Quality wine psr*	*German*
Erste Wahl	*All*	*Quality wine psr and table wine with GI*	*German*
Hausmarke	*All*	*Quality wine psr and table wine with GI*	*German*
Heuriger	*All*	*Quality wine psr and table wine with GI*	*German*
Jubiläumswein	*All*	*Quality wine psr and table wine with GI*	*German*
Reserve	*All*	*Quality wine psr*	*German*
Schilcher	*Steiermark*	*Quality wine psr and table wine with GI*	*German*
Sturm	*All*	*Partial fermented grape must with GI*	*German*
PORTUGAL			
Denominação de origem (DO)	*All*	*Quality wine psr, quality sparkling wine psr, quality semi-sparkling wine psr, quality liqueur wine psr*	*Portuguese*
Denominação de origem controlada (DOC)	*All*	*Quality wine psr, quality sparkling wine psr, quality semi-sparkling wine psr, quality liqueur wine psr*	*Portuguese*
Indicação de proveniencia regulamentada (IPR)	*All*	*Quality wine psr, quality sparkling wine psr, quality semi-sparkling wine psr, quality liqueur wine psr*	*Portuguese*
Vinho doce natural	*All*	*Quality liqueur wine psr*	*Portuguese*
Vinho generoso	*DO Porto, Madeira, Moscatel de Setúbal, Carcavelos*	*Quality liqueur wine psr*	*Portuguese*
Vinho regional	*All*	*Table wine with GI*	*Portuguese*

Traditional expressions	Wines concerned	Wine category	Language
Canteiro	*DO Madeira*	*Quality liqueur wine psr*	*Portuguese*
Colheita Seleccionada	*All*	*Quality wine psr, Table wine with GI*	*Portuguese*
Crusted / Crusting	*DO Porto*	*Quality liqueur wine psr*	*English*
Escolha	*All*	*Quality wine psr, Table wine with GI*	*Portuguese*
Escuro	*DO Madeira*	*Quality liqueur wine psr*	*Portuguese*
Fino	*DO Porto* *DO Madeira*	*Quality liqueur wine psr*	*Portuguese*
Frasqueira	*DO Madeira*	*Quality liqueur wine psr*	*Portuguese*
Garrafeira	*All*	*Quality wine psr, Table wine with GI* *Quality liqueur wine psr*	*Portuguese*
Lágrima	*DO Porto*	*Quality liqueur wine psr*	*Portuguese*
Leve	*Table wine with GI Estremadura and Ribatejano* *DO Madeira, DO Porto*	*Table wine with GI* *Quality liqueur wine psr*	*Portuguese*
Nobre	*DO Dão*	*Quality wine psr*	*Portuguese*
Reserva	*All*	*Quality wine psr, quality liqueur wine psr, quality sparkling wine psr, table wine with GI*	*Portuguese*
Reserva velha (or grande reserva)	*DO Madeira*	*Quality sparkling wine psr, quality liqueur wine psr*	*Portuguese*
Ruby	*DO Porto*	*Quality liqueur wine psr*	*English*
Solera	*DO Madeira*	*Quality liqueur wine psr*	*Portuguese*
Super reserva	*All*	*Quality sparkling wine psr*	*Portuguese*
Superior	*All*	*Quality wine psr, quality liqueur wine psr, table wine with GI*	*Portuguese*
Tawny	*DO Porto*	*Quality liqueur wine psr*	*English*
Vintage supplemented by Late Bottle (LBV) ou Character	*DO Porto*	*Quality liqueur wine psr*	*English*
Vintage	*DO Porto*	*Quality liqueur wine psr*	*English*
SLOVENIA			
Penina	*All*	*Quality sparkling wine psr*	*Slovenian*
pozna trgatev	*All*	*Quality wine psr*	*Slovenian*
izbor	*All*	*Quality wine psr*	*Slovenian*
jagodni izbor	*All*	*Quality wine psr*	*Slovenian*
suhi jagodni izbor	*All*	*Quality wine psr*	*Slovenian*
ledeno vino	*All*	*Quality wine psr*	*Slovenian*
arhivsko vino	*All*	*Quality wine psr*	*Slovenian*
mlado vino	*All*	*Quality wine psr*	*Slovenian*

Traditional expressions	Wines concerned	Wine category	Language
Cviček	*Dolenjska*	*Quality wine psr*	*Slovenian*
Teran	*Kras*	*Quality wine psr*	*Slovenian*
SLOVAKIA			
forditáš	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
mášláš	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
samorodné	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
výber … putňový, *completed by the numbers 3-6*	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
výberová esencia	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
esencia	*Tokaj / -ská / -ský / -ské*	*Quality wine psr*	*Slovak*
BULGARIA			
Гарантирано наименование за произход (ГНП) *(guaranteed appellation of origin)*	*All*	*Quality wine psr, quality semi-sparkling wine psr, quality sparkling wine psr and quality liqueur wine psr*	*Bulgarian*
Гарантирано и контролирано наименование за произход (ГКНП) *(guaranteed and controlled appellation of origin)*	*All*	*Quality wine psr, quality semi-sparkling wine psr, quality sparkling wine psr and quality liqueur wine psr*	*Bulgarian*
Благородно сладко вино (БСВ) *(noble sweet wine)*	*All*	*Quality liqueur wine psr*	*Bulgarian*
регионално вино *(Regional wine)*	*All*	*Table wine with GI*	*Bulgarian*
Ново *(young)*	*All*	*Quality wine psr* *Table wine with GI*	*Bulgarian*
Премиум *(premium)*	*All*	*Table wine with GI*	*Bulgarian*
Резерва *(reserve)*	*All*	*Quality wine psr* *Table wine with GI*	*Bulgarian*
Премиум резерва *(premium reserve)*	*All*	*Table wine with GI*	*Bulgarian*
Специална резерва *(special reserve)*	*All*	*Quality wine psr*	*Bulgarian*
Специална селекция (special selection)	*All*	*Quality wine psr*	*Bulgarian*
Колекционно (*collection*)	*All*	*Quality wine psr*	*Bulgarian*
Премиум оук, или първо зареждане в бъчва *(premium oak)*	*All*	*Quality wine psr*	*Bulgarian*
Беритба на презряло грозде *(vintage of over ripe grapes)*	*All*	*Quality wine psr*	*Bulgarian*
Розенталер *(Rosenthaler)*	*All*	*Quality wine psr*	*Bulgarian*

Traditional expressions	Wines concerned	Wine category	Language
ROMANIA			
Vin cu denumire de origine controlată (D.O.C.)	*All*	*Quality wine psr*	*Romanian*
Cules la maturitate deplină (C.M.D.)	*All*	*Quality wine psr*	*Romanian*
Cules târziu (C.T.)	*All*	*Quality wine psr*	*Romanian*
Cules la înnobilarea boabelor (C.I.B.)	*All*	*Quality wine psr*	*Romanian*
Vin cu indicație geografică	*All*	*Table wine with GI*	*Romanian*
Rezervă	*All*	*Quality wine psr*	*Romanian*
Vin de vinotecă	*All*	*Quality wine psr*	*Romanian*

(1) The protection of the term 'cava' foreseen in Council Regulation (EC) No 1493/1999 is without prejudice to the protection of the geographical indication applicable to quality sparkling wines psr 'Cava'.
(2) The wines concerned are quality liqueur wines psr foreseen in Annex VI, point L, paragraph 8 of Council Regulation (EC) No 1493/1999.
(3) The wines concerned are quality liqueur wines psr foreseen in Annex VI, point L, paragraph 11 of Council Regulation (EC) No 1493/1999.

APPENDIX 3

LIST OF CONTACT POINTS

As referred to in Article 12 of Annex II of Protocol 2

(a) **Montenegro**

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PROTOCOL 3

concerning the definition of the concept of 'originating products' and methods of administrative cooperation for the application of the provisions of this agreement between the Community and Montenegro

TABLE OF CONTENTS

TITLE I **GENERAL PROVISIONS**

Article 1 **Definitions**

TITLE II **DEFINITION OF THE CONCEPT OF 'ORIGINATING PRODUCTS'**

Article 2 **General requirements**

Article 3 **Cumulation in the Community**

Article 4 **Cumulation in Montenegro**

Article 5 **Wholly obtained products**

Article 6 **Sufficiently worked or processed products**

Article 7 **Insufficient working or processing**

Article 8 **Unit of qualification**

Article 9 **Accessories, spare parts and tools**

Article 10 **Sets**

Article 11 **Neutral elements**

TITLE III **TERRITORIAL REQUIREMENTS**

Article 12 **Principle of territoriality**

Article 13 **Direct transport**

Article 14 **Exhibitions**

TITLE IV **DRAWBACK OR EXEMPTION**

Article 15 **Prohibition of drawback of, or exemption from, customs duties**

TITLE V **PROOF OF ORIGIN**

Article 16 **General requirements**

Article 17 **Procedure for the issue of a movement certificate EUR.1**

Article 18 **Movement certificates EUR.1 issued retrospectively**

Article 19 **Issue of a duplicate movement certificate EUR.1**

Article 20 **Issue of movement certificates EUR.1 on the basis of a proof of origin issued or made out previously**

Article 21 **Accounting segregation**

Article 22 **Conditions for making out an invoice declaration**

Article 23 **Approved exporter**

Article 24 **Validity of proof of origin**

Article 25 **Submission of proof of origin**

Article 26 **Importation by instalments**

Article 27 **Exemptions from proof of origin**

Article 28 **Supporting documents**

Article 29 **Preservation of proof of origin and supporting documents**

Article 30 **Discrepancies and formal errors**

Article 31 **Amounts expressed in euro**

TITLE VI **ARRANGEMENTS FOR ADMINISTRATIVE COOPERATION**

Article 32 **Mutual assistance**

Article 33 **Verification of proofs of origin**

Article 34 **Dispute settlement**

Article 35 **Penalties**

Article 36 **Free zones**

TITLE VII **CEUTA AND MELILLA**

Article 37 **Application of this Protocol**

Article 38 **Special conditions**

TITLE VIII **FINAL PROVISIONS**

Article 39 **Amendments to this Protocol**

LIST OF ANNEXES

Annex I: Introductory notes to the list in Annex II

Annex II: List of working or processing required to be carried out on non-originating materials in order that the product manufactured can obtain originating status

Annex III: Specimens of movement certificate EUR.1 and application for a movement certificate EUR.1

Annex IV: Text of the invoice declaration

Annex V: Products excluded from the cumulation provided for in Article 3 and Article 4

JOINT DECLARATIONS

Joint declaration concerning the Principality of Andorra

Joint declaration concerning the Republic of San Marino

TITLE I

GENERAL PROVISIONS

Article 1

Definitions

For the purposes of this Protocol:

(a) 'manufacture' means any kind of working or processing including assembly or specific operations;

(b) 'material' means any ingredient, raw material, component or part, etc., used in the manufacture of the product;

(c) 'product' means the product being manufactured, even if it is intended for later use in another manufacturing operation;

(d) 'goods' means both materials and products;

(e) 'customs value' means the value as determined in accordance with the 1994 Agreement on implementation of Article VII of the General Agreement on Tariffs and Trade (WTO Agreement on customs valuation);

(f) 'ex-works price' means the price paid for the product ex works to the manufacturer in the Community or in Montenegro in whose undertaking the last working or processing is carried out, provided the price includes the value of all the materials used, minus any internal taxes which are, or may be, repaid when the product obtained is exported;

(g) 'value of materials' means the customs value at the time of importation of the non-originating materials used, or, if this is not known and cannot be ascertained, the first ascertainable price paid for the materials in the Community or in Montenegro;

(h) 'value of originating materials' means the value of such materials as defined in (g) applied *mutatis mutandis*;

(i) 'value added' shall be taken to be the ex-works price minus the customs value of each of the materials incorporated which originate in the other countries referred to in Articles 3 and 4 or, where the customs value is not known or cannot be ascertained, the first ascertainable price paid for the materials in the Community or in Montenegro;

(j) 'chapters' and 'headings' mean the chapters and the headings (four-digit codes) used in the nomenclature which makes up the HarmonizedCommodity Description and Coding System, referred to in this Protocol as 'the Harmonized System' or 'HS';

(k) 'classified' refers to the classification of a product or material under a particular heading;

(l) 'consignment' means products which are either sent simultaneously from one exporter to one consignee or covered by a single transport document covering their shipment from the exporter to the consignee or, in the absence of such a document, by a single invoice;

(m) 'territories' includes territorial waters.

TITLE II

DEFINITION OF THE CONCEPT OF 'ORIGINATING PRODUCTS'

Article 2

General requirements

1. For the purpose of implementing this Agreement, the following products shall be considered as originating in the Community:

(a) products wholly obtained in the Community within the meaning of Article 5;

(b) products obtained in the Community incorporating materials which have not been wholly obtained there, provided that such materials have undergone sufficient working or processing in the Community within the meaning of Article 6.

2. For the purpose of implementing this Agreement, the following products shall be considered as originating in Montenegro:

(a) products wholly obtained in Montenegro within the meaning of Article 5;

(b) products obtained in Montenegro incorporating materials which have not been wholly obtained there, provided that such materials have undergone sufficient working or processing in Montenegro within the meaning of Article 6.

Article 3

Cumulation in the Community

1. Without prejudice to the provisions of Article 2(1), products shall be considered as originating in the Community if such products are obtained there, incorporating materials originating in Montenegro, in the Community or in any country or territory participating in the European Union's Stabilisation and Association process [1], or incorporating the materials originating in Turkey to which the Decision n° 1/95 of the EC-Turkey Association Council of 22 December 1995 [2] applies, provided that the working or processing carried out in the Community goes beyond the operations referred to in Article 7. It shall not be necessary that such materials have undergone sufficient working or processing.

2. Where the working or processing carried out in the Community does not go beyond the operations referred to in Article 7, the product obtained shall be considered as originating in the Community only where the value added there is greater than the value of the materials used originating in any one of the other countries or territories referred to in paragraph 1. If this is not so, the product obtained shall be considered as originating in the country which accounts for the highest value of originating materials used in the manufacture in the Community.

3. Products, originating in one of the countries or territories referred to in paragraph 1, which do not undergo any working or processing in the Community, retain their origin if exported into one of these countries or territories.

4. The cumulation provided for in this Article may be applied only provided that:

(a) a preferential trade Agreement in accordance with Article XXIV of the General Agreement on Tariffs and Trade (GATT 1994) is applicable between the countries or territories involved in the acquisition of the originating status and the country of destination;

(b) materials and products have acquired originating status by the application of rules of origin identical to those given in this Protocol;

and

(c) notices indicating the fulfilment of the necessary requirements to apply cumulation have been published in the Official Journal of the European Union (C series) and in Montenegro according to its own procedures.

The cumulation provided for in this Article shall apply from the date indicated in the notice published in the Official Journal of the European Union (C series).

The Community shall provide Montenegro, through the European Commission with details of the Agreements and their corresponding rules of origin, which are applied with the other countries or territories referred to in paragraph 1.

The products in Annex V shall be excluded from the cumulation provided for in this Article.

Article 4

Cumulation in Montenegro

1. Without prejudice to the provisions of Article 2(2), products shall be considered as originating in Montenegro if such products are obtained there, incorporating materials originating in the Community, Montenegro, or in any country or territory participating in the European Union's Stabilisation and Association Process [1] or incorporating the materials originating in Turkey to which the Decision n° 1/95 of the EC-Turkey Association Council of 22 December 1995 [2] applies, provided that the working or processing carried out in Montenegro goes beyond the operations referred to in Article 7. It shall not be necessary that such materials have undergone sufficient working or processing.

2. Where the working or processing carried out in Montenegro does not go beyond the operations referred to in Article 7, the product obtained shall be considered as originating in Montenegro only where the value added there is greater than the value of the materials used originating in any one of the other countries or territories referred to in paragraph 1. If this is not so, the product obtained shall be considered as originating in the country which accounts for the highest value of originating materials used in the manufacture in Montenegro.

3. Products, originating in one of the countries or territories referred to in paragraph 1, which do not undergo any working or processing in Montenegro, retain their origin if exported into one of these countries or territories.

4. The cumulation provided for in this Article may be applied only provided that:

(a) a preferential trade Agreement in accordance with Article XXIV of the General Agreement on Tariffs and Trade (GATT 1994) is applicable between the countries or territories involved in the acquisition of the originating status and the country of destination;

[1] As defined in the Conclusions of the General Affairs Council in April 1997 and Commission Communication of May 1999 on the establishment of the Stabilisation and Association process with Western Balkan countries.

[2] Decision n° 1/95 of the EC-Turkey Association Council of 22 December 1995 applies to products other than agricultural products as defined in the Agreement establishing an Association between the European Economic Community and Turkey and other than coal and steel products as defined in the Agreement between the European Coal and Steel Community and the Republic of Turkey on trade in products covered by the treaty establishing the European Coal and Steel Community.

(b) materials and products have acquired originating status by the application of rules of origin identical to those given in this Protocol;

and

(c) notices indicating the fulfilment of the necessary requirements to apply cumulation have been published in the Official Journal of the European Union (C series) and in Montenegro according to its own procedures.

The cumulation provided for in this Article shall apply from the date indicated in the notice published in the Official Journal of the European Union (C series).

Montenegro shall provide the Community, through the European Commission with details of the Agreements, including their dates of entry into force, and their corresponding rules of origin, which are applied with the other countries or territories referred to in paragraph 1.

The products in Annex V shall be excluded from the cumulation provided for in this Article.

Article 5

Wholly obtained products

1. The following shall be considered as wholly obtained in the Community or in Montenegro:

(a) mineral products extracted from their soil or from their seabed;

(b) vegetable products harvested there;

(c) live animals born and raised there;

(d) products from live animals raised there;

(e) products obtained by hunting or fishing conducted there;

(f) products of sea fishing and other products taken from the sea outside the territorial waters of the Community or of Montenegro by their vessels;

(g) products made aboard their factory ships exclusively from products referred to in (f);

(h) used articles collected there fit only for the recovery of raw materials, including used tyres fit only for retreading or for use as waste;

(i) waste and scrap resulting from manufacturing operations conducted there;

(j) products extracted from marine soil or subsoil outside their territorial waters provided that they have sole rights to work that soil or subsoil;

(k) goods produced there exclusively from the products specified in (a) to (j).

2. The terms 'their vessels' and 'their factory ships' in paragraph 1(f) and (g) shall apply only to vessels and factory ships:

(a) which are registered or recorded in a Member State of the Community or in Montenegro;

(b) which sail under the flag of a Member State of the Community or of Montenegro;

(c) which are owned to an extent of at least 50 % by nationals of a Member State of the Community or of Montenegro, or by a company with its head office in one of these States, of which the manager or managers, Chairman of the Board of Directors or the Supervisory Board, and the majority of the members of such boards are nationals of a Member State of the Community or of Montenegro and of which, in addition, in the case of partnerships or limited companies, at least half the capital belongs to those States or to public bodies or nationals of the said States;

(d) of which the master and officers are nationals of a Member State of the Community or of Montenegro;

and

(e) of which at least 75 % of the crew are nationals of a Member State of the Community or of Montenegro.

Article 6

Sufficiently worked or processed products

1. For the purposes of Article 2, products which are not wholly obtained are considered to be sufficiently worked or processed when the conditions set out in the list in Annex II are fulfilled.

The conditions referred to above indicate, for all products covered by this Agreement, the working or processing which must be carried out on non-originating materials used in manufacturing and apply only in relation to such materials. It follows that if a product which has acquired originating status by fulfilling the conditions set out in the list is used in the manufacture of another product, the conditions applicable to the product in which it is incorporated do not apply to it, and no account shall be taken of the non-originating materials which may have been used in its manufacture.

2. Notwithstanding paragraph 1, non-originating materials which, according to the conditions set out in the list, should not be used in the manufacture of a product may nevertheless be used, provided that:

(a) their total value does not exceed 10 % of the ex-works price of the product;

(b) any of the percentages given in the list for the maximum value of non-originating materials are not exceeded through the application of this paragraph.

This paragraph shall not apply to products falling within Chapters 50 to 63 of the Harmonized System.

3. Paragraphs 1 and 2 shall apply subject to the provisions of Article 7.

Article 7

Insufficient working or processing

1. Without prejudice to paragraph 2, the following operations shall be considered as insufficient working or processing to confer the status of originating products, whether or not the requirements of Article 6 are satisfied:

(a) preserving operations to ensure that the products remain in good condition during transport and storage;

(b) breaking-up and assembly of packages;

(c) washing, cleaning; removal of dust, oxide, oil, paint or other coverings;

(d) ironing or pressing of textiles;

(e) simple painting and polishing operations;

(f) husking, partial or total bleaching, polishing, and glazing of cereals and rice;

(g) operations to colour sugar or form sugar lumps;

(h) peeling, stoning and shelling, of fruits, nuts and vegetables;

(i) sharpening, simple grinding or simple cutting;

(j) sifting, screening, sorting, classifying, grading, matching; (including the making-up of sets of articles);

(k) simple placing in bottles, cans, flasks, bags, cases, boxes, fixing on cards or boards and all other simple packaging operations;

(l) affixing or printing marks, labels, logos and other like distinguishing signs on products or their packaging;

(m) simple mixing of products, whether or not of different kinds; mixing of sugar with any other material;

(n) simple assembly of parts of articles to constitute a complete article or disassembly of products into parts;

(o) a combination of two or more operations specified in (a) to (n);

(p) slaughter of animals.

2. All operations carried out either in the Community or in Montenegro on a given product shall be considered together when determining whether the working or processing undergone by that product is to be regarded as insufficient within the meaning of paragraph 1.

Article 8

Unit of qualification

1. The unit of qualification for the application of the provisions of this Protocol shall be the particular product which is considered as the basic unit when determining classification using the nomenclature of the Harmonized System.

It follows that:

(a) when a product composed of a group or assembly of articles is classified under the terms of the Harmonized System in a single heading, the whole constitutes the unit of qualification;

(b) when a consignment consists of a number of identical products classified under the same heading of the Harmonized System, each product must be taken individually when applying the provisions of this Protocol.

2. Where, under General Rule 5 of the Harmonized System, packaging is included with the product for classification purposes, it shall be included for the purposes of determining origin.

Article 9

Accessories, spare parts and tools

Accessories, spare parts and tools dispatched with a piece of equipment, machine, apparatus or vehicle, which are part of the normal equipment and included in the price thereof or which are not separately invoiced, shall be regarded as one with the piece of equipment, machine, apparatus or vehicle in question.

Article 10

Sets

Sets, as defined in General Rule 3 of the Harmonized System, shall be regarded as originating when all component products are originating. Nevertheless, when a set is composed of originating and non-originating products, the set as a whole shall be regarded as originating, provided that the value of the non-originating products does not exceed 15 % of the ex-works price of the set.

Article 11

Neutral elements

In order to determine whether a product originates, it shall not be necessary to determine the origin of the following which might be used in its manufacture:

(a) energy and fuel;

(b) plant and equipment;

(c) machines and tools;

(d) goods which do not enter and which are not intended to enter into the final composition of the product.

TITLE III

TERRITORIAL REQUIREMENTS

Article 12

Principle of territoriality

1. Except as provided for in Articles 3 and 4 and paragraph 3 of this Article, the conditions for acquiring originating status set out in Title II must be fulfilled without interruption in the Community or in Montenegro.

2. Except as provided for in Articles 3 and 4, where originating goods exported from the Community or from Montenegro to another country return, they must be considered as non-originating, unless it can be demonstrated to the satisfaction of the customs authorities that:

(a) the returning goods are the same as those exported;

and

(b) they have not undergone any operation beyond that necessary to preserve them in good condition while in that country or while being exported.

3. The acquisition of originating status in accordance with the conditions set out in Title II shall not be affected by working or processing done outside the Community or Montenegro on materials exported from the Community or from Montenegro and subsequently re-imported there, provided:

(a) the said materials are wholly obtained in the Community or in Montenegro or have undergone working or processing beyond the operations referred to in Article 7 prior to being exported;

and

(b) it can be demonstrated to the satisfaction of the customs authorities that:

(i) the re-imported goods have been obtained by working or processing the exported materials;

and

(ii) the total added value acquired outside the Community or Montenegro by applying the provisions of this Article does not exceed 10 % of the ex-works price of the end product for which originating status is claimed.

4. For the purposes of paragraph 3, the conditions for acquiring originating status set out in Title II shall not apply to working or processing done outside the Community or Montenegro. But where, in the list in Annex II, a rule setting a maximum value for all the non-originating materials incorporated is applied in determining the originating status of the end product, the total value of the non-originating materials incorporated in the territory of the party concerned, taken together with the total added value acquired outside the Community or Montenegro by applying the provisions of this Article, shall not exceed the stated percentage.

5. For the purposes of applying the provisions of paragraphs 3 and 4, 'total added value' shall be taken to mean all costs arising outside the Community or Montenegro, including the value of the materials incorporated there.

6. The provisions of paragraphs 3 and 4 shall not apply to products which do not fulfil the conditions set out in the list in Annex II or which can be considered sufficiently worked or processed only if the general tolerance fixed in Article 6(2) is applied.

7. The provisions of paragraphs 3 and 4 shall not apply to products of Chapters 50 to 63 of the Harmonized System.

8. Any working or processing of the kind covered by the provisions of this Article and done outside the Community or Montenegro shall be done under the outward processing arrangements, or similar arrangements.

Article 13

Direct transport

1. The preferential treatment provided for under this Agreement applies only to products, satisfying the requirements of this Protocol, which are transported directly between the Community and Montenegro or through the territories of the other countries or territories referred to in Articles 3 and 4. However, products constituting one single consignment may be transported through other territories with, should the occasion arise, trans-shipment or temporary warehousing in such territories, provided that they remain under the surveillance of the customs authorities in the country of transit or warehousing and do not undergo operations other than unloading, reloading or any operation designed to preserve them in good condition.

Originating products may be transported by pipeline across territory other than that of the Community or Montenegro.

2. Evidence that the conditions set out in paragraph 1 have been fulfilled shall be supplied to the customs authorities of the importing country by the production of:

(a) a single transport document covering the passage from the exporting country through the country of transit; or

(b) a certificate issued by the customs authorities of the country of transit:

(i) giving an exact description of the products;

(ii) stating the dates of unloading and reloading of the products and, where applicable, the names of the ships, or the other means of transport used;

and

(iii) certifying the conditions under which the products remained in the transit country; or

(c) failing these, any substantiating documents.

Article 14

Exhibitions

1. Originating products, sent for exhibition in a country or territory other than those referred to in Articles 3 and 4 and sold after the exhibition for importation in the Community or in Montenegro shall benefit on importation from the provisions of this Agreement provided it is shown to the satisfaction of the customs authorities that:

(a) an exporter has consigned these products from the Community or from Montenegro to the country in which the exhibition is held and has exhibited them there;

(b) the products have been sold or otherwise disposed of by that exporter to a person in the Community or in Montenegro;

(c) the products have been consigned during the exhibition or immediately thereafter in the state in which they were sent for exhibition;

and

(d) the products have not, since they were consigned for exhibition, been used for any purpose other than demonstration at the exhibition.

2. A proof of origin must be issued or made out in accordance with the provisions of Title V and submitted to the customs authorities of the importing country in the normal manner. The name and address of the exhibition must be indicated thereon. Where necessary, additional documentary evidence of the conditions under which they have been exhibited may be required.

3. Paragraph 1 shall apply to any trade, industrial, agricultural or crafts exhibition, fair or similar public show or display which is not organised for private purposes in shops or business premises with a view to the sale of foreign products, and during which the products remain under customs control.

TITLE IV

DRAWBACK OR EXEMPTION

Article 15

Prohibition of drawback of, or exemption from, customs duties

1. Non-originating materials used in the manufacture of products originating in the Community, in Montenegro or in one of the other countries or territories referred to in Articles 3 and 4 for which a proof of origin is issued or made out in accordance with the provisions of Title V shall not be subject in the Community or in Montenegro to drawback of, or exemption from, customs duties of whatever kind.

2. The prohibition in paragraph 1 shall apply to any arrangement for refund, remission or non-payment, partial or complete, of customs duties or charges having an equivalent effect, applicable in the Community or in Montenegro to materials used in the manufacture, where such refund, remission or non-payment applies, expressly or in effect, when products obtained from the said materials are exported and not when they are retained for home use there.

3. The exporter of products covered by a proof of origin shall be prepared to submit at any time, upon request from the customs authorities, all appropriate documents proving that no drawback has been obtained in respect of the non-originating materials used in the manufacture of the products concerned and that all customs duties or charges having equivalent effect applicable to such materials have actually been paid.

4. The provisions of paragraphs 1 to 3 shall also apply in respect of packaging within the meaning of Article 8(2), accessories, spare parts and tools within the meaning of Article 9 and products in a set within the meaning of Article 10 when such items are non-originating.

5. The provisions of paragraphs 1, 2, 3 and 4 shall apply only in respect of materials which are of the kind to which this Agreement applies. Furthermore, they shall not preclude the application of an export refund system for agricultural products, applicable upon export in accordance with the provisions of this Agreement.

TITLE V

PROOF OF ORIGIN

Article 16

General requirements

1. Products originating in the Community shall, on importation into Montenegro and products originating in Montenegro shall, on importation into the Community benefit from this Agreement upon submission of either:

(a) a movement certificate EUR.1, a specimen of which appears in Annex III; or

(b) in the cases specified in Article 22(1), a declaration, subsequently referred to as the 'invoice declaration', given by the exporter on an invoice, a delivery note or any other commercial document which describes the products concerned in sufficient detail to enable them to be identified; the text of the invoice declaration appears in Annex IV.

2. Notwithstanding paragraph 1, originating products within the meaning of this Protocol shall, in the cases specified in Article 27, benefit from this Agreement without it being necessary to submit any of the documents referred to above.

Article 17

Procedure for the issue of a movement certificate EUR.1

1. A movement certificate EUR.1 shall be issued by the customs authorities of the exporting country on application having been made in writing by the exporter or, under the exporter's responsibility, by his authorised representative.

2. For this purpose, the exporter or his authorised representative shall fill out both the movement certificate EUR.1 and the application form, specimens of which appear in Annex III. These forms shall be completed in one of the languages in which this Agreement is drawn up and in accordance with the provisions of the domestic law of the exporting country. If they are handwritten, they shall be completed in ink in printed characters. The description of the products must be given in the box reserved for this purpose without leaving any blank lines. Where the box is not completely filled, a horizontal line must be drawn below the last line of the description, the empty space being crossed through.

3. The exporter applying for the issue of a movement certificate EUR.1 shall be prepared to submit at any time, at the request of the customs authorities of the exporting country where the movement certificate EUR.1 is issued, all appropriate documents proving the originating status of the products concerned as well as the fulfilment of the other requirements of this Protocol.

4. A movement certificate EUR.1 shall be issued by the customs authorities of a Member State of the Community or of Montenegro if the products concerned can be considered as products originating in the Community, Montenegro or in one of the other countries or territories referred to in Articles 3 and 4 and fulfil the other requirements of this Protocol.

5. The customs authorities issuing movement certificates EUR.1 shall take any steps necessary to verify the originating status of the products and the fulfilment of the other requirements of this Protocol. For this purpose, they shall have the right to call for any evidence and to carry out any inspection of the exporter's accounts or any other check considered appropriate. They shall also ensure that the forms referred to in paragraph 2 are duly completed. In particular, they shall check whether the space reserved for the description of the products has been completed in such a manner as to exclude all possibility of fraudulent additions.

6. The date of issue of the movement certificate EUR.1 shall be indicated in Box 11 of the certificate.

7. A movement certificate EUR.1 shall be issued by the customs authorities and made available to the exporter as soon as actual exportation has been effected or ensured.

Article 18

Movement certificates EUR.1 issued retrospectively

1. Notwithstanding Article 17(7), a movement certificate EUR.1 may exceptionally be issued after exportation of the products to which it relates if:

(a) it was not issued at the time of exportation because of errors or involuntary omissions or special circumstances;

or

(b) it is demonstrated to the satisfaction of the customs authorities that a movement certificate EUR.1 was issued but was not accepted at importation for technical reasons.

2. For the implementation of paragraph 1, the exporter must indicate in his application the place and date of exportation of the products to which the movement certificate EUR.1 relates, and state the reasons for his request.

3. The customs authorities may issue a movement certificate EUR.1 retrospectively only after verifying that the information supplied in the exporter's application agrees with that in the corresponding file.

4. Movement certificates EUR.1 issued retrospectively must be endorsed with the following phrase in English:

'ISSUED RETROSPECTIVELY'.

5. The endorsement referred to in paragraph 4 shall be inserted in the 'Remarks' box of the movement certificate EUR.1.

Article 19

Issue of a duplicate movement certificate EUR.1

1. In the event of theft, loss or destruction of a movement certificate EUR.1, the exporter may apply to the customs authorities which issued it for a duplicate made out on the basis of the export documents in their possession.

2. The duplicate issued in this way must be endorsed with the following word in English:

'DUPLICATE'.

3. The endorsement referred to in paragraph 2 shall be inserted in the 'Remarks' box of the duplicate movement certificate EUR.1.

4. The duplicate, which must bear the date of issue of the original movement certificate EUR.1, shall take effect as from that date.

Article 20

Issue of movement certificates EUR.1 on the basis of a proof of origin issued or made out previously

When originating products are placed under the control of a customs office in the Community or in Montenegro, it shall be possible to replace the original proof of origin by one or more movement certificates EUR.1 for the purpose of sending all or some of these products elsewhere within the Community or Montenegro. The replacement movement certificate(s) EUR.1 shall be issued by the customs office under whose control the products are placed.

Article 21

Accounting segregation

1. Where considerable cost or material difficulties arise in keeping separate stocks of originating and non-originating materials which are identical and interchangeable, the customs authorities may, at the written request of those concerned, authorise the so-called 'accounting segregation' method to be used for managing such stocks.

2. This method must be able to ensure that, for a specific reference-period, the number of products obtained which could be considered as 'originating' is the same as that which would have been obtained if there had been physical segregation of the stocks.

3. The customs authorities may grant such authorisation, subject to any conditions deemed appropriate.

4. This method is recorded and applied on the basis of the general accounting principles applicable in the country where the product was manufactured.

5. The beneficiary of this facilitation may issue or apply for proofs of origin, as the case may be, for the quantity of products which may be considered as originating. At the request of the customs authorities, the beneficiary shall provide a statement of how the quantities have been managed.

6. The customs authorities shall monitor the use made of the authorisation and may withdraw it at any time whenever the beneficiary makes improper use of the authorisation in any manner whatsoever or fails to fulfil any of the other conditions laid down in this Protocol.

Article 22

Conditions for making out an invoice declaration

1. An invoice declaration as referred to in Article 16(1)(b) may be made out:

(a) by an approved exporter within the meaning of Article 23, or

(b) by any exporter for any consignment consisting of one or more packages containing originating products whose total value does not exceed EUR 6 000.

2. An invoice declaration may be made out if the products concerned can be considered as products originating in the Community, in Montenegro or in one of the other countries or territories referred to in Articles 3 and 4 and fulfil the other requirements of this Protocol.

3. The exporter making out an invoice declaration shall be prepared to submit at any time, at the request of the customs authorities of the exporting country, all appropriate documents proving the originating status of the products concerned as well as the fulfilment of the other requirements of this Protocol.

4. An invoice declaration shall be made out by the exporter by typing, stamping or printing on the invoice, the delivery note or another commercial document, the declaration, the text of which appears in Annex IV, using one of the linguistic versions set out in that Annex and in accordance with the provisions of the domestic law of the exporting country. If the declaration is handwritten, it shall be written in ink in printed characters.

5. Invoice declarations shall bear the original signature of the exporter in manuscript. However, an approved exporter within the meaning of Article 23 shall not be required to sign such declarations provided that he gives the customs authorities of the exporting country a written undertaking that he accepts full responsibility for any invoice declaration which identifies him as if it had been signed in manuscript by him.

6. An invoice declaration may be made out by the exporter when the products to which it relates are exported, or after exportation on condition that it is presented in the importing country no longer than two years after the importation of the products to which it relates.

Article 23

Approved exporter

1. The customs authorities of the exporting country may authorise any exporter, hereinafter referred to as 'approved exporter', who makes frequent shipments of products under this Agreement to make out invoice declarations irrespective of the value of the products concerned. An exporter seeking such authorisation must offer to the satisfaction of the customs authorities all guarantees necessary to verify the originating status of the products as well as the fulfilment of the other requirements of this Protocol.

2. The customs authorities may grant the status of approved exporter subject to any conditions which they consider appropriate.

3. The customs authorities shall grant to the approved exporter a customs authorisation number which shall appear on the invoice declaration.

4. The customs authorities shall monitor the use of the authorisation by the approved exporter.

5. The customs authorities may withdraw the authorisation at any time. They shall do so where the approved exporter no longer offers the guarantees referred to in paragraph 1, no longer fulfils the conditions referred to in paragraph 2 or otherwise makes an incorrect use of the authorisation.

Article 24

Validity of proof of origin

1. A proof of origin shall be valid for four months from the date of issue in the exporting country, and must be submitted within the said period to the customs authorities of the importing country.

2. Proofs of origin which are submitted to the customs authorities of the importing country after the final date for presentation specified in paragraph 1 may be accepted for the purpose of applying preferential treatment, where the failure to submit these documents by the final date set is due to exceptional circumstances.

3. In other cases of belated presentation, the customs authorities of the importing country may accept the proofs of origin where the products have been submitted before the said final date.

Article 25

Submission of proof of origin

Proofs of origin shall be submitted to the customs authorities of the importing country in accordance with the procedures applicable in that country. The said authorities may require a translation of a proof of origin and may also require the import declaration to be accompanied by a statement from the importer to the effect that the products meet the conditions required for the implementation of this Agreement.

Article 26

Importation by instalments

Where, at the request of the importer and on the conditions laid down by the customs authorities of the importing country, dismantled or non-assembled products within the meaning of General Rule 2(a) of the Harmonized System falling within Sections XVI and XVII or headings 7308 and 9406 of the Harmonized System are imported by instalments, a single proof of origin for such products shall be submitted to the customs authorities upon importation of the first instalment.

Article 27

Exemptions from proof of origin

1. Products sent as small packages from private persons to private persons or forming part of travellers' personal luggage shall be admitted as originating products without requiring the submission of a proof of origin, provided that such products are not imported by way of trade and have been declared as meeting the requirements of this Protocol and where there is no doubt as to the veracity of such a declaration. In the case of products sent by post, this declaration can be made on the customs declaration CN22/CN23 or on a sheet of paper annexed to that document.

2. Imports which are occasional and consist solely of products for the personal use of the recipients or travellers or their families shall not be considered as imports by way of trade if it is evident from the nature and quantity of the products that no commercial purpose is in view.

3. Furthermore, the total value of these products shall not exceed EUR 500 in the case of small packages or EUR 1 200 in the case of products forming part of travellers' personal luggage.

Article 28

Supporting documents

The documents referred to in Articles 17(3) and 22(3) used for the purpose of proving that products covered by a movement certificate EUR.1 or an invoice declaration can be considered as products originating in the Community, in Montenegro or in one of the other countries or territories referred to in Articles 3 and 4 and fulfil the other requirements of this Protocol may consist *inter alia* of the following:

(a) direct evidence of the processes carried out by the exporter or supplier to obtain the goods concerned, contained for example in his accounts or internal book-keeping;

(b) documents proving the originating status of materials used, issued or made out in the Community or in Montenegro where these documents are used in accordance with domestic law;

(c) documents proving the working or processing of materials in the Community or in Montenegro, issued or made out in the Community or in Montenegro, where these documents are used in accordance with domestic law;

(d) movement certificates EUR.1 or invoice declarations proving the originating status of materials used, issued or made out in the Community or in Montenegro in accordance with this Protocol, or in one of the other countries or territories referred to in Articles 3 and 4, in accordance with rules of origin which are identical to the rules in this Protocol;

(e) appropriate evidence concerning working or processing undergone outside the Community or Montenegro by application of Article 12, proving that the requirements of that Article have been satisfied.

Article 29

Preservation of proof of origin and supporting documents

1. The exporter applying for the issue of a movement certificate EUR.1 shall keep for at least three years the documents referred to in Article 17(3).

2. The exporter making out an invoice declaration shall keep for at least three years a copy of this invoice declaration as well as the documents referred to in Article 22(3).

3. The customs authorities of the exporting country issuing a movement certificate EUR.1 shall keep for at least three years the application form referred to in Article 17(2).

4. The customs authorities of the importing country shall keep for at least three years the movement certificates EUR.1 and the invoice declarations submitted to them.

Article 30

Discrepancies and formal errors

1. The discovery of slight discrepancies between the statements made in the proof of origin and those made in the documents submitted to the customs office for the purpose of carrying out the formalities for importing the products shall not *ipso facto* render the proof of origin null and void if it is duly established that this document does correspond to the products submitted.

2. Obvious formal errors such as typing errors on a proof of origin should not cause this document to be rejected if these errors are not such as to create doubts concerning the correctness of the statements made in this document.

Article 31

Amounts expressed in euro

1. For the application of the provisions of Article 22(1)(b) and Article 27(3) in cases where products are invoiced in a currency other than euro, amounts in the national currencies of the Member States of the Community, of Montenegro and of the other countries or territories referred to in Articles 3 and 4 equivalent to the amounts expressed in euro shall be fixed annually by each of the countries concerned.

2. A consignment shall benefit from the provisions of Article 22(1)(b) or Article 27(3) by reference to the currency in which the invoice is drawn up, according to the amount fixed by the country concerned.

3. The amounts to be used in any given national currency shall be the equivalent in that currency of the amounts expressed in euro as at the first working day of October. The amounts shall be communicated to the European Commission by 15 October and shall apply from 1 January the following year. The European Commission shall notify all countries concerned of the relevant amounts.

4. A country may round up or down the amount resulting from the conversion into its national currency of an amount expressed in euro. The rounded-off amount may not differ from the amount resulting from the conversion by more than 5 %. A country may retain unchanged its national currency equivalent of an amount expressed in euro if, at the time of the annual adjustment provided for in paragraph 3, the conversion of that amount, prior to any rounding-off, results in an increase of less than 15 % in the national currency equivalent. The national currency equivalent may be retained unchanged if the conversion would result in a decrease in that equivalent value.

5. The amounts expressed in euro shall be reviewed by the Stabilisation and Association Committee at the request of the Community or of Montenegro. When carrying out this review, the Stabilisation and Association Committee shall consider the desirability of preserving the effects of the limits concerned in real terms. For this purpose, it may decide to modify the amounts expressed in euro.

TITLE VI

ARRANGEMENTS FOR ADMINISTRATIVE COOPERATION

Article 32

Mutual assistance

1. The customs authorities of the Member States of the Community and of Montenegro shall provide each other, through the European Commission, with specimen impressions of stamps used in their customs offices for the issue of movement certificates EUR.1 and with the addresses of the customs authorities responsible for verifying those certificates and invoice declarations.

2. In order to ensure the proper application of this Protocol, the Community and Montenegro shall assist each other, through the competent customs administrations, in checking the authenticity of the movement certificates EUR.1 or the invoice declarations and the correctness of the information given in these documents.

Article 33

Verification of proofs of origin

1. Subsequent verifications of proofs of origin shall be carried out at random or whenever the customs authorities of the importing country have reasonable doubts as to the authenticity of such documents, the originating status of the products concerned or the fulfilment of the other requirements of this Protocol.

2. For the purposes of implementing the provisions of paragraph 1, the customs authorities of the importing country shall return the movement certificate EUR.1 and the invoice, if it has been submitted, the invoice declaration, or a copy of these documents, to the customs authorities of the exporting country giving, where appropriate, the reasons for the enquiry. Any documents and information obtained suggesting that the information given on the proof of origin is incorrect shall be forwarded in support of the request for verification.

3. The verification shall be carried out by the customs authorities of the exporting country. For this purpose, they shall have the right to call for any evidence and to carry out any inspection of the exporter's accounts or any other check considered appropriate.

4. If the customs authorities of the importing country decide to suspend the granting of preferential treatment to the products concerned while awaiting the results of the verification, release of the products shall be offered to the importer subject to any precautionary measures judged necessary.

5. The customs authorities requesting the verification shall be informed of the results of this verification as soon as possible. These results must indicate clearly whether the documents are authentic and whether the products concerned can be considered as products originating in the Community, in Montenegro or in one of the other countries or territories referred to in Articles 3 and 4 and fulfil the other requirements of this Protocol.

6. If in cases of reasonable doubt there is no reply within ten months of the date of the verification request or if the reply does not contain sufficient information to determine the authenticity of the document in question or the real origin of the products, the requesting customs authorities shall, except in exceptional circumstances, refuse entitlement to the preferences.

Article 34

Dispute settlement

Where disputes arise in relation to the verification procedures of Article 33 which cannot be settled between the customs authorities requesting a verification and the customs authorities responsible for carrying out this verification or where they raise a question as to the interpretation of this Protocol, they shall be submitted to the Stabilisation and Association Committee.

In all cases the settlement of disputes between the importer and the customs authorities of the importing country shall be under the legislation of the said country.

Article 35

Penalties

Penalties shall be imposed on any person who draws up, or causes to be drawn up, a document which contains incorrect information for the purpose of obtaining a preferential treatment for products.

Article 36

Free zones

1. The Community and Montenegro shall take all necessary steps to ensure that products traded under cover of a proof of origin which in the course of transport use a free zone situated in their territory, are not substituted by other goods and do not undergo handling other than normal operations designed to prevent their deterioration.

2. By means of an exemption to the provisions contained in paragraph 1, when products originating in the Community or in Montenegro are imported into a free zone under cover of a proof of origin and undergo treatment or processing, the authorities concerned shall issue a new movement certificate EUR.1 at the exporter's request, if the treatment or processing undergone is in conformity with the provisions of this Protocol.

TITLE VII

CEUTA AND MELILLA

Article 37

Application of this Protocol

1. The term 'Community' used in Article 2 does not cover Ceuta or Melilla.

2. Products originating in Montenegro, when imported into Ceuta and Melilla, shall enjoy in all respects the same customs regime as that which is applied to products originating in the customs territory of the Community under Protocol 2 of the Act of Accession of the Kingdom of Spain and the Portuguese Republic to the European Communities. Montenegro shall grant to imports of products covered by this Agreement and originating in Ceuta and Melilla the same customs regime as that which is granted to products imported from and originating in the Community.

3. For the purpose of the application of paragraph 2 concerning products originating in Ceuta and Melilla, this Protocol shall apply *mutatis mutandis* subject to the special conditions set out in Article 38.

Article 38

Special conditions

1. Providing they have been transported directly in accordance with the provisions of Article 13, the following shall be considered as:

1) products originating in Ceuta and Melilla:

(a) products wholly obtained in Ceuta and Melilla;

(b) products obtained in Ceuta and Melilla in the manufacture of which products other than those referred to in (a) are used, provided that:

(i) the said products have undergone sufficient working or processing within the meaning of Article 6;

or that

(ii) those products are originating in Montenegro or in the Community, provided that they have been submitted to working or processing which goes beyond the operations referred to in Article 7;

2) products originating in Montenegro:

(a) products wholly obtained in Montenegro;

(b) products obtained in Montenegro, in the manufacture of which products other than those referred to in (a) are used, provided that:

(i) the said products have undergone sufficient working or processing within the meaning of Article 6;

or that

(ii) those products are originating in Ceuta and Melilla or in the Community, provided that they have been submitted to working or processing which goes beyond the operations referred to in Article 7.

2. Ceuta and Melilla shall be considered as a single territory.

3. The exporter or his authorised representative shall enter 'Montenegro' and 'Ceuta and Melilla' in Box 2 of movement certificates EUR.1 or on invoice declarations. In addition, in the case of products originating in Ceuta and Melilla, this shall be indicated in Box 4 of movement certificates EUR.1 or on invoice declarations.

4. The Spanish customs authorities shall be responsible for the application of this Protocol in Ceuta and Melilla.

TITLE VIII

FINAL PROVISIONS

Article 39

Amendments to this Protocol

The Stabilisation and Association Council may decide to amend the provisions of this Protocol.

ANNEX I

INTRODUCTORY NOTES TO THE LIST IN ANNEX II

Note 1

The list sets out the conditions required for all products to be considered as sufficiently worked or processed within the meaning of Article 6.

Note 2

2.1. The first two columns in the list describe the product obtained. The first column gives the heading number or chapter number used in the Harmonised System and the second column gives the description of goods used in that system for that heading or chapter. For each entry in the first two columns, a rule is specified in column 3 or 4. Where, in some cases, the entry in the first column is preceded by an 'ex', this signifies that the rules in column 3 or 4 apply only to the part of that heading as described in column 2.

2.2. Where several heading numbers are grouped together in column 1 or a chapter number is given and the description of products in column 2 is therefore given in general terms, the adjacent rules in column 3 or 4 apply to all products which, under the Harmonised System, are classified in headings of the chapter or in any of the headings grouped together in column 1.

2.3. Where there are different rules in the list applying to different products within a heading, each indent contains the description of that part of the heading covered by the adjacent rules in column 3 or 4.

2.4. Where, for an entry in the first two columns, a rule is specified in both columns 3 and 4, the exporter may opt, as an alternative, to apply either the rule set out in column 3 or that set out in column 4. If no origin rule is given in column 4, the rule set out in column 3 is to be applied.

Note 3

3.1. The provisions of Article 6, concerning products having acquired originating status which are used in the manufacture of other products, shall apply, regardless of whether this status has been acquired inside the factory where these products are used or in another factory in a contracting party.

Example:

An engine of heading 8407, for which the rule states that the value of the non-originating materials which may be incorporated may not exceed 40 % of the ex-works price, is made from 'other alloy steel roughly shaped by forging' of heading ex 7224.

If this forging has been forged in the Community from a non-originating ingot, it has already acquired originating status by virtue of the rule for heading ex 7224 in the list. The forging can then count as originating in the value-calculation for the engine, regardless of whether it was produced in the same factory or in another factory in the Community. The value of the non-originating ingot is thus not taken into account when adding up the value of the non-originating materials used.

3.2. The rule in the list represents the minimum amount of working or processing required, and the carrying-out of more working or processing also confers originating status; conversely, the carrying-out of less working or processing cannot confer originating status. Thus, if a rule provides that non-originating material, at a certain level of manufacture, may be used, the use of such material at an earlier stage of manufacture is allowed, and the use of such material at a later stage is not.

3.3. Without prejudice to Note 3.2, where a rule uses the expression 'Manufacture from materials of any heading', then materials of any heading(s) (even materials of the same description and heading as the product) may be used, subject, however, to any specific limitations which may also be contained in the rule.

However, the expression 'Manufacture from materials of any heading, including other materials of heading …' or 'Manufacture from materials of any heading, including other materials of the same heading as the product' means that materials of any heading(s) may be used, except those of the same description as the product as given in column 2 of the list.

3.4. When a rule in the list specifies that a product may be manufactured from more than one material, this means that one or more materials may be used. It does not require that all be used.

Example:

The rule for fabrics of headings 5208 to 5212 provides that natural fibres may be used and that chemical materials, among other materials, may also be used. This does not mean that both have to be used; it is possible to use one or the other, or both.

3.5. Where a rule in the list specifies that a product must be manufactured from a particular material, the condition obviously does not prevent the use of other materials which, because of their inherent nature, cannot satisfy the rule. (See also Note 6.2 below in relation to textiles).

Example:

The rule for prepared foods of heading 1904, which specifically excludes the use of cereals and their derivatives, does not prevent the use of mineral salts, chemicals and other additives which are not products from cereals.

However, this does not apply to products which, although they cannot be manufactured from the particular materials specified in the list, can be produced from a material of the same nature at an earlier stage of manufacture.

Example:

In the case of an article of apparel of ex Chapter 62 made from non-woven materials, if the use of only non-originating yarn is allowed for this class of article, it is not possible to start from non-woven cloth – even if non-woven cloths cannot normally be made from yarn. In such cases, the starting material would normally be at the stage before yarn – that is, the fibre stage.

3.6. Where, in a rule in the list, two percentages are given for the maximum value of non-originating materials that can be used, then these percentages may not be added together. In other words, the maximum value of all the non-originating materials used may never exceed the higher of the percentages given. Furthermore, the individual percentages must not be exceeded, in relation to the particular materials to which they apply.

Note 4

4.1. The term 'natural fibres' is used in the list to refer to fibres other than artificial or synthetic fibres. It is restricted to the stages before spinning takes place, including waste, and, unless otherwise specified, includes fibres which have been carded, combed or otherwise processed, but not spun.

4.2. The term 'natural fibres' includes horsehair of heading 0503, silk of headings 5002 and 5003, as well as wool-fibres and fine or coarse animal hair of headings 5101 to 5105, cotton fibres of headings 5201 to 5203, and other vegetable fibres of headings 5301 to 5305.

4.3. The terms 'textile pulp', 'chemical materials' and 'paper-making materials' are used in the list to describe the materials, not classified in Chapters 50 to 63, which can be used to manufacture artificial, synthetic or paper fibres or yarns.

4.4. The term 'man-made staple fibres' is used in the list to refer to synthetic or artificial filament tow, staple fibres or waste, of headings 5501 to 5507.

Note 5

5.1. Where, for a given product in the list, reference is made to this Note, the conditions set out in column 3 shall not be applied to any basic textile materials used in the manufacture of this product and which, taken together, represent 10 % or less of the total weight of all the basic textile materials used. (See also Notes 5.3 and 5.4 below.)

5.2. However, the tolerance mentioned in Note 5.1 may be applied only to mixed products which have been made from two or more basic textile materials.

The following are the basic textile materials:

— silk,

— wool,

— coarse animal hair,

— fine animal hair,

— horsehair,

— cotton,

— paper-making materials and paper,

— flax,

— true hemp,

— jute and other textile bast fibres,

— sisal and other textile fibres of the genus Agave,

— coconut, abaca, ramie and other vegetable textile fibres,

— synthetic man-made filaments,

— artificial man-made filaments,

— current-conducting filaments,

— synthetic man-made staple fibres of polypropylene,

— synthetic man-made staple fibres of polyester,

— synthetic man-made staple fibres of polyamide,

— synthetic man-made staple fibres of polyacrylonitrile,

— synthetic man-made staple fibres of polyimide,

— synthetic man-made staple fibres of polytetrafluoroethylene,

— synthetic man-made staple fibres of poly(phenylene sulphide),

— synthetic man-made staple fibres of poly(vinyl chloride),

— other synthetic man-made staple fibres,

— artificial man-made staple fibres of viscose,

— other artificial man-made staple fibres,

— yarn made of polyurethane segmented with flexible segments of polyether, whether or not gimped,

— yarn made of polyurethane segmented with flexible segments of polyester, whether or not gimped,

— products of heading 5605 (metallised yarn) incorporating strip consisting of a core of aluminium foil or of a core of plastic film whether or not coated with aluminium powder, of a width not exceeding 5 mm, sandwiched by means of a transparent or coloured adhesive between two layers of plastic film,

— other products of heading 5605.

Example:

A yarn, of heading 5205, made from cotton fibres of heading 5203 and synthetic staple fibres of heading 5506, is a mixed yarn. Therefore, non-originating synthetic staple fibres which do not satisfy the origin-rules (which require manufacture from chemical materials or textile pulp) may be used, provided that their total weight does not exceed 10 % of the weight of the yarn.

Example:

A woollen fabric, of heading 5112, made from woollen yarn of heading 5107 and synthetic yarn of staple fibres of heading 5509, is a mixed fabric. Therefore, synthetic yarn which does not satisfy the origin-rules (which require manufacture from chemical materials or textile pulp), or woollen yarn which does not satisfy the origin-rules (which require manufacture from natural fibres, not carded or combed or otherwise prepared for spinning), or a combination of the two, may be used, provided that their total weight does not exceed 10 % of the weight of the fabric.

Example:

Tufted textile fabric, of heading 5802, made from cotton yarn of heading 5205 and cotton fabric of heading 5210, is a only mixed product if the cotton fabric is itself a mixed fabric made from yarns classified in two separate headings, or if the cotton yarns used are themselves mixtures.

Example:

If the tufted textile fabric concerned had been made from cotton yarn of heading 5205 and synthetic fabric of heading 5407, then, obviously, the yarns used are two separate basic textile materials and the tufted textile fabric is, accordingly, a mixed product.

5.3. In the case of products incorporating 'yarn made of polyurethane segmented with flexible segments of polyether, whether or not gimped', this tolerance is 20 % in respect of this yarn.

5.4. In the case of products incorporating 'strip consisting of a core of aluminium foil or of a core of plastic film whether or not coated with aluminium powder, of a width not exceeding 5 mm, sandwiched by means of a transparent or coloured adhesive between two layers of plastic film', this tolerance is 30 % in respect of this strip.

Note 6

6.1. Where, in the list, reference is made to this Note, textile materials (with the exception of linings and interlinings), which do not satisfy the rule set out in the list in column 3 for the made-up product concerned, may be used, provided that they are classified in a heading other than that of the product and that their value does not exceed 8 % of the ex-works price of the product.

6.2. Without prejudice to Note 6.3, materials, which are not classified within Chapters 50 to 63, may be used freely in the manufacture of textile products, whether or not they contain textiles.

Example:

If a rule in the list provides that, for a particular textile item (such as trousers), yarn must be used, this does not prevent the use of metal items, such as buttons, because buttons are not classified within Chapters 50 to 63. For the same reason, it does not prevent the use of slide-fasteners, even though slide-fasteners normally contain textiles.

6.3. Where a percentage-rule applies, the value of materials which are not classified within Chapters 50 to 63 must be taken into account when calculating the value of the non-originating materials incorporated.

Note 7

7.1. For the purposes of headings ex 2707, 2713 to 2715, ex 2901, ex 2902 and ex 3403, the 'specific processes' are the following:

(a) vacuum-distillation;

(b) redistillation by a very thorough fractionation-process;

(c) cracking;

(d) reforming;

(e) extraction by means of selective solvents;

(f) the process comprising all of the following operations: processing with concentrated sulphuric acid, oleum or sulphuric anhydride; neutralisation with alkaline agents; decolourisation and purification with naturally-active earth, activated earth, activated charcoal or bauxite;

(g) polymerisation;

(h) alkylation;

(i) isomerisation.

7.2. For the purposes of headings 2710, 2711 and 2712, the 'specific processes' are the following:

(a) vacuum-distillation;

(b) redistillation by a very thorough fractionation-process;

(c) cracking;

(d) reforming;

(e) extraction by means of selective solvents;

(f) the process comprising all of the following operations: processing with concentrated sulphuric acid, oleum or sulphuric anhydride; neutralisation with alkaline agents; decolourisation and purification with naturally-active earth, activated earth, activated charcoal or bauxite;

(g) polymerisation;

(h) alkylation;

(ij) isomerisation;

(k) in respect of heavy oils of heading ex 2710 only, desulphurisation with hydrogen, resulting in a reduction of at least 85 % of the sulphur-content of the products processed (ASTM D 1266-59 T method);

(l) in respect of products of heading 2710 only, deparaffining by a process other than filtering;

(m) in respect of heavy oils of heading ex 2710 only, treatment with hydrogen, at a pressure of more than 20 bar and a temperature of more than 250 °C, with the use of a catalyst, other than to effect desulphurisation, when the hydrogen constitutes an active element in a chemical reaction. The further treatment, with hydrogen, of lubricating oils of heading ex 2710 (e.g. hydrofinishing or decolourisation), in order, more especially, to improve colour or stability shall not, however, be deemed to be a specific process;

(n) in respect of fuel oils of heading ex 2710 only, atmospheric distillation, on condition that less than 30 % of these products distils, by volume, including losses, at 300 °C, by the ASTM D 86 method;

(o) in respect of heavy oils other than gas oils and fuel oils of heading ex 2710 only, treatment by means of a high-frequency electrical brush-discharge;

(p) in respect of crude products (other than petroleum jelly, ozokerite, lignite wax or peat wax, paraffin wax containing by weight less than 0,75 % of oil) of heading ex 2712 only, de-oiling by fractional crystallisation.

7.3. For the purposes of headings ex 2707, 2713 to 2715, ex 2901, ex 2902 and ex 3403, simple operations, such as cleaning, decanting, desalting, water-separation, filtering, colouring, marking, obtaining a sulphur-content as a result of mixing products with different sulphur-contents, or any combination of these operations or like operations, do not confer origin.

ANNEX II

LIST OF WORKING OR PROCESSING REQUIRED TO BE CARRIED OUT ON NON-ORIGINATING MATERIALS IN ORDER THAT THE PRODUCT MANUFACTURED CAN OBTAIN ORIGINATING STATUS

The products mentioned in the list may not be all covered by this Agreement. It is, therefore, necessary to consult the other parts of this Agreement.

HS heading	Description of product	Working or processing, carried out on non-originating materials, which confers originating status		
(1)	(2)	(3)	or	(4)
Chapter 1	Live animals	All the animals of Chapter 1 shall be wholly obtained		
Chapter 2	Meat and edible meat offal	Manufacture in which all the materials of Chapters 1 and 2 used are wholly obtained		
Chapter 3	Fish and crustaceans, molluscs and other aquatic invertebrates	Manufacture in which all the materials of Chapter 3 used are wholly obtained		
ex Chapter 4	Dairy produce; birds' eggs; natural honey; edible products of animal origin, not elsewhere specified or included; except for:	Manufacture in which all the materials of Chapter 4 used are wholly obtained		
0403	Buttermilk, curdled milk and cream, yoghurt, kephir and other fermented or acidified milk and cream, whether or not concentrated or containing added sugar or other sweetening matter or flavoured or containing added fruit, nuts or cocoa	Manufacture in which: — all the materials of Chapter 4 used are wholly obtained, — all the fruit juice (except that of pineapple, lime or grapefruit) of heading 2009 used is originating, and — the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
ex Chapter 5	Products of animal origin, not elsewhere specified or included; except for:	Manufacture in which all the materials of Chapter 5 used are wholly obtained		
ex 0502	Prepared pigs', hogs' or boars' bristles and hair	Cleaning, disinfecting, sorting and straightening of bristles and hair		
Chapter 6	Live trees and other plants; bulbs, roots and the like; cut flowers and ornamental foliage	Manufacture in which: — all the materials of Chapter 6 used are wholly obtained, and — the value of all the materials used does not exceed 50 % of the ex-works price of the product		
Chapter 7	Edible vegetables and certain roots and tubers	Manufacture in which all the materials of Chapter 7 used are wholly obtained		

(1)	(2)	(3)	or	(4)
Chapter 8	Edible fruit and nuts; peel of citrus fruits or melons	Manufacture in which: — all the fruit and nuts used are wholly obtained, and — the value of all the materials of Chapter 17 used does not exceed 30 % of the value of the ex-works price of the product		
ex Chapter 9	Coffee, tea, maté and spices; except for:	Manufacture in which all the materials of Chapter 9 used are wholly obtained		
0901	Coffee, whether or not roasted or decaffeinated; coffee husks and skins; coffee substitutes containing coffee in any proportion	Manufacture from materials of any heading		
0902	Tea, whether or not flavoured	Manufacture from materials of any heading		
ex 0910	Mixtures of spices	Manufacture from materials of any heading		
Chapter 10	Cereals	Manufacture in which all the materials of Chapter 10 used are wholly obtained		
ex Chapter 11	Products of the milling industry; malt; starches; inulin; wheat gluten; except for:	Manufacture in which all the cereals, edible vegetables, roots and tubers of heading 0714 or fruit used are wholly obtained		
ex 1106	Flour, meal and powder of the dried, shelled leguminous vegetables of heading 0713	Drying and milling of leguminous vegetables of heading 0708		
Chapter 12	Oil seeds and oleaginous fruits; miscellaneous grains, seeds and fruit; industrial or medicinal plants; straw and fodder	Manufacture in which all the materials of Chapter 12 used are wholly obtained		
1301	Lac; natural gums, resins, gum-resins and oleoresins (for example, balsams)	Manufacture in which the value of all the materials of heading 1301 used does not exceed 50 % of the ex-works price of the product		
1302	Vegetable saps and extracts; pectic substances, pectinates and pectates; agar-agar and other mucilages and thickeners, whether or not modified, derived from vegetable products:			
	– Mucilages and thickeners, modified, derived from vegetable products	Manufacture from non-modified mucilages and thickeners		
	– Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 14	Vegetable plaiting materials; vegetable products not elsewhere specified or included	Manufacture in which all the materials of Chapter 14 used are wholly obtained		
ex Chapter 15	Animal or vegetable fats and oils and their cleavage products; prepared edible fats; animal or vegetable waxes; except for:	Manufacture from materials of any heading, except that of the product		

(1)	(2)	(3)	or	(4)
1501	Pig fat (including lard) and poultry fat, other than that of heading 0209 or 1503:			
	– Fats from bones or waste	Manufacture from materials of any heading, except those of heading 0203, 0206 or 0207 or bones of heading 0506		
	– Other	Manufacture from meat or edible offal of swine of heading 0203 or 0206 or of meat and edible offal of poultry of heading 0207		
1502	Fats of bovine animals, sheep or goats, other than those of heading 1503			
	– Fats from bones or waste	Manufacture from materials of any heading, except those of heading 0201, 0202, 0204 or 0206 or bones of heading 0506		
	– Other	Manufacture in which all the materials of Chapter 2 used are wholly obtained		
1504	Fats and oils and their fractions, of fish or marine mammals, whether or not refined, but not chemically modified:			
	– Solid fractions	Manufacture from materials of any heading, including other materials of heading 1504		
	– Other	Manufacture in which all the materials of Chapters 2 and 3 used are wholly obtained		
ex 1505	Refined lanolin	Manufacture from crude wool grease of heading 1505		
1506	Other animal fats and oils and their fractions, whether or not refined, but not chemically modified:			
	– Solid fractions	Manufacture from materials of any heading, including other materials of heading 1506		
	– Other	Manufacture in which all the materials of Chapter 2 used are wholly obtained		
1507 to 1515	Vegetable oils and their fractions:			
	– Soya, ground nut, palm, copra, palm kernel, babassu, tung and oiticica oil, myrtle wax and Japan wax, fractions of jojoba oil and oils for technical or industrial uses other than the manufacture of foodstuffs for human consumption	Manufacture from materials of any heading, except that of the product		
	– Solid fractions, except for that of jojoba oil	Manufacture from other materials of headings 1507 to 1515		
	– Other	Manufacture in which all the vegetable materials used are wholly obtained		

(1)	(2)	(3)	or	(4)
1516	Animal or vegetable fats and oils and their fractions, partly or wholly hydrogenated, inter-esterified, re-esterified or elaidinised, whether or not refined, but not further prepared	Manufacture in which: — all the materials of Chapter 2 used are wholly obtained, and — all the vegetable materials used are wholly obtained. However, materials of headings 1507, 1508, 1511 and 1513 may be used		
1517	Margarine; edible mixtures or preparations of animal or vegetable fats or oils or of fractions of different fats or oils of this Chapter, other than edible fats or oils or their fractions of heading 1516	Manufacture in which: — all the materials of Chapters 2 and 4 used are wholly obtained, and — all the vegetable materials used are wholly obtained. However, materials of headings 1507, 1508, 1511 and 1513 may be used		
Chapter 16	Preparations of meat, of fish or of crustaceans, molluscs or other aquatic invertebrates	Manufacture: — from animals of Chapter 1, and/or — in which all the materials of Chapter 3 used are wholly obtained		
ex Chapter 17	Sugars and sugar confectionery; except for:	Manufacture from materials of any heading, except that of the product		
ex 1701	Cane or beet sugar and chemically pure sucrose, in solid form, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
1702	Other sugars, including chemically pure lactose, maltose, glucose and fructose, in solid form; sugar syrups not containing added flavouring or colouring matter; artificial honey, whether or not mixed with natural honey; caramel:			
	– Chemically-pure maltose and fructose	Manufacture from materials of any heading, including other materials of heading 1702		
	– Other sugars in solid form, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
	– Other	Manufacture in which all the materials used are originating		
ex 1703	Molasses resulting from the extraction or refining of sugar, containing added flavouring or colouring matter	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
1704	Sugar confectionery (including white chocolate), not containing cocoa	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
Chapter 18	Cocoa and cocoa preparations	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
1901	Malt extract; food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing less than 40 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included; food preparations of goods of headings 0401 to 0404, not containing cocoa or containing less than 5 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included:			
	– Malt extract	Manufacture from cereals of Chapter 10		
	– Other	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
1902	Pasta, whether or not cooked or stuffed (with meat or other substances) or otherwise prepared, such as spaghetti, macaroni, noodles, lasagne, gnocchi, ravioli, cannelloni; couscous, whether or not prepared:			
	– Containing 20 % or less by weight of meat, meat offal, fish, crustaceans or molluscs	Manufacture in which all the cereals and derivatives (except durum wheat and its derivatives) used are wholly obtained		
	– Containing more than 20 % by weight of meat, meat offal, fish, crustaceans or molluscs	Manufacture in which: — all the cereals and their derivatives (except durum wheat and its derivatives) used are wholly obtained, and — all the materials of Chapters 2 and 3 used are wholly obtained		

(1)	(2)	(3)	or	(4)
1903	Tapioca and substitutes therefore prepared from starch, in the form of flakes, grains, pearls, siftings or similar forms	Manufacture from materials of any heading, except potato starch of heading 1108		
1904	Prepared foods obtained by the swelling or roasting of cereals or cereal products (for example, corn flakes); cereals (other than maize (corn)) in grain form or in the form of flakes or other worked grains (except flour, groats and meal), pre-cooked or otherwise prepared, not elsewhere specified or included	Manufacture: — from materials of any heading, except those of heading 1806, — in which all the cereals and flour (except durum wheat and *Zea indurata* maize, and their derivatives) used are wholly obtained, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
1905	Bread, pastry, cakes, biscuits and other bakers' wares, whether or not containing cocoa; communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice paper and similar products	Manufacture from materials of any heading, except those of Chapter 11		
ex Chapter 20	Preparations of vegetables, fruit, nuts or other parts of plants; except for:	Manufacture in which all the fruit, nuts or vegetables used are wholly obtained		
ex 2001	Yams, sweet potatoes and similar edible parts of plants containing 5 % or more by weight of starch, prepared or preserved by vinegar or acetic acid	Manufacture from materials of any heading, except that of the product		
ex 2004 and ex 2005	Potatoes in the form of flour, meal or flakes, prepared or preserved otherwise than by vinegar or acetic acid	Manufacture from materials of any heading, except that of the product		
	Vegetables, fruit, nuts, fruit-peel and other parts of plants, preserved by sugar (drained, glacé or crystallized)	Manufacture in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
2007	Jams, fruit jellies, marmalades, fruit or nut purée and fruit or nut pastes, obtained by cooking, whether or not containing added sugar or other sweetening matter	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
ex 2008	– Nuts, not containing added sugar or spirits	Manufacture in which the value of all the originating nuts and oil seeds of headings 0801, 0802 and 1202 to 1207 used exceeds 60 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
	– Peanut butter; mixtures based on cereals; palm hearts; maize (corn)	Manufacture from materials of any heading, except that of the product		
	– Other except for fruit and nuts cooked otherwise than by steaming or boiling in water, not containing added sugar, frozen	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
2009	Fruit juices (including grape must) and vegetable juices, unfermented and not containing added spirit, whether or not containing added sugar or other sweetening matter	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		
ex Chapter 21	Miscellaneous edible preparations; except for:	Manufacture from materials of any heading, except that of the product		
2101	Extracts, essences and concentrates, of coffee, tea or maté and preparations with a basis of these products or with a basis of coffee, tea or maté; roasted chicory and other roasted coffee substitutes, and extracts, essences and concentrates thereof	Manufacture: — from materials of any heading, except that of the product, and — in which all the chicory used is wholly obtained		
2103	Sauces and preparations therefor; mixed condiments and mixed seasonings; mustard flour and meal and prepared mustard:			
	– Sauces and preparations therefor; mixed condiments and mixed seasonings	Manufacture from materials of any heading, except that of the product. However, mustard flour or meal or prepared mustard may be used		
	– Mustard flour and meal and prepared mustard	Manufacture from materials of any heading		
ex 2104	Soups and broths and preparations therefor	Manufacture from materials of any heading, except prepared or preserved vegetables of headings 2002 to 2005		
2106	Food preparations not elsewhere specified or included	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
ex Chapter 22	Beverages, spirits and vinegar; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which all the grapes or materials derived from grapes used are wholly obtained		
2202	Waters, including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavoured, and other non-alcoholic beverages, not including fruit or vegetable juices of heading 2009	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials of Chapter 17 used does not exceed 30 % of the ex-works price of the product, and — in which all the fruit juice used (except that of pineapple, lime or grapefruit) is originating		
2207	Undenatured ethyl alcohol of an alcoholic strength by volume of 80 % vol. or higher; ethyl alcohol and other spirits, denatured, of any strength	Manufacture: — from materials of any heading, except heading 2207 or 2208, and — in which all the grapes or materials derived from grapes used are wholly obtained or, if all the other materials used are already originating, arrack may be used up to a limit of 5 % by volume		
2208	Undenatured ethyl alcohol of an alcoholic strength by volume of less than 80 % vol; spirits, liqueurs and other spirituous beverages	Manufacture: — from materials of any heading, except heading 2207 or 2208, and — in which all the grapes or materials derived from grapes used are wholly obtained or, if all the other materials used are already originating, arrack may be used up to a limit of 5 % by volume		
ex Chapter 23	Residues and waste from the food industries; prepared animal fodder; except for:	Manufacture from materials of any heading, except that of the product		
ex 2301	Whale meal; flours, meals and pellets of fish or of crustaceans, molluscs or other aquatic invertebrates, unfit for human consumption	Manufacture in which all the materials of Chapters 2 and 3 used are wholly obtained		
ex 2303	Residues from the manufacture of starch from maize (excluding concentrated steeping liquors), of a protein content, calculated on the dry product, exceeding 40 % by weight	Manufacture in which all the maize used is wholly obtained		

(1)	(2)	(3)	or	(4)
ex 2306	Oil cake and other solid residues resulting from the extraction of olive oil, containing more than 3 % of olive oil	Manufacture in which all the olives used are wholly obtained		
2309	Preparations of a kind used in animal feeding	Manufacture in which: — all the cereals, sugar or molasses, meat or milk used are originating, and — all the materials of Chapter 3 used are wholly obtained		
ex Chapter 24	Tobacco and manufactured tobacco substitutes; except for:	Manufacture in which all the materials of Chapter 24 used are wholly obtained		
2402	Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes	Manufacture in which at least 70 % by weight of the unmanufactured tobacco or tobacco refuse of heading 2401 used is originating		
ex 2403	Smoking tobacco	Manufacture in which at least 70 % by weight of the unmanufactured tobacco or tobacco refuse of heading 2401 used is originating		
ex Chapter 25	Salt; sulphur; earths and stone; plastering materials, lime and cement; except for:	Manufacture from materials of any heading, except that of the product		
ex 2504	Natural crystalline graphite, with enriched carbon content, purified and ground	Enriching of the carbon content, purifying and grinding of crude crystalline graphite		
ex 2515	Marble, merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape, of a thickness not exceeding 25 cm	Cutting, by sawing or otherwise, of marble (even if already sawn) of a thickness exceeding 25 cm		
ex 2516	Granite, porphyry, basalt, sandstone and other monumental or building stone, merely cut, by sawing or otherwise, into blocks or slabs of a rectangular (including square) shape, of a thickness not exceeding 25 cm	Cutting, by sawing or otherwise, of stone (even if already sawn) of a thickness exceeding 25 cm		
ex 2518	Calcined dolomite	Calcination of dolomite not calcined		
ex 2519	Crushed natural magnesium carbonate (magnesite), in hermetically-sealed containers, and magnesium oxide, whether or not pure, other than fused magnesia or dead-burned (sintered) magnesia	Manufacture from materials of any heading, except that of the product. However, natural magnesium carbonate (magnesite) may be used		
ex 2520	Plasters specially prepared for dentistry	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 2524	Natural asbestos fibres	Manufacture from asbestos concentrate		
ex 2525	Mica powder	Grinding of mica or mica waste		
ex 2530	Earth colours, calcined or powdered	Calcination or grinding of earth colours		

(1)	(2)	(3)	or	(4)
Chapter 26	Ores, slag and ash	Manufacture from materials of any heading, except that of the product		
ex Chapter 27	Mineral fuels, mineral oils and products of their distillation; bituminous substances; mineral waxes; except for:	Manufacture from materials of any heading, except that of the product		
ex 2707	Oils in which the weight of the aromatic constituents exceeds that of the non-aromatic constituents, being oils similar to mineral oils obtained by distillation of high temperature coal tar, of which more than 65 % by volume distils at a temperature of up to 250 °C (including mixtures of petroleum spirit and benzole), for use as power or heating fuels	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
ex 2709	Crude oils obtained from bituminous minerals	Destructive distillation of bituminous materials		
ex 2710	Petroleum oils and oils obtained from bituminous materials, other than crude; preparations not elsewhere specified or included, containing by weight 70 % or more of petroleum oils or of oils obtained from bituminous materials, these oils being the basic constituents of the preparations; waste oils	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
ex 2711	Petroleum gases and other gaseous hydrocarbons	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
ex 2712	Petroleum jelly; paraffin wax, microcrystalline petroleum wax, slack wax, ozokerite, lignite wax, peat wax, other mineral waxes, and similar products obtained by synthesis or by other processes, whether or not coloured	Operations of refining and/or one or more specific process(es) (2) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
	Petroleum coke, petroleum bitumen and other residues of petroleum oils or of oils obtained from bituminous materials	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
2714	Bitumen and asphalt, natural; bituminous or oil shale and tar sands; asphaltites and asphaltic rocks	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
2715	Bituminous mixtures based on natural asphalt, on natural bitumen, on petroleum bitumen, on mineral tar or on mineral tar pitch (for example, bituminous mastics, cut-backs)	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
ex Chapter 28	Inorganic chemicals; organic or inorganic compounds of precious metals, of rare-earth metals, of radioactive elements or of isotopes; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2805	'Mischmetall'	Manufacture by electrolytic or thermal treatment in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 2811	Sulphur trioxide	Manufacture from sulphur dioxide		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2833	Aluminium sulphate	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 2840	Sodium perborate	Manufacture from disodium tetraborate pentahydrate		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
ex 2852	Mercury compounds of saturated acyclic monocarboxylic acids and their anhydrides, halides, peroxides and peroxyacids; their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of headings 2852, 2915 and 2916 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Mercury compounds of Internal ethers and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of heading 2909 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Mercury compounds of heterocyclic compounds with nitrogen hetero-atom(s) only	Manufacture from materials of any heading. However, the value of all the materials of headings 2852, 2932 and 2933 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Mercury compounds of nucleic acids and their salts, whether or not chemically defined; other heterocyclic compounds	Manufacture from materials of any heading. However, the value of all the materials of headings 2852, 2932, 2933 and 2934 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Mercury compounds of naphthenic acids, their water-insoluble salts and their esters	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Other mercury compounds of prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 29	Organic chemicals; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2901	Acyclic hydrocarbons for use as power or heating fuels	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
ex 2902	Cyclanes and cyclenes (other than azulenes), benzene, toluene, xylenes, for use as power or heating fuels	Operations of refining and/or one or more specific process(es) (1) or Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
ex 2905	Metal alcoholates of alcohols of this heading and of ethanol	Manufacture from materials of any heading, including other materials of heading 2905. However, metal alcoholates of this heading may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
2915	Saturated acyclic monocarboxylic acids and their anhydrides, halides, peroxides and peroxyacids; their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of headings 2915 and 2916 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2932	– Internal ethers and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading. However, the value of all the materials of heading 2909 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	– Cyclic acetals and internal hemiacetals and their halogenated, sulphonated, nitrated or nitrosated derivatives	Manufacture from materials of any heading		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	Heterocyclic compounds with nitrogen hetero-atom(s) only	Manufacture from materials of any heading. However, the value of all the materials of headings 2932 and 2933 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
2934	Nucleic acids and their salts, whether or not chemically defined; other heterocyclic compounds	Manufacture from materials of any heading. However, the value of all the materials of headings 2932, 2933 and 2934 used shall not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 2939	Concentrates of poppy straw containing not less than 50 % by weight of alkaloids	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 30	Pharmaceutical products; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
3002	Human blood; animal blood prepared for therapeutic, prophylactic or diagnostic uses; antisera and other blood fractions and modified immunological products, whether or not obtained by means of biotechnological processes; vaccines, toxins, cultures of micro-organisms (excluding yeasts) and similar products:			
	– Products consisting of two or more constituents which have been mixed together for therapeutic or prophylactic uses or unmixed products for these uses, put up in measured doses or in forms or packings for retail sale	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– Other			
	– – Human blood	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– – Animal blood prepared for therapeutic or prophylactic uses	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– – Blood fractions other than antisera, haemoglobin, blood globulins and serum globulins	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– – Haemoglobin, blood globulins and serum globulins	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– – Other	Manufacture from materials of any heading, including other materials of heading 3002. However, materials of the same description as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
3003 and 3004	Medicaments (excluding goods of heading 3002, 3005 or 3006):			
	– Obtained from amikacin of heading 2941	Manufacture from materials of any heading, except that of the product. However, materials of headings 3003 and 3004 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
	– Other	Manufacture: — from materials of any heading, except that of the product. However, materials of headings 3003 and 3004 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 3006	– Waste pharmaceuticals specified in note 4(k) to this Chapter	The origin of the product in its original classification shall be retained		
	– Sterile surgical or dental adhesion barriers, whether or not absorbable:			
	– made of plastics	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)		
	– made of fabrics	Manufacture from (7): — natural fibres — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– Appliances identifiable for ostomy use	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 31	Fertilizers; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
ex 3105	Mineral or chemical fertilizers containing two or three of the fertilizing elements nitrogen, phosphorous and potassium; other fertilizers; goods of this chapter, in tablets or similar forms or in packages of a gross weight not exceeding 10 kg, except for: — sodium nitrate — calcium cyanamide — potassium sulphate — magnesium potassium sulphate	Manufacture: — from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 32	Tanning or dyeing extracts; tannins and their derivatives; dyes, pigments and other colouring matter; paints and varnishes; putty and other mastics; inks; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3201	Tannins and their salts, ethers, esters and other derivatives	Manufacture from tanning extracts of vegetable origin		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3205	Colour lakes; preparations as specified in note 3 to this chapter based on colour lakes [3]	Manufacture from materials of any heading, except headings 3203, 3204 and 3205. However, materials of heading 3205 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 33	Essential oils and resinoids; perfumery, cosmetic or toilet preparations; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3301	Essential oils (terpeneless or not), including concretes and absolutes; resinoids; extracted oleoresins; concentrates of essential oils in fats, in fixed oils, in waxes or the like, obtained by enfleurage or maceration; terpenic by-products of the deterpenation of essential oils; aqueous distillates and aqueous solutions of essential oils	Manufacture from materials of any heading, including materials of a different 'group' [4] in this heading. However, materials of the same group as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
ex Chapter 34	Soap, organic surface-active agents, washing preparations, lubricating preparations, artificial waxes, prepared waxes, polishing or scouring preparations, candles and similar articles, modelling pastes, 'dental waxes' and dental preparations with a basis of plaster; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3403	Lubricating preparations containing less than 70 % by weight of petroleum oils or oils obtained from bituminous minerals	Operations of refining and/or one or more specific process(es) (1)		
		or		
		Other operations in which all the materials used are classified within a heading other than that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
3404	Artificial waxes and prepared waxes:			
	– With a basis of paraffin, petroleum waxes, waxes obtained from bituminous minerals, slack wax or scale wax	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product		
	– Other	Manufacture from materials of any heading, except:		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
		— hydrogenated oils having the character of waxes of heading 1516,		
		— fatty acids not chemically defined or industrial fatty alcohols having the character of waxes of heading 3823, and		
		— materials of heading 3404		
		However, these materials may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		
ex Chapter 35	Albuminoidal substances; modified starches; glues; enzymes; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
3505	Dextrins and other modified starches (for example, pre-gelatinised or esterified starches); glues based on starches, or on dextrins or other modified starches:			
	– Starch ethers and esters	Manufacture from materials of any heading, including other materials of heading 3505		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	– Other	Manufacture from materials of any heading, except those of heading 1108		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3507	Prepared enzymes not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
Chapter 36	Explosives; pyrotechnic products; matches; pyrophoric alloys; certain combustible preparations	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 37	Photographic or cinematographic goods; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3701	Photographic plates and film in the flat, sensitised, unexposed, of any material other than paper, paperboard or textiles; instant print film in the flat, sensitised, unexposed, whether or not in packs:			
	– Instant print film for colour photography, in packs	Manufacture from materials of any heading, except those of headings 3701 and 3702. However, materials of heading 3702 may be used, provided that their total value does not exceed 30 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	– Other	Manufacture from materials of any heading, except those of headings 3701 and 3702. However, materials of headings 3701 and 3702 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3702	Photographic film in rolls, sensitised, unexposed, of any material other than paper, paperboard or textiles; instant print film in rolls, sensitised, unexposed	Manufacture from materials of any heading, except those of headings 3701 and 3702		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3704	Photographic plates, film paper, paperboard and textiles, exposed but not developed	Manufacture from materials of any heading, except those of headings 3701 to 3704		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
ex Chapter 38	Miscellaneous chemical products; except for:	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3801	– Colloidal graphite in suspension in oil and semi-colloidal graphite; carbonaceous pastes for electrodes	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
	– Graphite in paste form, being a mixture of more than 30 % by weight of graphite with mineral oils	Manufacture in which the value of all the materials of heading 3403 used does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3803	Refined tall oil	Refining of crude tall oil		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3805	Spirits of sulphate turpentine, purified	Purification by distillation or refining of raw spirits of sulphate turpentine		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3806	Ester gums	Manufacture from resin acids		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 3807	Wood pitch (wood tar pitch)	Distillation of wood tar		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
3808	Insecticides, rodenticides, fungicides, herbicides, anti-sprouting products and plant-growth regulators, disinfectants and similar products, put up in forms or packings for retail sale or as preparations or articles (for example, sulphur-treated bands, wicks and candles, and fly-papers)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products		
3809	Finishing agents, dye carriers to accelerate the dyeing or fixing of dyestuffs and other products and preparations (for example, dressings and mordants), of a kind used in the textile, paper, leather or like industries, not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products		
3810	Pickling preparations for metal surfaces; fluxes and other auxiliary preparations for soldering, brazing or welding; soldering, brazing or welding powders and pastes consisting of metal and other materials; preparations of a kind used as cores or coatings for welding electrodes or rods	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the products		

(1)	(2)	(3)	or	(4)
3811	Anti-knock preparations, oxidation inhibitors, gum inhibitors, viscosity improvers, anti-corrosive preparations and other prepared additives, for mineral oils (including gasoline) or for other liquids used for the same purposes as mineral oils:			
	– Prepared additives for lubricating oil, containing petroleum oils or oils obtained from bituminous minerals	Manufacture in which the value of all the materials of heading 3811 used does not exceed 50 % of the ex-works price of the product		
	– Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3812	Prepared rubber accelerators; compound plasticisers for rubber or plastics, not elsewhere specified or included; anti-oxidizing preparations and other compound stabilizers for rubber or plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3813	Preparations and charges for fire-extinguishers; charged fire-extinguishing grenades	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3814	Organic composite solvents and thinners, not elsewhere specified or included; prepared paint or varnish removers	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3818	Chemical elements doped for use in electronics, in the form of discs, wafers or similar forms; chemical compounds doped for use in electronics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3819	Hydraulic brake fluids and other prepared liquids for hydraulic transmission, not containing or containing less than 70 % by weight of petroleum oils or oils obtained from bituminous minerals	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3820	Anti-freezing preparations and prepared de-icing fluids	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 3821	Prepared culture media for maintenance of micro-organisms (including viruses and the like) or of plant, human or animal cells	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
3822	Diagnostic or laboratory reagents on a backing, prepared diagnostic or laboratory reagents whether or not on a backing, other than those of heading 3002 or 3006; certified reference materials	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
3823	Industrial monocarboxylic fatty acids; acid oils from refining; industrial fatty alcohols:			
	– Industrial monocarboxylic fatty acids, acid oils from refining	Manufacture from materials of any heading, except that of the product		
	– Industrial fatty alcohols	Manufacture from materials of any heading, including other materials of heading 3823		
3824	Prepared binders for foundry moulds or cores; chemical products and preparations of the chemical or allied industries (including those consisting of mixtures of natural products), not elsewhere specified or included:			
	– The following of this heading: — Prepared binders for foundry moulds or cores based on natural resinous products — Naphthenic acids, their water-insoluble salts and their esters — Sorbitol other than that of heading 2905 — Petroleum sulphonates, excluding petroleum sulphonates of alkali metals, of ammonium or of ethanolamines; thiophenated sulphonic acids of oils obtained from bituminous minerals, and their salts — Ion exchangers — Getters for vacuum tubes — Alkaline iron oxide for the purification of gas — Ammoniacal gas liquors and spent oxide produced in coal gas purification — Sulphonaphthenic acids, their water-insoluble salts and their esters — Fusel oil and Dippel's oil — Mixtures of salts having different anions — Copying pastes with a basis of gelatin, whether or not on a paper or textile backing	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	– Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
3901 to 3915	Plastics in primary forms, waste, parings and scrap, of plastic; except for headings ex 3907 and 3912 for which the rules are set out below:			
	– Addition homopolymerisation products in which a single monomer contributes more than 99 % by weight to the total polymer content	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– Other	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3907	– Copolymer, made from polycarbonate and acrylonitrile-butadiene-styrene copolymer (ABS)	Manufacture from materials of any heading, except that of the product. However, materials of the same heading as the product may be used, provided that their total value does not exceed 50 % of the ex-works price of the product (5)		
	– Polyester	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product and/or manufacture from polycarbonate of tetrabromo-(bisphenol A)		
	Cellulose and its chemical derivatives, not elsewhere specified or included, in primary forms	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product		
3916 to 3921	Semi-manufactures of plastics; articles thereof; except for headings ex 3916, ex 3917, ex 3920 and ex 3921, for which the rules are set out below:			
	– Flat products, further worked than only surface-worked or cut into forms other than rectangular (including square); other products, further worked than only surface-worked	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 50 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– Other:			
	– – Addition homopolymerisation products in which a single monomer contributes more than 99 % by weight to the total polymer content	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
	– – Other	Manufacture in which the value of all the materials of Chapter 39 used does not exceed 20 % of the ex-works price of the product (5)		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3916 and ex 3917	Profile shapes and tubes	Manufacture in which: — the value of all the materials used does not exceed 50 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 3920	– Ionomer sheet or film	Manufacture from a thermoplastic partial salt which is a copolymer of ethylene and metacrylic acid partly neutralised with metal ions, mainly zinc and sodium		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– Sheets of regenerated cellulose, polyamides or polyethylene	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 20 % of the ex-works price of the product		
ex 3921	Foils of plastic, metallised	Manufacture from highly-transparent polyester-foils with a thickness of less than 23 micron (6)		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
3922 to 3926	Articles of plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 40	Rubber and articles thereof; except for:	Manufacture from materials of any heading, except that of the product		
ex 4001	Laminated slabs of crepe rubber for shoes	Lamination of sheets of natural rubber		
4005	Compounded rubber, unvulcanised, in primary forms or in plates, sheets or strip	Manufacture in which the value of all the materials used, except natural rubber, does not exceed 50 % of the ex-works price of the product		
4012	Retreaded or used pneumatic tyres of rubber; solid or cushion tyres, tyre treads and tyre flaps, of rubber:			
	– Retreaded pneumatic, solid or cushion tyres, of rubber	Retreading of used tyres		
	– Other	Manufacture from materials of any heading, except those of headings 4011 and 4012		
ex 4017	Articles of hard rubber	Manufacture from hard rubber		
ex Chapter 41	Raw hides and skins (other than fur skins) and leather; except for:	Manufacture from materials of any heading, except that of the product		

(1)	(2)	(3)	or	(4)
ex 4102	Raw skins of sheep or lambs, without wool on	Removal of wool from sheep or lamb skins, with wool on		
4104 to 4106	Tanned or crust hides and skins, without wool or hair on, whether or not split, but not further prepared	Retanning of tanned leather Or Manufacture from materials of any heading, except that of the product		
4107, 4112 and 4113	Leather, further prepared after tanning or crusting, including parchment-dressed leather, without wool or hair on, whether or not split, other than leather of heading 4114	Manufacture from materials of any heading, except headings 4104 to 4113		
ex 4114	Patent leather and patent laminated leather; metallised leather	Manufacture from materials of headings 4104 to 4106, 4107, 4112 or 4113, provided that their total value does not exceed 50 % of the ex-works price of the product		
Chapter 42	Articles of leather; saddlery and harness; travel goods, handbags and similar containers; articles of animal gut (other than silk worm gut)	Manufacture from materials of any heading, except that of the product		
ex Chapter 43	Fur skins and artificial fur; manufactures thereof; except for:	Manufacture from materials of any heading, except that of the product		
ex 4302	Tanned or dressed fur skins, assembled:			
	– Plates, crosses and similar forms	Bleaching or dyeing, in addition to cutting and assembly of non-assembled tanned or dressed fur skins		
	– Other	Manufacture from non-assembled, tanned or dressed fur skins		
4303	Articles of apparel, clothing accessories and other articles of fur skin	Manufacture from non-assembled tanned or dressed fur skins of heading 4302		
ex Chapter 44	Wood and articles of wood; wood charcoal; except for:	Manufacture from materials of any heading, except that of the product		
ex 4403	Wood roughly squared	Manufacture from wood in the rough, whether or not stripped of its bark or merely roughed down		
ex 4407	Wood sawn or chipped lengthwise, sliced or peeled, of a thickness exceeding 6 mm, planed, sanded or end-jointed	Planing, sanding or end-jointing		
ex 4408	Sheets for veneering (including those obtained by slicing laminated wood) and for plywood, of a thickness not exceeding 6 mm, spliced, and other wood sawn lengthwise, sliced or peeled of a thickness not exceeding 6 mm, planed, sanded or end-jointed	Splicing, planing, sanding or end-jointing		

(1)	(2)	(3)	or	(4)
ex 4409	Wood continuously shaped along any of its edges, ends or faces, whether or not planed, sanded or end-jointed:			
	– Sanded or end-jointed	Sanding or end-jointing		
	– Beadings and mouldings	Beading or moulding		
ex 4410 to ex 4413	Beadings and mouldings, including moulded skirting and other moulded boards	Beading or moulding		
ex 4415	Packing cases, boxes, crates, drums and similar packings, of wood	Manufacture from boards not cut to size		
ex 4416	Casks, barrels, vats, tubs and other coopers' products and parts thereof, of wood	Manufacture from riven staves, not further worked than sawn on the two principal surfaces		
ex 4418	– Builders' joinery and carpentry of wood	Manufacture from materials of any heading, except that of the product. However, cellular wood panels, shingles and shakes may be used		
	– Beadings and mouldings	Beading or moulding		
ex 4421	Match splints; wooden pegs or pins for footwear	Manufacture from wood of any heading, except drawn wood of heading 4409		
ex Chapter 45	Cork and articles of cork; except for:	Manufacture from materials of any heading, except that of the product		
4503	Articles of natural cork	Manufacture from cork of heading 4501		
Chapter 46	Manufactures of straw, of esparto or of other plaiting materials; basketware and wickerwork	Manufacture from materials of any heading, except that of the product		
Chapter 47	Pulp of wood or of other fibrous cellulosic material; recovered (waste and scrap) paper or paperboard	Manufacture from materials of any heading, except that of the product		
ex Chapter 48	Paper and paperboard; articles of paper pulp, of paper or of paperboard; except for:	Manufacture from materials of any heading, except that of the product		
ex 4811	Paper and paperboard, ruled, lined or squared only	Manufacture from paper-making materials of Chapter 47		
4816	Carbon paper, self-copy paper and other copying or transfer papers (other than those of heading 4809), duplicator stencils and offset plates, of paper, whether or not put up in boxes	Manufacture from paper-making materials of Chapter 47		

(1)	(2)	(3)	or	(4)
4817	Envelopes, letter cards, plain postcards and correspondence cards, of paper or paperboard; boxes, pouches, wallets and writing compendiums, of paper or paperboard, containing an assortment of paper stationery	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 4818	Toilet paper	Manufacture from paper-making materials of Chapter 47		
ex 4819	Cartons, boxes, cases, bags and other packing containers, of paper, paperboard, cellulose wadding or webs of cellulose fibres	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 4820	Letter pads	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 4823	Other paper, paperboard, cellulose wadding and webs of cellulose fibres, cut to size or shape	Manufacture from paper-making materials of Chapter 47		
ex Chapter 49	Printed books, newspapers, pictures and other products of the printing industry; manuscripts, typescripts and plans; except for:	Manufacture from materials of any heading, except that of the product		
4909	Printed or illustrated postcards; printed cards bearing personal greetings, messages or announcements, whether or not illustrated, with or without envelopes or trimmings	Manufacture from materials of any heading, except those of headings 4909 and 4911		
4910	Calendars of any kind, printed, including calendar blocks:			
	– Calendars of the 'perpetual' type or with replaceable blocks mounted on bases other than paper or paperboard	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
	– Other	Manufacture from materials of any heading, except those of headings 4909 and 4911		

(1)	(2)	(3)	or	(4)
ex Chapter 50	Silk; except for:	Manufacture from materials of any heading, except that of the product		
ex 5003	Silk waste (including cocoons unsuitable for reeling, yarn waste and garnetted stock), carded or combed	Carding or combing of silk waste		
5004 to ex 5006	Silk yarn and yarn spun from silk waste	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — other natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		
5007	Woven fabrics of silk or of silk waste:			
	– Incorporating rubber thread	Manufacture from single yarn (7)		
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
ex Chapter 51	Wool, fine or coarse animal hair; horsehair yarn and woven fabric; except for:	Manufacture from materials of any heading, except that of the product		

(1)	(2)	(3)	or	(4)
5106 to 5110	Yarn of wool, of fine or coarse animal hair or of horsehair	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		
5111 to 5113	Woven fabrics of wool, of fine or coarse animal hair or of horsehair:			
	– Incorporating rubber thread	Manufacture from single yarn (7)		
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
ex Chapter 52	Cotton; except for:	Manufacture from materials of any heading, except that of the product		
5204 to 5207	Yarn and thread of cotton	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		
5208 to 5212	Woven fabrics of cotton:			
	– Incorporating rubber thread	Manufacture from single yarn (7)		

(1)	(2)	(3)	or	(4)
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
ex Chapter 53	Other vegetable textile fibres; paper yarn and woven fabrics of paper yarn; except for:	Manufacture from materials of any heading, except that of the product		
5306 to 5308	Yarn of other vegetable textile fibres; paper yarn	Manufacture from (7): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		
5309 to 5311	Woven fabrics of other vegetable textile fibres; woven fabrics of paper yarn:			
	– Incorporating rubber thread	Manufacture from single yarn (7)		
	– Other	Manufacture from (7): — coir yarn, — jute yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
5401 to 5406	Yarn, monofilament and thread of man-made filaments	Manufacture from ([7]): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		
5407 and 5408	Woven fabrics of man-made filament yarn:			
	– Incorporating rubber thread	Manufacture from single yarn ([7])		
	– Other	Manufacture from ([7]): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
5501 to 5507	Man-made staple fibres	Manufacture from chemical materials or textile pulp		
5508 to 5511	Yarn and sewing thread of man-made staple fibres	Manufacture from ([7]): — raw silk or silk waste, carded or combed or otherwise prepared for spinning, — natural fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper-making materials		

(1)	(2)	(3)	or	(4)
5512 to 5516	Woven fabrics of man-made staple fibres:			
	– Incorporating rubber thread	Manufacture from single yarn (7)		
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise prepared for spinning, — chemical materials or textile pulp, or — paper or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
ex Chapter 56	Wadding, felt and non-wovens; special yarns; twine, cordage, ropes and cables and articles thereof; except for:	Manufacture from (7): — coir yarn, — natural fibres, — chemical materials or textile pulp, or — paper-making materials		
ex 5602	Felt, whether or not impregnated, coated, covered or laminated:			
	– Needleloom felt	Manufacture from (7): — natural fibres, or — chemical materials or textile pulp However: — polypropylene filament of heading 5402, — polypropylene fibres of heading 5503 or 5506, or — polypropylene filament tow of heading 5501, of which the denomination in all cases of a single filament or fibre is less than 9 decitex, may be used, provided that their total value does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
	– Other	Manufacture from (7): — natural fibres, — man-made staple fibres made from casein, or — chemical materials or textile pulp		
5604	Rubber thread and cord, textile covered; textile yarn, and strip and the like of heading 5404 or 5405, impregnated, coated, covered or sheathed with rubber or plastics:			
	– Rubber thread and cord, textile covered	Manufacture from rubber thread or cord, not textile covered		
	– Other	Manufacture from (7): — natural fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials		
5605	Metallised yarn, whether or not gimped, being textile yarn, or strip or the like of heading 5404 or 5405, combined with metal in the form of thread, strip or powder or covered with metal	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials		
5606	Gimped yarn, and strip and the like of heading 5404 or 5405, gimped (other than those of heading 5605 and gimped horsehair yarn); chenille yarn (including flock chenille yarn); loop wale-yarn	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, — chemical materials or textile pulp, or — paper-making materials		

(1)	(2)	(3)	or	(4)
Chapter 57	Carpets and other textile floor coverings:			
	– Of needleloom felt	Manufacture from (7): — natural fibres, or — chemical materials or textile pulp However: — polypropylene filament of heading 5402, — polypropylene fibres of heading 5503 or 5506, or — polypropylene filament tow of heading 5501, of which the denomination in all cases of a single filament or fibre is less than 9 decitex, may be used, provided that their total value does not exceed 40 % of the ex-works price of the product Jute fabric may be used as a backing		
	– Of other felt	Manufacture from (7): — natural fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
	– Other	Manufacture from (7): — coir yarn or jute yarn, — synthetic or artificial filament yarn, — natural fibres, or — man-made staple fibres, not carded or combed or otherwise processed for spinning Jute fabric may be used as a backing		
ex Chapter 58	Special woven fabrics; tufted textile fabrics; lace; tapestries; trimmings; embroidery; except for:			
	– Combined with rubber thread	Manufacture from single yarn (7)		

(1)	(2)	(3)	or	(4)
	– Other	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
5805	Hand-woven tapestries of the types Gobelins, Flanders, Aubusson, Beauvais and the like, and needle-worked tapestries (for example, petit point, cross stitch), whether or not made up	Manufacture from materials of any heading, except that of the product		
5810	Embroidery in the piece, in strips or in motifs	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
5901	Textil fabrics coated with gum or amylaceous substances, of a kind used for the outer covers of books or the like; tracing cloth; prepared painting canvas; buckram and similar stiffened textile fabrics of a kind used for hat foundations	Manufacture from yarn		
5902	Tyre cord fabric of high tenacity yarn of nylon or other polyamides, polyesters or viscose rayon:			
	– Containing not more than 90 % by weight of textile materials	Manufacture from yarn		
	– Other	Manufacture from chemical materials or textile pulp		
5903	Textil fabrics impregnated, coated, covered or laminated with plastics, other than those of heading 5902	Manufacture from yarn or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, rasing, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
5904	Linoleum, whether or note cut to shape; floor coverings consisting of a coating or covering applied on a textile backing, whether or not cut to shape	Manufacture from yarn (7)		
5905	Textil wall coverings:			
	– Impregnated, coated, covered or laminated with rubber, plastics or other materials	Manufacture from yarn		
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		
5906	Rubberised textile fabrics, other than those of heading 5902:			
	– Knitted or crocheted fabrics	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
	– Other fabrics made of synthetic filament yarn, containing more than 90 % by weight of textile materials	Manufacture from chemical materials		
	– Other	Manufacture from yarn		
5907	Textil fabrics otherwise impregnated, coated or covered; painted canvas being theatrical scenery, studio back-cloths or the like	Manufacture from yarn or Printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, rasing, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of the unprinted fabric used does not exceed 47,5 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
5908	Textil wicks, woven, plaited or knitted, for lamps, stoves, lighters, candles or the like; incandescent gas mantles and tubular knitted gas mantle fabric therefor, whether or not impregnated:			
	– Incandescent gas mantles, impregnated	Manufacture from tubular knitted gas-mantle fabric		
	– Other	Manufacture from materials of any heading, except that of the product		
5909 to 5911	Textile articles of a kind suitable for industrial use:			
	– Polishing discs or rings other than of felt of heading 5911	Manufacture from yarn or waste fabrics or rags of heading 6310		
	– Woven fabrics, of a kind commonly used in papermaking or other technical uses, felted or not, whether or not impregnated or coated, tubular or endless with single or multiple warp and/or weft, or flat woven with multiple warp and/or weft of heading 5911	Manufacture from (7): — coir yarn, — the following materials: — yarn of polytetrafluoroethylene (8), — yarn, multiple, of polyamide, coated impregnated or covered with a phenolic resin, — yarn of synthetic textile fibres of aromatic polyamides, obtained by polycondensation of *m*-phenylenediamine and isophthalic acid, — monofil of polytetrafluoroethylene (8), — yarn of synthetic textile fibres of poly(*p*-phenylene terephthalamide), — glass fibre yarn, coated with phenol resin and gimped with acrylic yarn (8), — copolyester monofilaments of a polyester and a resin of terephthalic acid and 1,4-cyclohexanediethanol and isophthalic acid, — natural fibres, — man-made staple fibres not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
	– Other	Manufacture from (7): — coir yarn, — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		

(1)	(2)	(3)	or	(4)
Chapter 60	Knitted or crocheted fabrics	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
Chapter 61	Articles of apparel and clothing accessories, knitted or crocheted:			
	– Obtained by sewing together or otherwise assembling, two or more pieces of knitted or crocheted fabric which have been either cut to form or obtained directly to form	Manufacture from yarn (7) (9)		
	– Other	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
ex Chapter 62	Articles of apparel and clothing accessories, not knitted or crocheted; except for:	Manufacture from yarn (7) (9)		
ex 6202, ex 6204, ex 6206, ex 6209 and ex 6211	Women's, girls' and babies' clothing and clothing accessories for babies, embroidered	Manufacture from yarn (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)		
ex 6210 and ex 6216	Fire-resistant equipment of fabric covered with foil of aluminised polyester	Manufacture from yarn (9) or Manufacture from uncoated fabric, provided that the value of the uncoated fabric used does not exceed 40 % of the ex-works price of the product (9)		
6213 and 6214	Handkerchiefs, shawls, scarves, mufflers, mantillas, veils and the like:			
	– Embroidered	Manufacture from unbleached single yarn (7) (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)		

(1)	(2)	(3)	or	(4)
	– Other	Manufacture from unbleached single yarn (7) (9) or Making up, followed by printing accompanied by at least two preparatory or finishing operations (such as scouring, bleaching, mercerising, heat setting, raising, calendering, shrink resistance processing, permanent finishing, decatising, impregnating, mending and burling), provided that the value of all the unprinted goods of headings 6213 and 6214 used does not exceed 47,5 % of the ex-works price of the product		
6217	Other made up clothing accessories; parts of garments or of clothing accessories, other than those of heading 6212:			
	– Embroidered	Manufacture from yarn (9) or Manufacture from unembroidered fabric, provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product (9)		
	– Fire-resistant equipment of fabric covered with foil of aluminised polyester	Manufacture from yarn (9) or Manufacture from uncoated fabric, provided that the value of the uncoated fabric used does not exceed 40 % of the ex-works price of the product (9)		
	– Interlinings for collars and cuffs, cut out	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Other	Manufacture from yarn (9)		
ex Chapter 63	Other made-up textile articles; sets; worn clothing and worn textile articles; rags; except for:	Manufacture from materials of any heading, except that of the product		
6301 to 6304	Blankets, travelling rugs, bed linen etc.; curtains etc.; other furnishing articles:			
	– Of felt, of non-wovens	Manufacture from (7): — natural fibres, or — chemical materials or textile pulp		
	– Other:			
	– – Embroidered	Manufacture from unbleached single yarn (9) (10) or Manufacture from unembroidered fabric (other than knitted or crocheted), provided that the value of the unembroidered fabric used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
	– – Other	Manufacture from unbleached single yarn (9) (10)		
6305	Sacks and bags, of a kind used for the packing of goods	Manufacture from (7): — natural fibres, — man-made staple fibres, not carded or combed or otherwise processed for spinning, or — chemical materials or textile pulp		
6306	Tarpaulins, awnings and sunblinds; tents; sails for boats, sailboards or landcraft; camping goods:			
	– Of non-wovens	Manufacture from (7) (9): — natural fibres, or — chemical materials or textile pulp		
	– Other	Manufacture from unbleached single yarn (7) (9)		
6307	Other made-up articles, including dress patterns	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
6308	Sets consisting of woven fabric and yarn, whether or not with accessories, for making up into rugs, tapestries, embroidered table cloths or serviettes, or similar textile articles, put up in packings for retail sale	Each item in the set must satisfy the rule which would apply to it if it were not included in the set. However, non-originating articles may be incorporated, provided that their total value does not exceed 15 % of the ex-works price of the set		
ex Chapter 64	Footwear, gaiters and the like; parts of such articles; except for:	Manufacture from materials of any heading, except from assemblies of uppers affixed to inner soles or to other sole components of heading 6406		
6406	Parts of footwear (including uppers whether or not attached to soles other than outer soles); removable in-soles, heel cushions and similar articles; gaiters, leggings and similar articles, and parts thereof	Manufacture from materials of any heading, except that of the product		
ex Chapter 65	Headgear and parts thereof; except for:	Manufacture from materials of any heading, except that of the product		
6505	Hats and other headgear, knitted or crocheted, or made up from lace, felt or other textile fabric, in the piece (but not in strips), whether or not lined or trimmed; hair-nets of any material, whether or not lined or trimmed	Manufacture from yarn or textile fibres (9)		
ex 6506	Felt hats and other felt headgear, made from the hat bodies, hoods or plateaux of heading 6501, whether or not lined or trimmed	Manufacture from yarn or textile fibres (9)		

(1)	(2)	(3)	or	(4)
ex Chapter 66	Umbrellas, sun umbrellas, walking-sticks, seat-sticks, whips, riding-crops, and parts thereof; except for:	Manufacture from materials of any heading, except that of the product		
6601	Umbrellas and sun umbrellas (including walking-stick umbrellas, garden umbrellas and similar umbrellas)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
Chapter 67	Prepared feathers and down and articles made of feathers or of down; artificial flowers; articles of human hair	Manufacture from materials of any heading, except that of the product		
ex Chapter 68	Articles of stone, plaster, cement, asbestos, mica or similar materials; except for:	Manufacture from materials of any heading, except that of the product		
ex 6803	Articles of slate or of agglomerated slate	Manufacture from worked slate		
ex 6812	Articles of asbestos; articles of mixtures with a basis of asbestos or of mixtures with a basis of asbestos and magnesium carbonate	Manufacture from materials of any heading		
ex 6814	Articles of mica, including agglomerated or reconstituted mica, on a support of paper, paperboard or other materials	Manufacture from worked mica (including agglomerated or reconstituted mica)		
Chapter 69	Ceramic products	Manufacture from materials of any heading, except that of the product		
ex Chapter 70	Glass and glassware; except for:	Manufacture from materials of any heading, except that of the product		
ex 7003, ex 7004 and ex 7005	Glass with a non-reflecting layer	Manufacture from materials of heading 7001		
7006	Glass of heading 7003, 7004 or 7005, bent, edge-worked, engraved, drilled, enamelled or otherwise worked, but not framed or fitted with other materials:			
	– Glass-plate substrates, coated with a dielectric thin film, and of a semiconductor grade in accordance with SEMII-standards (11)	Manufacture from non-coated glass-plate substrate of heading 7006		
	– Other	Manufacture from materials of heading 7001		
7007	Safety glass, consisting of toughened (tempered) or laminated glass	Manufacture from materials of heading 7001		
7008	Multiple-walled insulating units of glass	Manufacture from materials of heading 7001		
7009	Glass mirrors, whether or not framed, including rear-view mirrors	Manufacture from materials of heading 7001		

(1)	(2)	(3)	or	(4)
7010	Carboys, bottles, flasks, jars, pots, phials, ampoules and other containers, of glass, of a kind used for the conveyance or packing of goods; preserving jars of glass; stoppers, lids and other closures, of glass	Manufacture from materials of any heading, except that of the product or Cutting of glassware, provided that the total value of the uncut glassware used does not exceed 50 % of the ex-works price of the product		
7013	Glassware of a kind used for table, kitchen, toilet, office, indoor decoration or similar purposes (other than that of heading 7010 or 7018)	Manufacture from materials of any heading, except that of the product or Cutting of glassware, provided that the total value of the uncut glassware used does not exceed 50 % of the ex-works price of the product or Hand-decoration (except silk-screen printing) of hand-blown glassware, provided that the total value of the hand-blown glassware used does not exceed 50 % of the ex-works price of the product		
ex 7019	Articles (other than yarn) of glass fibres	Manufacture from: — uncoloured slivers, rovings, yarn or chopped strands, or — glass wool		
ex Chapter 71	Natural or cultured pearls, precious or semi-precious stones, precious metals, metals clad with precious metal, and articles thereof; imitation jewellery; coin; except for:	Manufacture from materials of any heading, except that of the product		
ex 7101	Natural or cultured pearls, graded and temporarily strung for convenience of transport	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 7102, ex 7103 and ex 7104	Worked precious or semi-precious stones (natural, synthetic or reconstructed)	Manufacture from unworked precious or semi-precious stones		
7106, 7108 and 7110	Precious metals:			
	– Unwrought	Manufacture from materials of any heading, except those of headings 7106, 7108 and 7110 or Electrolytic, thermal or chemical separation of precious metals of heading 7106, 7108 or 7110 or Alloying of precious metals of heading 7106, 7108 or 7110 with each other or with base metals		
	– Semi-manufactured or in powder form	Manufacture from unwrought precious metals		

(1)	(2)	(3)	or	(4)
ex 7107, ex 7109 and ex 7111	Metals clad with precious metals, semi-manufactured	Manufacture from metals clad with precious metals, unwrought		
7116	Articles of natural or cultured pearls, precious or semi-precious stones (natural, synthetic or reconstructed)	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
7117	Imitation jewellery	Manufacture from materials of any heading, except that of the product or Manufacture from base metal parts, not plated or covered with precious metals, provided that the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 72	Iron and steel; except for:	Manufacture from materials of any heading, except that of the product		
7207	Semi-finished products of iron or non-alloy steel	Manufacture from materials of heading 7201, 7202, 7203, 7204 or 7205		
7208 to 7216	Flat-rolled products, bars and rods, angles, shapes and sections of iron or non-alloy steel	Manufacture from ingots or other primary forms of heading 7206		
7217	Wire of iron or non-alloy steel	Manufacture from semi-finished materials of heading 7207		
ex7218, 7219 to 7222	Semi-finished products, flat-rolled products, bars and rods, angles, shapes and sections of stainless steel	Manufacture from ingots or other primary forms of heading 7218		
7223	Wire of stainless steel	Manufacture from semi-finished materials of heading 7218		
ex7224, 7225 to 7228	Semi-finished products, flat-rolled products, hot-rolled bars and rods, in irregularly wound coils; angles, shapes and sections, of other alloy steel; hollow drill bars and rods, of alloy or non-alloy steel	Manufacture from ingots or other primary forms of heading 7206, 7218 or 7224		
7229	Wire of other alloy steel	Manufacture from semi-finished materials of heading 7 224		
ex Chapter 73	Articles of iron or steel; except for:	Manufacture from materials of any heading, except that of the product		
ex 7301	Sheet piling	Manufacture from materials of heading 7206		
7302	Railway or tramway track construction material of iron or steel, the following: rails, check-rails and rack rails, switch blades, crossing frogs, point rods and other crossing pieces, sleepers (cross-ties), fish-plates, chairs, chair wedges, sole pates (base plates), rail clips, bedplates, ties and other material specialised for jointing or fixing rails	Manufacture from materials of heading 7206		

(1)	(2)	(3)	or	(4)
7304, 7305 and 7306	Tubes, pipes and hollow profiles, of iron (other than cast iron) or steel	Manufacture from materials of heading 7206, 7207, 7218 or 7224		
ex 7307	Tube or pipe fittings of stainless steel (ISO No X5CrNiMo 1712), consisting of several parts	Turning, drilling, reaming, threading, deburring and sandblasting of forged blanks, provided that the total value of the forged blanks used does not exceed 35 % of the ex-works price of the product		
7308	Structures (excluding prefabricated buildings of heading 9406) and parts of structures (for example, bridges and bridge-sections, lock-gates, towers, lattice masts, roofs, roofing frameworks, doors and windows and their frames and thresholds for doors, shutters, balustrades, pillars and columns), of iron or steel; plates, rods, angles, shapes, sections, tubes and the like, prepared for use in structures, of iron or steel	Manufacture from materials of any heading, except that of the product. However, welded angles, shapes and sections of heading 7301 may not be used		
ex 7315	Skid chain	Manufacture in which the value of all the materials of heading 7315 used does not exceed 50 % of the ex-works price of the product		
ex Chapter 74	Copper and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
7401	Copper mattes; cement copper (precipitated copper)	Manufacture from materials of any heading, except that of the product		
7402	Unrefined copper; copper anodes for electrolytic refining	Manufacture from materials of any heading, except that of the product		
7403	Refined copper and copper alloys, unwrought:			
	– Refined copper	Manufacture from materials of any heading, except that of the product		
	– Copper alloys and refined copper containing other elements	Manufacture from refined copper, unwrought, or waste and scrap of copper		
7404	Copper waste and scrap	Manufacture from materials of any heading, except that of the product		
7405	Master alloys of copper	Manufacture from materials of any heading, except that of the product		

(1)	(2)	(3)	or	(4)
ex Chapter 75	Nickel and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
7501 to 7503	Nickel mattes, nickel oxide sinters and other intermediate products of nickel metallurgy; unwrought nickel; nickel waste and scrap	Manufacture from materials of any heading, except that of the product		
ex Chapter 76	Aluminium and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
7601	Unwrought aluminium	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product or Manufacture by thermal or electrolytic treatment from unalloyed aluminium or waste and scrap of aluminium		
7602	Aluminium waste or scrap	Manufacture from materials of any heading, except that of the product		
ex 7616	Aluminium articles other than gauze, cloth, grill, netting, fencing, reinforcing fabric and similar materials (including endless bands) of aluminium wire, and expanded metal of aluminium	Manufacture: — from materials of any heading, except that of the product. However, gauze, cloth, grill, netting, fencing, reinforcing fabric and similar materials (including endless bands) of aluminium wire, or expanded metal of aluminium may be used; and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
Chapter 77	Reserved for possible future use in the HS			
ex Chapter 78	Lead and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
7801	Unwrought lead:			
	– Refined lead	Manufacture from 'bullion' or 'work' lead		
	– Other	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 7802 may not be used		
7802	Lead waste and scrap	Manufacture from materials of any heading, except that of the product		
ex Chapter 79	Zinc and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
7901	Unwrought zinc	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 7902 may not be used		
7902	Zinc waste and scrap	Manufacture from materials of any heading, except that of the product		
ex Chapter 80	Tin and articles thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
8001	Unwrought tin	Manufacture from materials of any heading, except that of the product. However, waste and scrap of heading 8002 may not be used		
8002 and 8007	Tin waste and scrap; other articles of tin	Manufacture from materials of any heading, except that of the product		
Chapter 81	Other base metals; cermets; articles thereof:			
	– Other base metals, wrought; articles thereof	Manufacture in which the value of all the materials of the same heading as the product used does not exceed 50 % of the ex-works price of the product		
	– Other	Manufacture from materials of any heading, except that of the product		
ex Chapter 82	Tools, implements, cutlery, spoons and forks, of base metal; parts thereof of base metal; except for:	Manufacture from materials of any heading, except that of the product		

(1)	(2)	(3)	or	(4)
8206	Tools of two or more of the headings 8202 to 8205, put up in sets for retail sale	Manufacture from materials of any heading, except those of headings 8202 to 8205. However, tools of headings 8202 to 8205 may be incorporated into the set, provided that their total value does not exceed 15 % of the ex-works price of the set		
8207	Interchangeable tools for hand tools, whether or not power-operated, or for machine-tools (for example, for pressing, stamping, punching, tapping, threading, drilling, boring, broaching, milling, turning, or screwdriving), including dies for drawing or extruding metal, and rock drilling or earth boring tools	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8208	Knives and cutting blades, for machines or for mechanical appliances	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex 8211	Knives with cutting blades, serrated or not (including pruning knives), other than knives of heading 8208	Manufacture from materials of any heading, except that of the product. However, knife blades and handles of base metal may be used		
8214	Other articles of cutlery (for example, hair clippers, butchers' or kitchen cleavers, choppers and mincing knives, paper knives); manicure or pedicure sets and instruments (including nail files)	Manufacture from materials of any heading, except that of the product. However, handles of base metal may be used		
8215	Spoons, forks, ladles, skimmers, cake-servers, fish-knives, butter-knives, sugar tongs and similar kitchen or tableware	Manufacture from materials of any heading, except that of the product. However, handles of base metal may be used		
ex Chapter 83	Miscellaneous articles of base metal; except for:	Manufacture from materials of any heading, except that of the product		
ex 8302	Other mountings, fittings and similar articles suitable for buildings, and automatic door closers	Manufacture from materials of any heading, except that of the product. However, other materials of heading 8302 may be used, provided that their total value does not exceed 20 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
ex 8306	Statuettes and other ornaments, of base metal	Manufacture from materials of any heading, except that of the product. However, other materials of heading 8306 may be used, provided that their total value does not exceed 30 % of the ex-works price of the product		
ex Chapter 84	Nuclear reactors, boilers, machinery and mechanical appliances; parts thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8401	Nuclear fuel elements	Manufacture from materials of any heading, except that of the product (12)		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8402	Steam or other vapour generating boilers (other than central heating hot water boilers capable also of producing low pressure steam); super-heated water boilers	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8403 and ex 8404	Central heating boilers other than those of heading 8402 and auxiliary plant for central heating boilers	Manufacture from materials of any heading, except those of headings 8403 and 8404		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
8406	Steam turbines and other vapour turbines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8407	Spark-ignition reciprocating or rotary internal combustion piston engines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8408	Compression-ignition internal combustion piston engines (diesel or semi-diesel engines)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8409	Parts suitable for use solely or principally with the engines of heading 8407 or 8408	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8411	Turbo-jets, turbo-propellers and other gas turbines	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8412	Other engines and motors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
ex 8413	Rotary positive displacement pumps	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8414	Industrial fans, blowers and the like	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8415	Air conditioning machines, comprising a motor-driven fan and elements for changing the temperature and humidity, including those machines in which the humidity cannot be separately regulated	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8418	Refrigerators, freezers and other refrigerating or freezing equipment, electric or other; heat pumps other than air conditioning machines of heading 8415	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8419	Machines for wood, paper pulp, paper and paperboard industries	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8420	Calendering or other rolling machines, other than for metals or glass, and cylinders therefore	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8423	Weighing machinery (excluding balances of a sensitivity of 5 cg or better), including weight operated counting or checking machines; weighing machine weights of all kinds	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8425 to 8428	Lifting, handling, loading or unloading machinery	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8429	Self-propelled bulldozers, angledozers, graders, levellers, scrapers, mechanical shovels, excavators, shovel loaders, tamping machines and road rollers:			
	– Road rollers	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8430	Other moving, grading, levelling, scraping, excavating, tamping, compacting, extracting or boring machinery, for earth, minerals or ores; pile-drivers and pile-extractors; snow-ploughs and snow-blowers	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8431 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8431	Parts suitable for use solely or principally with road rollers	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
8439	Machinery for making pulp of fibrous cellulosic material or for making or finishing paper or paperboard	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8441	Other machinery for making up paper pulp, paper or paperboard, including cutting machines of all kinds	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of the same heading as the product used does not exceed 25 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8443	Printers, for office machines (for example automatic data processing machines, word-processing machines, etc.)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8444 to 8447	Machines of these headings for use in the textile industry	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex 8448	Auxiliary machinery for use with machines of headings 8444 and 8445	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	8452 Sewing machines, other than book-sewing machines of heading 8440; furniture, bases and covers specially designed for sewing machines; sewing machine needles:			
	– Sewing machines (lock stitch only) with heads of a weight not exceeding 16 kg without motor or 17 kg with motor	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, — the value of all the non-originating materials used in assembling the head (without motor) does not exceed the value of all the originating materials used, and — the thread-tension, crochet and zig-zag mechanisms used are originating		
	– Other	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
8456 to 8466	Machine-tools and machines and their parts and accessories of headings 8456 to 8466	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8469 to 8472	Office machines (for example, typewriters, calculating machines, automatic data processing machines, duplicating machines, stapling machines)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8480	Moulding boxes for metal foundry; mould bases; moulding patterns; moulds for metal (other than ingot moulds), metal carbides, glass, mineral materials, rubber or plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
8482	Ball or roller bearings	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8484	Gaskets and similar joints of metal sheeting combined with other material or of two or more layers of metal; sets or assortments of gaskets and similar joints, dissimilar in composition, put up in pouches, envelopes or similar packings; mechanical seals	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex 8486	— Machine tools for working any material by removal of material, by laser or other light or photon beam, ultrasonic, electrodischarge, electrochemical, electron beam, ionic-beam or plasma arc processes — machine tools (including presses) for working metal by bending, folding, straightening, flattening, shearing, punching or notching — machine tools for working stone, ceramics, concrete, asbestos-cement or like mineral materials or for cold working glass — parts and accessories suitable for use solely or principally with the machines of headings 8456, 8462 and 8464 — marking-out instruments which are pattern generating apparatus of a kind used for producing masks or reticles from photoresist coated substrates; parts and accessories thereof	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– moulds, injection or compression types	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
	– other lifting, handing, loading or unloading machinery	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all non originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	– parts suitable for use solely or principally with the machinery of heading 8428	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– cameras of a kind used for preparing printing plates or cylinders which are pattern generating apparatus of a kind used for producing masks or reticles from photoresist coated substrates; parts and accessories thereof	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8487	Machinery parts, not containing electrical connectors, insulators, coils, contacts or other electrical features, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex Chapter 85	Electrical machinery and equipment and parts thereof; sound recorders and reproducers, television image and sound recorders and reproducers, and parts and accessories of such articles; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8501	Electric motors and generators (excluding generating sets)	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8503 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8502	Electric generating sets and rotary converters	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8501 and 8503 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8504	Power supply units for automatic data-processing machines	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex 8517	Other apparatus for the transmission or reception of voice, images or other data, including apparatus for communication in a wireless network (such as a local or wide area network), other than transmission or reception apparatus of headings 8443, 8525, 8527 or 8528	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8518	Microphones and stands therefore; loudspeakers, whether or not mounted in their enclosures; audio-frequency electric amplifiers; electric sound amplifier sets	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8519	Sound recording or sound reproducing apparatus	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8521	Video recording or reproducing apparatus, whether or not incorporating a video tuner	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8522	Parts and accessories suitable for use solely or principally with the apparatus of headings 8519 to 8521	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8523	– Unrecorded discs, tapes, solid-state non-volatile storage devices and other media for the recording of sound or of other phenomena, including matrices and masters for the production of discs, but excluding products of Chapter 37;	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– recorded discs, tapes solid-state non-volatile storage devices and other media for the recording of sound or of other phenomena, including matrices and masters for the production of discs, but excluding products of Chapter 37	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8523 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	– proximity cards and 'smart cards' with two or more electronic integrated circuits	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the product or The operation of diffusion, in which integrated circuits are formed on a semiconductor substrate by the selective introduction of an appropriate dopant, whether or not assembled and/or tested in a country other than those specified in Articles 3 and 4		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– 'smart cards' with one electronic integrated circuit	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8525	Transmission apparatus for radio-broadcasting or television, whether or not incorporating reception apparatus or sound recording or reproducing apparatus; television cameras, digital cameras and video camera recorders	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8526	Radar apparatus, radio navigational aid apparatus and radio remote control apparatus	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8527	Reception apparatus for radio-broadcasting, whether or not combined, in the same housing, with sound recording or reproducing apparatus or a clock	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8528	– monitors and projectors, not incorporating television reception apparatus, of a kind solely or principally used in an automatic data-processing system of heading 8471	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– other monitors and projectors, not incorporating television reception apparatus; Reception apparatus for television, whether or not incorporating radio broadcast receivers or sound or video recording or reproducing apparatus	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		
8529	Parts suitable for use solely or principally with the apparatus of headings 8525 to 8528:			
	– Suitable for use solely or principally with video recording or reproducing apparatus	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Suitable for use solely or principally with monitors and projectors, not incorporating television reception apparatus, of a kind solely or principally used in an automatic data-processing system of heading 8471	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
	– Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
8535	Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits for a voltage exceeding 1 000 V	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8536	– Electrical apparatus for switching or protecting electrical circuits, or for making connections to or in electrical circuits for a voltage not exceeding 1 000 V	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
	– connectors for optical fibres, optical fibre bundles or cables			
	– – of plastics	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
	– – of ceramics, of iron and steel	Manufacture from materials of any heading, except that of the product		
	– – of copper	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
8537	Boards, panels, consoles, desks, cabinets and other bases, equipped with two or more apparatus of heading 8535 or 8536, for electric control or the distribution of electricity, including those incorporating instruments or apparatus of Chapter 90, and numerical control apparatus, other than switching apparatus of heading 8517	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 8538 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8541	Diodes, transistors and similar semiconductor devices, except wafers not yet cut into chips	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
ex 8542	Electronic integrated circuits and micro assemblies:			
	– Monolithic integrated circuits	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the product or The operation of diffusion (in which integrated circuits are formed on a semiconductor substrate by the selective introduction of an appropriate dopant), whether or not assembled and/or tested in a country other than those specified in Articles 3 and 4		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– multichips which are parts of machinery or apparatus, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of headings 8541 and 8542 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8544	Insulated (including enamelled or anodised) wire, cable (including coaxial cable) and other insulated electric conductors, whether or not fitted with connectors; optical fibre cables, made up of individually sheathed fibres, whether or not assembled with electric conductors or fitted with connectors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8545	Carbon electrodes, carbon brushes, lamp carbons, battery carbons and other articles of graphite or other carbon, with or without metal, of a kind used for electrical purposes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8546	Electrical insulators of any material	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8547	Insulating fittings for electrical machines, appliances or equipment, being fittings wholly of insulating materials apart from any minor components of metal (for example, threaded sockets) incorporated during moulding solely for purposes of assembly, other than insulators of heading 8546; electrical conduit tubing and joints therefor, of base metal lined with insulating material	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8548	Waste and scrap of primary cells, primary batteries and electric accumulators; spent primary cells, spent primary batteries and spent electric accumulators; electrical parts of machinery or apparatus, not specified or included elsewhere in this Chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex Chapter 86	Railway or tramway locomotives, rolling-stock and parts thereof; railway or tramway track fixtures and fittings and parts thereof; mechanical (including electromechanical) traffic signalling equipment of all kinds; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8608	Railway or tramway track fixtures and fittings; mechanical (including electromechanical) signalling, safety or traffic control equipment for railways, tramways, roads, inland waterways, parking facilities, port installations or airfields; parts of the foregoing	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex Chapter 87	Vehicles other than railway or tramway rolling-stock, and parts and accessories thereof; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
8709	Works trucks, self-propelled, not fitted with lifting or handling equipment, of the type used in factories, warehouses, dock areas or airports for short distance transport of goods; tractors of the type used on railway station platforms; parts of the foregoing vehicles	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8710	Tanks and other armoured fighting vehicles, motorized, whether or not fitted with weapons, and parts of such vehicles	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8711	Motorcycles (including mopeds) and cycles fitted with an auxiliary motor, with or without side-cars; side-cars:			
	– With reciprocating internal combustion piston engine of a cylinder capacity:			
	– – Not exceeding 50 cm^3	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 20 % of the ex-works price of the product
	– – Exceeding 50 cm^3	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
	– Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 8712	Bicycles without ball bearings	Manufacture from materials of any heading, except those of heading 8714		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
8715	Baby carriages and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
8716	Trailers and semi-trailers; other vehicles, not mechanically propelled; parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex Chapter 88	Aircraft, spacecraft, and parts thereof; except for:	Manufacture from materials of any heading, except that of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 8804	Rotochutes	Manufacture from materials of any heading, including other materials of heading 8804		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
8805	Aircraft launching gear; deck-arrestor or similar gear; ground flying trainers; parts of the foregoing articles	Manufacture from materials of any heading, except that of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
Chapter 89	Ships, boats and floating structures	Manufacture from materials of any heading, except that of the product. However, hulls of heading 8906 may not be used		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex Chapter 90	Optical, photographic, cinematographic, measuring, checking, precision, medical or surgical instruments and apparatus; parts and accessories thereof; except for:	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9001	Optical fibres and optical fibre bundles; optical fibre cables other than those of heading 8544; sheets and plates of polarizing material; lenses (including contact lenses), prisms, mirrors and other optical elements, of any material, unmounted, other than such elements of glass not optically worked	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9002	Lenses, prisms, mirrors and other optical elements, of any material, mounted, being parts of or fittings for instruments or apparatus, other than such elements of glass not optically worked	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9004	Spectacles, goggles and the like, corrective, protective or other	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
ex 9005	Binoculars, monoculars, other optical telescopes, and mountings therefor, except for astronomical refracting telescopes and mountings therefor	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product; and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
ex 9006	Photographic (other than cinematographic) cameras; photographic flashlight apparatus and flashbulbs other than electrically ignited flashbulbs	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9007	Cinematographic cameras and projectors, whether or not incorporating sound recording or reproducing apparatus	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9011	Compound optical microscopes, including those for photomicrography, cinephotomicrography or microprojection	Manufacture: — from materials of any heading, except that of the product, — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — in which the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
ex 9014	Other navigational instruments and appliances	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9015	Surveying (including photogrammetrical surveying), hydrographic, oceanographic, hydrological, meteorological or geophysical instruments and appliances, excluding compasses; rangefinders	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9016	Balances of a sensitivity of 5 cg or better, with or without weights	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9017	Drawing, marking-out or mathematical calculating instruments (for example, drafting machines, pantographs, protractors, drawing sets, slide rules, disc calculators); instruments for measuring length, for use in the hand (for example, measuring rods and tapes, micrometers, callipers), not specified or included elsewhere in this chapter	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9018	Instruments and appliances used in medical, surgical, dental or veterinary sciences, including scintigraphic apparatus, other electro-medical apparatus and sight-testing instruments:			
	– Dentists' chairs incorporating dental appliances or dentists' spittoons	Manufacture from materials of any heading, including other materials of heading 9018		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
	– Other	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9019	Mechano-therapy appliances; massage apparatus; psychological aptitude-testing apparatus; ozone therapy, oxygen therapy, aerosol therapy, artificial respiration or other therapeutic respiration apparatus	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9020	Other breathing appliances and gas masks, excluding protective masks having neither mechanical parts nor replaceable filters	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 25 % of the ex-works price of the product
9024	Machines and appliances for testing the hardness, strength, compressibility, elasticity or other mechanical properties of materials (for example, metals, wood, textiles, paper, plastics)	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
9025	Hydrometers and similar floating instruments, thermometers, pyrometers, barometers, hygrometers and psychrometers, recording or not, and any combination of these instruments	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9026	Instruments and apparatus for measuring or checking the flow, level, pressure or other variables of liquids or gases (for example, flow meters, level gauges, manometers, heat meters), excluding instruments and apparatus of heading 9014, 9015, 9028 or 9032	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9027	Instruments and apparatus for physical or chemical analysis (for example, polarimeters, refractometers, spectrometers, gas or smoke analysis apparatus); instruments and apparatus for measuring or checking viscosity, porosity, expansion, surface tension or the like; instruments and apparatus for measuring or checking quantities of heat, sound or light (including exposure meters); microtomes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9028	Gas, liquid or electricity supply or production meters, including calibrating meters therefor:			
	– Parts and accessories	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Other	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9029	Revolution counters, production counters, taximeters, mileometers, pedometers and the like; speed indicators and tachometers, other than those of heading 9014 or 9015; stroboscopes	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9030	Oscilloscopes, spectrum analysers and other instruments and apparatus for measuring or checking electrical quantities, excluding meters of heading 9028; instruments and apparatus for measuring or detecting alpha, beta, gamma, X-ray, cosmic or other ionizing radiations	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
9031	Measuring or checking instruments, appliances and machines, not specified or included elsewhere in this chapter; profile projectors	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9032	Automatic regulating or controlling instruments and apparatus	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9033	Parts and accessories (not specified or included elsewhere in this chapter) for machines, appliances, instruments or apparatus of Chapter 90	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
ex Chapter 91	Clocks and watches and parts thereof; except for:	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
9105	Other clocks	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9109	Clock movements, complete and assembled	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — the value of all the non-originating materials used does not exceed the value of all the originating materials used		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9110	Complete watch or clock movements, unassembled or partly assembled (movement sets); incomplete watch or clock movements, assembled; rough watch or clock movements	Manufacture in which: — the value of all the materials used does not exceed 40 % of the ex-works price of the product, and — within the above limit, the value of all the materials of heading 9114 used does not exceed 10 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9111	Watch cases and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product

(1)	(2)	(3)	or	(4)
9112	Clock cases and cases of a similar type for other goods of this chapter, and parts thereof	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		Manufacture in which the value of all the materials used does not exceed 30 % of the ex-works price of the product
9113	Watch straps, watch bands and watch bracelets, and parts thereof:			
	– Of base metal, whether or not gold- or silver-plated, or of metal clad with precious metal	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
	– Other	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
Chapter 92	Musical instruments; parts and accessories of such articles	Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product		
Chapter 93	Arms and ammunition; parts and accessories thereof	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 94	Furniture; bedding, mattresses, mattress supports, cushions and similar stuffed furnishings; lamps and lighting fittings, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like; prefabricated buildings; except for:	Manufacture from materials of any heading, except that of the product		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
ex 9401 and ex 9403	Base metal furniture, incorporating unstuffed cotton cloth of a weight of 300 g/m^2 or less	Manufacture from materials of any heading, except that of the product or Manufacture from cotton cloth already made up in a form ready for use with materials of heading 9401 or 9403, provided that: — the value of the cloth does not exceed 25 % of the ex-works price of the product, and — all the other materials used are originating and are classified in a heading other than heading 9401 or 9403		Manufacture in which the value of all the materials used does not exceed 40 % of the ex-works price of the product
9405	Lamps and lighting fittings including searchlights and spotlights and parts thereof, not elsewhere specified or included; illuminated signs, illuminated name-plates and the like, having a permanently fixed light source, and parts thereof not elsewhere specified or included	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
9406	Prefabricated buildings	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex Chapter 95	Toys, games and sports requisites; parts and accessories thereof; except for:	Manufacture from materials of any heading, except that of the product		
ex 9503	Other toys; reduced-size ('scale') models and similar recreational models, working or not; puzzles of all kinds	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 9506	Golf clubs and parts thereof	Manufacture from materials of any heading, except that of the product. However, roughly-shaped blocks for making golf-club heads may be used		
ex Chapter 96	Miscellaneous manufactured articles; except for:	Manufacture from materials of any heading, except that of the product		
ex 9601 and ex 9602	Articles of animal, vegetable or mineral carving materials	Manufacture from 'worked' carving materials of the same heading as the product		
ex 9603	Brooms and brushes (except for besoms and the like and brushes made from marten or squirrel hair), hand-operated mechanical floor sweepers, not motorized, paint pads and rollers, squeegees and mops	Manufacture in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
9605	Travel sets for personal toilet, sewing or shoe or clothes cleaning	Each item in the set must satisfy the rule which would apply to it if it were not included in the set. However, non-originating articles may be incorporated, provided that their total value does not exceed 15 % of the ex-works price of the set		
9606	Buttons, press-fasteners, snap-fasteners and press-studs, button moulds and other parts of these articles; button blanks	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		

(1)	(2)	(3)	or	(4)
9608	Ball-point pens; felt-tipped and other porous-tipped pens and markers; fountain pens, stylograph pens and other pens; duplicating stylos; propelling or sliding pencils; pen-holders, pencil-holders and similar holders; parts (including caps and clips) of the foregoing articles, other than those of heading 9609	Manufacture from materials of any heading, except that of the product. However, nibs or nib-points of the same heading as the product may be used		
9612	Typewriter or similar ribbons, inked or otherwise prepared for giving impressions, whether or not on spools or in cartridges; ink-pads, whether or not inked, with or without boxes	Manufacture: — from materials of any heading, except that of the product, and — in which the value of all the materials used does not exceed 50 % of the ex-works price of the product		
ex 9613	Lighters with piezo-igniter	Manufacture in which the value of all the materials of heading 9613 used does not exceed 30 % of the ex-works price of the product		
ex 9614	Smoking pipes and pipe bowls	Manufacture from roughly-shaped blocks		
Chapter 97	Works of art, collectors' pieces and antiques	Manufacture from materials of any heading, except that of the product		

(1) For the special conditions relating to 'specific processes', see Introductory Notes 7.1 and 7.3.

(2) For the special conditions relating to 'specific processes', see Introductory Note 7.2.

(3) Note 3 to Chapter 32 says that these preparations are those of a kind used for colouring any material or used as ingredients in the manufacture of colouring preparations, provided that they are not classified in another heading in Chapter 32.

(4) A 'group' is regarded as any part of the heading separated from the rest by a semicolon.

(5) In the case of the products composed of materials classified within both headings 3901 to 3906, on the one hand, and within headings 3907 to 3911, on the other hand, this restriction only applies to that group of materials which predominates by weight in the product.

(6) The following foils shall be considered as highly transparent: foils, the optical dimming of which, measured according to ASTM-D 1003-16 by Gardner Hazemeter (i.e. Hazefactor), is less than 2 %.

(7) For special conditions relating to products made of a mixture of textile materials, see Introductory Note 5.

(8) The use of this material is restricted to the manufacture of woven fabrics of a kind used in paper-making machinery.

(9) See Introductory Note 6.

(10) For knitted or crocheted articles, not elastic or rubberised, obtained by sewing or assembling pieces of knitted or crocheted fabrics (cut out or knitted directly to shape), see Introductory Note 6.

(11) SEMII – Semiconductor Equipment and Materials Institute Incorporated.

(12) This rule shall apply until 31.12.2005.

ANNEX III

Specimens of movement certificate EUR.1 and application for a movement certificate EUR.1

Printing Instructions

1. Each form shall measure 210 × 297 mm; a tolerance of up to minus 5 mm or plus 8 mm in the length may be allowed. The paper used must be white, sized for writing, not containing mechanical pulp and weighing not less than 25 g/m^2. It shall have a printed green guilloche pattern background making any falsification by mechanical or chemical means apparent to the eye.

2. The competent authorities of the contracting parties may reserve the right to print the forms themselves or may have them printed by approved printers. In the latter case, each form must include a reference to such approval. Each form must bear the name and address of the printer or a mark by which the printer can be identified. It shall also bear a serial number, either printed or not, by which it can be identified.

MOVEMENT CERTIFICATE

1. **Exporter** (Name, full address, country)	**EUR.1 No A 000.000** See notes overleaf before completing this form.
3. **Consignee** (Name, full address, country) (Optional)	2. **Certificate used in preferential trade between** ..... **and** ..... (Insert appropriate countries, groups of countries or territories)
	4. **Country, group of countries or territory in which the products are considered as originating** / 5. **Country, group of countries or territory of destination**
6. **Transport details** (Optional)	7. **Remarks**

8. **Item number; Marks and numbers; Number and kind of packages** (1); Description of goods	9. **Gross mass (kg) or other measure (litres, m^3, etc.)**	10. **Invoices** (Optional)

11. **CUSTOMS ENDORSEMENT**	12. **DECLARATION BY THE EXPORTER**
Declaration certified Export document (2) Form ..... No ..... Of ..... Customs office ..... Issuing country .... *Place and date* .... *(Signature)* Stamp	I, the undersigned, declare that the goods described above meet the conditions required for the issue of this certificate. *Place and date* .... *(Signature)*

(1) If goods are not packed, indicate number of articles or state 'in bulk' as appropriate.

(2) Complete only where the regulations of the exporting country or territory require.

13. **REQUEST FOR VERIFICATION**, to	14. **RESULT OF VERIFICATION**
	Verification carried out shows that this certificate (1) ☐ was issued by the customs office indicated and that the information contained therein is accurate. ☐ does not meet the requirements as to authenticity and accuracy (see remarks appended).
Verification of the authenticity and accuracy of this certificate is requested. *(Place and date)* .... *(Signature)* Stamp	*(Place and date)* .... *(Signature)* Stamp

(1) Insert X in the appropriate box.

NOTES

1. Certificate must not contain erasures or words written over one another. Any alterations must be made by deleting the incorrect particulars and adding any necessary corrections. Any such alteration must be initialled by the person who completed the certificate and endorsed by the Customs authorities of the issuing country.

2. No spaces must be left between the items entered on the certificate and each item must be preceded by an item number. A horizontal line must be drawn immediately below the last item. Any unused space must be struck through in such a manner as to make any later additions impossible.

3. Goods must be described in accordance with commercial practice and with sufficient detail to enable them to be identified.

APPLICATION FOR A MOVEMENT CERTIFICATE

1. **Exporter** (Name, full address, country)	**EUR.1 No A 000.000**	
	See notes overleaf before completing this form.	
	2. **Application for a certificate to be used in preferential trade between** ..... **and** ..... (Insert appropriate countries or groups of countries or territories)	
3. **Consignee** (Name, full address, country) (Optional)	4. **Country, group of countries or territory in which the products are considered as originating**	5. **Country, group of countries or territory of destination**
6. **Transport details** (Optional)	7. **Remarks**	

8. **Item number; Marks and numbers; Number and kind of packages** (1); Description of goods	9. **Gross mass (kg) or other measure (litres, m^3, etc.)**	10. **Invoices** (Optional)

(1) If goods are not packed, indicate number of articles or state 'in bulk' as appropriate.

DECLARATION BY THE EXPORTER

I, the undersigned, exporter of the goods described overleaf,

DECLARE that the goods meet the conditions required for the issue of the attached certificate;

SPECIFY as follows the circumstances which have enable these goods to meet the above conditions:

.....

.....

.....

.....

SUBMIT the following supporting documents (1):

.....

.....

.....

.....

UNDERTAKE to submit, at the request of the appropriate authorities, any supporting evidence which these authorities may require for the purpose of issuing the attached certificate, and undertake, if required, to agree to any inspection of my accounts and to any check on the processes of manufacture of the above goods, carried out by the said authorities;

REQUEST the issue of the attached certificate for these goods.

(Place and date) .....

.....

(Signature)

(1) For example: import documents, movement certificates, invoices, manufacturer's declarations, etc., referring to the products used in manufacture or to the goods re-exported in the same state.

ANNEX IV

TEXT OF THE INVOICE DECLARATION

The invoice declaration, the text of which is given below, must be made out in accordance with the footnotes. However, the footnotes do not have to be reproduced.

Bulgarian version

Износителят на продуктите, обхванати от този документ (митническо разрешение № … (1)) декларира, че освен където ясно е отбелязано друго, тези продукти са с …. (2) преференциален произход

Spanish version

El exportador de los productos incluidos en el presente documento (autorización aduanera n° … (1)) declara que, salvo indicación en sentido contrario, estos productos gozan de un origen preferencial … (2).

Czech version

Vývozce výrobků uvedených v tomto dokumentu (číslo povolení … (1)) prohlašuje, že kromě zřetelně označených mají tyto výrobky preferenční původ v … (2).

Danish version

Eksportøren af varer, der er omfattet af nærværende dokument, (toldmyndighedernes tilladelse nr. … (1)), erklærer, at varerne, medmindre andet tydeligt er angivet, har præferenceoprindelse i … (2).

German version

Der Ausführer (Ermächtigter Ausführer; Bewilligungs-Nr. … (1)) der Waren, auf die sich dieses Handelspapier bezieht, erklärt, dass diese Waren, soweit nicht anderes angegeben, präferenzbegünstigte … (2) Ursprungswaren sind.

Estonian version

Käesoleva dokumendiga hõlmatud toodete eksportija (tolli kinnitus nr. … (1)) deklareerib, et need tooted on … (2) soodus-päritoluga, välja arvatud juhul, kui on selgelt näidetud teisiti.

Greek version

Ο εξαγωγέας των προϊόντων που καλύπτονται από το παρόν έγγραφο (άδεια τελωνείου υπ'αριθ. … (1)) δηλώνει ότι, εκτός εάν δηλώνεται σαφώς άλλως, τα προϊόντα αυτά είναι προτιμησιακής καταγωγής … (2).

English version

The exporter of the products covered by this document (customs authorization No … (1)) declares that, except where otherwise clearly indicated, these products are of … (2) preferential origin.

French version

L'exportateur des produits couverts par le présent document (autorisation douanière n° … (1)) déclare que, sauf indication claire du contraire, ces produits ont l'origine préférentielle … (2).

Italian version

L'esportatore delle merci contemplate nel presente documento (autorizzazione doganale n. … (1)) dichiara che, salvo indicazione contraria, le merci sono di origine preferenziale … (2).

Latvian version

To produktu eksportētājs, kuri ietverti šajā dokumentā (muitas atļauja Nr. … (1)), deklarē, ka, izņemot tur, kur ir citādi skaidri noteikts, šiem produktiem ir preferenciāla izcelsme … (2).

Lithuanian version

Šiame dokumente išvardytų prekių eksportuotojas (muitinės liudijimo Nr. … (1)) deklaruoja, kad, jeigu kitaip nenurodyta, tai yra … (2) preferencinės kilmės prekės.

Hungarian version

A jelen okmányban szereplő áruk exportőre (vámfelhatalmazási szám: … (1)) kijelentem, hogy eltérő egyértelmű jelzés hiányában az áruk preferenciális … (2) származásúak.

Maltese version

L-esportatur tal-prodotti koperti b'dan id-dokument (awtorizzazzjoni tad-dwana nru. … (1)) jiddikjara li, ħlief fejn indikat b'mod ċar li mhux hekk, dawn il-prodotti huma ta' oriġini preferenzjali … (2).

Dutch version

De exporteur van de goederen waarop dit document van toepassing is (douanevergunning nr. … (1)), verklaart dat, behoudens uitdrukkelijke andersluidende vermelding, deze goederen van preferentiële … oorsprong zijn (2).

Polish version

Eksporter produktów objętych tym dokumentem (upoważnienie władz celnych nr … (1)) deklaruje, że z wyjątkiem gdzie jest to wyraźnie określone, produkty te mają … (2) preferencyjne pochodzenie.

Portuguese version

O abaixo-assinado, exportador dos produtos abrangidos pelo presente documento (autorização aduaneira n.° … (1)), declara que, salvo indicação expressa em contrário, estes produtos são de origem preferencial … (2).

Romanian version

Exportatorul produselor ce fac obiectul acestui document (autorizația vamală nr. … (1)) declară că, exceptând cazul în care în mod expres este indicat altfel, aceste produse sunt de origine preferențială … (2).

Slovak version

Vývozca výrobkov uvedených v tomto dokumente (číslo povolenia … (1)) vyhlasuje, že okrem zreteľne označených, majú tieto výrobky preferenčný pôvod v … (2).

Slovenian version

Izvoznik blaga, zajetega s tem dokumentom (pooblastilo carinskih organov štr. … (1)) izjavlja, da, razen če ni drugače jasno navedeno, ima to blago preferencialno … (2) poreklo.

Finnish version

Tässä asiakirjassa mainittujen tuotteiden viejä (tullin lupa n:o … (1)) ilmoittaa, että nämä tuotteet ovat, ellei toisin ole selvästi merkitty, etuuskohteluun oikeutettuja … alkuperätuotteita (2).

Swedish version

Exportören av de varor som omfattas av detta dokument (tullmyndighetens tillstånd nr. … (1)) försäkrar att dessa varor, om inte annat tydligt markerats, har förmånsberättigande … ursprung (2).

Version of Montenegro

Izvoznik proizvoda obuhvaćenih ovim dokumentom (carinsko odoborenje br.. (1)) izjavljuje da, osim u slučaju kada je drugačije naznačeno, ovi proizvodi su … (2) preferencijalnog porijekla.

…… (3)

(Place and date)

…… (4)

(Signature of the exporter. In addition, the name of the person signing the declaration has to be indicated in clear script.)

(1) When the invoice declaration is made out by an approved exporter, the authorization number of the approved exporter must be entered in this space. When the invoice declaration is not made out by an approved exporter, the words in brackets shall be omitted or the space left blank.

(2) Origin of products to be indicated. When the invoice declaration relates, in whole or in part, to products originating in Ceuta and Mellila, the exporter must clearly indicate them in the document on which the declaration is made out by means of the symbol 'CM'.

(3) These indications may be omitted if the information is contained on the document itself.

(4) In cases where the exporter is not required to sign, the exemption of signature also implies the exemption of the name of the signatory.

ANNEX V

PRODUCTS EXCLUDED FROM THE CUMULATION PROVIDED FOR IN ARTICLE 3 AND ARTICLE 4

CN-Code	Description
1704 90 99	Other sugar confectionery, not containing cocoa.
	Chocolate and other food preparations containing cocoa
1806 10 30	– cacao powder, containing added sugar or sweetening matter:
1806 10 90	– – containing 65 % or more but less than 80 % by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose
	– – containing 80 % or more by weight of sucrose (including invert sugar expressed as sucrose) or isoglucose expressed as sucrose
1806 20 95	– Other food preparations containing cocoa in block, slabs or bars weighting more than 2 kg or in liquid, paste, powder, granular or other bulk form in containers or immediate packaging of a content exceeding 2 kg
	– – Other
	– – – Other
1901 90 99	Malt extract, food preparations of flour, groats, meal, starch or malt extract, not containing cocoa or containing less than 40 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included, food preparations of goods of headings 0401 to 0404, not containing cocoa or containing less than 5 % by weight of cocoa calculated on a totally defatted basis, not elsewhere specified or included
	– other
	– – other (than malt extract)
	– – – other
2101 12 98	Other preparations with a basis of coffee.
2101 20 98	Other preparations with a basis of tea or mate.
2106 90 59	Food preparations not elsewhere specified or included
	– other
	– – other
2106 90 98	Food preparations not elsewhere specified or included:
	– other (than protein concentrates and textured protein substances)
	– – other
	– – – other
3302 10 29	Mixtures of odoriferous substances and mixtures (including alcoholic solutions) with a basis of one or more of these substances, of a kind used as raw materials in industry; other preparations based on odoriferous substances, of a kind used for the manufacture of beverages:
	– Of a kind used in the food or drink industries
	– – Of the type used in the drink industries:
	– – – Preparations containing all flavouring agents characterising a beverage:
	– – – – Of an actual alcoholic strength by volume exceeding 0,5 %
	– – – – Other:
	– – – – – Containing no milkfats, sucrose, isoglucose, glucose, or starch or containing, by weight, less than 1,5 % milkfat, 5 % sucrose or isoglucose, 5 % glucose or starch
	– – – – – Other

JOINT DECLARATION CONCERNING THE PRINCIPALITY OF ANDORRA

1. Products originating in the Principality of Andorra falling within Chapters 25 to 97 of the Harmonised System shall be accepted by Montenegro as originating in the Community within the meaning of this Agreement.

2. Protocol 3 shall apply mutatis mutandis for the purpose of defining the originating status of the abovementioned products.

JOINT DECLARATION CONCERNING THE REPUBLIC OF SAN MARINO

1. Products originating in the Republic of San Marino shall be accepted by Montenegro as originating in the Community within the meaning of this Agreement.

2. Protocol 3 shall apply mutatis mutandis for the purpose of defining the originating status of the abovementioned products.

PROTOCOL 4

on land transport

Article 1

Aim

The aim of this Protocol is to promote cooperation between the Parties on land transport, and in particular transit traffic, and to ensure for this purpose that transport between and through the territories of the Parties is developed in a coordinated manner by means of the complete and interdependent application of all the provisions of this Protocol.

Article 2

Scope

1. Cooperation shall cover land transport, and in particular road, rail and combined transport, and shall include the relevant infrastructure.

2. In this connection, the scope of this Protocol shall cover in particular:

— transport infrastructure in the territory of one or other Party to the extent necessary to achieve the objective of this Protocol;

— market access, on a reciprocal basis, in the field of road transport;

— essential legal and administrative supporting measures including commercial, taxation, social and technical measures;

— cooperation in developing a transport system which meets environmental needs;

— a regular exchange of information on the development of the transport policies of the Parties, with particular regard to transport infrastructure.

Article 3

Definitions

For the purposes of this Protocol, the following definitions shall apply:

(a) Community transit traffic: the carriage, by a carrier established in the Community, of goods in transit through the territory of Montenegro 'en route' to or from a Member State of the Community;

(b) Montenegrin transit traffic: the carriage, by a carrier established in Montenegro, of goods in transit from Montenegro through Community territory and destined for a third country or of goods from a third country destined for Montenegro;

(c) combined transport: the transport of goods where the lorry, trailer, semi-trailer, with or without tractor unit, swap body or container of 20 feet or more, uses the road on the initial or final leg of the journey and on the other leg, rail or inland waterway or maritime services where this section exceeds 100 kilometres as the crow flies and make the initial or final road transport leg of the journey;

— between the point where the goods are loaded and the nearest suitable rail loading station for the initial leg, and between the nearest suitable rail unloading station and the point where the goods are unloaded for the final leg, o

— within a radius not exceeding 150 km as the crow flies from the inland waterway port or seaport of loading or unloading.

INFRASTRUCTURE

Article 4

General Provision

The Contracting Parties hereby agree to adopt mutually coordinated measures to develop a multimodal transport infrastructure network as a vital means of solving the problems affecting the carriage of goods through Montenegro in particular on the road routes 1, 2b, 4, and 6 connecting the border with Croatia to Bar, the border with Bosnia and Herzegovina to the border with Albania, the border with Serbia to Misici and Ribaravina to Bac at the border with Serbia respectively; the rail routes 2 and 4 connecting Podgorica to the border with Albania and the border with Serbia to Bar; the port of Bar and the Podgorica airport, which form part of the Core Regional Transport Network as defined in the MoU referred to in Article 5.

Article 5

Planning

The development of a multimodal regional transport network on the territory of Montenegro which serves the needs of Montenegro and the South-Eastern European region covering the main road and rail routes, inland waterways, inland ports, ports, airports and other relevant modes of the network is of particular interest to the Community and Montenegro. This network was defined in the Memorandum of Understanding for developing a Core Transport Infrastructure Network for South East Europe which was signed by ministers from the region, and the European Commission, in June 2004. The development of the network and the selection of priorities is being carried out by a Steering Committee comprised of representatives of each of the signatories.

Article 6

Financial aspects

1. The Community may contribute financially, under Article 116 of this Agreement, to the necessary infrastructure work referred to in Article 5. This financial contribution may take the form of credit from the European Investment Bank and any other form of financing which can provide further additional resources.

2. In order to speed up the work the European Commission will endeavour, as far as possible, to encourage the use of additional resources such as investment by certain Member States on a bilateral basis or from public or private funds.

RAIL AND COMBINED TRANSPORT

Article 7

General provision

The Parties shall adopt the mutually coordinated measures necessary for the development and promotion of rail and combined transport as a mean of ensuring that in the future a major proportion of their bilateral and transit transport through Montenegro is performed under more environmentally-friendly conditions.

Article 8

Particular aspects relating to infrastructure

As part of the modernisation of the railways of Montenegro, the necessary steps shall be taken to adapt the system for combined transport, with particular regard to the development or building of terminals, tunnel gauges and capacity, which require substantial investment.

Article 9

Supporting measures

The Parties shall take all the steps necessary to encourage the development of combined transport.

The purpose of such measures shall be:

— to encourage the use of combined transport by users and consignors;

— to make combined transport competitive with road transport, in particular through the financial support of the Community, Montenegro in the context of their respective legislation;

— to encourage the use of combined transport over long distances and to promote, in particular the use of swap bodies, containers and unaccompanied transport in general;

— to improve the speed and reliability of combined transport and in particular:

— to increase the frequency of convoys in accordance with the needs of consignors and users;

— to reduce the waiting time at terminals and increase their productivity;

— to remove in an appropriate manner, all obstacles from the approach routes so as to improve access to combined transport;

— to harmonise, where necessary, the weights, dimensions and technical characteristics of specialised equipment, in particular so as to ensure the necessary compatibility of gauges, and to take coordinated action to order and to put into service such equipment as is required by the level of traffic;

— and, in general, to take any other appropriate action.

Article 10

The role of the railways

In connection with the respective powers of the States and the railways, the Parties shall, in respect of both passenger and goods transport, recommend that their railways:

— step up cooperation, whether bilateral, multilateral or within international railway organisations, in all fields, with particular regard to the improvement of the quality and the safety of transport services;

— try to establish in common a system of organising the railways so as to encourage consignors to send freight by rail rather than road, in particular for transit purposes, on a basis of fair competition and while leaving the user freedom of choice in this matter;

— prepare the participation of Montenegro in the implementation and future evolution of the Community *acquis* on the development of the railways.

ROAD TRANSPORT

Article 11

General Provisions

1. With regard to mutual access to transport markets, the Parties agree, initially and without prejudice to paragraph 2, to maintain the regime resulting from bilateral Agreements or other existing international bilateral instruments concluded between each Member State of the Community and Montenegro or, where there are no such Agreements or instruments, arising from the de facto situation in 1991.

However, whilst awaiting the conclusion of Agreements between the Community and Montenegro on access to the road transport market, as provided for in Article 12, and on road taxation, as provided for in Article 13(2), Montenegro shall cooperate with the Member States of the Community to amend these bilateral Agreements to adapt them to this Protocol.

2. The Parties hereby agree to grant unrestricted access to Community transit traffic through Montenegro and to Montenegrin transit traffic through the Community with effect from the date of entry into force of this Agreement.

3. If, as a result of the rights granted under paragraph 2, transit traffic by Community hauliers increases to such a degree as to cause or threaten to cause serious harm to road infrastructure and/or traffic fluidity on the axes mentioned in Article 5, and under the same circumstances problems arise on Community territory close to the borders of Montenegro, the matter shall be submitted to the Stabilisation and Association Council in accordance with Article 121 of this Agreement. The Parties may propose exceptional temporary, non-discriminatory measures as are necessary to limit or mitigate such harm.

4. If the Community establishes rules aiming to reduce pollution caused by heavy goods vehicles registered in the European Union and to improve traffic safety, a similar regime shall apply to heavy goods vehicles registered in Montenegro that wish to circulate through the Community territory. The Stabilisation and Association Council shall decide on the necessary modalities.

5. The Parties shall refrain from taking any unilateral action that might lead to discrimination between Community carriers or vehicles and carriers or vehicles from Montenegro. Each Contracting Party shall take all steps necessary to facilitate road transport to or through the territory of the other Contracting Party.

Article 12

Access to the market

The Parties shall, as a matter of priority, undertake to work together to seek, each of them subject to their internal rules:

— courses of action likely to favour the development of a transport system which meets the needs of the Contracting Parties, and which is compatible, on the one hand, with the completion of the internal Community market and the implementation of the common transport policy and, on the other hand, with economic and transport policies of Montenegro;

— a definitive system for regulating future road transport market access between Contracting Parties on the basis of reciprocity.

Article 13

Taxation, tolls and other charges

1. The Parties accept that the taxation of road vehicles, tolls and other charges on either side must be non-discriminatory.

2. The Parties shall enter into negotiations with a view to reaching an agreement on road taxation, as soon as possible, on the basis of the rules adopted by the Community on this matter. The purpose of this Agreement shall be, in particular, to ensure the free flow of trans-frontier traffic, to progressively eliminate differences between the road taxation systems applied by the Parties and to eliminate distortions of competition arising from such differences.

3. Pending the conclusion of the negotiations mentioned in paragraph 2, the Parties will eliminate discrimination between hauliers of the Community and Montenegro when levying taxes and charges on the circulation and/or possession of heavy goods vehicles as well as taxes or charges levied on transport operations in the territory of the Parties. Montenegro undertakes to notify the European Commission, if so requested, the amount of taxes, tolls and charges which they apply, as well as the methods of calculating them.

4. Until the conclusion of the Agreement mentioned in paragraph 2 and in Article 12 any change proposed after the entry into force of this Agreement to fiscal charges, tolls or other charges, including the systems for their collection which may be applied to Community traffic in transit through Montenegro will be subject to a prior consultation procedure.

Article 14

Weights and dimensions

1. Montenegro accepts that road vehicles complying with Community standards on weights and dimensions may circulate freely and without hindrance in this respect on the routes covered by Article 5. During six months after the entry into force of this Agreement, road vehicles which do not comply with existing standards of Montenegro may be subject to a special non-discriminatory charge which reflects the damage caused by additional axle weight.

2. Montenegro will endeavour to harmonise their existing regulations and standards for road construction with the legislation prevailing in the Community by the end of the fifth year after the entry into force of this Agreement and will make major efforts for improvement of the existing routes covered by Article 5 to those new regulations and standards within the proposed time, in accordance with their financial possibilities.

Article 15

Environment

1. In order to protect the environment, the Parties shall endeavour to introduce standards on gaseous and particulate emissions and noise levels for heavy goods vehicles, which ensure a high level of protection.

2. In order to provide the industry with clear information and to encourage coordinated research, programming and production, exceptional national standards in this field shall be avoided.

Vehicles which comply with standards laid down by international Agreements also relating to environment may operate without further restrictions in the territory of the Parties.

3. For the purpose of introducing new standards, the Parties shall work together to achieve the abovementioned objectives.

Article 16

Social aspects

1. Montenegro shall harmonise their legislations on the training of road haulage personnel, particularly with respect to the carriage of dangerous goods, to the EC standards.

2. Montenegro as a contracting party to the European Agreement concerning the work of crews of vehicles engaged in international road transport (ERTA), and the Community will coordinate to the maximum extent possible their policies concerning driving time, interruptions and rest periods for drivers and crew composition, in respect of the future development of the social legislation in this area.

3. The Parties shall cooperate with regard to implementation and enforcement of the social legislation in the field of road transport.

4. The Parties shall ensure the equivalence of their respective laws on the admission to the occupation of road haulage operator, with a view to their mutual recognition.

Article 17

Provisions relating to traffic

1. The Parties shall pool their experience and endeavour to harmonise their legislation so as to improve the flow of traffic during peak periods (weekends, public holidays, the tourist season).

2. In general, the Parties shall encourage the introduction, development and coordination of a road traffic information system.

3. They shall endeavour to harmonise their legislation on the carriage of perishable goods, live animals and dangerous substances.

4. The Parties shall also endeavour to harmonise the technical assistance to be provided to drivers, the dissemination of essential information on traffic and other matters of concern to tourists, and emergency services including ambulance services.

Article 18

Road Safety

1. Montenegro shall harmonise their legislation on road safety, particularly with regard to the transport of dangerous goods, to that of the Community by the end of the second year after the entry into force of this Agreement.

2. Montenegro as a contracting Party of the European Agreement concerning the International Carriage of Dangerous Goods by Road (ADR) and the Community will coordinate to the maximum extent possible their policies concerning the carriage of dangerous goods.

3. The Parties shall cooperate with regard to implementation and enforcement of road safety legislation, particularly on driving licences and measures to reduce road accidents.

SIMPLIFICATION OF FORMALITIES

Article 19

Simplification of formalities

1. The Parties agree to simplify the flow of goods by rail and road, whether bilateral or in transit.

2. The Parties agree to begin negotiations with a view to concluding an Agreement on the facilitation of controls and formalities relating to the carriage of goods.

3. The Parties agree, to the extent necessary, to take joint action on, and to encourage, the adoption of further simplification measures.

FINAL PROVISIONS

Article 20

Widening of the scope

If one of the Parties concludes, on the basis of experience in the application of this Protocol, that other measures which do not fall within the scope of this Protocol are in the interest of a coordinated European transport policy and, in particular, may help to solve the problem of transit traffic, it shall make suggestions in this respect to the other Party.

Article 21

Implementation

1. Cooperation between the Parties shall be carried out within the framework of a special Sub-committee to be created in accordance with Article 123 of this Agreement.

2. This Sub-committee in particular:

(a) shall draw up plans for cooperation on rail and combined transport, transport research and the environment;

(b) shall analyse the application of the decisions contained in the present Protocol and shall recommend to the Stabilisation and Association Committee appropriate solutions for any possible problems which might arise;

(c) shall, two years after the entry into force of this Agreement, undertake an assessment of the situation as regards infrastructure improvement and the implications of free transit;

(d) shall coordinate the monitoring, forecasting and other statistical work relating to international transport and in particular transit traffic.

JOINT DECLARATION

1. The Community and Montenegro take note that the levels of gaseous emissions and noise currently accepted in the Community for the purposes of heavy goods vehicle type approval from 9.11.2006 [1] are as follows [2]:

Limit values measured on the European Steady Cycle (ESC) and the European Load Response (ELR) test:

		Mass of carbon monoxide	Mass of hydrocarbons	Mass of nitrogen oxides	Mass of particulates	Smoke
		(CO) g/kWh	(HC) g/kWh	(NOx) g/kWh	(PT) g/kWh	m^{-1}
Row B1	Euro IV	1,5	0,46	3,5	0,02	0,5

Limit values measured on the European Transient Cycle (ETC):

		Mass of carbon monoxide	Mass of non-methane hydrocarbons	Mass of methane	Mass of nitrogen oxides	Mass of particulates
		(CO) g/kWh	(NMHC) g/kWh	(CH_4) [a] g/kWh	(NOx) g/kWh	(PT) [b] g/kWh
Row B1	Euro IV	4,0	0,55	1,1	3,5	0,03

[a] For natural gas engines only;
[b] Not applicable for gas fuelled engines.

2. In the future, the Community and Montenegro shall endeavour to reduce the emissions of motor vehicles through the use of state of the art vehicle emission control technology coupled with improved quality of motor fuel.

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[1] Directive 2005/55/EC of 28 September 2005 on the approximation of the laws of the Member States relating to the measures to be taken against the emission of gaseous and particulate pollutants from compression-ignition engines for use in vehicles, and the emission of gaseous pollutants from positive-ignition engines fuelled with natural gas or liquefied petroleum gas for use in vehicles (OJ L 275, 20.10.2005, p. 1).

[2] These limit values will be updated as foreseen in the relevant directives and according to their possible future revisions.

PROTOCOL 5

on state aid to the steel industry

1. The Parties recognise the need that Montenegro addresses promptly any structural weaknesses of its steel sector to ensure the global competitiveness of its industry.

2. Further to the disciplines stipulated by paragraph 1(iii) of Article 73 of this Agreement, the assessment of the compatibility of State aid to the steel industry as defined in Annex I of the Guidelines on national regional aid for 2007-2013 shall be made on the basis of the criteria arising from the application of Article 87 of the EC Treaty to the steel sector, including secondary legislation.

3. For the purposes of applying the provisions of paragraph 1(iii) of Article 73 of this Agreement with regard to the steel industry, the Community recognises that, during five years after the entry into force of this Agreement, Montenegro may exceptionally grant State aid for restructuring purposes to steel producing firms in difficulties, provided that

   (a) it leads to the long-term viability of the benefiting firms under normal market conditions at the end of the restructuring period, and

   (b) the amount and intensity of such aid are strictly limited to what is absolutely necessary in order to restore such viability, and aid is where appropriate progressively reduced;

   (c) Montenegro presents restructuring programmes that are linked to a global rationalisation which includes the closing of inefficient capacity. Every steel producing firm benefiting from restructuring aid shall, as far as possible, provide for compensatory measures balancing the distortion of competition caused by the aid.

4. Montenegro shall submit to the European Commission for assessment a National Restructuring Programme and individual business plans for each of the companies benefiting from restructuring aid which demonstrate that the above conditions are fulfilled.

   The individual business plans shall have been assessed and agreed by the State aid monitoring authority of Montenegro in view of their compliance with paragraph 3 of this Protocol.

   The European Commission shall confirm that the National Restructuring Programme is in compliance with the requirements of paragraph 3.

5. The European Commission shall monitor the implementation of the plans, in close cooperation with the competent national authorities, in particular the State aid monitoring authority of Montenegro.

   If the monitoring indicates that aid to the beneficiaries which is not approved in the National Restructuring Programme or any restructuring aid to steel firms not identified in the National Restructuring Programme has been granted from the date of signature of this Agreement onwards, the State aid monitoring authority of Montenegro shall ensure that any such aid is reimbursed.

6. Upon request, the Community shall provide Montenegro with technical support for the preparation of the National Restructuring Programme and the individual business plans.

7. Each Party shall ensure full transparency with respect to State aid. In particular, as regards State aid granted to steel production in Montenegro and the implementation of the restructuring programme and the business plans, a full and continuous exchange of information shall take place.

8. The Stabilisation and Association Council shall monitor the implementation of the requirements set out in paragraphs 1 to 4 above. To this effect, the Stabilisation and Association Council may draft implementing rules.

9. If one of the Parties considers that a particular practice of the other Party is incompatible with the terms of this Protocol, and if that practice causes or threatens to cause prejudice to the interests of the first Party or material injury to its domestic industry, this Party may take appropriate measures after consultation within the Sub-Committee dealing with competition matters or after thirty working days following referral for such consultation.

PROTOCOL 6

protocol on mutual administrative assistance in customs matters Montenegro

Article 1

Definitions

For the purposes of this Protocol:

(a) 'customs legislation' shall mean any legal or regulatory provisions applicable in the territories of the Contracting Parties, governing the import, export and transit of goods and their placing under any other customs regime or procedure, including measures of prohibition, restriction and control;

(b) 'applicant authority' shall mean a competent administrative authority which has been designated by a Contracting Party for this purpose and which makes a request for assistance on the basis of this Protocol;

(c) 'requested authority' shall mean a competent administrative authority which has been designated by a Contracting Party for this purpose and which receives a request for assistance on the basis of this Protocol;

(d) 'personal data' shall mean all information relating to an identified or identifiable individual;

(e) 'operation in breach of customs legislation' shall mean any violation or attempted violation of customs legislation.

Article 2

Scope

1. The Contracting Parties shall assist each other, in the areas within their competence, in the manner and under the conditions laid down in this Protocol, to ensure the correct application of the customs legislation, in particular by preventing, investigating and combating operations in breach of that legislation.

2. Assistance in customs matters, as provided for in this Protocol, shall apply to any administrative authority of the Contracting Parties which is competent for the application of this Protocol. It shall not prejudice the rules governing mutual assistance in criminal matters. Nor shall it cover information obtained under powers exercised at the request of a judicial authority, except where communication of such information is authorised by that authority.

3. Assistance to recover duties, taxes or fines is not covered by this Protocol.

Article 3

Assistance on request

1. At the request of the applicant authority, the requested authority shall provide it with all relevant information which may enable it to ensure that customs legislation is correctly applied, including information regarding activities noted or planned which are or could be operations in breach of customs legislation.

2. At the request of the applicant authority, the requested authority shall inform it:

(a) whether goods exported from the territory of one of the Contracting Parties have been properly imported into the territory of the other Contracting Party, specifying, where appropriate, the customs procedure applied to the goods;

(b) whether goods imported into the territory of one of the Contracting Parties have been properly exported from the territory of the other Party, specifying, where appropriate, the customs procedure applied to the goods.

3. At the request of the applicant authority, the requested authority shall, within the framework of its legal or regulatory provisions, take the necessary steps to ensure special surveillance of:

(a) natural or legal persons in respect of whom there are reasonable grounds for believing that they are or have been involved in operations in breach of customs legislation;

(b) places where stocks of goods have been or may be assembled in such a way that there are reasonable grounds for believing that these goods are intended to be used in operations in breach of customs legislation;

(c) goods that are or may be transported in such a way that there are reasonable grounds for believing that they are intended to be used in operations in breach of customs legislation;

(d) means of transport that are or may be used in such a way that there are reasonable grounds for believing that they are intended to be used in operations in breach of customs legislation.

Article 4

Spontaneous assistance

The Contracting Parties shall assist each other, at their own initiative and in accordance with their legal or regulatory provisions, if they consider that to be necessary for the correct application of customs legislation, particularly by providing information obtained pertaining to:

(a) activities which are or appear to be operations in breach of customs legislation and which may be of interest to the other Contracting Party;

(b) new means or methods employed in carrying out operations in breach of customs legislation;

(c) goods known to be subject to operations in breach of customs legislation;

(d) natural or legal persons in respect of whom there are reasonable grounds for believing that they are or have been involved in operations in breach of customs legislation;

(e) means of transport in respect of which there are reasonable grounds for believing that they have been, are, or may be used in operations in breach of customs legislation.

Article 5

Delivery, Notification

At the request of the applicant authority, the requested authority shall, in accordance with legal or regulatory provisions applicable to the latter, take all necessary measures in order:

(a) to deliver any documents or

(b) to notify any decisions,

emanating from the applicant authority and falling within the scope of this Protocol, to an addressee residing or established in the territory of the requested authority.

Requests for delivery of documents or notification of decisions shall be made in writing in an official language of the requested authority or in a language acceptable to that authority.

Article 6

Form and substance of requests for assistance

1. Requests pursuant to this Protocol shall be made in writing. They shall be accompanied by the documents necessary to enable compliance with the request. When required because of the urgency of the situation, oral requests may be accepted, but must be confirmed in writing immediately.

2. Requests pursuant to paragraph 1 shall include the following information:

(a) the applicant authority;

(b) the measure requested;

(c) the object of and the reason for the request;

(d) the legal or regulatory provisions and other legal elements involved;

(e) indications as exact and comprehensive as possible on the natural or legal persons who are the target of the investigations;

(f) a summary of the relevant facts and of the enquiries already carried out.

3. Requests shall be submitted in an official language of the requested authority or in a language acceptable to that authority. This requirement shall not apply to any documents that accompany the request under paragraph 1.

4. If a request does not meet the formal requirements set out above, its correction or completion may be requested; in the meantime precautionary measures may be ordered.

Article 7

Execution of requests

1. In order to comply with a request for assistance, the requested authority shall proceed, within the limits of its competence and available resources, as though it were acting on its own account or at the request of other authorities of that same Contracting Party, by supplying information already possessed, by carrying out appropriate enquiries or by arranging for them to be carried out. This provision shall also apply to any other authority to which the request has been addressed by the requested authority when the latter cannot act on its own.

2. Requests for assistance shall be executed in accordance with the legal or regulatory provisions of the requested Contracting Party.

3. Duly authorised officials of a Contracting Party may, with the agreement of the other Contracting Party involved and subject to the conditions laid down by the latter, be present to obtain in the offices of the requested authority or any other concerned authority in accordance with paragraph 1, information relating to activities that are or may be operations in breach of customs legislation which the applicant authority needs for the purposes of this Protocol.

4. Duly authorised officials of a Contracting Party involved may, with the agreement of the other Contracting Party involved and subject to the conditions laid down by the latter, be present at enquiries carried out in the latter's territory.

Article 8

Form in which information is to be communicated

1. The requested authority shall communicate results of enquiries to the applicant authority in writing together with relevant documents, certified copies or other items.

2. This information may be in computerised form.

3. Original documents shall be transmitted only upon request in cases where certified copies would be insufficient. These originals shall be returned at the earliest opportunity.

Article 9

Exceptions to the obligation to provide assistance

1. Assistance may be refused or may be subject to the satisfaction of certain conditions or requirements, in cases where a Party is of the opinion that assistance under this Protocol would:

(a) be likely to prejudice the sovereignty of Montenegro or that of a Member State which has been requested to provide assistance under this Protocol; or

(b) be likely to prejudice public policy, security or other essential interests, in particular in the cases referred to under Article 10(2); or

(c) violate an industrial, commercial or professional secret.

2. Assistance may be postponed by the requested authority on the ground that it will interfere with an ongoing investigation, prosecution or proceeding. In such a case, the requested authority shall consult with the applicant authority to determine if assistance can be given subject to such terms or conditions as the requested authority may require.

3. Where the applicant authority seeks assistance which it would itself be unable to provide if so requested, it shall draw attention to that fact in its request. It shall then be for the requested authority to decide how to respond to such a request.

4. For the cases referred to in paragraphs 1 and 2, the decision of the requested authority and the reasons therefor must be communicated to the applicant authority without delay.

Article 10

Information exchange and confidentiality

1. Any information communicated in whatsoever form pursuant to this Protocol shall be of a confidential or restricted nature, depending on the rules applicable in each of the Contracting Parties. It shall be covered by the obligation of official secrecy and shall enjoy the protection extended to similar information under the relevant laws of the Contracting Party that received it and the corresponding provisions applying to the Community authorities.

2. Personal data may be exchanged only where the Contracting Party which may receive them undertakes to protect such data in at least an equivalent way to the one applicable to that particular case in the Contracting Party that may supply them. To that end, contracting parties shall communicate to each other information on their applicable rules, including, where appropriate, legal provisions in force in the Member States of the Community.

3. The use, in judicial or administrative proceedings instituted in respect of operations in breach of customs legislation, of information obtained under this Protocol, is considered to be for the purposes of this Protocol. Therefore, the Contracting Parties may, in their records of evidence, reports and testimonies and in proceedings and charges brought before the courts, use as evidence information obtained and documents consulted in accordance with the provisions of this Protocol. The competent authority which supplied that information or gave access to those documents shall be notified of such use.

4. Information obtained shall be used solely for the purposes of this Protocol. Where one of the Contracting Parties wishes to use such information for other purposes, it shall obtain the prior written consent of the authority which provided the information. Such use shall then be subject to any restrictions laid down by that authority.

Article 11

Experts and witnesses

An official of a requested authority may be authorised to appear, within the limitations of the authorisation granted, as an expert or witness in judicial or administrative proceedings regarding the matters covered by this Protocol, and produce such objects, documents or certified copies thereof, as may be needed for the proceedings. The request for appearance must indicate specifically before which judicial or administrative authority the official will have to appear, on what matters and by virtue of what title or qualification the official will be questioned.

Article 12

Assistance expenses

The Contracting Parties shall waive all claims on each other for the reimbursement of expenses incurred pursuant to this Protocol, except, as appropriate, for expenses to experts and witnesses, and those to interpreters and translators who are not public service employees.

Article 13

Implementation

1. The implementation of this Protocol shall be entrusted on the one hand to the customs authorities of Montenegro and on the other hand to the competent services of the European Commission and the customs authorities of the Member States as appropriate. They shall decide on all practical measures and arrangements necessary for its application, taking into consideration the rules in force in particular in the field of data protection. They may recommend to the competent bodies amendments which they consider should be made to this Protocol.

2. The Contracting Parties shall consult each other and subsequently keep each other informed of the detailed rules of implementation which are adopted in accordance with the provisions of this Protocol.

Article 14

Other Agreements

1. Taking into account the respective competencies of the Community and the Member States, the provisions of this Protocol shall:

(a) not affect the obligations of the Contracting Parties under any other international Agreement or Convention;

(b) be deemed complementary to Agreements on mutual assistance which have been or may be concluded between individual Member States and Montenegro; and shall

(c) not affect the Community provisions governing the communication between the competent services of the European Commission and the customs authorities of the Member States of any information obtained under this Protocol which could be of interest to the Community.

2. Notwithstanding the provisions of paragraph 1, the provisions of this Protocol shall take precedence over the provisions of any bilateral Agreement on mutual assistance which has been or may be concluded between individual Member States and Montenegro insofar as the provisions of the latter are incompatible with those of this Protocol.

3. In respect of questions relating to the applicability of this Protocol, the Contracting Parties shall consult each other to resolve the matter in the framework of the Stabilisation and Association Committee set up under Article 119 of this Agreement.

PROTOCOL 7

Dispute settlement

CHAPTER I

Objective and scope

Article 1

Objective

The objective of this Protocol is to avoid and settle disputes between the Parties with a view to arriving at mutually acceptable solutions.

Article 2

Scope

The provisions of this Protocol shall only apply with respect to any differences concerning the interpretation and application of the following provisions, including where a Party considers that a measure adopted by the other Party, or a failure of the other Party to act, is in breach of its obligations under these provisions:

(a) Title IV (Free movement of goods), except Articles 33, 40, 41, paragraphs 1, 4 and 5 (insofar as these concern measures adopted under paragraph 1 of Article 41) and Article 47;

(b) Title V (Movement of workers, establishment, supply of services, capital):

— Chapter II Establishment (Articles 52 to 56 and 58),

— Chapter III Supply of Services (Articles 59, 60 and 61, paragraphs 2 and 3),

— Chapter IV Current payments and movement of capital (Article 62 and Article 63 except paragraph 4, second sentence of the first *alinéa*),

— Chapter V General provisions (Articles 65 to 71);

(c) Title VI (Approximation of laws, law enforcement and competition rules):

— Articles 75, paragraph 2 (intellectual, industrial and commercial property) and 76, paragraphs 1, 2 (1st *alinéa*) and 3 to 6 (public procurement).

CHAPTER II

Dispute settlement procedures

Section I

Arbitration procedure

Article 3

Initiation of the arbitration procedure

1. Where the Parties have failed to resolve the dispute, the complaining Party may under the conditions of Article 130 of this Agreement, submit a request in writing for the establishment of an arbitration panel to the Party complained against as well as to the Stabilisation and Association Committee.

2. The complaining Party shall state in its request the subject-matter of the dispute and, as the case may be, the measure adopted by the other Party, or the failure to act, which it considers to be in breach of the provisions referred to in Article 2.

Article 4

Composition of the arbitration panel

1. An arbitration panel shall be composed of three arbitrators.

2. Within 10 days of the date of the submission of the request for the establishment of an arbitration panel to the Stabilisation and Association Committee, the Parties shall consult in order to reach an agreement on the composition of the arbitration panel.

3. In the event that the Parties are unable to agree on its composition within the time frame laid down in paragraph 2, either Party may request the chairperson of the Stabilisation and Association Committee, or her or his delegate, to select all three members by lot from the list established under Article 15, one among the individuals proposed by the complaining Party, one among the individuals proposed by the Party complained against and one among the arbitrators selected by the Parties to act as chairperson.

In case the Parties agree on one or more of the members of the arbitration panel, any remaining members shall be appointed in accordance with the same procedure.

4. The selection of the arbitrators by the chairperson of the Stabilisation and Association Committee, or her or his delegate, shall be done in the presence of a representative of each Party.

5. The date of establishment of the arbitration panel shall be the date on which the chairperson of the panel is informed of the appointment in common agreement between the Parties of the three arbitrators or, as the case may be, the date of their selection in accordance with paragraph 3.

6. Where a Party considers that an arbitrator does not comply with the requirements of the Code of Conduct referred to in Article 18, the Parties shall consult and, if they so agree, replace the arbitrator and select a replacement pursuant to paragraph 7. If the Parties fail to agree on the need to replace an arbitrator, the matter shall be referred to the chairperson of the arbitration panel, whose decision will be final.

Where a Party considers that the chairperson of the arbitration panel does not comply with the Code of Conduct referred to in Article 18, the matter shall be referred to one of the remaining members of the pool of arbitrators selected to act as chairperson, her or his name being drawn by lot by the chairperson of the Stabilisation and Association Committee, or her or his delegate, in the presence of a representative of each Party, unless otherwise agreed between the Parties.

7. If an arbitrator is unable to participate in the proceeding, withdraws or is replaced pursuant to paragraph 6, a replacement shall be selected within five days in accordance with the selection procedures followed to select the original arbitrator. The panel proceedings will be suspended for the period taken to carry out this procedure.

Article 5

Arbitration panel ruling

1. The arbitration panel shall notify its ruling to the Parties and to the Stabilisation and Association Committee within 90 days from the date of the establishment of the arbitration panel. Where it considers that this deadline cannot be met, the chairperson of the panel must notify the Parties and the Stabilisation and Association Committee in writing, stating the reasons for the delay. Under no circumstances should the ruling be issued later than 120 days from the date of the establishment of the panel.

2. In cases of urgency, including those involving perishable goods, the arbitration panel shall make every effort to issue its ruling within 45 days from the date of the establishment of the panel. Under no circumstance should it take longer than 100 days from the date of the establishment of the panel. The arbitration panel may give a preliminary ruling within 10 days of its establishment on whether it deems the case to be urgent.

3. The ruling shall set out the findings of fact, the applicability of the relevant provisions of this Agreement and the basic rationale behind any findings and conclusions that it makes. The ruling may contain recommendations on the measures to be adopted for compliance with it.

4. The complaining Party may withdraw its complaint by written notification to the chairperson of the arbitration panel, the Party complained against and the Stabilisation and Association Committee, at any time before the ruling is notified to the Parties and the Stabilisation and Association Committee. Such withdrawal is without prejudice to the complaining Party's right to introduce a new complaint regarding the same measure at a later point in time.

5. The arbitration panel shall, at the request of both Parties, suspend its work at any time for a period not exceeding 12 months. Once the period of 12 months has been exceeded, the authority for the establishment of the panel will lapse, without prejudice to the right of the complaining Party to request at a later stage the establishment of a panel on the same measure.

Section II

Compliance

Article 6

Compliance with the arbitration panel ruling

Each Party shall take any measure necessary to comply with the arbitration panel ruling, and the Parties will endeavour to agree on the reasonable period of time to comply with the ruling.

Article 7

Reasonable period of time for compliance

1. No later than 30 days after the notification of the arbitration panel ruling to the Parties, the Party complained against shall notify the complaining Party of the time it will require for compliance (hereinafter referred to as 'reasonable period of time'). Both parties shall endeavour to agree on the reasonable period of time.

2. If there is disagreement between the Parties on the reasonable period of time to comply with the arbitration panel ruling, the complaining Party may request the Stabilisation and Association Committee, within 20 days of the notification made under paragraph 1, to reconvene the original arbitration panel to determine the length of the reasonable period of time. The arbitration panel shall notify its ruling within 20 days from the date of the submission of the request.

3. In the event of the original panel, or some of its members, being unable to reconvene, the procedures set out in Article 4 of this Protocol shall apply. The time limit for notifying the ruling remains 20 days from the date of the panel's establishment.

Article 8

Review of any measure taken to comply with the arbitration panel ruling

1. The Party complained against shall notify the other Party and the Stabilisation and Association Committee before the end of the reasonable period of time of any measure that it has taken to comply with the arbitration panel ruling.

2. In the event that there is disagreement between the Parties concerning the compatibility of any measure notified under paragraph 1, with the provisions referred to in Article 2, the complaining Party may request the original arbitration panel to rule on the matter. Such request shall explain why the measure is not in conformity with this Agreement. Once re-convened, the arbitration panel will issue its ruling within 45 days of the date of its re-establishment.

3. In the event of the original arbitration panel, or some of its members, being unable to reconvene, the procedures laid down in Article 4 shall apply. The time limit for notifying the ruling remains 45 days from the date of the panel's establishment.

Article 9

Temporary remedies in case of non-compliance

1. If the Party complained against fails to notify any measure taken to comply with the arbitration panel ruling before the expiry of the reasonable period of time, or if the arbitration panel rules that the measure notified under Article 8 paragraph 1 is not in conformity with that Party's obligations under this Agreement, the Party complained against shall, if so requested by the complaining Party, present an offer for temporary compensation.

2. If no agreement on compensation is reached within 30 days of the end of the reasonable period of time, or of the arbitration panel ruling under Article 8 that a measure taken to comply is not in conformity with this Agreement, the complaining Party shall be entitled, upon notification to the other Party and to the Stabilisation and Association Committee, to suspend the application of benefits granted under the provisions referred to in Article 2 of this Protocol at a level equivalent to the adverse economic impact caused by the violation. The complaining Party may implement the suspension 10 days after the date of the notification, unless the Party complained against has requested arbitration under paragraph 3.

3. If the Party complained against considers that the level of suspension is not equivalent to the adverse economic impact caused by the violation, it may request in writing to the chairperson of the original arbitration panel before the expiry of the 10 day period referred to in paragraph 2 for the reconvening of the original arbitration panel. The arbitration panel shall notify its ruling on the level of the suspension of benefits to the Parties and to the Stabilisation and Association Committee within 30 days of the date of the submission of the request. Benefits shall not be suspended until the arbitration panel has issued its ruling, and any suspension shall be consistent with the ruling of the arbitration panel.

4. The suspension of benefits shall be temporary and shall be applied only until any measure found to violate this Agreement has been withdrawn or amended so as to bring it into conformity with this Agreement, or until the Parties have agreed to settle the dispute.

Article 10

Review of any measure taken to comply after the suspension of benefits

1. The Party complained against shall notify the other Party and the Stabilisation and Association Committee of any measure it has taken to comply with the ruling of the arbitration panel and of its request for an end to the suspension of benefits applied by the complaining Party.

2. If the Parties do not reach an agreement on the compatibility of the notified measure with this Agreement within 30 days of the date of the submission of the notification, the complaining Party may request in writing to the chairperson of the original arbitration panel to rule on the matter. Such request shall be notified simultaneously to the other Party and to the Stabilisation and Association Committee. The arbitration panel ruling shall be notified within 45 days of the date of the submission of the request. If the arbitration panel rules that any measure taken to comply is not in conformity with this Agreement, the arbitration panel will determine whether the complaining party can continue the suspension of benefits at the original or at a different level. If the arbitration panel rules that any measure taken to comply is in conformity with this Agreement, the suspension of benefits shall be terminated.

3. In the event of the original arbitration panel, or some of its members, being unable to reconvene, the procedures laid down in Article 4 shall apply. The period for notifying the ruling remains 45 days from the date of the panel's establishment.

Section III

Common provisions

Article 11

Open Hearings

The meetings of the arbitration panel shall be open to the public under the conditions laid down in the Rules of Procedure referred to in Article 18, unless the arbitration panel decides otherwise on its own motion or at the request of the Parties.

Article 12

Information and technical advice

At the request of a Party, or upon its own initiative, the panel may seek information from any source it deems appropriate for the panel proceeding. The panel will also have the right to seek the opinion of experts as it deems appropriate. Any information obtained in this manner must be disclosed to both Parties and shall be open for comments. Interested parties shall be authorised to submit *amicus curiae* briefs to the arbitration panel under the conditions laid down in the Rules of Procedure referred to in Article 18.

Article 13

Interpretation principles

Arbitration panels shall apply and interpret the provisions of this Agreement in accordance with customary rules of interpretation of public international law, including the Vienna Convention on the Law of Treaties. They shall not give an interpretation of the acquis communautaire. The fact that a provision is identical in substance to a provision of the Treaty establishing the European Communities shall not be decisive in the interpretation of that provision.

Article 14

Arbitration panel decisions and rulings

1. All decisions of the arbitration panel, including the adoption of the ruling, shall be taken by majority vote.

2. All rulings of the arbitration panel shall be binding on the Parties. They shall be notified to the Parties and to the Stabilisation and Association Committee, which shall make them publicly available unless it decides by consensus not to do so.

CHAPTER III

General provisions

Article 15

List of arbitrators

1. The Stabilisation and Association Committee shall, no later than six months after the entry into force of this Protocol, establish a list of fifteen individuals who are willing and able to serve as arbitrators. Each of the Parties shall select five individuals to serve as arbitrators. The Parties shall also agree on five individuals which shall act as chairperson to arbitration panels. The Stabilisation and Association Committee will ensure that the list is always maintained at this level.

2. Arbitrators should have specialised knowledge and experience of law, international law, Community law and/or international trade. They shall be independent, serve in their individual capacities and not be affiliated with, or take instructions from any organisation or government, and shall comply with the Code of Conduct referred to in Article 18.

Article 16

Relation with WTO obligations

Upon the eventual accession of Montenegro to the World Trade Organisation (WTO), the following shall apply:

(a) Arbitration panels set up under this Protocol shall not adjudicate disputes on each Party's rights and obligations under the Agreement establishing the World Trade Organisation;

(b) The right of any of the Parties to have recourse to the dispute settlement provisions of this Protocol shall be without prejudice to any action in the WTO framework, including dispute settlement action. However, where a Party has, with regard to a particular measure, instituted a dispute settlement proceeding, either under Article 3(1) of this Protocol or under the WTO Agreement, it may not institute a dispute settlement proceeding regarding the same measure in the other forum until the first proceeding has ended. For purposes of this paragraph, dispute settlement proceedings under the WTO Agreement are deemed to be initiated by a Party's request for the establishment of a panel under Article 6 of the Understanding on Rules and Procedures Governing the Settlement of Disputes of the WTO;

(c) Nothing in this Protocol shall preclude a Party from implementing the suspension of obligations authorised by a WTO Dispute Settlement Body.

Article 17

Time limits

1. All time limits laid down in this Protocol shall be counted in calendar days from the day following the act or fact to which they refer.

2. Any time limit referred to in this Protocol may be extended by mutual agreement of the Parties.

3. Any deadline referred to in this Protocol may also be extended by the chairperson of the arbitration panel, on a reasoned request of either of the Parties or upon his or her own initiative.

Article 18

Rules of Procedure, Code of Conduct and modification of this Protocol

1. The Stabilisation and Association Council shall, no later than six months after the entry into force of this Protocol, establish Rules of Procedure for the conduct of the arbitration panel proceedings.

2. The Stabilisation and Association Council shall, no later than six months after the entry into force of this Protocol, complement the Rules of Procedure with a Code of Conduct guaranteeing the independence and impartiality of arbitrators.

3. The Stabilisation and Association Council may decide to modify this Protocol.

PROTOCOL 8

on the general principles for the participation of Montenegro in Community programmes

Article 1

Montenegro shall be allowed to participate in the following Community programmes:

(a) the programmes which are listed in the Annex to the Framework Agreement between the European Community and Serbia and Montenegro on the general principles for the participation of Serbia and Montenegro in Community programmes [1];

(b) programmes established or renewed after 27 July 2005 and which contain an opening clause which foresees the participation of Montenegro.

Article 2

Montenegro shall contribute financially to the general budget of the European Union corresponding to the specific programmes in which it participates.

Article 3

Montenegro's representatives shall be allowed to take part, as observers and for the points which concern Montenegro, in the management committees responsible for monitoring the programmes to which Montenegro contributes financially.

Article 4

Projects and initiatives submitted by participants from Montenegro shall, as far as possible, be subject to the same conditions, rules and procedures pertaining to the programmes concerned as are applied to Member States.

Article 5

The specific terms and conditions regarding the participation of Montenegro in each particular programme, in particular the financial contribution payable, will be determined by agreement, in the form of a Memorandum of Understanding, between the European Commission, acting on behalf of the Community, and Montenegro.

If Montenegro applies for Community external assistance on the basis of Council Regulation (EC) No 1085/2006 of 17 July 2006 establishing an Instrument for Pre-Accession Assistance (IPA) [2] or pursuant to any similar Regulation providing for Community external assistance to Montenegro that may be adopted in future, the conditions governing the use by Montenegro of the Community assistance shall be determined in a financing agreement.

Article 6

The Memorandum of Understanding shall stipulate, in accordance with the Community's Financial Regulation, that financial control or audits will be carried out by, or under the authority of, the European Commission, European Anti-Fraud Office (OLAF) and the Court of Auditors of the European Communities.

Detailed provisions shall be made on financial control and auditing, administrative measures, penalties and recovery enabling the European Commission, OLAF and the Court of Auditors to be granted powers equivalent to their powers with regard to beneficiaries or contractors established in the Community.

Article 7

No later than three years after the date of entry into force of this Agreement, and every three years thereafter, the Stabilisation and Association Council may review the implementation of this Protocol on the basis of actual participation of Montenegro in one or more Community programmes.

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[1] OJ L 192, 22.7.2005, p. 29.

[2] OJ L 210, 31.7.2006, p. 82.

FINAL ACT

The plenipotentiaries of:

THE KINGDOM OF BELGIUM,

THE REPUBLIC OF BULGARIA,

THE CZECH REPUBLIC,

THE KINGDOM OF DENMARK,

THE FEDERAL REPUBLIC OF GERMANY,

THE REPUBLIC OF ESTONIA,

IRELAND,

THE HELLENIC REPUBLIC,

THE KINGDOM OF SPAIN,

THE FRENCH REPUBLIC,

THE ITALIAN REPUBLIC,

THE REPUBLIC OF CYPRUS,

THE REPUBLIC OF LATVIA,

THE REPUBLIC OF LITHUANIA,

THE GRAND DUCHY OF LUXEMBOURG,

THE REPUBLIC OF HUNGARY,

MALTA,

THE KINGDOM OF THE NETHERLANDS,

THE REPUBLIC OF AUSTRIA,

THE REPUBLIC OF POLAND,

THE PORTUGUESE REPUBLIC,

ROMANIA,

THE REPUBLIC OF SLOVENIA,

THE SLOVAK REPUBLIC,

THE REPUBLIC OF FINLAND,

THE KINGDOM OF SWEDEN,

THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND

Contracting Parties to the Treaty establishing the European Community, the Treaty establishing the European Atomic Energy Community, and the Treaty on European Union, hereinafter referred to as 'the Member States', and of

the EUROPEAN COMMUNITY and the EUROPEAN ATOMIC ENERGY COMMUNITY, hereinafter referred to as 'the Community'

of the one part, and

the plenipotentiaries of the THE REPUBLIC OF MONTENEGRO, hereinafter referred to as 'Montenegro',

of the other part,

meeting in Luxembourg on the fifteenth day of October in the year 2007 for the signature of the Stabilisation and Association Agreement between the European Communities and their Member States, of the one part, and Montenegro, of the other part, hereinafter referred to as 'this Agreement', have adopted the following texts:

this Agreement and its Annexes I to VII, namely:

Annex I (Article 21) – Montenegrin tariff concessions for Community industrial products

Annex II (Article 26) – Definition of 'baby beef' products

Annex III (Article 27) – Montenegrin tariff concessions for Community agricultural products

Annex IV (Article 29) – Community concessions for Montenegrin fishery products

Annex V (Article 30) – Montenegrin concessions for Community fishery products

Annex VI (Article 52) – Establishment: 'financial services'

Annex VII (Article 75) – Intellectual, industrial and commercial property rights

and the following Protocols:

Protocol 1 (Article 25) – Trade on processed agricultural products

Protocol 2 (Article 28) – Wine and spirit drinks

Protocol 3 (Article 44) – Definition of the concept of originating products and methods of administrative cooperation

Protocol 4 (Article 61) – Land transport

Protocol 5 (Article 73) – State aid to the steel industry

Protocol 6 (Article 99) – Mutual administrative assistance in customs matters

Protocol 7 (Article 129) – Dispute settlement

Protocol 8 (Article 132) – General principles for the participation of Montenegro in Community programmes.

The plenipotentiaries of the Member States and of the Community and the plenipotentiaries of Montenegro have adopted the texts of the joint declaration listed below and annexed to this Final Act:

Joint Declaration on Article 75

The plenipotentiaries of Montenegro have taken note of the Declaration listed below and annexed to this Final Act:

Declaration by the Community and its Member States

Съставено в Люксембург, на петнайсти октомври две хиляди и седма година.

Hecho en Luxemburgo, el quince de octubre de dos mil siete.

V Lucemburku dne patnáctého října dva tisíce sedm.

Udfærdiget i Luxembourg den femtende oktober to tusind og syv.

Geschehen zu Luxemburg am fünfzehnten Oktober zweitausendsieben.

Kahe tuhande seitsmenda aasta oktoobrikuu viieteistkümnendal päeval Luxembourgis.

Έγινε στο Λουξεμβούργο, στις δέκα πέντε Οκτωβρίου δύο χιλιάδες επτά.

Done at Luxembourg on the fifteenth day of October in the year two thousand and seven.

Fait à Luxembourg, le quinze octobre deux mille sept.

Fatto a Lussemburgo, addì quindici ottobre duemilasette.

Luksemburgā, divtūkstoš septītā gada piecpadsmitajā oktobrī.

Priimta du tūkstančiai septintųjų metų spalio penkioliktą dieną Liuksemburge.

Kelt Luxembourgban, a kétezer-hetedik év október tizenötödik napján.

Magħmul fil-Lussemburgu, fil-ħmistax-il jum ta' Ottubru tas-sena elfejn u sebgħa.

Gedaan te Luxemburg, de vijftiende oktober tweeduizend zeven.

Sporządzono w Luksemburgu dnia piętnastego października roku dwa tysiące siódmego.

Feito em Luxemburgo, em quinze de Outubro de dois mil e sete.

Întocmit la Luxembourg, la cincisprezece octombrie două mii şapte.

V Luxemburgu dňa pätnásteho októbra dvetisícsedem.

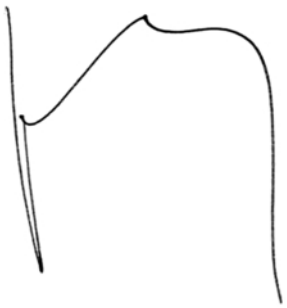
V Luxembourgu, dne petnajstega oktobra leta dva tisoč sedem.

Tehty Luxemburgissa viidentenätoista päivänä lokakuuta vuonna kaksituhattaseitsemän.

Som skedde i Luxemburg den femtonde oktober tjugohundrasju.

Sačinjeno u Luksemburgu petnaestog oktobra dvije hiljade i sedme godine.

Pour le Royaume de Belgique
Voor het Koninkrijk België
Für das Königreich Belgien



Cette signature engage également la Communauté française, la Communauté flamande, la Communauté germanophone, la Région wallonne, la Région flamande et la Région de Bruxelles-Capitale.

Deze handtekening verbindt eveneens de Vlaamse Gemeenschap, de Franse Gemeenschap, de Duitstalige Gemeenschap, het Vlaamse Gewest, het Waalse Gewest en het Brussels Hoofdstedelijk Gewest.

Diese Unterschrift bindet zugleich die Deutschsprachige Gemeinschaft, die Flämische Gemeinschaft, die Französische Gemeinschaft, die Wallonische Region, die Flämische Region und die Region Brüssel-Hauptstadt.

За Република България



Za Českou republiku



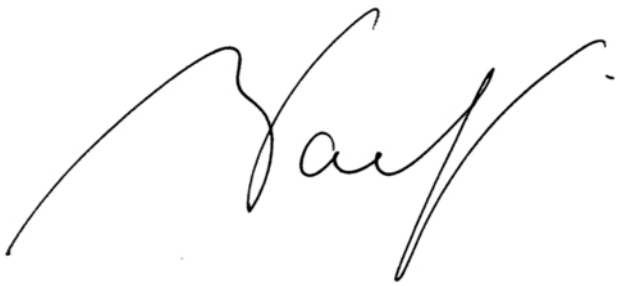
På Kongeriget Danmarks vegne



Für die Bundesrepublik Deutschland



Eesti Vabariigi nimel



Thar cheann Na hÉireann
For Ireland



Για την Ελληνική Δημοκρατία



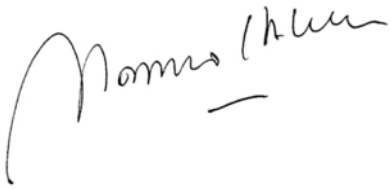
Por el Reino de España



Pour la République française



Per la Repubblica italiana



Για την Κυπριακή Δημοκρατία



Latvijas Republikas vārdā



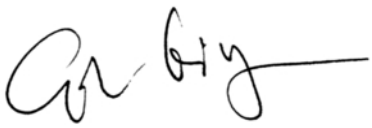
Lietuvos Respublikos vardu



Pour le Grand-Duché de Luxembourg



A Magyar Köztársaság részéről



Ghal Malta



Voor het Koninkrijk der Nederlanden



Für die Republik Österreich



W imieniu Rzeczypospolitej Polskiej



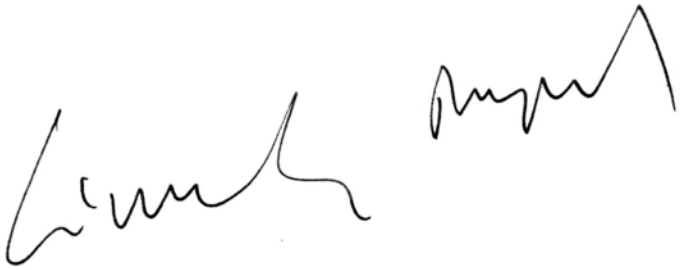
Pela República Portuguesa



Pentru România



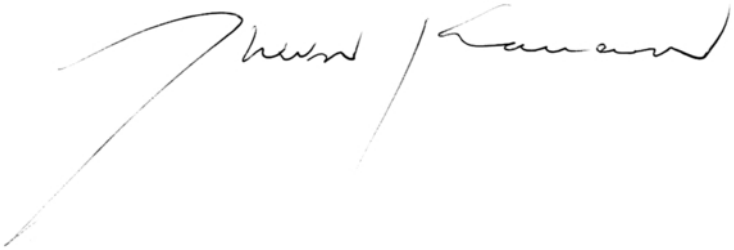
Za Republiko Slovenijo



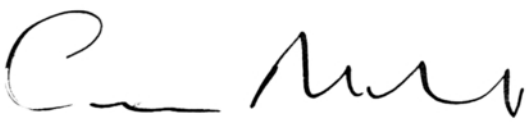
Za Slovenskú republiku



Suomen tasavallan puolesta
För Republiken Finland



För Konungariket Sverige



For the United Kingdom of Great Britain and Northern Ireland



За Европейската общност
Por las Comunidades Europeas
Za Evropská společenství
For De Europæiske Fællesskaber
Für die Europäischen Gemeinschaften
Euroopa ühenduste nimel
Για τις Ευρωπαϊκές Κοινότητες
For the European Communities
Pour les Communautés européennes
Per le Comunità europee
Eiropas Kopienu vārdā
Europos Bendrijų vardu
Az Európai Közösségek részéről
Għall-Komunitajiet Ewropej
Voor de Europese Gemeenschappen
W imieniu Wspólnot Europejskich
Pelas Comunidades Europeias
Pentru Comunitatea Europeană
Za Európske spoločenstvá
Za Evropske skupnosti
Euroopan yhteisöjen puolesta
På europeiska gemenskapernas vägnar



U ime Republike Crne Gore



JOINT DECLARATIONS

JOINT DECLARATION ON ARTICLE 75

The Parties agree that for the purpose of this Agreement, intellectual and industrial property includes in particular copyright, including the copyright in computer programmes, and neighbouring rights, the rights relating to databases, patents including supplementary protection certificates, industrial designs, trademarks and service marks, topographies of integrated circuits, geographical indications, including appellation of origins, and plant variety rights.

The protection of commercial property rights includes in particular the protection against unfair competition as referred to in Article 10a of the Paris Convention for the Protection of Industrial Property and the protection of undisclosed information as referred to in Article 39 of the Agreement on Trade Related Aspects of Intellectual Property Rights (TRIPS Agreement).

The Parties further agree that the level of protection referred to in Article 75, paragraph 3 of this Agreement, shall include the availability of the measures, procedures and remedies provided for in Directive 2004/48/EC of the European Parliament and of the Council of 29 April 2004 on the enforcement of intellectual property rights [1].

DECLARATION BY THE COMMUNITY AND ITS MEMBER STATES

Considering that exceptional trade measures are granted by the Community to countries participating in or linked to the EU Stabilisation and Association process including Montenegro on the basis of Regulation (EC) No 2007/2000, the Community and its Member States declare:

that, in application of Article 35 of this Agreement, those of the unilateral autonomous trade measures which are more favourable shall apply in addition to the contractual trade concessions offered by the Community in this Agreement as long as Council Regulation (EC) No 2007/2000 of 18 September 2000 introducing exceptional trade measures for countries and territories participating in or linked to the European Union's Stabilisation and Association process [2], applies;

that, in particular, for the products covered by Chapters 7 and 8 of the Combined Nomenclature, for which the Common Customs Tariff provides for the application of *ad valorem* customs duties and a specific customs duty, the reduction shall apply also to the specific customs duty in derogation from the relevant provision of Article 26, paragraph 2.

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[1] OJ L 157, 30.4.2004, p. 45. Corrected version in OJ L 195, 2.6.2004, p. 16.

[2] OJ L 240, 23.9.2000, p. 1. Regulation as last amended by Council Regulation (EC) No 530/2007 (OJ L 125, 15.5.2007, p. 1).